LAW CRUX



FAMILY LAW – I

HINDU LAW & MUSLIM LAW

AUTHORED & CURATED BY

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PAPER LB-105 · COMPLETE 8-UNIT DOCTRINAL & CASE-LAW ARCHITECTURE

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LAW CRUX · PAPER LB-105 · UNIT 01 Hindu Marriage Act, 1955 (Ss. 2, 3, 5, 7, 7-A, 8, 11, 12, 16–18) · PCMA, 2006 · 10 Prescribed DU Cases

Marriage under Hindu Law (Hindu Marriage Act, 1955)

Nature of Hindu Marriage (Sacrament vs Contract), Applicability (S. 2), Custom (S. 3(a)), Conditions (S. 5), Ceremonies & S. 7-A, Registration (S. 8), Void & Voidable Marriages (Ss. 11–12), Legitimacy (S. 16) & Bigamy (Ss. 17–18)

1

Concept of Marriage in General & Nature of Hindu Marriage

Why examiners love this: it opens every "validity" answer and short-notes. DU expects the classical statutory and judicial formulation.

1.1 Marriage in General — Universal Concept

Lexis Family Law Lectures Ch.1 (p.1–3, in your uploads): "Marriage is the foundation of a stable family; it accords status and security to parties and offspring. All legal systems provide for certain conditions for a valid marriage." Three juristic lenses:

Lens	Meaning	Hindu law position
Contract	Consensual union creating rights/duties; dissoluble	Not pure contract — consent now relevant (Sec 5(ii), 12(1)(c)), but no offer-acceptance like Nikah; minors could marry pre-1955 via guardians (factum valet).
Sacrament (Samskara)	Sacred, indissoluble religious tie; dharma, praja, rati	**Classical view:** one of 10 samskaras, only samskara for Shudras/women; saptapadi creates indissoluble bond. Still quoted in *Pinninti* (Madras texts) & *Seema* (Rigvedic ideal).
Status	Legal condition conferring legitimacy, maintenance, succession	**Modern codified view:** HMA creates a **statutory status** — Sec 11/12/16/18 fix consequences; divorce (Sec 13) makes it dissoluble. Hence hybrid.

Exam line (mug this): "Under classical Hindu law marriage was a **sacrament**; under HMA 1955 it retains sacramental solemnisation (Sec 7) but consequences are **statutory** — monogamy, age, void/voidable, divorce — hence it is best described as **sacrament + contract + status**." — Modern Family Law Jurists; approved in DU lectures.

1.2 Classical Aims & 8 Forms (Smriti Background — Sec 4 saves only what HMA doesn't cover)

Three aims: *Dharma* (religious duty), *Praja* (progeny, esp. son for sraddha), *Rati* (companionship/pleasure). **Eight forms** in Manu (only Brahma & Asura discussed in *Lokhande*):

Approved (Dharmya) — 4	Unapproved (Adharmya) — 4	HMA relevance today
Brahma (gift to learned groom), Daiva, Arsha, Prajapatya	Asura (bride-price), Gandharva (love union), Rakshasa (capture), Paishacha (seduction)	HMA **does not preserve forms**; any two Hindus may marry if Sec 5 + Sec 7 satisfied. But *Lokhande* holds even Gandharva needs **invocation + saptapadi** unless custom abrogates. Forms now only evidentiary for "customary rites".

Sec 4 overriding effect: Any Smriti text/custom inconsistent with HMA ceases. So child-marriage sacramental validity (factum valet) survives **only** because HMA Sec 11/12 deliberately omit age — see *Pinninti* full bench reasoning (Sec 4 + Sec 5 scheme).

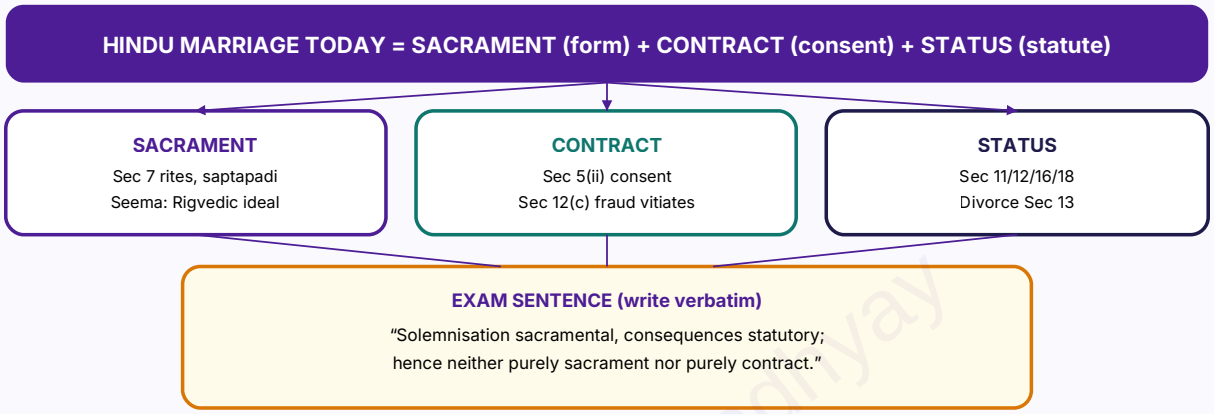
1.3 Pre-1955 → Post-1955 Transformation (favourite 5-marker)

Feature	Pre-1955 (Shastric + Custom)	Post-HMA 1955 (Codified)
Number	Polygamy allowed for males	**Monogamy** Sec 5(i) + Sec 17/494 punish bigamy
Consent / age	Minor/lunatic could marry; guardians consent; factum valet cured defects	Sec 5(ii)(iii); guardian clause (vi) deleted 1978; PCMA 2006 overlays
Caste / gotra / sapinda	Inter-caste, sagotra barred by custom	Caste no bar; only Sec 5(iv)(v) prohibited/sapinda (custom can permit)
Dissolution	Indissoluble (except custom/Nair etc., Sec 29(2) saved)	Divorce Sec 13, judicial separation Sec 10, annulment Sec 11/12
Ceremony	Homa + saptapadi essential (Settled Hindu Law)	Sec 7: customary rites of **either party**; saptapadi only if part of that custom; 7-A TN simplifies

1.4 Nature — Case-law Anchors (quote in answers)

- **Venkatacharyulu v. Rangacharyulu (1891) 14 Mad 316** (cited in *Pinninti*): "Saptapadi creates religious tie which once created cannot be untied; minor or unsound mind does not prevent valid samskara." → Use for sacrament point.
- **Sivanandy v. Bhagavathyamma AIR 1962 Mad 400** (cited *Pinninti*): Minor's marriage valid; doctrine of **factum valet — quod fieri non debuit, factum valet** (what ought not be done, yet done, is valid).
- **Lata Singh v. State of UP (2006) 5 SCC 475** (Lexis p.5): Right to marry person of choice = Art 21; inter-caste marriage legal, in national interest.
- **X v. Hospital Z (1998) 8 SCC 296 & (2003) 1 SCC 500** (Lexis p.4–5): Right to marry not absolute; suspended during communicable disease; but with informed consent no bar — balances sacrament with public health.
- **Lily Thomas / Sarla Mudgal line:** "Marriage under every personal law is sacred; under Hindu law a sacrament — both to be preserved; religion not a commodity to exploit." (DU p.19, para 39).

NATURE OF HINDU MARRIAGE — EXAM FLOWCHART



2

Sec 2 HMA — Applicability: Who is a Hindu?

The threshold question in every validity/bigamy problem. If HMA doesn't apply, Sec 5/11/17 don't apply at all.

`BARE ACT — SEC 2 (SUMMARISED, HMA PP.3-4 IN UPLOADS)` **Sec 2(1)(a):** Hindu by religion in any form/development — Virashaiva, Lingayat, Brahmo, Prarthana, Arya Samaj.
Sec 2(1)(b): Buddhist, Jaina, Sikh by religion.
Sec 2(1)(c): Any other person **domiciled** in India who is **not Muslim, Christian, Parsi, Jew** — unless proved not governed by Hindu law/custom before Act.
Explanation: Child (legitimate/illegitimate) of Hindu parents; or one Hindu parent + brought up as Hindu; convert/reconvert to Hindu/Buddhist/Jaina/Sikh.
Sec 2(2): Nothing applies to Scheduled Tribes (Art 366(25)) unless Centre notifies.
Sec 2(3): "Hindu" in Act includes all above persons.
Sec 1(2): Extends to whole India (J&K included since Act 34/2019) + Hindus domiciled in India but outside territories.

2.1 Clause-by-clause Deep Dive

A. Sec 2(1)(a) — Hindu by religion (no definition!)

- **No statutory definition** of "Hindu" in HMA / Succession Act — Privy Council in **Bhagwan Koer v. J.C. Bose (1903) 31 Cal 11** (quoted *Surajmani* para 4, DU p.1): "Hindu religion marvellously catholic and elastic... easier to say who are not Hindus." Test is **negative + community perception**.
- Includes **Virashaiva/Lingayat/Arya Samaj etc.** — reformist sects remain Hindu. Lingayat separate-religion claim rejected for HMA purposes.
- **Atheist/apostate Hindu?** One who rejects rituals but not converted to Muslim/Christian/Parsi/Jew remains Hindu under 2(1)(c) (domicile + negative test).

B. Sec 2(1)(b) — Buddhist/Jaina/Sikh

- Constitution Art 25 Expl. II deems them Hindus for temple-entry; HMA follows. PIL to exclude Sikhs rejected in 2010 (CJI Balakrishnan — Lexis p.6): matter for Government, not Court.
- Jain-Buddhist customary marriages valid under Sec 7 if Sec 5 met.

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C. Sec 2(1)(c) — Residuary: domicile + negative test

- Two cumulative tests: **(i) domiciled in India** (Sondur Gopal v. Sondur Rajni AIR 2013 SC 2678: domicile, not residence/citizenship; US citizen domiciled in India still governed), **(ii) not Muslim/Christian/Parsi/Jew**.
- Proviso-burden: defendant must **prove** he was not governed by Hindu law before 1955 (e.g., custom of tribe). Mere assertion insufficient.
- **Inter-religion marriages:** Hindu + Christian/Muslim **cannot** marry under HMA (both must be Hindus per Sec 5 "between any two Hindus"). Remedy: Special Marriage Act 1954. DU 2011 Q1(a): Hindu male + Christian girl = **void under HMA** (see also Gullipilli Sowria Raj AIR 2009 SC 1085).
- **Conversion cases:** Hindu at marriage → converts later: HMA still governs first marriage (Vilayat Raj v. Sunita AIR 1983 Del 351). Wife converts to Islam before Sec 11 petition: HMA petition fails (Bhavna Wasif). Person failing to prove conversion to Hinduism cannot claim HMA divorce (Arife v. Gopal Dutt 2010 Del — Lexis p.7).

D. Explanation — Children & Converts

Category	Test	Example
Both parents Hindu	Auto Hindu (legit/illegit)	Child of Hindu parents living abroad but domiciled in India
One parent Hindu	+ **brought up** as Hindu tribe/ community/family	Hindu father + Christian mother, child raised Hindu → Hindu
Convert / re-convert	Bona fide conversion by declared belief + conduct	Perumal v. Ponnuswami: bona fide declaration suffices; feigned conversion for bigamy = no protection (*Lily Thomas*)

E. Sec 2(2) — Scheduled Tribes excluded

- Members of ST (Art 342 Order 1950 as amended) **outside HMA** unless Centre notifies under 2(2) — never generally notified.
- **Surajmani rule:** Oraon + Santhal (both in Part XII ST Order) = deemed tribals; even if they "profess Hinduism", Sec 2(2) excludes; governed by **Santhal custom**, not Sec 5/11/17/494 via HMA. Custom must be **pleaded + proved ancient/certain/reasonable**; book reference alone insufficient; custom cannot create criminal offence (Art 20).
- Exam trap: Tribal second marriage → **no 494 via Sec 17** unless prosecution proves (i) tribal custom prohibits bigamy + makes second marriage void, (ii) second marriage validly solemnised per that custom.

SEC 2 APPLICABILITY — DECISION FLOWCHART (use in every problem)

START: Are BOTH parties persons under Sec 2(1)(a)/(b)/(c) + Expl.?
↓ YES →
Is either party ST under Art 342 Order? (Sec 2(2)) → If YES, HMA does NOT apply (Surajmani) → apply tribal custom only
↓ NO →
Is marriage between two Hindus (Sec 5 opening words)? → If inter-religion, HMA void; advise SMA 1954
↓ YES →
HMA APPLIES → test Sec 5(i)–(v) + Sec 7 + Sec 11/12 + Sec 17/18

Common DU trap — Domicile vs Residence vs Place of marriage: R. Sridharan (Mad DB): NJ Green-card Hindu still HMA if domiciled in India. Shashi Leekha (Bom 2013): Jammu marriage under J&K Act 1980 can still petition in Bombay under HMA (jurisdiction follows residence). Minoti Anand (Bom 2009): Two Hindus married in Japan per Japanese rites + registered under Foreign Marriages Act → relief only under SMA via FMA Sec 18, **not HMA** — because Sec 7 customary Hindu ceremony absent.

3
Sec 3 Definitions — Custom, Blood, Sapinda, Prohibited Degrees

DU problem-questions on uncle-niece / cousins / step-relations are solved **only** with Sec 3(f)(g) + Explanation. Learn tables by heart.

`SEC 3(A) — CUSTOM & USAGE` "Any rule continuously + uniformly observed for long time, obtaining force of law among Hindus in local area/tribe/community/group/family" — **Provisos:** (i) certain, not unreasonable, not opposed to public policy; (ii) family custom not discontinued.
Proof burden (Surajmani para 10, Ramalakshmi Ammal 14 MIA 570): Plead + prove by **clear & unambiguous evidence**; ancient, certain, reasonable, invariable; construed **strictly** (derogation from general law). Mere book / oral assertion fails.

3.1 Full / Half / Uterine Blood — Sec 3(c)(d)

Type	Definition	Memory hook	Exam use
Full blood	Common ancestor + **same wife** (same father + same mother)	Full = Full same	Sec 3(f)(g) Explanation: relationship **includes** half/uterine + illegitimate + adoptive. So half-brother–sister marriage equally barred.

Type	Definition	Memory hook	Exam use
Half blood	Common ancestor + **different wives** (same father, different mothers)	Half = Half same (father)	
Uterine blood	Common ancestress + **different husbands** (same mother, different fathers)	Uterine = Uterus same	

3.2 Sapinda — Sec 3(f) (Sec 5(v))

`SEC 3(F) TEXT` **(i)** Sapinda relationship extends to **3rd generation (inclusive) through mother** and **5th (inclusive) through father**, counting the person concerned as **generation 1**, tracing upwards.
(ii) Two persons are sapindas if **one is lineal ascendant of other** within limits, OR they have a **common lineal ascendant** within limits with reference to **each** of them.

Line	Count (person = 1)	Sapinda boundary	Example
Through **father**	1=self, 2=father, 3=grandfather, 4=great-grandfather, 5=great-great-grandfather	Common ancestor must be within **5** for **both**	Marriage with father's brother's granddaughter often sapinda (common ancestor = grandfather within 3–4).
Through **mother**	1=self, 2=mother, 3=maternal grandfather, 4=maternal great-grandfather (out)	Within **3** for both	Mother's brother's daughter: common ancestor maternal grandfather = gen 3 for both → **sapinda** (also prohibited).

Counting trick (DU expects diagram): Always draw two upward chains. If EITHER chain exceeds limit (father >5 or mother >3), they are **not sapinda** via that ancestor. DU 2015 Q1(i): paternal grandfather's sister's son's son — trace: common ancestor = paternal great-grandfather? Count carefully; usually beyond 5 → valid on sapinda, but check prohibited list separately.

3.3 Prohibited Degrees — Sec 3(g) (Sec 5(iv)) — MUG TABLE

`SEC 3(G) FOUR CLAUSES` **(i)** One is **lineal ascendant** of other (parent/grandparent...) — infinite.
(ii) One was **wife/husband of lineal ascendant/descendant** of other (e.g., step-mother, son's widow, father's widow).
(iii) One was **wife of brother / father's or mother's brother / grandfather's or grandmother's brother** of other (i.e., brother's wife, uncle's wife, grand-uncle's wife).
(iv) Two are **brother & sister, uncle & niece, aunt & nephew, children of brother & sister / two brothers / two sisters** (i.e., siblings + first cousins — paternal & maternal, cross & parallel).

DU favourite fact	Sec 3(g) clause	Result (unless custom permits)
Uncle–niece (Gopal–Jaya 2017; maternal uncle–niece 2011)	(iv) uncle & niece	`VOID 11 + 5(IV)` — custom rarely permits in North; permitted in South (mama–bhanji) if proved.
Children of two brothers / two sisters / brother-sister (first cousins)	(iv)	`VOID` — e.g., 2010 Q2: son & daughter of two brothers.
Son's divorced wife / son's widow; stepson–stepmother; deceased wife's sister?*	(ii) for son's wife; (iii)/(iv) analysis for others	Son's wife = `VOID` (ii). Deceased wife's sister = **valid** (not in list) — DU 2010 Q2(a) answer.
Paternal grandfather's brother's daughter's daughter (2012, 2013, 2014(2))	Not lineal; not (iii)/(iv) — **degrees counting** needed; generally **valid** unless sapinda	`VALID` (beyond prohibited list + beyond sapinda 5) — model answer below.

*Deceased wife's sister: permitted — no blood/affinal bar in 3(g). But **wife's sister during wife's lifetime + subsisting marriage** = void for bigamy 5(i), and under Muslim law irregular (Chand Patel).
*Elder brother's pregnant widow (2013/2014(2)): Hindu — valid if not sapinda/prohibited? Brother's widow = **not** in 3(g)(iii)? Check: (iii) covers wife of brother **of the other** — H marrying his own brother's widow: W was wife of H's brother → falls in (iii) → **within prohibited degrees → void** unless custom (karewa/levirate in Jats/Punjab permits — Darbara Singh AIR 2014 P&H). Muslim: widow in iddat → irregular till iddat over.

Explanation to 3(f)(g) — often missed, fetches 2 marks: Relationship includes **(i) half/uterine + full, (ii) illegitimate + legitimate, (iii) adoptive + blood**. So adopted brother–sister cannot marry; illegitimate son cannot marry father's sister, etc.

4

Sec 5 Conditions for Valid Hindu Marriage — The Heart of Unit I

Every validity problem = Sec 5 test → Sec 11/12/18 consequence. Learn the **3–1–1 scheme**: 3 void, 1 voidable, 1 valid-but-punishable.

`BARE ACT — SEC 5 (AS AMENDED 1976 + 1978 + 1999)` **(i)** neither party has a spouse living at time of marriage.
(ii) at time of marriage, neither party — **(a)** incapable of giving valid consent due to unsoundness of mind; OR **(b)** though capable of consent, suffering from mental disorder of such kind/extent as to be unfit for marriage & procreation; OR **(c)** subject to recurrent attacks of insanity ~~or epilepsy~~ ("or epilepsy" deleted 1999).
(iii) bridegroom **21 years**, bride **18 years** at time of marriage (raised from 18/15 in 1978).
(iv) not within prohibited degrees (Sec 3(g)) unless custom permits **each** of them.
(v) not sapindas (Sec 3(f)) unless custom permits **each** of them.
~~(vi) guardian consent — OMITTED 1978.~~ **Sec 5 opening words "may" held directory, not mandatory — consequences only as Sec 11/12/18 provide (Pinninti).**

MASTER CONSEQUENCE CHART — MEMORISE (Pinninti Full Bench approved)

Sec 5 clause	If violated	Sec 11 / 12?	Punishment	Other remedy
(i) Monogamy	`VOID AB INITIO`	Sec 11 + **Sec 17**	`IPC 494 (7 YRS) / 495 (10 YRS)`	First wife: divorce 13(1)(i), maintenance
(ii) Mental capacity	`VOIDABLE` at option	Sec 12(1)(b)	No punishment	Annulment; also divorce 13(1)(iii) unsoundness
(iii) Age 21/18	`VALID BUT PUNISHABLE`	**Neither 11 nor 12**	`SEC 18(A): 2 YRS + ₹1L`	Girl: divorce 13(2)(iv) option of puberty; PCMA 2006: voidable at child's option (Sec 3) / void in Sec 12/14 cases
(iv) Prohibited degrees	`VOID`	Sec 11	`SEC 18(B): 1 MONTH + ₹1000*`	—
(v) Sapinda	`VOID`	Sec 11	`SEC 18(B): 1 MONTH + ₹1000*`	—

*Sec 18(b) fine originally ₹1000 — PCMA Sec 20 enhanced 18(a) but left 18(b) untouched (criticised in Lajja material, DU p.55). Mention in answers.

4.1 Clause (i) — Monogamy (detailed in §7 Void/Bigamy)

- Applies to **both** husband & wife; "spouse living" = **valid subsisting marriage** (not void, not dissolved by death/divorce/decree). If first marriage void ab initio, second is **not** bigamous (Pinninti CrMP 809/76 argument — failed because child marriage valid).
- Second marriage during subsistence = **void under Sec 11 + 17**, punishable 494/495. Conversion does not dissolve first marriage (Sec 13 ground only) — *Lily Thomas, Sarla Mudgal*.
- Tribals: Sec 17 inapplicable (Surajmani); custom must make second void.

4.2 Clause (ii) — Mental capacity (substituted 1976)

Sub-clause	Test	Illustration
(a) incapable of valid consent due to unsoundness	**At time of marriage** — idiot/lunatic, severe retardation, intoxicationCoercion? No — consent vitiated by **mind**, not force	Marriage with person of unsound mind who cannot understand nature → voidable 12(1)(b)
(b) fit to consent but mental disorder → unfit for marriage & procreation	Schizophrenia, psychopathic disorder, persistent abnormal aggression (see Sec 13 Expl.) — need medical evidence	DU 2015 Q3: occasional mental incapacity concealed — annulment if unfitness proved; else fraud ground
(c) recurrent insanity attacks	History of repeated attacks (epilepsy removed 1999 — no longer bar)	Curable epilepsy concealment ≠ fraud (P. v. K. reliance on old cases — now a fortiori not ground)

Burden & timing: Condition tested **at time of marriage**. Post-marriage insanity = divorce ground 13(1)(iii), not annulment. Petitioner needs **medical + behavioural** evidence; mere odd behaviour insufficient.

4.3 Clause (iii) — Age: 21 / 18 (most litigated — Pinninti + Lajja + PCMA)

- **History:** 1955: 18/15 → 1978 Amendment (Act 2/1978): **21/18**; guardian clause (vi) deleted simultaneously (majority = 18, so bride major).

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- **HMA consequence alone: Valid, neither void nor voidable** — only Sec 18(a) punishment + girl's option of puberty divorce 13(2)(iv) (married <15, repudiates after 15 but before 18). Full Bench *Pinninti* overruled *P.A. Saramma* (which had held void). Ratio: Sec 11 lists only (i)(iv)(v); Sec 12 lists only (ii)-related; **expressio unius**; Sec 13(2)(iv) would be otiose if void; Child Marriage Restraint Act 1929 never voided; factum valet; Sec 4 saves old law except where HMA expressly alters.
- **PCMA 2006 overlay (Lajja):** Child = M<21/F<18; child marriage = **voidable at child's option** (Sec 3, petition within 2 yrs of majority, via guardian/CMPO if minor); **void** only if (Sec 12) minor enticed/trafficked/sold/forced OR (Sec 14) violates injunction. Maintenance/residence to girl (Sec 4), children legitimate (Sec 6), cognizable/non-bailable, CM Prohibition Officers. **HMA Sec 11/12 still unamended** — anomaly noted DU p.55.
- **Lajja holdings (2012 (193) DLT 61, Full Bench):** (1) Minor marriage under HMA = **neither void nor voidable under HMA**, but **voidable under PCMA Sec 3** at child's instance; (2) Husband **not lawful guardian** of minor wife; custody with parents/Nirmal Chhaya till majority, considering welfare + girl's wishes; (3) FIR 363/376 not automatically quashed on girl's "consent" — minority + facts (age, maturity, force) matter; ossification + school certificate weighed.

4.4 Clauses (iv) & (v) — Custom exception ("governing each of them")

- Custom must govern **both** parties (each). If boy's custom permits but girl's prohibits → barred.
- Proof as Sec 3(a): ancient, certain, reasonable, continuous, not opposed to public policy + strict proof (Surajmani). South Indian mama-bhanji, cross-cousin (mother's brother's daughter) often permitted; North generally prohibited.
- Violation → **void Sec 11** + Sec 18(b). No annulment needed but decree declaratory available; children legitimate Sec 16.

SAPINDA vs PROHIBITED — QUICK DISTINGUISHER FOR PROBLEMS

SAPINDA 3(f)/5(v)
Generational limits
Mo: 3 • Fa: 5
Ascent-based
Custom can save
PROHIBITED 3(g)/5(iv)
Listed relations
(i)–(iv) fixed
Affinal + first cousins
Custom can save
↓ Both → VOID Sec 11 if no custom ↓
ALWAYS TEST BOTH + 5(i) MONOGAMY IN EVERY PROBLEM

5
Sec 7 Solemnisation + Live-in + Sec 114 Evidence Presumption
Second-most examined after Sec 5. *Lokhande + Nagalingam* are a **mandatory pair** in every bigamy answer.

BARE ACT — SEC 7 **Sec 7(1):** Hindu marriage **may** be solemnized per **customary rites & ceremonies of either party**.
Sec 7(2): Where such rites **include saptapadi** (7 steps jointly before sacred fire), marriage **complete & binding when 7th step taken**.
State Amendments: Sec 7-A (Tamil Nadu, 1967; + Puducherry): *Suyamariyathai / Seerthiruththa* — declaration in understood language / garlanding / tying thali in presence of relatives/friends = valid, **notwithstanding Sec 7**. Retrospective validation; subject to other HMA provisions.

5.1 "Solemnized" = Celebrated with proper ceremonies in due form

- **Lokhande (AIR 1965 SC 1564, DU p.8):** Shorter Oxford meaning; "merely going through ceremonies with intent to be taken as married" ≠ solemnized. Unless marriage **solemnized**, Sec 17 voidness + 494 do not trigger — "whoever marries" = "whoever marries **validly**".
- **Essential ceremonies (Settled Hindu Law, quoted in Lokhande):** (1) **Invocation before sacred fire (homa)**, (2) **Saptapadi** — for Brahma & Asura **and equally Gandharva** unless custom abrogates with **definite evidence**. Prosecution led no custom evidence; garlanding + forehead-touching held insufficient → **acquittal**.
- **Nagalingam ((2001) 7 SCC 487, DU p.4):** Saptapadi/homa essential **only where parties admit** it is essential per their form (Priya Bala Ghosh 1971, Obulamma 1979, Santi Deb Berma 1991, Laxmi Devi 1994). Here parties in TN → **Sec 7-A applies**: thirumangalam + garlands + kanniyathan before agni, PW3 priest → **valid second marriage → bigamy proved**. No plea that saptapadi essential in their community.
- **Chandrabhagbai (Bom, Lexis p.7):** Saptapadi not mandatory if custom doesn't include; property upheld without saptapadi. **Darbara Singh (P&H 2014):** Karewa with deceased husband's brother valid per custom.

5.2 Proof in Bigamy — What prosecution must prove (Sec 7 + 494)

BIGAMY PROOF CHAIN (Lokhande → Kanwal Ram → Nagalingam)

(1) First marriage VALID + subsisting (Sec 5 + Sec 7 proved)
↓ +

by Ankur R. Upadhyay

(2) Second marriage SOLEMNIZED with proper ceremonies (Sec 7 / 7-A / proven custom) — mere admission / living together / garlands alone **insufficient** (Kanwal Ram AIR 1966 SC 614)
↓ +
(3) Second marriage VOID under Sec 17 (spouse living) — voidness is ingredient of 494 (Gopal Lal AIR 1979 SC 713)
↓ =
CONVICTION 494 (7 yrs) / 495 if concealed (10 yrs) — complaint per CrPC 198 (now BNSS) by wife/family

DU 2017 Q1(a) & 2012 Q1(iv) application: Chennai garland-only marriage between Delhi residents → **no Sec 7-A** (only TN parties/ marriage in TN per custom + declaration/thali). Mere garlands in Chennai temple ≠ solemnized → **no valid marriage at all** (and first uncle-niece marriage void for 5(iv) unless South custom permits — argue both sides). See Model Answer PYQ-1.

5.3 Sec 114 Indian Evidence Act (now BSA §119) — Presumption from long cohabitation

- **Text (Ill. + general):** Court **may presume** existence of facts likely to have happened per common course of nature + human conduct. Applied: long, continuous cohabitation as husband-wife + social recognition + children → **presumption of valid marriage + legitimacy**, rebuttable by strong contrary proof.
- **Leading presumptions:** *Badri Prasad v. Dy. Director (1978) 3 SCC 299; Tulsa v. Durghatiya (2008) 4 SCC 520; Chanmuniya v. Virendra (2011) 1 SCC 141* — presumption favours legitimacy, protects women/children; *D. Velusamy v. Patchaiammal (2010) 10 SCC 469* limits: presumption needs **marriage-like** relationship, not casual.
- **Limits — Lokhande caveat (DU p.8):** "Bare living as husband-wife does not normally give status" — presumption **cannot** supply **solemnisation proof in criminal bigamy** (strict proof needed); it operates in **civil** (maintenance, succession, legitimacy) and **only if no invalidating bar** (e.g., subsisting spouse known → no presumption).
- **How to write:** "Sec 7 requires positive proof of rites; Sec 114 raises **rebuttable presumption** where direct proof lost by lapse of time + parties held out as married. Prosecution in 494 cannot rely on 114 alone; wife claiming maintenance/legitimacy can."

5.4 Live-in Relationship — Syllabus special reference (DU expects Velusamy + Indra Sarma + Chanmuniya + DV Act)

Case / Statute	Live-in holding (exam-ready)
D. Velusamy v. Patchaiammal (2010) 10 SCC 469 (DU Unit III case 02)	"Relationship in nature of marriage" for DV Act / 125 CrPC needs: (a) couple hold out as spouses, (b) legal age, (c) qualified to marry (unmarried), (d) voluntary cohabitation for **significant period**. Casual / concubinage / kept-mistress ≠ marriage-like. Mere live-in ≠ wife.
Indra Sarma v. VKV Sarma AIR 2014 SC 309	Live-in with married man (subsisting marriage) = **not** relationship in nature of marriage; no DV relief as wife; remedy only if custom/personal law permits. Guidelines for Parliament.
Chanmuniya v. Virendra (2011) 1 SCC 141; Badshah v. Urmila (2014) 1 SCC 188	Beneficial interpretation: long cohabitation → presumption of marriage for **maintenance/ legitimacy**; man cannot deny marriage to defeat 125 after years of cohabitation + children. Badshah: second wife (void marriage) still "wife" for 125.
Lata Singh (2006); S. Khushboo v. Kanniammal (2010) 5 SCC 600	Live-in between consenting adults **not illegal/offence**; Art 21 protects choice; society cannot harass. But ≠ HMA marriage without Sec 7.
DV Act 2005 Sec 2(f)	"Domestic relationship" includes **relationship in nature of marriage** — live-in women get protection orders, residence, maintenance (civil, not HMA status).

Exam paragraph (copy-ready): "HMA recognises only **solemnized** marriage (Sec 7); live-in per se creates **no marital status**, no Sec 11/12/13 rights. But law protects vulnerability via (i) **Sec 114 presumption** after long cohabitation, (ii) **Sec 16 legitimacy** extended purposively, (iii) **125 CrPC / DV Act** maintenance as 'wife'/'domestic relationship', (iv) Art 21 autonomy. Distinguish **marriage (status) vs marriage-like (protection)** — Velusamy test."

6
Sec 8 Registration of Hindu Marriages + Seema Directives
Short-note favourite. DU Case 10 *Seema v. Ashwani Kumar (2006) 2 SCC 578* (DU pp.70–73) is the authority.

BARE ACT – SEC 8 **Sec 8(1):** State Govt may make rules for registration particulars; **8(2):** may make registration **compulsory** (in whole/part); contravention punishable with **fine up to ₹25** (original — States enhance via rules); **8(3):** Rules laid before legislature; **8(4):** Register open to inspection; **8(5): Validity not affected by omission** to make entry. **Purpose clause:** "for facilitating proof of Hindu marriages."

6.1 Pre-Seema position (survey in Seema, DU pp.70–72)

- Only 4 compulsory State statutes then: Bombay Registration of Marriages Act 1953 (Maharashtra/Gujarat), Karnataka 1976 (+ Rules 1966), HP 1996, AP 2002. Elsewhere voluntary (UP Rules 1973, WB 1958, Tripura 1957, Pondicherry 1969, Haryana 2001, Chandigarh 1966). J&K: Hindu Act 1980 (no rules), Muslim Registration Act 1981 (unenforced). Goa: Portuguese Civil Code Arts 45–47 + 1075–1081 compulsory. Christians/Parsis/SMA/FMA already compulsory.
- Effect: unscrupulous spouses denied marriage; child marriages hidden; bigamy/maintenance/desertion hard to prove; trafficking under garb of marriage.

6.2 Seema v. Ashwani Kumar — Ratio (transfer petition → suo motu guidelines)

- **Constitutional base:** Entries 5 + 30 List III (marriage + vital statistics); CEDAW Art 16(2) (India reserved on practicality — Court overrides pragmatically); Art 44 UCC aspiration noted.
- **NCW 7 benefits (DU p.72, mug 4):** (a) prevent child marriage / enforce age, (b) prevent non-consensual marriages, (c) check bigamy/polygamy, (d) enable wife's residence/maintenance, (e) enable widow's inheritance, (f) deter desertion, (g) deter sale of girls/foreigners.
- **Holding:** Registration itself **not proof of valid marriage per se** nor determinative of validity, but **great evidentiary value** + **rebuttable presumption** of marriage, custody, legitimacy, age. Non-registration denies that presumption. **All marriages of Indian citizens (all religions), where solemnized, must be compulsorily registered** in respective States.
- **Directions (DU p.73):** (i) States notify procedure within 3 months (amend/frame rules after 1-month public objections + publicity); (ii) Authorised officer records **age + marital status (unmarried/divorcee)**; provides consequences for non-registration/false declaration; (iii) Central comprehensive statute to be placed before Court; (iv) Counsel ensure immediate compliance; copy to SG.

Exam distinctions (2 marks each): (1) Solemnisation (Sec 7) = **validity**; Registration (Sec 8) = **proof**. (2) Non-registration → **no effect on validity** (Sec 8(5)), only loss of presumption + fine. (3) Registration certificate **alone** cannot prove solemnisation in **494 prosecution** — still need rites proof (Lokhande). (4) False declaration → perjury + PCMA/DV consequences per State rules.

7

Void Marriages — Sec 11 r/w 17, 18 + IPC 494/495

DU syllabus clubs Sec 11 + 17 + 18 + 494/495. Cases: *Nagalingam, Lokhande, Lily Thomas (+ Sarla Mudgal), Pinninti (negative), Surajmani (tribal exception)*.

`BARE ACT – SEC 11 + 17 + 18 + IPC` **Sec 11:** Marriage solemnized **after commencement** shall be **null & void** and **may** on petition by **either party** be so declared by decree of nullity if contravenes **5(i), (iv), (v)**.
Sec 17: Marriage between two Hindus solemnized after commencement is **void** if either had spouse living → **Sec 494 & 495 IPC apply accordingly** (bodily lifted — legislative device by reference).
Sec 18: (a) 5(iii) age → **2 yrs + ₹1L** (enhanced); (b) 5(iv)(v) → **1 month + ₹1000**; (c) [omitted guardian].
IPC 494: Marrying again during lifetime of husband/wife — **7 yrs + fine** (Exception: 7-yr absence + bona fide belief of death + disclosure). **IPC 495:** Same with **concealment** of former marriage — **10 yrs + fine**. **CrPC 198 (BNSS):** Cognizance only on complaint by **aggrieved wife/family** (father/mother/brother/sister/son/daughter/uncle-aunt or leave).

7.1 Ingredients of Void (Sec 11)

#	Ingredient	Explanation + case
1	After 18-5-1955	Pre-Act polygamous marriages saved (Sec 29); only post-Act attract 11/17. 2010 Q4: 2000 + 2007 marriages → post-Act.
2	Between two Hindus + solemnized (Sec 7)	If not solemnized → no marriage at all → Sec 17/494 fail (Lokhande). Inter-religion → not HMA marriage.
3	Contravenes **5(i) OR (iv) OR (v)**	Exhaustive — age/mental/fraud never void. Pinninti: reading beyond list = judicial legislation.
4	Decree optional declaratory	"May" — void **ipso jure**; decree only declares; either party (not third party generally) may petition. No limitation; can be raised collaterally (e.g., defence in 494 where first marriage void).

7.2 Bigamy — Sec 17 + 494/495 (write as 6-point answer)

1. **Sec 17 = void + penal by reference:** Lifts 494/495 bodily into HMA (Lily Thomas para 23, DU p.15). Sec 17 speaks "two Hindus"; 494 speaks universally.
2. **Ingredients (Nagalingam para 6 + Gopal Lal):** (i) valid first marriage, (ii) subsisting at second marriage, (iii) second marriage **validly solemnized** per personal law/custom (though void under Sec 17). Voidness under Sec 17 is itself ingredient — paradox resolved: "valid" = duly solemnized, "void" = due to bigamy bar.
3. **Proof strict:** Kanwal Ram: admission insufficient; need priest/witness + rites (homa/saptapadi or 7-A/custom). Lokhande acquittal vs Nagalingam conviction = contrast pair.
4. **Conversion does not dissolve:** Apostasy = ground for **divorce/separation only** (Sec 13(1)(ii)/10 post-1976), marriage **subsists** till decree (Lily Thomas paras 30–32, DU p.17; Chand Dhawan; Vilayat Raj). Feigned Islam for second marriage = **void second marriage (Nikah during subsisting Hindu marriage is void) + 494 liable**. G.C. Ghosh facts: Hindu name in birth/visa/voter records → feigned.
5. **Complaint locus:** CrPC 198(1)(c) — wife/father/mother/sibling/child/uncle-aunt (+ leave). Second wife generally not "aggrieved" for 494 (policy), but can complain of 495/cheating. (DU p.16.)
6. **Tribal exception:** Sec 17 inapplicable to ST (Surajmani); need custom making second void + Art 20 bar on custom-created offence.

CONVERSION-BIGAMY — LILY THOMAS / SARLA MUDGAL FLOWCHART

Hindu husband (HMA marriage subsisting) converts to Islam + Nikah with W2

↓
Did conversion dissolve M1? NO — Sec 13 ground only; M1 subsists (Lily paras 30–32)
↓
Is M2 valid? NO — Hindu still bound by monogamy; Nikah during HMA subsistence = **void** (Sushmita Ghosh Q: "feigned conversion → void")
↓
Liability: 494 IPC (Sec 17) + void M2 + W1 divorce/maintenance; W2: no HMA wife status (but 125 purposive per Badshah)

2013 Q2 / 2014(2) Q2 defences demolished (model): (i) "M1 child marriage → void" — fails per *Pinninti + Lajja* (valid/voidable at child's option only; Anuj cannot invoke). (ii) "Now Muslim → polygamy allowed" — fails per *Lily* (M1 HMA still subsists). (iii) "M2 not per Sec 7" — if M2 Nikah duly solemnized (offer/acceptance/witnesses), solemnisation proved → 494; if M2 Hindu rites without saptapadi/custom → may fail per *Lokhande* (argue). Always conclude: **prosecution likely succeeds**.

8
Voidable Marriages — Sec 12 + Sec 16 Legitimacy
DU Cases 06, 08, 09 all on Sec 12(1)(c) fraud + (a) impotency. Learn pre- vs post-1976 fraud text.

`BARE ACT – SEC 12 (AS AMENDED 1976/78)` **Sec 12(1):** Any marriage (before/after Act) voidable & **may be annulled** on: **(a)** respondent **impotent** & marriage **not consummated** due to impotence; **(b)** contravenes **5(ii)** mental; **(c)** consent of petitioner (or guardian where required pre-1978) obtained by **force OR fraud as to nature of ceremony OR as to material fact/circumstance concerning respondent**; **(d)** respondent **pregnant by other** at marriage.
Sec 12(2)(a) bar for (c): No petition if (i) filed >**1 yr after force ceased/fraud discovered**, OR (ii) petitioner **lived as husband/wife with full consent** after discovery.
Sec 12(2)(b) bar for (d): Need (i) petitioner **ignorant** at marriage, (ii) proceedings **within 1 yr of marriage** (post-Act) / 1 yr of commencement (pre-Act), (iii) **no consensual marital intercourse since discovery**.

8.1 Ground-wise Deep Dive

(a) Impotency + non-consummation — P. v. K. (AIR 1982 Bom 400, DU p.56)

- **Test:** Practical impossibility of normal consummation (Lord Penzance classic; Mody J. adopts). **Two-fold:** (i) impotent **at time of marriage** (persisting), (ii) marriage **not consummated** due to it. Either spouse may petition (here husband).
- **P. v. K. facts:** 36M + 27F, 20-6-1976; wife refuses from night 1 ("no sex for 1 yr"), aversion; pilgrimage fails; Dr Bhatia 27-8-76: **2nd-degree uterine prolapse + torn hymen**; husband alleges concealment + non-virginity + impotency. Wife denies, claims ignorance.
- **Holding:** Wife's evidence "completely unreliable"; husband + Dr Bhatia believed; prolapse needs **manual manipulation**, sight cools ardour → **not normal intercourse**; resistance to conceal = impotency (psychological + structural); **annulment under both (a) + (c)**; ₹13,500 lump-sum alimony agreed.
- **Principles:** (i) Petition/notice need only **material facts**, not minute details; (ii) Curable epilepsy disclosure ≠ fraud (old law) — contrasted with prolapse concealment = fraud post-1976; (iii) Doctor's notes + father's non-examination adverse; (iv) Post-1976 "material fact" widens fraud (Malvankar pre-1976 narrow view obsolete).

(b) Mental (5(ii)) — see §4.2

- No Sec 12(2) time bar for (a)/(b) — but delay affects credibility; medical evidence essential. Distinguish divorce 13(1)(iii) (post-marriage incurable).

(c) Force / Fraud — Babui Panmato + Asha Qureshi + P. v. K.

- **Text evolution (MUST quote):** Pre-1976: "consent obtained by force or fraud" (narrow — fraud as to **nature of ceremony** only, e.g., Anath Nath De Cal). Post-1976: "fraud **as to nature of ceremony OR as to material fact/circumstance concerning respondent**" — wide; covers age, virginity/pregnancy, disease, impotency concealment, prior marriage/widowhood.
- **Babui Panmato Kuer v. Ram Agya Singh AIR 1968 Pat 190 (DU p.66, pre-1976 but liberally construed):** 18+ girl overhears father tell mother groom 25–30, affluent; heavily veiled at May 1959 marriage; discovers 15-4-60 husband 60+ & poor; no cohabitation; files Mar 1961. Trial rejects (no direct representation + fraud must be at solemnisation). **High Court reverses:** Mother = agent; father's suggestion he knew false + active concealment + duty to disclose (Contract Act Sec 17 + Ill.(b) horse-daughter) = fraud; Sec 12(1)(c) has **no "at time of marriage"** (unlike (a)(d)) → pre-marriage negotiation fraud suffices; Calcutta view rejected; **annulment granted**. Note: Som Dutt (P&H 1986) — 7-yr age gap + hysteria = gross matrimonial fraud.
- **Asha Qureshi v. Afaq Qureshi AIR 2002 MP 263 (DU p.33, SMA Sec 25(iii) — pari materia with HMA 12(1)(c)):** SMA marriage 23-1-90; husband discovers wife earlier married to Motilal (dead), suppressed widowhood; believed virgin; wife claims disclosure but pleading vague, no date/time, contradictory (neighbours vs self). **Held:** Contract Act Sec 17 fraud = suggestion false / active concealment / act fitted to deceive; Explanation: silence = fraud where **duty to speak**; prior marriage/widowhood = **material fact**; duty to intimate; husband would not have married if known; Iqrarnama (Ex P/1) non-mention immaterial (not by legal expert); **nullity under SMA 25(iii) affirmed**. DU teaches as HMA fraud analogy.

- **Fraud checklist for answers:** (1) Fact material? (age gap 30 yrs, prolapse, widowhood, pre-marriage child — yes; caste/job exaggeration — usually no), (2) Knowledge + intent to induce?, (3) Duty to speak? (fiduciary/family — yes), (4) Consent but for fraud? (would not have married), (5) Within 1 yr + no post-discovery cohabitation?

(d) Pre-marriage pregnancy by other — 2013 Q3, 2015 Q3 staple

- Need all three 12(2)(b) bars satisfied. Husband ignorant + 1-yr + no consensual sex after discovery. DNA/child-adoption facts help. Alternative: fraud (c) if pregnancy concealed = material fact (overlap allowed — plead both).

8.2 Void vs Voidable — DU's favourite 5-marker (2010, 2014)

Basis	Void (Sec 11)	Voidable (Sec 12)
Nature	**Void ab initio**, no marriage, ipso jure	**Valid till annulled**; needs decree
Grounds	5(i)(iv)(v) only, post-Act	12(1)(a)–(d), pre/post-Act
Who / when	Either party, no limitation, collateral challenge possible	Only aggrieved petitioner, strict 1-yr bars for (c) (d)
Effect of decree	Declaratory (declares nullity)	Constitutive (annuls from decree; till then marital duties)
Children	Legitimate per **Sec 16(1)** (if decree or would-be decree) — succession limited*	Legitimate per **Sec 16(2)**
Punishment	Sec 17/18	None (except fraud may = cheating 417/495?)

***Sec 16 (amended 1976, MUST add):** Children of void/voidable (annulled or annullable) deemed **legitimate**; but Sec 16(3) proviso: rights **only in parents' property**, not coparcenary/ancestral pool (Bharatha Matha v. Vijaya Ranganathan AIR 2010 SC 2685). Write this to get full marks.

9

10 DU Case-Material Cases — Full FIRAC + Both-Side Arguments

How to cite in exam: **Name + AIR/SCC + 1-line ratio + section**. Expand each case's "Arguments" in answers to show balancing.

CASE 01 • DU p.1 • PDF pp.8–11

Dr. Surajmani Stella Kujur v. Durga Charan Hansdah, AIR 2001 SC 938 : (2001) 3 SCC 13

`Bench: R.P. Sethi, J. (SC) • Syllabus: Sec 2 Applicability + Sec 3(a) Custom + Sec 494 + Art 20`

One-liner: STs outside HMA; custom must be pleaded/proved; custom cannot create criminal offence.

FACTS (DU paras 6–7, 13–14): Appellant Oraon (tribal, Stella Kujur) + Respondent Santhal (Hansdah) — admittedly tribals, both tribes in **Part XII, Constitution (ST) Order 1950** (as amended 1956/76/87/90). Appellant concedes: "two tribals who otherwise profess Hinduism, but marriage out of HMA purview per Sec 2(2), governed only by Santhal customs." She complains to CMM New Delhi: marriage solemnized in Delhi "per Hindu rites"; respondent bigamously married Accused 2 without divorce → offence 494 IPC. Complaint nowhere pleads custom prohibiting second marriage or making it void. In court statement 24-10-92 she says "I am Hindu by religion." Trial dismisses ("no pleading/evidence of custom; book alone insufficient"); High Court affirms. Appeal to SC. She now relies on alleged Santhal custom mandating **monogamy**.
ISSUES: (1) Who is Hindu for HMA? Does HMA apply to STs professing Hinduism? (2) Can unpleaded/unproved custom make second marriage void to ground 494? (3) Can custom create an offence consistently with Art 20 + Sec 3(37) General Clauses Act?

Arguments — Appellant (wife-complainant)

- Parties profess Hinduism, married per Hindu rites → HMA applies; alternatively Santhal custom mandates monogamy → second marriage void → 494 attracted.
- Absence of notification irrelevant; de facto Hindu way of life should govern; deny 494 = deny tribal women protection.
- Book/text on Santhal custom + assertion suffices; strict proof should not defeat justice.

Arguments — Respondent (husband) + State

- Sec 2(2) expressly excludes STs unless Centre notifies — no notification; conceded tribals → HMA inapplicable, Sec 5/11/17 cannot be invoked.
- No custom pleaded/proved: complaint silent; mere monogamy assertion ≠ voidness; need ancient/certain/reasonable + void-effect custom proved by clear evidence.
- Custom deals with civil rights/status; cannot create penal offence (Art 20: "law in force"; Art 13(3): legislature-made law). 494 needs first + second valid solemnized marriages + voidness — none proved.

DECISION (Appeal dismissed, DU paras 4–5, 8–10, 16–17): SC holds: (a) **Sec 2(1) comprehensive** (Hindu/Buddhist/Jaina/Sikh + domiciled non-Muslim/Christian/Parsi/Jew), but **Sec 2(2) carves out STs**; parties admitted STs → HMA inapplicable; even if notification under Art 342, further 2(2) notification needed. (b) "Hindu" undefined — Bhagwan Koer elastic test — but statutory exclusion prevails over profession. (c) **Custom definition Sec 3(a)** + Ramalakshmi Ammal strict proof: ancient, invariable, certain, reasonable, clear evidence; here neither pleaded (complaint + statement vague) nor proved; book reference insufficient. Mere monogamy plea ≠ plea that second marriage **void/null/non-est** — sine qua non for 494. (d) **No custom-created offence:** Art 20 + Sec 3(37) GCA: offence = act punishable by **law**; custom = civil rights source only (Sec 29 saves customary divorce/ dissolution, not crimes). Trial + HC rightly dismissed.

RATIO / PRINCIPLES EVOLVED (quote in exams): (1) **ST exclusion rule:** Sec 2(2) excludes STs even if Hindu-professing. (2) **Custom proof rule:** plead + prove ancient/certain/reasonable by clear evidence; strict construction. (3) **Penal rule:** custom cannot create offence (Art 20). (4) **494 via custom:** complainant must prove custom makes second marriage **void**, not merely disapproved. Use in every tribal-bigamy problem.

Exam use: Open every Sec 2 answer with Surajmani; close tribal-bigamy problems with it. Link to Pinninti (Sec 4/29) + Lily (494 ingredients).

CASE 02 • DU p.4 • PDF pp.12–15

S. Nagalingam v. Sivagami, (2001) 7 SCC 487

`Bench: K.G. Balakrishnan, J. (SC) • Syllabus: Sec 7 + 7-A (TN) + Sec 17 + 494 — Saptapadi not always essential`

One-liner: In TN, thali + garlands + declaration = valid solemnisation under 7-A; bigamy proved without saptapadi.

FACTS (DU paras 3–4, 7–8, 19): M1: Nagalingam–Sivagami 6-9-1970, 3 children, subsisting. Wife alleges cruelty/torture, leaves to parents. M2: 18-6-1984 with Kasturi at RCC Mandapam, Thiruthani Devasthanam (TN), per Hindu rites. Wife files criminal complaint vs husband + 6 others. Trial acquits all. HC (1-11-96) upholds A2–A7 acquittal but remands husband's acquittal for proof of solemnisation manner. On remand PW3 priest re-examined (performed M2), cross-examined; MM again acquits 4-3-99 holding **saptapadi not performed → no valid M2**. HC in appeal convicts under 494 holding **Sec 7-A TN** applies. Appeal to SC.
ISSUE: Was M2 (18-6-84) validly solemnized under Hindu law (Sec 7/7-A) so as to constitute 494 during subsisting M1, despite no saptapadi?

Arguments — Appellant-husband

- PW3 admits saptapadi not performed → per Priya Bala / Obulamma / Santi Deb Berma / Laxmi Devi, no valid Hindu marriage → no 494.
- Sec 7 requires customary rites including saptapadi where applicable; prosecution failed to prove datta homa + saptapadi.
- Remand + re-examination unfair; benefit of doubt; acquittal by two trial judgments should stand.

Arguments — Respondent-wife (complainant)

- Parties Hindu residents of TN, marriage in TN temple → **Sec 7-A** (TN Amendment 1967) applies: thirumangalam (thali) + 3 garland exchanges + kanniyathan before agnidevi + priest per custom = **good & valid notwithstanding Sec 7** (7-A(2)).
- Neither party pleaded saptapadi essential in their community; Sec 7 says saptapadi binds **only where rites include it**.
- PW3 detailed evidence proves solemnisation; M1 admitted subsisting → 494 complete.

DECISION (Appeal dismissed, conviction upheld, DU paras 5–6, 10, 17–21): SC lays 494 ingredients: (i) first valid marriage, (ii) subsisting, (iii) second marriage **valid in sense of ceremonies performed** (though void under Sec 17). Reviews Kanwal Ram (mere admission insufficient), Priya Bala (both sides **agreed** homa+saptapadi essential → acquittal for no proof), Obulamma, Santi, Laxmi — all turned on **admitted essentiality**. Here: **no such admission**; Sec 7-A(1)(a)-(c) (declaration / garlanding-ring / thali before relatives/friends) + 7-A(2)(a)-(b) non-obstante + retrospective validation squarely cover; PW3 proves thali + garlands + kanniyathan; Sec 7-A(3) bar irrelevant. Hence **valid M2 → bigamy during M1 → Single Judge right; remand for sentence proper**.

> **RATIO:** (1) Saptapadi/homa essential **only if admitted/proved essential** per parties' custom/form. (2) **Sec 7-A TN** creates alternate, complete solemnisation (declaration/garland/thali) with overriding + retrospective effect. (3) 494 needs solemnisation proof, but solemnisation = **law applicable to parties** (Sec 7 **or** 7-A **or** proven custom). Pair with Lokhande in every answer.

Exam use: DU 2017 Q1(a) second limb (thirumangalam defence) fails per Nagalingam. Contrast 2012 Q1(iv) Delhi parties in Chennai (no 7-A).

CASE 03 • DU p.8 • PDF pp.16–19

Bhaurao Shankar Lokhande v. State of Maharashtra, AIR 1965 SC 1564 : (1965) 2 SCR 837

`Bench: Raghubar Dayal, J. (SC) • Syllabus: Sec 5 + 7 + 17 + 494 — "Solemnized" strict proof; Gandharva still needs homa+saptapadi`

One-liner: No proper ceremonies = no solemnized marriage = no voidness under Sec 17 = no 494. Acquittal.

FACTS (DU paras 1–2, 8): A1 Bhaurao married Indubai ~1956 (M1 subsisting). Feb 1962 "marries" Kamlabai (M2). A2 Deorao (brother) + Kamlabai + her father + barber (A5) tried for 494 (+114 for A2). Magistrate acquits latter three, convicts A1 (494) + A2 (494/114); Sessions + HC affirm. Appeal by special leave. Night ceremony per PW1: pat/carpet, tambya pitcher + betel/coconut, two garlands exchanged, **forehead-touching**; no Brahmin, no mangala ashtakas, no homa/saptapadi. PW2 Sitaram: Gandharva complete by forehead-touch; no Brahmin/barber custom. Defence cross-questions suggest Gandharva needs less.
ISSUES: (1) Must prosecution prove M2 duly performed per religious rites/custom? (2) Does "marries" in 494 mean validly marries? (3) Were Gandharva essentials abrogated by Maharashtrian custom?

Arguments — Appellants (accused)

- Essential ceremonies (homa + saptapadi) admittedly not performed; prosecution led **no custom evidence** abrogating them; stray answers in cross ≠ proof.
- Sec 17 voidness + 494 apply only to **solemnized** marriages; unsolemnized cohabitation ≠ marriage.

Arguments — State

- M2 per community custom for Gandharva — garlands + forehead-touch completes it; sufficient for valid marriage.
- Alternatively, 494 does not require second marriage to be **valid** — going through form with intent suffices.

DECISION (Appeal allowed, acquittal — DU paras 3–9): SC rejects State's second argument: "whoever marries" = "whoever marries **validly**"; if not valid per parties' law, no question of voidness during spouse's lifetime; living as husband-wife + social recognition ≠ status. Pre-HMA male second marriage not void; Sec 5(i) + 17 now make post-Act second marriage void **only if (i) after commencement + (ii) spouse living + (iii) solemnized**. "Solemnize" = celebrate with proper ceremonies in due form (Shorter Oxford); mere intent + some ceremonies ≠ prescribed/approved. Classical Hindu Law: Gandharva = voluntary love union, **not concubinage**, but **same essentials** unless custom modification proved; essentials = **invocation before sacred fire + saptapadi** (Brahma/Asura alike); custom may provide other ceremonies **only if proved**. Here no evidence custom abrogated essentials; PW statements ("touching completes Gandharva") ≠ statement that custom deems these **only necessary** ceremonies; definite evidence required. Hence M2 **not solemnized → not void under Sec 17 → 494 fails**.

> **RATIO:** (1) **Solemnisation strict proof rule** for 494/17. (2) **Gandharva ≠ ceremony-free**; custom abrogation needs definite evidence. (3) **Mere cohabitation/intent ≠ marriage** (limits Sec 114 in criminal law). Foundation for Kanwal Ram + Priya Bala line.

Exam use: Always pair: Lokhande (acquittal — no proof) vs Nagalingam (conviction — 7-A proof). Use to defeat "garlands-only" M2 in Delhi-party problems.

CASE 04 • DU p.12 • PDF pp.20–30

Lily Thomas v. Union of India, AIR 2000 SC 1650 : (2000) 6 SCC 224 (with Sarla Mudgal, (1995) 3 SCC 635)

Bench: S. Saghir Ahmad, J. + R.P. Sethi, J. (SC, Review of Sarla Mudgal) • Syllabus: Sec 11/17 + 494 + Conversion + Art 20/25 + UCC Art 44

One-liner: Feigned conversion to Islam doesn't dissolve HMA marriage; second marriage void + 494; review dismissed.

FACTS (DU paras 8–15, Sushmita Ghosh petition): Sarla Mudgal (President, Kalyani NGO) + Lily Thomas + Sushmita Ghosh (wronged wives) + Javed Ahmed (Muslim husband questioning Mudgal correctness) petition. Sushmita: husband G.C. Ghosh feigned Islam as "Mohd. Karim Ghazi" to marry Vanita Gupta (divorcee, D-152 Preet Vihar) 3-9-92 without dissolving M1; Nikahnama signed "G.C. Ghosh", witness Kapil Gupta; birth certificate + Bangladesh visa + electoral roll still show **"G.C./Gyan Chand Ghosh + Vanita Ghosh, Hindu"**. Plea: conversion solely to remarry, no faith/practice/name change. G.C. Ghosh facing criminal trial. Questions: effect of conversion-marriage on 494? Review alleges violation of Art 20(1) (retrospective crime) + Art 25 (freedom of religion).

ISSUES: (1) Where Hindu converts without real belief merely to avoid M1/enter M2, is M2 void? (2) Does conversion dissolve HMA marriage? (3) 494 liability despite conversion? (4) Art 20(1)/25 bars? (5) UCC direction?

Arguments — Petitioners-wives (Sarla/Lily/Sushmita)

- Freedom of religion ≠ garb to evade monogamy; feigned conversion = fraud on law; M1 subsists → M2 void + 494.
- Hindu marriage sacrament; Islam marriage contract with rules — neither permits exploitation; religion not commodity.
- Need UCC (Art 44) + deterrence; errant husbands reconvert to retain property/service/old name.

Arguments — Review / Javed Ahmed / Husbands

- Sarla Mudgal creates new offence retrospectively → Art 20(1); pronounces on Islam without hearing; violates Art 25 conversion freedom.
- Once Muslim, polygamy permitted; M2 Nikah valid; 494 inapplicable as parties Muslim at M2.
- UCC direction beyond judicial power; personal law reform for legislature.

DECISION (Writs + Review dismissed, Sarla Mudgal affirmed, DU paras 23–32, 39): SC (Sethi J. + concurring Saghir Ahmad J.): (a) HMA Sec 5(i) + 11 + 17: second marriage during subsistence = void; Sec 17 **bodily lifts 494/495** (legislative device by reference); voidness is ingredient (Gopal Lal). (b) **Conversion/apostasy does not dissolve HMA marriage**; only ground for **divorce (Sec 13) / separation (Sec 10 post-1976)**; marital status + civil obligations continue till decree; Vedic bond unaffected (old Lahore ruling). Hence M2 qua M1 = void + 494 despite conversion; Sec 17 "two Hindus" vs 494 universal — 494 still hits converted husband. (c) Feigned conversion proved prima facie (Hindu records post-Nikah); ultimate trial to decide, but law settled. (d) **Art 20(1):** no new offence — only interprets existing 494/17; (e) **Art 25:** freedom subject to public order/morality/other rights; cannot weaponize to commit bigamy. (f) Religion/marriage sacred, preserve both; exploitation condemned (para 39). (g) **UCC (Art 44):** reiterates Sarla Mudgal direction to Govt to file affidavit on steps (DU p.22) — no fresh mandamus, but strong obiter.

> **RATIO:** (1) **Feigned-conversion rule:** conversion without belief to marry again = M2 void + 494. (2) **Subsistence rule:** HMA marriage till decree. (3) **Sec 17 device:** 494/495 incorporated. (4) **Complaint rule CrPC 198(1)(c):** wife/family may complain. Use in every 2010/13/14 conversion problem.

Exam use: Cite paras 30–32 verbatim: "Change of religion does not dissolve marriage... apostasy is ground for divorce." Add G.C. Ghosh evidentiary badges (Hindu name retained).

CASE 05 • DU p.23 • PDF pp.31–40

Pinninti Venkataramana v. State, AIR 1977 AP 43 (Full Bench)

Bench: B.J. Divan, C.J. (FB) • Syllabus: Sec 5(iii) Age – Valid, neither void nor voidable; Sec 11/12/13/18 scheme

One-liner: Under-age marriage violates Sec 5(iii) but is VALID; only Sec 18 punishable + 13(2)(iv) divorce. Overrules P.A. Saramma.

FACTS (DU paras 1–3): Two matters, common Q: "Is Hindu marriage where parties/either below Sec 5(iii) ages void ab initio?" **CrIRC 190/75:** P1 convicted 494 + P2 494/109 by JFCM Rajam (6 months RI → appellate: ₹200 fine / 1 month); revision relies on **P.A. Saramma v. Ganapatulu AIR 1975 AP 193 (DB)** holding 5(iii) violation = void ab initio. Single Judge (Muktadar J.) doubts; DB (Chinnappa Reddy + Punnayya JJ., 22-3-76) refers to FB. **CrMP 809/76:** Husband (married 1959 aged 13, wife 9) seeks quashing of wife's 494 complaint (CC 323/76, JFCM Siddipet) citing Saramma (M1 void → M2 not bigamy). Then Sec 5(iii): 18/15; Sec 5(vi) guardian consent existed.

ISSUE: Does contravention of Sec 5(iii) (age) render marriage void ab initio / no marriage, or valid with other consequences?

Arguments — Accused-husbands (relying Saramma)

- Sec 5 opening "may...if conditions fulfilled" = conditions precedent; "cannot be solemnized" if age unmet; no need to seek nullity — void ipso jure.

- Child marriage prohibited → must be null; otherwise prohibition toothless; 494 complaint where M1 void must be quashed.

Arguments — State / Wives

- Sec 11 exhaustive: only 5(i)(iv)(v) = void; Sec 12: only 5(ii)/force-fraud = voidable; 5(iii) in **neither** → legislature deliberate; only Sec 18 punishment.
- Pre-HMA law (Venkatacharyulu, Sivanandy, factum valet) held minor marriages valid; Sec 4 preserves except where HMA expressly alters.
- 1976 insertion 13(2)(iv) (girl <15 repudiates after 15 before 18 → divorce) proves M1 not void (else divorce otiose); CMRA 1929 never voided.

DECISION (FB unanimously overrules Saramma, DU paras 5–23): Sec 4 + Sec 5 scheme: legislature distinguished consequences — (i)(iv)(v) → void (11); (ii) → voidable (12(1)(b)); (vi) → voidable only if guardian consent by force/fraud (12(1)(c)); **(iii) → neither**, only Sec 18(a) punishment. "May" directory; Saramma "conditions precedent" reading rejected. Case survey: Mohinder Kaur (P&H DB), Kalawati (HP), Premi (HP), Ma Hari (All), Budhi Sahu (Ori), Gindan (MP DB) all hold valid; only Krishni Devi (P&H single) + Saramma contra — incorrect. Consequences of Saramma "very serious" (legitimacy, succession chaos). 1976 13(2)(iv) = Khyar-ul-bulugh-like option, confirms validity. Held: **5(iii) violation = neither void nor voidable; only Sec 18 + 13(2)(iv) (bride) consequences**. CrRC remanded to single Judge; CrMP 809/76 **dismissed** (M1 valid → 494 prosecution proceeds).

> **RATIO:** (1) **Exhaustiveness rule:** Sec 11/12 exhaustive; courts cannot add voidness. (2) **Directory "may" rule.** (3) **Factum valet survival via Sec 4.** (4) **13(2)(iv) confirmation.** Foundation for Lajja + every child-marriage PYQ.

Exam use: In age problems, start Pinninti (HMA valid) → then PCMA overlay (Lajja voidable at child's option). Quote 13(2)(iv) ages precisely.

CASE 06 • DU p.33 • PDF pp.41–44

Asha Qureshi v. Afaq Qureshi, AIR 2002 MP 263

`Bench: V.K. Agarwal, J. (MP) • Syllabus: Fraud as material fact – SMA Sec 25(iii) pari materia HMA Sec 12(1)(c) + Contract Act Sec 17`

One-liner: Concealing prior marriage/widowhood = fraud (duty to speak); nullity granted.

FACTS (DU paras 2, 11–12): SMA marriage 23-1-90 Jabalpur; lived 7–8 months–1 yr; strained → separate. Husband petitions SMA Sec 34 + 25 nullity: wife earlier married to Motilal Vishwakarma (dead before M2), suppressed it; he married believing virgin; fraud. Wife denies: husband knew she was widow. Trial (4th ADJ, CS 59-A/90, 14-10-96) grants nullity holding fraud. Appeal under SMA Sec 29. Evidence: Husband (AW1) knew wife 5–6 yrs; asked why unmarried despite age → "no responsible person in family"; denies knowledge. Wife (NAW1) admits earlier marriage, claims told 8 yrs back she was childhood widow — but **written statement para 5 vague** ("husband aware"), no date/time/plea of self-disclosure; shifts (neighbours told → self told). Iqrarnama Ex P/1 (signed by wife + brother Jugal Kishore + Mohd. Salim) records dispute + wish for divorce, no cause stated.
ISSUES: (1) Was prior marriage/widowhood suppressed? (2) Does suppression = fraud under Contract Act Sec 17 for SMA 25(iii) (HMA 12(1)(c) analogy)?

Arguments — Appellant-wife

- Known long before marriage; husband fully aware of widowhood; no suppression/material fraud.
- Ex P/1 omits earlier-marriage dispute → real dispute not disclosure; document forced/deceptive.
- Mere silence ≠ fraud (Contract Expl.); no misrepresentation in express words.

Arguments — Respondent-husband

- Never intimated; would not have married if known; active concealment + duty to disclose (Explanation: duty to speak).
- Wife's pleading vague, evidence contradictory, unsupported → prefer husband.
- Ex P/1 by non-expert, in presence of brother/witnesses; non-mention of cause immaterial.

DECISION (Appeal dismissed, nullity affirmed, DU paras 8–17): Court reproduces SMA 25 + Contract Sec 17 (suggestion false / active concealment / promise without intent / act fitted to deceive / declared fraudulent + Explanation: silence = fraud where **duty to speak** or silence = speech). Finds: husband's version preferred (specific, consistent); wife's vague pleading (no particulars) + improvement (neighbours → self) unreliable; Ex P/1 attack fails (not by expert, cause omission natural; brother present). Prior marriage/widowhood = **material fact**; knowingly inducing belief in virginity = suggestion false + active concealment; **duty to intimate** (husband testified he would not have married); Sec 17(4) "any other act fitted to deceive" covers. Hence consent by fraud → **SMA 25(iii) nullity justified**.

RATIO: (1) **Material-fact test:** prior marriage/widowhood material. (2) **Duty-to-speak rule:** silence = fraud where duty (intimate relations). (3) **Pleading rule:** fraud disclosure needs specific date/time plea; vague + contradictory fails. (4) **Pari materia:** SMA 25(iii) = HMA 12(1)(c) post-1976. Cite with Babui + P. v. K.

Exam use: Use for 2013 Q3 (pre-marriage child concealed) + 2015 Q3 (mental concealment): "Asha fraud test satisfied → 12(1)(c) annulment within 1 yr, no post-discovery cohabitation."

CASE 07 • DU p.37 • PDF pp.45–63 (longest)

Court on its Own Motion (Lajja Devi) v. State, 2012 (193) DLT 61 (Del FB) + Usha Tandon PCMA critique

`Bench: A.K. Sikri, Ag.CJ + Sanjiv Khanna + V.K. Shali, JJ. • Syllabus: Sec 5(iii) + PCMA 2006 + Guardianship + 363/376 FIR`

One-liner: Child marriage = valid under HMA but voidable at child's option under PCMA; husband not guardian; FIR not auto-quashed.

FACTS (DU paras 2–11): Reference from WP(Crl) 338/08 (31-7-08, 5 Qs) + connected petitions, all: girls <18 eloped + married per Hindu rites with free consent, boys >21, parents contest. **Lajja:** Mother Lajja Devi (Badaun) letter → FIR 113/08 (363) vs Pramod etc.; girl Meera (DOB 6-7-95, ~13–14) recovered with Charan Singh (Sakatpur), Sec 164 statement: went voluntarily (uncle-aunt forcing other marriage); Nirmal Chhaya → 31-7-08 joins parents on no-remarriage assurance; husband's family claims custody; husband in judicial custody 8-6-08. **Others:** 482 quash petitions (363/366/376/465/467/494/497/120B/506); e.g., 4-3-10 marriage, missing report → habeas, ossification 17–19 vs school certificate 3-3-93 (17), Nari Niketan till 18 (3-3-11) + husband visits 2×/week, then cohabits; FIR 31/11 Dabri on father's 3-4-10 complaint. Division Bench conflict: 3 DBs (Neetu Singh 1999, Kalyani Chaudhary) held minor marriage **neither void nor voidable** (only Sec 18: 15 days + ₹1000 then) → release to husband; referring DB doubts (statutes not considered). Muslim law excluded (puberty-valid).
REFERRED QUESTIONS (DU para 12): (1) Valid marriage + custody to husband if girl <18 / boy <21? (2) Can minor reach discretion, walk away from guardians, refuse parents? (3) If yes, State protective custody? (4) Can 363/376 FIR be quashed on minor's "consent"-marriage statement? (5) Other presumptions?

Arguments — Husbands / Girls (for validity + custody + quash)

- HMA: 5(iii) violation neither void nor voidable (Pinninti + 3 DBs) → valid; husband = lawful guardian; custody to husband; girl's 164 statement + free will → quash FIR (363/376).
- PCMA makes voidable only at child's option; child wants to stay → marriage stands; welfare = with husband.
- Age disputed (ossification vs school); majority/consent (16+ for 376 then) → no offence.

Arguments — Parents / State (against)

- PCMA Sec 2(a)(b) + Sec 3 voidable + Sec 12 void (enticed/forced/trafficked minor) + Sec 14 (injunction) fundamentally alter; HMA must be read with PCMA, Majority Act, Guardians & Wards, IPC.
- Minor cannot give lawful consent to leave guardianship (363) or sex (376); husband of minor ≠ guardian; custody with parents/State till majority; FIR needs trial, not quash on statement.
- School certificate + welfare + vulnerability outweigh elopement statement; State protective custody (Nirmal Chhaya) proper.

DECISION (FB answers + individual disposals, DU paras 16, 52–58 + PCMA analysis pp.52–55): (Q1) **HMA status unchanged (Pinninti):** neither void nor voidable under HMA; **but PCMA Sec 3 makes every child marriage voidable at child's option** (petition anytime before 2 yrs after majority; via guardian/next friend + CMPO if minor). **Void only** per Sec 12 (minor enticed/forced/deceived/sold/trafficked for marriage/immoral purposes — Aminder Kaur 16-yr runaway held void 12(a)) or Sec 14 (injunction breach). Maintenance/residence to girl till remarriage (Sec 4), children custody/maintenance (Sec 5), legitimacy (Sec 6), enhanced punishments (Secs 9–11, no woman imprisonment), cognizable/non-bailable (Sec 15), CMPOs + DM powers (Secs 16, 13(3)(4)). **Husband NOT lawful guardian** of minor wife; custody: parents or State home per welfare + girl's maturity/understanding/social background/age; husband visits may be allowed. (Q2–3) Minor cannot walk away from lawful guardianship at will; State protective custody permissible. (Q4) **363/376 FIR not auto-quashed** on "consent"-marriage plea; examine age (school + ossification), maturity, force/deceit; if girl 16+ + voluntary + majority attained → quash possible (e.g., CrlMC 1001/11 quashed as 17–19 + voluntary); if <15/coerced → proceed. (Q5) No further presumptions beyond above. **Disposals:** Meera (13, now 17, with parents) — voidable, arrangement continues till majority, then her PCMA option; 15-yr (2006) now 21, no nullity filed → **valid now**; Shivani (3-6-94, now major) — free to go. **Usha Tandon critique (DU pp.52–55, EXAM GOLD):** PCMA improvement (first voidness, feminist maintenance, CMPOs, cognizable) but **poor drafting**: Sec 6 legitimacy only "under Sec 3" (not 12/14); Sec 4 maintenance only Sec 3 girls (not Sec 12/14 void); Sec 12(a)(b) omit "marriage"; Sec 5 custody incoherent if not annulled; Sec 20 amends only HMA Sec 18(a) punishment, leaves 11/12/13(2)(iv) untouched → under-age HMA marriage still **valid though punishable + divorce ground**.

RATIO: (1) **Dual-regime rule:** HMA valid + PCMA voidable/void. (2) **No husband-guardianship.** (3) **No auto-quash.** (4) **PCMA drafting critique** (quote 2 anomalies for 4 marks). Indispensable for every age problem post-2006.

Exam use: 2017 Q2(b) (21M+16F), 2014(2) Q2, 2013 Q2(i): "Valid per Pinninti; voidable at girl's option per PCMA 3; punishable HMA 18(a) + PCMA 9–11; girl 13(2)(iv) if <15."

CASE 08 • DU p.56 • PDF pp.64–73

P. v. K., AIR 1982 Bom. 400

Bench: Mody, J. (Bom, Single) • Syllabus: Sec 12(1)(a) Impotency + 12(1)(c) Fraud (post-1976 "material fact") – Prolapse

One-liner: Concealed 2nd-degree prolapse + refusal = impotency + fraud; petition/notice need only material facts; annulment granted.

FACTS (DU paras 2, 14, 30): Hindu marriage 20-6-76 (H 36, W 27); nullity petition 30-11-76 under 12(1)(a)+(c). Husband: night-1 refusal ("no sex for 1 yr"), aversion/upset; pilgrimage no change; complained to father-in-law 29-7-76 (ignored); Dr Bhatia 27-8-76: **2nd-degree uterine prolapse + torn hymen** → non-virginity inference; odd behaviour + circumstances → concealment of sexual lapse/defect; fraud + impotency + non-consummation. Wife WS: denies non-consummation/refusal/impotency/defect; claims taken to Bhatia but didn't understand; neither she nor parents knew defect before/after. Trial dismisses (disbelieves Bhatia, over-relies on D-1 omission of "3-yr masturbation", ignores notes, believes wife + Dr Pancholi). Appeal.
ISSUES: (1) Was marriage unconsummated due to impotency (12(1)(a))? (2) Was consent obtained by fraud as to material fact (prolapse/virginity) (12(1)(c) post-1976)? (3) Appreciation: notice/petition sufficiency, doctor reliability, adverse inference?

Arguments — Appellant-husband (Mr. Nesari)

- Trial mis-appraised: wife "completely unreliable", husband not inherently unreliable; Bhatia + notes + D-1 prove prolapse + knowledge; Pancholi contradictory.
- Prolapse needs manipulation, sight kills ardour → practical impossibility = impotency (Penzance); resistance to conceal = impotency.
- Notice/petition contain material facts (prolapse concealment + non-consummation); details need not be pleaded; post-1976 "material fact" covers prolapse concealment (Malvankar pre-1976 narrow obsolete).

Arguments — Respondent-wife (Mr. Dalvi)

- Case shifting: notice (virginity) → petition (prolapse+impotency) → evidence embellishments; details absent in notice/petition → improvement, disbelieve.
- No defect before marriage, no knowledge; Bhatia enquiry on masturbation unnecessary, D-1 omits it → Bhatia unreliable; consummation possible.
- Curable defect disclosure ≠ fraud (old epilepsy cases); no fraud.

DECISION (Trial set aside, petition absolute + ₹13,500 lump-sum alimony agreed, DU paras 4, 7–8, 19, 30–32): Mody J.: (a) Wife unreliable; husband accepted despite discrepancies. (b) **Pleading rule:** notice = bare outlines (advocate's choice); petition = material facts giving cause, not evidence/details; here cause (prolapse concealment + non-consummation) pleaded; approaches need not be dated; notice read whole mentions impotency + Bhatia certificate + "sexual lapse and defect" → no shifting. (c) **Medical:** Bhatia believed (notes maintained, not called to produce; masturbation Q natural, no cross); D-1 wrongly discarded; Pancholi discrepancies; father not examined → adverse; wife aware since before marriage. (d) **Impotency:** intercourse only after manual manipulation + protruding uterus disgust → **not normal intercourse**; both structural + resistance-psychological independently = impotency + proved non-consummation → **12(1)(a)**. (e) **Fraud:** concealment of prolapse requiring manipulation = **fraud as to material fact/circumstance** post-1976 (distinguishes curable-epilepsy non-fraud); husband entitled under **12(1)(c)**. Change in 12(1)(c) noted.

> **RATIO:** (1) **Impotency = practical impossibility** of normal consummation (structural or psychological resistance). (2) **Post-1976 fraud wide:** concealment of prolapse-like defects = material. (3) **Pleading:** material facts suffice. (4) **Medical + adverse inference** rules. Direct authority for DU 2017 Q2(a) (Rajendra-Seema prolapse).

CASE 09 • DU p.66 • PDF pp.74–77

Babui Panmato Kuer v. Ram Agya Singh, AIR 1968 Pat. 190

Bench: G.N. Prasad, J. (Pat, Sec 28 Appeal) • Syllabus: Sec 12(1)(c) Fraud – Indirect representation via mother-agent + pre-marriage fraud suffices

One-liner: 60-yr groom passed off as 25–30 via mother-agent + veil = fraud; "at time of marriage" absent in (c) → negotiation fraud counts.

FACTS (DU paras 3–5): Petitioner 18+ (sui juris), marriage May 1959. Overheard father tell mother: groom affluent, 25–30 → implied consent via silence. At solemnisation heavily veiled (rural Hindu custom) → couldn't see groom. Groom left next morning (no roksadi). Early 1960: respondent files 498 IPC vs father; father then sends her 15-4-60 → discovers husband 60+ (older than father) + ordinary means; weeps, starves 2 days, beaten, escapes to father (chided) → uncle → nanihal; confined on recapture, escapes again. Petition Mar 1961 for dissolution (annulment) for fraud (12(1)(c)); no cohabitation alleged. Respondent files WS

denying but **doesn't contest at hearing**; petitioner's oath evidence uncontroverted, substantially accepted. Trial (ADJ Saran) dismisses on two grounds: (1) no misrepresentation **to petitioner herself** (only overheard parents' talk); (2) fraud must be **at solemnisation**, not negotiation (relying Anath Nath De v. Lajjabati AIR 1959 Cal).
ISSUES: (1) Can indirect representation through mother-agent = fraud on petitioner? (2) Must 12(1)(c) fraud be at solemnisation or can pre-marriage fraud suffice?

Arguments — Petitioner-wife (appellant)

- Sui juris consent procured by father's false age/affluence talk to mother-agent (Contract Sec 17: suggestion false + active concealment + duty to disclose, III.(b) horse-daughter).
- Veil prevented discovery till 15-4-60; no protest earlier due to suppression; no cohabitation.
- Sec 12(1)(c) text has no "at time of marriage" (unlike (a)(d)) → negotiation fraud suffices; Calcutta view adds words.

Arguments — Respondent-husband (trial reasoning, absent in appeal)

- No direct representation to petitioner; overhearing ≠ representation; no fraud on her.
- Per Anath Nath De, fraud must be at solemnisation; negotiation puffery (age/wealth) not covered.

DECISION (Appeal allowed, marriage annulled under 12(1)(c), DU paras 7–11 + Note): Prasad J.: (a) **Contract Sec 17** quoted (suggestion false / active concealment / act fitted to deceive). Father must have seen respondent (60) → suggestion 25–30 he couldn't believe true, made to mother as **agent** to procure daughter's consent (Hindu family talk via mother well-known). **Duty to disclose** true age (III.(b): father-seller to just-major daughter-buyer must disclose unsound horse); conveying truth + no protest would differ, but suppression here. (b) **Timing:** (a) + (d) contain "at time of marriage", (c) omits → scheme deliberate; requiring solemnisation-time fraud = adding words; Calcutta not examining clauses → respectfully not followed. Fraud **before solemnisation** suffices. (c) Veil continued impression till discovery 15-4-60; petition Mar 1961 within time (pre-1976 no 1-yr bar then, but prompt). **Annulment granted**. Note: *Som Dutt v. Raj Kumari AIR 1986 P&H 191* — 7-yr age concealment (horoscope vs matric) + hysteria = gross fraud → annulment.

> **RATIO:** (1) **Agency rule:** fraud via parent-agent = fraud on petitioner. (2) **Timing rule:** 12(1)(c) covers pre-marriage fraud. (3) **Duty rule:** fiduciary duty to disclose age/condition. (4) **Veil rule:** no opportunity to withdraw = consent vitiated till discovery. Use for 2012 Q3(ii) Rani–Shekhar (19 vs 50, father fraud) — identical.

CASE 10 • DU p.70 • PDF pp.78–81

Seema v. Ashwani Kumar, (2006) 2 SCC 578

`Bench: Arijit Pasayat, J. (SC) • Syllabus: Sec 8 Registration – Compulsory registration directions (all religions)`

One-liner: Registration = proof (rebuttable presumption), not validity; all Indian marriages compulsorily registrable.

FACTS (DU p.70–72): Transfer petition hearing reveals unscrupulous denial of marriages due to no official record. SC issues notice to States/UTs + appoints SG + Ranjit Kumar (amicus). All States/UTs support compulsory registration. Compilation: only Bombay 1953, Karnataka 1976, HP 1996, AP 2002 compulsory; others voluntary rules (UP 1973, WB 1958, Tripura 1957, Karnataka Rules 1966, Chandigarh 1966, Pondicherry 1969, Haryana 2001); J&K Hindu 1980 (no rules), Muslim 1981 (unenforced), Christian 1957 (Secs 26/37); Goa Portuguese Code compulsory; SMA/FMA/Christian/Parsi already compulsory. NCW affidavit lists 7 benefits. CEDAW Art 16(2) + India reservation (vast/diverse/illiteracy). Entries 5 + 30 List III. Mayne Rigvedic ideal quoted.
ISSUES: (1) Should registration be compulsory despite Sec 8 discretion? (2) Effect of (non-)registration on validity/proof? (3) Directions?

Positions — States/UTs + NCW + Amicus (unanimous)

- Compulsory registration highly desirable: prevents child marriage, non-consensual, bigamy; secures maintenance/ residence/inheritance; deters desertion/sale.
- Record avoids solemnisation disputes; aids custody/legitimacy/age proof.

Counter (India's CEDAW reservation — rejected)

- Impractical in vast, diverse, low-literacy country; customs vary.

DECISION (Directions issued, DU p.73): Legislative intent Sec 8: "for facilitating proof". Registration **cannot be proof of valid marriage per se** nor determinative of validity, yet **great evidentiary value + rebuttable presumption** (marriage, custody, legitimacy, age). Non-registration denies presumption. In society's interest, **marriages of all citizens (all religions) compulsorily registrable where solemnized**. Directions: (i) States notify procedure in 3 months (amend/frame rules after 1-month objections + publicity); (ii) Authorised officer records **age + marital status**, provides non-registration/false-declaration consequences to carry out order; (iii) Central comprehensive statute to be placed before Court; (iv) Counsel ensure immediate compliance; Registry to hand copy to SG.

RATIO: (1) **Proof-not-validity rule (Sec 8(5)).** (2) **Presumption rule:** registration → rebuttable presumption. (3) **Universality:** all religions. (4) **Procedure:** age + status + publicity + objections. Short-note + validity-answer closer.

DU LL.B. EXAMINATION ARCHIVE

Previous Year Questions — Unit 01: Marriage under Hindu Law (Hindu Marriage Act, 1955)

Q.01 DU 2017 Q1(a)

1970 Gopal (Chennai) marries sister's daughter Jaya per Hindu rites. 1980 marries Lakshmi by tying thirumangalam. Prosecuted 494. Defences: (i) no saptapadi with Lakshmi, (ii) M1 with Jaya hit by prohibited relationship. Discuss tenability.

● **Refer website for detailed notes — makelaweasy.in**

Q.02 DU 2017 Q2(a)

Rajendra–Seema marriage unconsummated due to Seema's uterine prolapse. 2015 petition 12(1)(a)+(c). Seema: no defect before/after, no knowledge. Decide.

Q.03 DU 2017 Q2(b) + 2013 Q2(i) + 2014(2) Q2 • Child Marriage Classic

Ram 21 marries Lakshmi 16. Validity under HMA + PCMA 2006? (Variants: Anuj 20–Manju 17; Sumeet 20–Deepa 17 + Islam + Zoha; Sagar 17–Preeti 15 + Salim/Buksana)

Q.04 DU 2015 Q1 • 2014(2) Q1 • 2013 Q1 • 2012 Q1 • 2010 Q2 • Validity Problems (4-5 sub-parts)

Discuss validity under Hindu law: (i) paternal grandfather's sister's son's son / brother's daughter's daughter variants, (ii) maternal uncle's daughter / uncle-niece, (iii) stepson–widow / son's wife / brother's widow, (iv) garlands-only Chennai/ Delhi, (v) 12F–20M / 16F–17M without consent.

Q.05 DU 2014 Q2(a) • 2013 Q2 • 2010 Q4 • Conversion-Bigamy Essay (10 marks)

Malti–Mohan (Hindu rites). Mohan fails to get 13B consent, converts with Vanita to Islam, Nikah. Malti files 494. Is Mohan guilty? (Variants: Anuj→Islam→Muslim girl; Sagar→Salim→Buksana; Sumeet→Zoha)

Q.06 DU 2014 Q2(b) • Bigamy Proof Theory (10 marks)

"For 494 conviction, second marriage must be validly performed." Explain with two cases.

Q.07 DU 2013 Q3 • 2015 Q3 • Fraud / Pregnancy / Impotency (10-20 marks)

Amit–Sunita: Amit discovers Sunita bore pre-marriage child (illicit, given in adoption). Remedies? (Variant: Bhushan impotent + mental concealment; Karuna bigamously marries Vineet — offences by all?)

Q.08 DU 2012 Q3(ii) • Babui Replica (10 marks)

Rani 19 married to widower Shekhar 50 by father fraudulently telling 25 + wealthy. Veiled, shocked at wedding. Remedy?

Q.09 DU Short Notes (2010 Q1 • 2014 Q1 • Expected) • 5 marks each

(a) Void vs Voidable (b) Sapinda (c) Child marriage HMA vs PCMA (d) Fraud (e) Registration (f) Conversion effect

Q.10 EXPECTED 2025-26 • Live-in + ST + Solemnisation (DU hasn't asked since 2017 – due)

E1: H+W cohabit 10 yrs as spouses + 2 kids, no Sec 7 ceremony. W claims maintenance + legitimacy + bigamy vs H's new marriage. E2: Tribal H (Santhal) bigamously marries per Hindu rites. 494? E3: Saptapadi dispute — homa done, 7th step disputed.

LAW CRUX · PAPER LB-105 · UNIT 02 Hindu Marriage Act, 1955 (Ss. 9, 10, 13, 13(1A), 13B, 14, 23) · Art. 142 COI · 12 Prescribed DU Cases

Matrimonial Remedies under Hindu Law (Ss. 9–13B & S. 23)

Fault, Consent & Breakdown Theories, Restitution of Conjugal Rights (S. 9), Judicial Separation (S. 10), Divorce Grounds (S. 13(1)–(2)), S. 13(1A) Bridge & S. 23(1)(a) 'Own Wrong' Bar, and Divorce by Mutual Consent (S. 13B)

1

Theories of Divorce + 71st Report + Marriage Laws (Amendment) Bill 2013

The compulsory theory opener for any "divorce" essay. DU lists it as sub-topic (a) — expect a 10-mark essay or short-note pairing with cruelty/desertion.

1.1 From Sacrament to Breakdown — Evolution (Lexis p.29)

Theory	Core idea	HMA embodiment	Critique
1. Fault / Matrimonial-offence theory	Marriage broken by **guilt** of one party; innocent petitions. Adversarial, mud-slinging.	Sec 13(1)(i)–(ib),(ii)–(vii) + 13(2); Sec 23 bars (condonation, collusion, connivance). Original 1955 scheme (Derrett: "for helpless ill-treated women, not husbands' variety").	Time-consuming, expensive, embittering; blocks ancillary settlement; no exit where **no fault** but marriage dead shell.
2. Consent theory	Marriage = partnership dissoluble by **mutual will** + safeguards.	**Sec 13B (1976)** (SMA Sec 28 model 1954): 1-yr separate + joint petition + 6–18 mo motion + inquiry (genuineness, no force/fraud/undue influence Sec 23(1)(bb)).	Fails where recalcitrant spouse withholds consent vindictively; needs breakdown supplement.
3. Breakdown theory	Law notices **fact** of death, not fault; separation + no reunion = divorce. Forward-looking (children/property), not past wrongs.	**Embedded partially:** Sec 13(1)(vii) 7-yr absence (no fault); **Sec 13(1A)** (1964/76): 1-yr non-resumption after JS/RCR → either party (even guilty) can divorce. **Full IRBM not yet enacted** (Bills lapsed); courts smuggle via cruelty + Art 142.	Apprehension: premium on ingenuity, hasty divorce, exploitation of wives (women's groups blocked 1981 Bill); needs safeguards (hardship + property + children).

Exam line (Samar Ghosh, DU p.136–137, quoting 71st Report + Lodder v. Lodder 1921 NZLR 786, Salmond J.): "When matrimonial relation has for [years] ceased de facto, it should cease de jure also… essential purposes frustrated; continuance not merely useless but mischievous… marriage merely a **shell out of which substance gone**… divorce as solution/escape route, unconcerned with past wrongs." + *Naveen Kohli v. Neelu Kohli (2006) 4 SCC 558, paras 74–76*: long separation → bond beyond repair → fiction supported by legal tie → refusing severance shows scant regard; public interest lies in recognising wreck.

1.2 71st Law Commission Report (7 April 1978) — "Irretrievable Breakdown as Ground"

- **Context (Samar Ghosh extract, DU pp.135–137):** 20+ yrs debate (now 50): fault vs breakdown; Commonwealth germ: NZ 1920 Act (3-yr separation agreement → discretionary divorce).
- **Recommendation:** Add breakdown ground: **3 yrs continuous separation** (3-month reconciliation tolerance) → presumption of breakdown; court must attempt **reconciliation first**; if irreparable → grant.
- **Safeguards proposed:** (i) financial protection of wife/children (maintenance + property), (ii) no divorce causing **grave hardship**, (iii) children's welfare paramount, (iv) court discretion, not automatic.
- **Majority vs minority:** Majority (most jurists): life short, misery cannot continue indefinitely; law must respond. Minority: doors to litigation, more problems than solved (Samar para 77–78).
- **Aftermath:** 1981 Bill (IRBM) lapsed (women's groups' opposition); 217th Report (2009) revived; SC in *Naveen Kohli, Samar Ghosh, Rishikesh Sharma (2006) 12 SCALE 282, Chetan Dass (2001) 4 SCC 250* repeatedly **recommended** Parliament to enact.

1.3 Marriage Laws (Amendment) Bills 2010 → 2013 (syllabus item — STATUS: LAPSED)

Proposed	Content	Safeguard / Debate
Sec 13C — IRBM ground (HMA + SMA parallel)	Either spouse may petition; **≥3 yrs continuous separation** immediately before petition; brief reunion (~3 months) doesn't break continuity.	Gender-neutral filing; court must be satisfied breakdown irretrievable + reconciliation attempted.
Sec 13D — Wife's opposition on hardship	**Wife only** may oppose 13C divorce if it causes **grave financial hardship**.	Protective classification (Art 15(3)) vs Art 14 gender-neutrality critique; shields economically dependent wives.

Proposed	Content	Safeguard / Debate
Sec 13E + property share	Court must ensure **adequate maintenance/property for wife + children** (wife's share in husband's **immovable/movable, inherited + inheritable** property) before granting 13C decree; children's interests considered.	Most controversial: property grab vs protection; men's groups opposed; reason Rajya Sabha passed (26-8-2013) but Lok Sabha never passed → **lapsed**.

Current law (write verbatim): "As the law stands, **IRBM per se is NOT a statutory ground** (Lexis p.30). It has **sneaked in** via (i) Sec 13(1A) (1-yr non-compliance), (ii) liberal cruelty (Samar xiv: long separation = mental cruelty), (iii) **Art 142 complete justice** (*Manish Goel (2010) 4 SCC 393* limits vs *Shilpa Sailesh v. Varun Sreenivasan 2023 SCC OnLine SC 544, Constitution Bench*: SC **can** grant IRBM divorce + waive 13B directly under Art 142). Trial courts **cannot** grant IRBM de hors Sec 13." Cite *Chetan Dass*: IRBM not straitjacket formula; consider all facts.

DIVORCE THEORY EVOLUTION — FLOWCHART

Pre-1955: Indissoluble sacrament (Bipinchandra: Shastras, no dissolution)
↓ 1955
FAULT (13(1)/(2)) — guilt must be proved; Sec 23 bars
↓ 1964: 13(1A) (either party) ↓ 1976: 13B + cruelty/desertion as divorce
CONSENT (13B) + BREAKDOWN-SEEDED (13(1A): 1-yr non-resumption)
↓ 1978: 71st Report → 1981 Bill (lapsed) → 2010/2013 Bills (RS passed, lapsed)
FULL IRBM (13C–13E): PROPOSED, NOT LAW — via Art 142 + cruelty (xiv) only

2

Sec 9 — Restitution of Conjugal Rights

"When either spouse has, **without reasonable excuse**, withdrawn from the society of the other, the aggrieved party may apply... court, on satisfaction of truth + no legal bar, shall decree restitution." (Sec 9). Mildest remedy — **compels cohabitation, not divorce**; but feeds Sec 13(1A)(ii) after 1 yr.

2.1 Provision Text + Ingredients (Sec 9 + Explanation, 1976)

`HMA SEC 9 — RCR` "Where either the husband or the wife has, **without reasonable excuse, withdrawn from the society of the other**, the aggrieved party may apply... and the court, on being satisfied of the truth of the statements... and there is **no legal ground** why the application should not be granted, may decree restitution of conjugal rights accordingly. ***Explanation* (1976):** where question arises whether there has been **reasonable excuse**... **burden of proving reasonable excuse shall be on the person who has withdrawn** from society." Bellwether phrase DU expects: **"withdrawn + without reasonable excuse + burden on withdrawer"**.

Ingredient	Meaning + DU point
1. Valid marriage subsisting	Only spouses can sue; void marriage = no RCR (only Sec 11 declaration).
2. Withdrawal from society	Refusal to cohabit/co-reside; need not be physical desertion — living apart + refusal to return suffices; animus to stay away (compare desertion elements).
3. Without reasonable excuse	Open-textured: cruelty, impotence, husband's cruelty/neglect, wife's **genuine** employment? (Kailashwati NO vs Swaraj YES — the DU debate); Muslim second marriage = excuse for first wife (PYQ 2011 Q3 — answer: yes, Itwari v. Asghari + Sec 3 MWA analogy; Hindu second marriage void anyway = excuse/cruelty).
4. No legal bar	Sec 23 filters apply (condonation of cruelty pleaded as excuse, collusion, delay).
5. Burden (Expl.)	Withdrawer proves excuse; petitioner proves withdrawal. Court must attempt **reconciliation** (Sec 23(2)).

Effect of decree: directs resumption of cohabitation; **no divorce**; coercive enforcement limited — **O21 R32 CPC: attachment of property only, NOT arrest** (Harvinder Kaur affirmed in Saroj Rani: remedy is inducement/financial sanction, not forced cohabitation). Non-compliance 1 yr → **Sec 13(1A)(ii)** divorce for either party. Wife complying may still claim maintenance; RCR decree in husband's favour can defeat wife's Sec 125 CrPC claim (opposite if in wife's favour — Pran/Radha logic).

2.2 Case 01 — Kailashwati v. Ayodhya Prakash (DU p.74) — "Working-wife RCR: employment is NO excuse" ***

`FACTS (DU PP.74-85 CONDENSED)` Marriage 12-5-1973 (Arya Samaj); lived Delhi (husband's house + parents, 1st floor vacant portion available); **wife nursing Superintendent at Irwin Hospital**, also received **Nightingale Award mid-case + foreign trip**; marriage **not consummated** (wife slept separately, said "won't permit sex on medical grounds"); wife left 7-7-1974 after demanding husband live separately from parents, refused return. Husband: RCR petition. Wife's excuses: (i) no separate

accommodation, (ii) demand of dowry/scooter, (iii) **husband unemployed/financially dependent, no status**, (iv) incompatible lifestyle.

Held (decree GRANTED to husband): (1) **Wife's gainful employment at distant place = NO reasonable excuse** — she may work anywhere but cannot refuse to live with husband on that ground; husband offered vacant first floor; (2) Hindu wife's **duty** (as then viewed): "live with husband, submit to his guardianship, protect/virtue"; separate-residence demand to isolate from parents = unreasonable; (3) unconsummated marriage + denial of sex = supports husband; (4) dowry/unemployment pleas **unproved** (no witness; husband educated, family property); (5) RCR is **personal-law duty**, not violative of equality — wife's appeal dismissed.
How to cite (problem answers): "As in *Kailashwati*, mere employment / transfer / career preference does **not** constitute reasonable excuse where husband provides suitable matrimonial home; wife must prove **grave** cause (cruelty/neglect/unsuitability)." Contrast immediately with Swaraj Garg for balance marks.

2.3 Case 02 — Swaraj Garg v. K.M. Garg (DU p.85) — "Working-wife RCR: bona-fide job CAN be excuse" ***

FACTS (DU PP.85-93 CONDENSED) Marriage 22-11-1973; husband lecturer Delhi; wife **teacher in Bhiwani** (posted away); wife demanded transfer to Delhi (applied through proper channel, supported by husband initially); husband demanded resignation + return; wife refused to quit **bona-fide service**; husband: RCR. Trial court granted RCR; High Court reversed; **Division Bench affirmed reversal**.

Held (RCR REFUSED — wife's excuse reasonable): (1) Wife in **bona-fide government service** before/after marriage, sincerely seeking transfer to Delhi — refusal to abandon career is **reasonable excuse**; (2) Modern working-wife equality: *Kailashwati* view of "wife must follow husband" **outdated**; marriage = partnership; (3) Husband **knew** of job at marriage — estopped from demanding resignation; (4) No cruelty/neglect by husband needed — excuse judged on wife's bona fides; (5) Courts must balance: permanent-distinct career + genuine transfer efforts = reasonable; **rejected blanket Kailashwati rule**.

Exam move: Reconcile Kailashwati vs Swaraj (write this table for full 8 case-marks)	Kailashwati (RCR granted)	Swaraj Garg (RCR refused)
Wife's job	Delhi itself; no transfer issue — job was **pretext** alongside non-consummation + separate-home demand	Bhiwani posting; **transfer impossible immediately**; sincere Delhi-transfer applications
Husband's conduct	Provided home, willing to cohabit, no cruelty proved	Knew of service at marriage; demanded **resignation** (unreasonable)
Ratio meld	**Single test: Is the career plea bona fide + unavoidable, or a pretext for withholding society?** Bona-fide distant service + genuine transfer efforts = reasonable excuse (Swaraj); local job + collateral demands (separate home, no sex) = no excuse (Kailashwati). Cite **both** in every working-wife PYQ.	

2.4 Case 03 — Saroj Rani v. Sudarshan Kumar Chadha AIR 1984 SC 1562 (DU p.93) — "Sec 9 constitutionally VALID" ***

JOURNEY TO SC *T. Sareetha v. T. Venkatasubbaiah* AIR 1983 AP 356 (Choudary J.): Sec 9 **struck down** — violates **Art 14 (husband-biased), Art 21 (privacy, sexual autonomy, bodily integrity)**; RCR = "savage and barbarous" coercion of unwilling wife into sex; Victorian relic (English law abolished RCR 1970). → Delhi HC *Harvinder Kaur v. Harmander Singh* AIR 1984 Del 66 (Rohatgi J.): **upheld** — RCR aims at **cohabitation/consortium, not sexual intercourse**; enforcement only **attachment of property (O21 R32)**, no arrest; serves reconciliation/social purpose; Art 21 argument overblown. → **SC (Saroj Rani) affirmed Harvinder Kaur**.

SC ratio (short judgment, often quoted): (1) Sec 9 **valid** — serves **social purpose: prevent hasty dissolution, foster reconciliation**; (2) Decree = "**inducement** for husband/wife to live together", **not** state-compelled sex — coercion limited to **financial sanction**; (3) Agrees with Harvinder Kaur's aims + method + remedy reasoning; **disapproves T. Sareetha**; (4) Hindu marriage = **sacrament + consortium**, not mere contract; (5) Obiter: constitutional challenge to personal-law provisions needs circumspection (later revisited in *Shayara Bano / Puttaswamy* era — but **Saroj Rani still good law**, EXAM answer).
Attack + defend (both-side arguments for "validity of Sec 9" essay): Attack (T. Sareetha): Art 21 privacy/bodily autonomy (*Puttaswamy 2017* strengthens: sexual autonomy fundamental), Art 14 (statistically anti-wife), Art 15(1) sex classification, modern gender justice. **Defend (Harvinder/Saroj):** gender-neutral text, reconciliation aim, only property attachment, Art 15(3)-adjacent family protection, 13(1A) safety valve after 1 yr. **Conclude:** binding SC validity; Puttaswamy cited by critics but no overruling — mention 2022–24 challenges pending (write "as of syllabus, Saroj Rani governs").

RCR ANSWER FLOWCHART (USE IN EVERY SEC 9 PROBLEM)

1. Marriage subsisting? → 2. Withdrawal proved? (living apart + refusal)
↓ yes
3. Excuse pleaded? → WITHDRAWER proves (Sec 9 Expl.) — cruelty / job / 2nd marriage / neglect?
↓ test
Kailashwati: pretext → NO excuse → GRANT RCR

Swaraj: bona-fide career → excuse → REFUSE RCR
↓ then
4. Reconciliation attempt (23(2)) → decree (attachment only) → 1 yr non-compliance = 13(1A)(ii) divorce

3

Sec 10 Judicial Separation + Sec 13(1A) Bridge

JS = **"suspended animation"** (Derrett): cohabitation suspended, **marriage subsists**, remarriage prohibited (Sec 15–17 punish), rescindable on reconciliation. Pre-1976 it was also the **only** relief for cruelty/desertion ("half-way house"); post-1976 full divorce available, but JS survives as softer option + Sec 13A alternate.

3.1 Provision Text (Sec 10, amended 1976)

`HMA SEC 10 — JUDICIAL SEPARATION` "(1) Either party to a marriage... may present a petition praying for a decree for judicial separation **on any of the grounds specified in sub-section (1) of section 13**, and in the case of a wife also **on any of the grounds specified in sub-section (2)** thereof, as grounds on which a petition for divorce might have been presented. **(2)** Where a decree for judicial separation has been passed it shall **no longer be obligatory** for the petitioner to cohabit with the respondent, **but the court may, on application by petition of either party and on being satisfied of the truth** of the statements... **rescind** the decree if it considers it just and reasonable to do so."

Effect / Feature	Law + DU cite
Status: married but separated	No duty to cohabit (Sec 10(2)); **no remarriage** (marriage subsists — adultery during JS still matrimonial offence; *Hirachand*: tie subsists, only duty suspended). Maintenance/custody continue.
Grounds = same as divorce	Post-1976: any 13(1)/13(2) ground; before 1976: cruelty/desertion gave **only JS** ("half-way house"), divorce needed 13(1A) 2-yr route — Lexis p.42; pre-1976 six JS grounds listed (adultery, cruelty, desertion, conversion, unsoundness, leprosy/VD).
Rescission on reconciliation	Either party may apply; court rescinds if just/reasonable — embodiment of **reconciliation policy** (Derrett's "reconsider / single-taste" purpose: taste separation before final divorce).
Bridge to divorce: Sec 13(1A)(i)	1 yr after JS decree + **no resumption of cohabitation** → **either party** may seek divorce (even the guilty one — breakdown seeded); subject to Sec 23(1)(a) wrong (*Dharmendra/Hirachand/Srinivasan*).
Sec 13A alternate relief	In any divorce petition (except 13B), if divorce not warranted, court may grant **JS instead** — see Sec 4.5.

***Manisha Tyagi v. Deepak Kumar* (2010) 4 SCC 339 (Lexis p.43):** SC restored Single Judge's **JS decree** (set aside DB's suo-motu divorce): where evidence supports cruelty but **marriage may survive** / petitioner only sought JS, appellate courts must not convert to divorce suo motu. **Exam use:** JS vs divorce = distinct reliefs; respect petitioner's choice; JS preserves reconciliation window.

Derrett's prophecy (Lexis p.42): "[JS] will gradually wither away" once full divorce freely available — but DU examiner loves it: JS survives for (i) religious objectors to divorce, (ii) Sec 13A soft landing, (iii) property/maintenance strategy, (iv) cooling period before 13(1A).

JS vs RCR vs DIVORCE — DISTINGUISH (SHORT-NOTE TABLE IN FLOW)

RCR Sec 9
compels TOGETHER
ground: withdrawal w/o excuse
enforce: attachment only
JS Sec 10
permits APART
ground: any 13 ground
rescindable; no remarriage
DIVORCE Sec 13
ends marriage
grounds proved + 23 clean
remarriage after appeal time
↓ common bridge ↓
1 yr non-compliance → Sec 13(1A) divorce (either party) — see Sec 8

4

Sec 13 Divorce — Complete Ground Map

Master-table section. Details of cruelty/desertion/13(1A)/13B follow in Secs 5, 6, 8, 9; this section gives the **whole architecture** examiners expect in "grounds of divorce" essays.

4.1 Sec 13(1) — Fault Grounds (either spouse)

Clause (post-1976)	Ground	Essence + cross-ref
(i)	**Adultery** — voluntary sexual intercourse with any person other than spouse	Recast 1976: single act suffices (pre-1976: "living in adultery"); standard: preponderance + opportunity/inclination; needs corroboration of association. *Note: Joseph Shine (2018) decriminalised Sec 497 IPC — HMA ground UNAFFECTED.* See Sec 7.1.
(ia)	**Cruelty** (physical/mental)	**Biggest PYQ ground.** Grave-weighty test (*Dastane*), 14 illustrations (*Samar*), incl. forced unnatural sex (*Sanjeev Gupta*). Full Sec 5.
(ib)	**Desertion ≥2 yrs continuous**	4 elements (*Bipinchandra*). Full Sec 6.
(ii)	**Conversion** — ceased to be Hindu by conversion	Mere profession insufficient; bona-fide conversion to non-Hindu faith; apostasy ≠ conversion necessarily (Sarla Mudgal context). Sec 7.2.
(iii)	**Unsound mind** — incurably of unsound mind / mental disorder (1976)	"Mental disorder" defined (schizophrenia etc.); **cannot reasonably be expected to live together**; medical evidence; burden on petitioner. Sec 7.2.
(iv)	**Leprosy** — virulent + incurable	Both adjectives needed; medical proof; largely obsolete (2019 HMA Bill proposes deletion).
(v)	**Venereal disease** — communicable form	Communicable at petition; not contracted innocently from petitioner (Sec 23(a) wrong).
(vi)	**Renunciation** — renounced world by entering religious order	Civil death (sanyas, yati); must be formal order (*Sital Das*).
(vii)	**Presumed death** — not heard of 7 yrs	No-fault breakdown seed; Sec 108 Evidence Act presumption; if spouse returns, divorce stands but remarriage protected (Sec 16 analogues).

4.2 Sec 13(2) — Wife-Only Additional Grounds

Clause	Ground	Essence
(i)	**Husband's bigamy** — married again before 1955 commencement + other wife alive at petition	Protects pre-Act second wives' co-wife; post-1955 second marriage void (Sec 11/17) = cruelty ground instead.
(ii)	**Husband's rape/sodomy/bestiality** since marriage	Criminal-conduct ground; sodomy overlaps cruelty (*Sanjeev Gupta* adds 13(1)(ia) route for same facts).
(iii)	**Maintenance decree/order + no cohabitation 1 yr**	Sec 18 HAMA decree or Sec 125 CrPC order obtained + no resumption 1 yr after.
(iv)	**Option of puberty** — married before 15, repudiated after 15 but before 18	**Syllabus item!** Irrespective of consummation (1976 removed non-consummation need); repudiation may be express/implied; Full Sec 7.3 + PYQ 2011Supp Q1.

4.3 Sec 13(1A) — Breakdown-Seeded Divorce (either party)

`HMA SEC 13(1A) (1964; 1-YR SINCE 1976)` "Either party to a marriage, whether solemnised before or after commencement... may also present a petition for dissolution by decree of divorce on the ground — **(i)** that there has been **no resumption of cohabitation** as between the parties for **one year or upwards** after passing of a decree for **judicial separation**; or **(ii)** that there has been **no restitution of conjugal rights** as between the parties for **one year or upwards** after passing of a decree for **restitution** in a proceeding to which they were parties."

Why revolutionary (DU essay point): remedy available to **guilty/judgment-debtor spouse too** — first legislative recognition that **dead marriage should end** regardless of fault. Limit: Sec 23(1)(a) "taking advantage of own wrong" — the *Dharmendra–Hirachand–Srinivasan* triangle (Full Sec 8).

4.4 Sec 14 — One-Year Bar + Sec 23/23A Filters

Filter	Rule
Sec 14: no petition within 1 yr of marriage	Exception: **exceptional hardship** to petitioner or **exceptional depravity** of respondent (leave of court; court considers children + reconciliation chance + reasonable probability of reconciliation). Leave may be revoked if obtained by misrepresentation. 13B has its own 1-yr separation clock instead.
Sec 23(1)(a): own wrong/disability	No relief if petitioner takes advantage of own wrong/disability; must not have **condoned**, connived, colluded; no **unnecessary/improper delay**; (bb) 13B genuineness; (c) no collusion; (d) no condonation; (e) no other legal bar. Reconciliation duty: Sec 23(2). *Dharmendra* (mere non-compliance ≠ wrong) vs *Hirachand/Srinivasan* (positive misconduct = wrong).
Sec 23(1)(b) condonation	*Dastane* (DU pp.115–118): condonation = **forgiveness + reinstatement** with knowledge of offence; conditional on future good behaviour; **revived** by fresh cruelty; burden on respondent pleading it.
Sec 13A alternate relief	In any divorce petition (not 13B), court may grant **JS instead** if just — soft landing; respects reconciliation policy.
Sec 23A respondent relief	Respondent may **oppose on petitioner's adultery/cruelty/desertion** AND **counter-claim any relief** (divorce/JS/RCR) on that ground — no separate petition needed.

Standing exam trap: "Husband guilty of adultery seeks 13(1A) divorce — grant?" Answer: YES if only non-compliance (*Dharmendra*); NO if continuing adultery/maintenance default/thwarting reunion (*Hirachand*) — distinguish on **positive misconduct**. Always pair the two.

5

Sec 13(1)(ia) Cruelty — Physical + Mental

Pre-1976 cruelty gave only JS (cruelty "as to cause reasonable apprehension"); **1976 made simple "treated with cruelty" a full divorce ground**. No statutory definition — judge-made via *Dastane* (foundation) → *Samar Ghosh* (14 illustrations) → extensions (*Sanjeev Gupta, Shobha Rani, Bhagat, Jayachandra, Parveen Mehta*).

5.1 Case 04 — Dastane v. Dastane AIR 1975 SC 1534 (DU p.100) — "Grave & weighty; ordinary wear" ***

`FACTS (DU PP.100–123)` Marriage 1956; wife (schizophrenia treatment before marriage — disclosed?) showed cruelty: abused husband's father ("burn his degree"), threatened suicide/burn house, tore *mangalsutra*, taunted day/night, beat daughter Shubha, ill-treated servants; husband sought JS (pre-1976). Trial: granted; HC: reversed (condonation — parties cohabited till 1961 + letters). SC appeal.

SC ratio (Chandrachud J. — quote verbatim): (1) **Definition:** cruelty = conduct of **"grave and weighty"** nature — must be more serious than **"ordinary wear and tear of married life"**; (2) **Apprehension test:** petitioner must show conduct gives **reasonable apprehension** that living together will be **harmful or injurious**; (3) **Intention irrelevant:** mental illness/absence of malice is no defence if conduct is cruel in effect (wife's schizophrenia plea rejected); (4) **Condonation (Sec 23(1)(b), DU pp.115–118):** = forgiveness + reinstatement with knowledge; **conditional**, revived by fresh cruelty; mere cohabitation/letters ≠ condonation where cruelty continued; burden on respondent; (5) **Standard of proof: preponderance of probabilities** (matrimonial, not criminal BRD) — even for adultery-adjacent facts; (6) **Result:** cruelty proved → **JS restored** (pre-1976); threats/insults/child-beating = grave-weighty.
Dastane answer formula: "Applying *Dastane*: (i) identify each act, (ii) ask grave-weighty vs ordinary wear, (iii) apprehension of harm, (iv) intention irrelevant, (v) check condonation revival, (vi) preponderance standard." Also cite for **Sec 23(1)(a) own-wrong** + provocation rejection (pp.119–123: husband's alleged provocation/letters did not cause wife's cruelty).

5.2 Case 06 — Samar Ghosh v. Jaya Ghosh (2007) 4 SCC 511 (DU p.120) — "Mental cruelty: no definition; 14 illustrations" ***

`FACTS (DU PP.128–131, 151–157)` Marriage **13-12-1984 (Special Marriage Act)**; spouses **IAS officers** (husband Assam cadre posted away); wife refused cohabitation at postings, lived with parents, refused child, unilateral decisions; **separate since 27-8-1990**; husband: divorce (cruelty + IRBM). Family court: granted; HC: reversed; SC appeal after **16.5 yrs separation**, husband post-bypass with "no feeling" for wife.

SC ratio (Dalveer Bhandari J.): (1) **No comprehensive definition of mental cruelty** possible — depends on facts, social status, education, susceptibilities; (2) Court surveys foreign law (England, USA, Canada, NZ) + 71st Report + *Naveen Kohli* paras 74–79 → lays down **14 illustrative instances** (guidelines, not exhaustive); (3) Long separation + complete emotional deadness = cruelty + breakdown (illustration xiv); (4) **Decree RESTORED** — marriage dead, continuance cruelty itself.

5.3 The 14 Illustrations — Memorise (DU pp.141–148, reordered for recall)

#	Illustration (exam shorthand)	PYQ use
i–ii	Sustained conduct causing **acute mental agony**; life together **impossible**	Generic cruelty opener — pair with Dastane
iii–iv	**False criminal complaints / character assassination**; humiliation in public	False 498A/dowry cases = cruelty (*K. Srinivas Rao*)
v–vii	Sustained **verbal abuse, neglect, indifference, sadistic behaviour**; refusal of company	Drunkard/abuse problems (2015 Q4)
viii–x	**Unilateral big decisions** (job/transfer/abode), depriving consortium; **sterilization/ abortion without consent**	Working-wife + autonomy problems
xi	**Sterilization/abortion without spouse consent** (esp. underlined in DU)	Spouse-autonomy cruelty
xii–xiii	**Unilateral refusal of sex / child** without justification	Non-consummation, Kailashwati cross-cite
xiv	**Long separation (years) = marriage fiction**; forcing continuance is cruelty	IRBM-via-cruelty; Naveen Kohli 16.5-yr logic

Satellite cases to sprinkle (1 line each, DU-approved): *Shobha Rani v. Madhukar Reddi* (1988) 1 SCC 105 — demand of dowry + harassment = cruelty; *V. Bhagat v. D. Bhagat* (1994) 1 SCC 337 — false adultery allegation in pleadings = cruelty; *Parveen Mehta v. Inderjit Mehta* (2002) 5 SCC 706 — cruelty need not be physical; mental pain approach; *Jayachandra v. Aneel Kaur* (2005) 2 SCC 22 — nagging + locking out + taunts = cruelty; *Naveen Kohli* (2006) — 10-yr separation + false cases = cruelty + IRBM recommendation; *K. Srinivas Rao v. D.A. Deepa* (2013) 5 SCC 226 — false criminal cases = cruelty.

5.4 Case 05 — Sanjeev Gupta v. Smt Ritu Gupta 2019 SCC OnLine All 2255 (FA 296/2018, JJ Gupta + Srivastava, 24-5-2019) — "Forced unnatural sex = cruelty + 13(1)(ii)" ** (supplementary)

`FACTS (SYLLABUS CASE; NOT IN DU EXCERPTS — FROM SCC ONLINE/INDIANKANOON)` Marriage **1-7-2012 (Arya Samaj + Sub-Registrar Ghaziabad)**; wife had 5-yr-old daughter Khushi from earlier marriage; **wedding night: forced sodomy + oral sex** against wishes → bleeding, injuries; threats ("mar-peet", kill Khushi if disclosed); **17-7-2012 compromise** (panchayat) then **repeat** incl. forced oral while wife on kidney-stone rest; wife fled; ADJ FTC-II Ghaziabad (29-3-2018) granted divorce (cruelty + sodomy). Husband appealed: denial, no cross-examination on sodomy points, led no evidence.

Allahabad HC ratio (affirmed divorce): (1) **Forced unnatural sex (sodomy/oral) against wife's wishes = criminal offence + marital wrong + cruelty u/Sec 13(1)(ia)** AND ground u/**Sec 13(2)(ii)** (sodomy) for wife; (2) **Forcible sex, natural or unnatural, = illegal intrusion into privacy/bodily integrity** (Puttaswamy-era reasoning); consent of marriage ≠ consent to perverse acts; (3) Reliance: *Grace Jayamani v. E.P. Peter, Bini T. John v. Saji Kuruvila*; (4) **Civil standard** (preponderance) applies; wife not accomplice; husband's failure to cross-examine/lead evidence = adverse inference; (5) Criminal conviction (if any) corroborates; prior similar divorce of husband's first wife relevant conduct.
Exam placement: cite after *Dastane + Samar* in any sexual-cruelty / sodomy / "unnatural offences" problem; also answers **Sec 13(2)(ii)** wife-ground + marital-rape-adjacent essay ("consent within marriage" — note Exception 2 Sec 375 IPC as amended; HC treats forced unnatural acts as cruelty regardless).

CRUELTY ANSWER FLOWCHART

List each act → Dastane: grave-weighty? (beyond ordinary wear?) → apprehension of harm?
↓
Match Samar illustration (i–xiv) + satellite (Bhagat/false case, Shobha/dowry, Sanjeev Gupta/sexual)
↓
Defences? intention irrelevant • provocation? (Dastane: rejected) • condonation? (revived by fresh acts?) • delay?
↓ preponderance
Conclude: cruelty proved/not → divorce/JS (13A) + Sec 25/26 ancillary

6

Sec 13(1)(ib) Desertion — 2 Years Continuous

Desertion = **factum (separation) + animus deserendi (intent to forsake permanently)** on desertor's side, + **absence of consent + absence of reasonable-cause conduct** on deserted side — all four for the **whole 2-yr period immediately before petition**. Pre-1976: JS only; post-1976: full divorce.

6.1 Case 07 — Bipinchandra v. Prabhavati AIR 1957 SC 176 (DU p.141) — "4-element test; locus paenitentiae" ***

`FACTS (BOM HC ACT SEC 3(D) — PARI MATERIA; DU PP.139-141, 148-157)` Marriage 1942; wife left matrimonial home after disputes (alleged cruelty by husband's family); husband's solicitor letter **15-7-1947** + wife's letter **Ex.E** showed **husband unwilling** to take her back / imposed conditions; husband sued desertion. Trial: dismissed; HC: granted; SC appeal.

SC ratio (dismissed — desertion NOT proved): (1) **4 elements** (desertor: **factum** of separation + **animus deserendi**; deserted: **no consent** + **no conduct giving reasonable cause**); **petitioner proves all**; (2) **Animus + factum must co-exist** — separation without intent (job, illness, compulsion) ≠ desertion; intent inferred from conduct/letters; (3) **Locus paenitentiae:** bona-fide offer to return **before suit** ends desertion (repentance window); conditional/unwilling letters (Ex.E, 15-7-1947) showed **husband's** unwillingness → he failed; (4) **Constructive desertion** (*Lang v. Lang*): spouse **compelled to leave** by other's cruelty/neglect = the **cruel spouse is the desertor**; (5) **Continuity:** must persist whole statutory period (*Pratt v. Pratt*; Halsbury) — casual visits without resumption don't break, but bona-fide reunion does; (6) Desertion is **continuing offence** — terminates only by resumption or supervening act.

Desertion sub-doctrine	One-line rule + cite
Animus inference	From letters, refusal to return, remarriage attempt, settling elsewhere; mere living apart (service/education) insufficient.
Consent	Agreement to live apart (mutual, job posting) = consent → no desertion; consent revocable on bona-fide demand to return.
Reasonable cause	Cruelty, impotence, neglect, second marriage, unsuitable home = cause; then leaver is **not** desertor (constructive desertion flips).
2-yr computation	Continuous **immediately preceding petition**; periods cannot be tacked across genuine resumption.
Burden	Petitioner proves separation + animus + non-consent; respondent pleading cause proves it (Sec 9 Expl. analogy).

Desertion vs RCR-withdrawal (exam distinction): RCR needs only "withdrawal without reasonable excuse" (no animus, no 2-yr period); desertion needs **animus + 2 yrs + 4 elements**. Every desertion includes withdrawal, but not vice versa. Failed desertion petition may still sustain **RCR**.

DESERTION ANSWER FLOWCHART (BIPINCHANDRA)

Factum? (living apart ≥2 yrs before petition, continuous?)
↓ +
Animus? (intent to forsake — letters/conduct; job/illness/compulsion = NO animus)
↓ +
No consent? (mutual arrangement / demand refused?)
No reasonable cause? (cruelty? if yes → CONSTRUCTIVE desertion flips!)
↓ check
Locus paenitentiae? (bona-fide return offer = desertion ends) → Conclude + 13A/25/26

7

Other 13(1) Grounds + 13(2) Wife-Only + Option of Puberty

Short-note bank. Adultery + option of puberty carry PYQs (Pran/Radha 2012 Q5; 2011Supp Q1); rest appear as theory lists or 5-mark shorts.

7.1 Adultery — Sec 13(1)(i) (recast 1976)

- **Text:** "has, after solemnisation, had **voluntary sexual intercourse with any person other than his or her spouse**." Pre-1976: "living in adultery" (habitual); post-1976: **single act suffices**.
- **Proof:** direct evidence rare → **opportunity + inclination + association** (hotel records, letters, cohabitation, birth of child); preponderance; corroboration of **association** needed, not of act itself; condonation/connivance bars (Sec 23).
- ***Hirachand* link:** adultery during JS = **continuing offence**; tie subsists (Sec 10(2) suspends only duty) — so post-JS cohabitation with paramour still adultery + Sec 23(1)(a) wrong.
- **Criminal vs civil:** *Joseph Shine v. UoI (2018) 2 SCC 443* struck down **Sec 497 IPC** (adultery as crime, husband-centric) — **HMA Sec 13(1)(i) civil ground unaffected**. Write this line for bonus.

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- **PYQ 2012 Q5 (Pran/Radha):** adultery finding → husband can seek divorce + deny maintenance u/Sec 125(4) CrPC (wife living in adultery); wife's JS compliance doesn't erase adultery.

7.2 Conversion (ii) • Mental disorder (iii) • Leprosy (iv) • VD (v) • Renunciation (vi) • 7-yr absence (vii)

Ground	Exam essence (1–2 lines each)
(ii) Conversion	Ceased to be Hindu by **bona-fide conversion** to another faith; mere sympathy/apostasy or reconversion disputes examined; *Sarla Mudgal* context: conversion to Islam for second marriage = not bona fide + Sec 494 IPC bigamy.
(iii) Mental disorder	1976: "incurably of unsound mind, or suffering continuously/intermittently from **mental disorder** of such kind/extent that petitioner **cannot reasonably be expected to live** with respondent"; Explanation defines mental disorder (mental illness, arrested/incomplete development, psychopathic disorder, any disorder/disability of mind incl. schizophrenia); **medical evidence essential**; *Dastane*: illness is no defence to cruelty but petitioner here must prove disorder + unreasonableness. Cf. Sec 5(ii) (validity) vs 13(1)(iii) (relief).
(iv) Leprosy	"Virulent and incurable form" — both proved medically; near-obsolete; 2019 Personal Laws (Amendment) Bill proposes deletion (write as reform point).
(v) VD	"Venereal disease in communicable form"; contracted innocently from petitioner = petitioner's wrong (Sec 23(a)).
(vi) Renunciation	Renounced world by entering **religious order** (sanyas); formal ceremony/order (*Sital Das v. Sant Ram*); civil death; no resumption possible.
(vii) 7-yr absence	Not heard of as alive for **7+ yrs** by those who'd naturally hear; Sec 108 Evidence Act presumption; no-fault; protects remarriage u/Sec 15 even if spouse returns (second marriage valid; first stands dissolved).

7.3 Sec 13(2) Wife-Only Grounds + * Option of Puberty — Sec 13(2)(iv)

13(2)	Rule
(i) Pre-Act bigamy	Husband married again before HMA commencement + other wife alive at petition — wife may divorce (post-Act bigamy void anyway).
(ii) Rape/sodomy/ bestiality	Husband guilty since solemnisation; overlaps *Sanjeev Gupta* cruelty route — wife may plead **both 13(1)(ia) + 13(2)(ii)**.
(iii) Maintenance + 1-yr gap	Decree/order u/Sec 18 HAMA or Sec 125 CrPC + no cohabitation 1 yr after — wife may divorce.

`SEC 13(2)(IV) – OPTION OF PUBERTY (1976; AGE RAISED 2006 PCMA ALIGNMENT IN PRACTICE)` "Wife... where her marriage (whether consummated or not) was solemnised **before she attained 15 years** and she has **repudiated** the marriage after attaining that age but **before attaining 18 years**." **1976 removed** pre-requirement of non-consummation. Repudiation = express (notice/suit) or implied (refusal to cohabit + conduct); must approach court within window. **PYQ 2011Supp Q1:** compare with **Muslim law option (khyar-ul-bulugh)**: Muslim minor married by guardian → repudiate promptly on puberty (before 18 + before consummation-ratification); Dissolution of Muslim Marriages Act Sec 2(vii): repudiation before 18 + marriage not consummated. Hindu option wider (consummation irrelevant; statute-fixed 15→18 window).

Option-of-puberty answer spine: text + 1976 change + repudiation mode + 15→18 window + PCMA 2006 interplay (child marriage voidable at minor's instance Sec 3 PCMA — parallel remedy) + Muslim-law comparison (for Q1-type "Hindu + Muslim" questions).

8

Sec 13(1A) + Sec 23(1)(a) "Wrong" — The Decisive Triangle

13(1A) lets **even the guilty spouse** seek divorce after 1-yr non-compliance — unless barred by **Sec 23(1)(a): "taking advantage of his or her own wrong or disability."** Three DU cases draw the line: **mere disinclination ≠ wrong (Dharmendra) vs positive misconduct = wrong (Hirachand, Srinivasan).**

8.1 Case 08 — Dharmendra Kumar v. Usha Kumar AIR 1977 SC 2213 (DU p.158) — "Mere non-compliance is NOT wrong" ***

`FACTS (DU PP.158-161)` Wife obtained **RCR decree**; husband did not comply; after statutory period (then 2 yrs) **husband (judgment-debtor, "guilty" party)** petitioned u/Sec 13(1A)(ii). Wife: barred by Sec 23(1)(a) — he takes advantage of own disobedience. Trial/HC: denied. SC appeal.

SC ratio (GRANTED divorce to guilty husband): (1) Sec 13(1A) expressly open to **either party** — Parliament intended guilty spouse to benefit (breakdown policy); (2) **Mere disinclination / failure to comply** with RCR decree is **NOT "wrong"** u/Sec 23(1)(a) — wrong needs **grave misconduct / positive act** beyond non-compliance; (3) Approved *Ram Kali v. Gopal Dass, Gajna Devi v. Purshotam* (P&H) taking same view; (4) To hold otherwise = render "either party" otiose; (5) Reconciliation policy yields to reality of dead marriage after 1 yr.

8.2 Case 10 — Hirachand Srinivas Managaonkar v. Sunanda (2001) 4 SCC 125 (DU p.168) — "Continuing adultery + maintenance default = wrong" ***

FACTS (DU PP.152-175) Wife obtained **JS on adultery**; husband ordered to pay **Rs.100 maintenance**; husband **continued cohabiting with mistress** + **wilfully defaulted** maintenance ("marking time" till 13(1A) clock ran); then sought divorce u/Sec 13(1A)(i). Trial: granted; HC: reversed; SC appeal.

SC ratio (DENIED divorce — wrong bar applies): (1) **Adultery is a continuing offence** — Sec 10(2) only suspends duty to cohabit; **marital tie subsists**; post-JS mistress-cohabitation = fresh/continuing wrong; (2) **Wilful maintenance default** while awaiting limitation = exploiting own wrong ("marking time"); (3) Distinguished *Dharmendra*: there mere non-compliance; here **positive misconduct**; (4) **Disapproved** *Sumitra Manna, Bai Mani* (lenient views); **approved** *Soundarammal*; (5) Sec 23(1)(a) is **ethical filter** — court must examine petitioner's post-decree conduct.

8.3 Case 09 — T. Srinivasan v. T. Varalakshmi, Madras HC + affirmed AIR 1999 SC 595 (DU p.161) — "RCR decree as weapon + driving wife away = wrong" ***

FACTS (DU PP.161-168) Husband obtained **ex-parte RCR decree** (to thwart wife's reunion efforts); on **23-5-1977 drove wife away** from home; wife gave **police writing/complaint**; husband sent notices **Ex.A-4/5/6/8** demanding return (paper trail for 13(1A)); then sought divorce u/Sec 13(1A)(ii). Trial: granted; Madras HC: reversed; SC: affirmed HC.

Ratio (DENIED — affirmed AIR 1999 SC 595): (1) Obtaining RCR decree **as a device to thwart reunion** + physically **driving wife away** + police complaint = **positive wrong/misconduct**, not mere disinclination; (2) Notices Ex.A-4/5/6/8 = **manufactured evidence**, belied by conduct; (3) Follows *Hirachand* distinction; *Dharmendra* inapplicable where petitioner **engineered** non-compliance; (4) Equity: "he who seeks equity must do equity" — Sec 23(1)(a) bars engineered breakdown.

8.4 The Triangle — Master Table (memorise; reproduce in PYQs)

	Dharmendra (GRANTED [Yes])	Hirachand (DENIED [No])	Srinivasan (DENIED [No])
Prior decree	RCR (wife's)	JS on adultery (wife's)	RCR (husband's own, ex-parte)
Petitioner's post-decree conduct	Mere **non-compliance** / disinclination	**Continued adultery + wilful Rs.100 default** (marking time)	**Drove wife away + police writing + weaponised decree**
Sec 23(1)(a)?	**NO wrong** — grant	**Wrong** — deny	**Wrong** — deny
Test line	**"Mere failure to resume ≠ wrong; positive misconduct / engineered non-compliance = wrong."** Always examine **post-decree conduct**.		

Allied Sec 23(1)(a) cites: *Saroj Rani* collusion caution; *Geeta Lakshmi v. Shivohar Shukla* (2001) 4 SCC 100 (sodomy-proof standards cross-ref); *Bimla Devi v. Singh Raj* (1977) 1 SCC 41 (wrong must be pleaded/proved); *Ram Kali, Gajna Devi* (Dharmendra-approved leniency).

13(1A) ANSWER FLOWCHART

JS/RCR decree + 1 yr elapsed + no resumption/restitution? (either party may petition)
↓ then FILTER
Sec 23(1)(a): petitioner's post-decree conduct = ?
↓
Mere non-compliance → Dharmendra → GRANT [Yes]
Positive misconduct (adultery/default/violence/engineered) → Hirachand/Srinivasan → DENY [No]

9

Sec 13B Mutual Consent Divorce — Consent, Cooling, Withdrawal, Waiver

Inserted 1976 (SMA Sec 28 model): divorce by **joint will + double motion + inquiry**. Three litigation triggers: (i) **withdrawal of consent** before decree (*Sureshta* — allowed), (ii) **waiver of 6-month cooling** (*Amardeep* — directory), (iii) **fraud/undue influence** (Sec 23(1)(bb)).

9.1 Provision Text (Sec 13B + Sec 23(1)(bb))

HMA SEC 13B – DIVORCE BY MUTUAL CONSENT "(1) ...a petition for dissolution of marriage by a decree of divorce may be presented to the district court **by both the parties**... on the ground that they have been **living separately for one year or more**, that they have **not been able to live together** and that they have **mutually agreed** that the marriage should be dissolved. (2) On the motion of both the parties made **not earlier than six months** after the date of presentation... and **not later than eighteen months**... if the petition is not withdrawn in the meantime, the court shall, on being satisfied, after hearing the parties and after making such inquiry as it thinks fit, that a marriage has been solemnised and that the averments in the petition are true, pass a decree of

divorce declaring the marriage to be dissolved with effect from the date of the decree."
Sec 23(1)(bb) (1976): in 13B cases, court must be satisfied consent was **not obtained by force, fraud or undue influence**.

Requirement	Meaning (Sureshta + later)
1. Living separately ≥1 yr immediately before petition	**Not living as husband and wife** — place irrelevant (same roof + no marital relations = separate); **no desire to perform marital obligations**; continuous year.
2. Unable to live together	Marriage **broken down**; mere living apart for job ≠ unable; court tests genuineness at inquiry.
3. Mutual agreement	Free, subsisting consensus; vitiated by force/fraud/undue influence (Sec 23(1)(bb)) — e.g., property extortion then refusal (PYQ 2011 Q4a Maya).
4. Joint motion 6–18 months	**Both parties move together** (second motion); gap = **interregnum for second thought/ reconciliation**; 6-mo floor waivable (*Amardeep*), 18-mo ceiling strict-ish.
5. Inquiry + no withdrawal	Court hears parties, verifies averments; petition **not withdrawn in meantime** — consent must **subsist till decree**.

9.2 Case 11 — Sureshta Devi v. Om Prakash AIR 1991 SC 190 (DU p.174) — "Consent withdrawable till decree" ***

FACTS (DU PP.174–185) Joint 13B petition filed; before second motion wife **withdrew consent** (alleged pressure + property terms unfulfilled); husband pressed decree on first petition. HC conflict: Bombay/Delhi/MP views allowed decree despite withdrawal. SC reference.

SC ratio (consent must SUBSIST): (1) **Three substantive requirements** u/Sec 13B(1) (1-yr separate + unable + mutual agreement) must exist at filing **AND continue**; (2) Words "if the petition is not withdrawn in the meantime" = **either party may unilaterally withdraw anytime before decree**; (3) 6–18 mo gap is **cooling/second-thought period** — withdrawing is its very purpose; (4) **O23 R1 CPC analogy rejected** (not ordinary suit withdrawal); consent at second motion must be **free + subsisting**; (5) **Overruled** Bombay/Delhi/MP views permitting one-sided decree; (6) Result: no decree without wife's continuing consent — petition fails.
PYQ 2011 Q4a (Maya/Anil) answer: "Per *Sureshta*, Anil **cannot** get decree on first petition alone — Maya's refusal at second motion = withdrawal; court must dismiss 13B petition. Remedy: sue separately u/Sec 13(1) if cruelty/desertion proved, or recover property under general law (fraud/contract)." Also add Sec 23(1)(bb): property-extorted consent = voidable.

9.3 Case 12 — Amardeep Singh v. Harveen Kaur (2017) 8 SCC 746 — "6-month cooling DIRECTORY; Family Court can waive" *** (supplementary: Khaitan uploads + SCC)

FACTS Marriage broken; **8+ yrs separation**; joint 13B petition; parties sought **waiver of 6-month period** u/Sec 13B(2) (settlement complete, mediation failed). Question: mandatory or directory? Who can waive — only SC under Art 142 (*Manish Goel*) or Family Court itself?

SC ratio (waiver possible — guided discretion): (1) Sec 13B(2) 6-month period is **directory, not mandatory** (*Kailash v. Nanhku* principle); (2) **Family Court itself can waive** — no need for Art 142 transfer to SC (*Manish Goel (2010) 4 SCC 393* binding only on Art-142 point, distinguished); (3) **Four waiver conditions** (ALL needed): **(a)** Sec 13B(1) 1-yr separation complete + **18 months total** before first motion; **(b) mediation/conciliation failed** (O32A R3 CPC, Sec 23(2) HMA, Sec 9 FCA — record efforts); **(c) all ancillary settled** (alimony, custody, property); **(d)** waiting would only **prolong agony**; (4) Discretion, **not automatic** — refuse if short separation / incomplete settlement / coercion / open custody; (5) Procedure: **joint waiver application + settlement + separation affidavits + mediation record**.

Later gloss (cite for currency): *Hitesh Bhatnagar v. Deepa Bhatnagar* (2011) 5 SCC 234 — consent must continue till decree (Sureshta affirmed); fraud/coercion plea needs proof. *Anil Kumar Jain v. Maya Jain* (2009) 10 SCC 415 — SC under Art 142 can dissolve on consent-terms even beyond 13B. *Shilpa Sailesh v. Varun Sreenivasan* 2023 SCC OnLine SC 544 (Constitution Bench) — SC under **Art 142 can grant IRBM/13B divorce directly + waive cooling**, complete justice; trial courts still bound by 13B.

13B ANSWER FLOWCHART

1-yr separate + unable + mutual agreement? (13B(1)) → joint petition
↓ 6–18 mo
Second motion JOINT? → NO (withdrawal-Sureshta) = DISMISS [No] (sue u/13(1) separately)
↓ yes
Inquiry: genuine? force/fraud/undue? (23(1)(bb)) → waiver? (Amardeep 4 conditions)
↓ clean
DECREE [Yes] (dissolved from decree date) + Sec 25/26 terms enforced

10

All 12 DU Cases — Full FIRAC with Both-Side Arguments

Master revision bank. Arguments columns mirror what DU material records + counsel-pleading reconstruction for answer-writing.

Case 01 — Kailashwati v. Ayodhya Prakash (DU p.74) — RCR granted; job ≠ excuse

FACTS Married 12-5-1973 (Arya Samaj), Delhi; wife Nursing Superintendent (Irwin Hospital), Nightingale Award + foreign trip mid-case; marriage **unconsummated** (separate sleeping, "medical grounds"); wife demanded separate residence from parents-in-law, left 7-7-1974; pleas: no accommodation, dowry/scooter demand, husband unemployed. Husband: RCR.

- **Issues:** (1) Withdrawal without reasonable excuse? (2) Is distant/gainful employment reasonable excuse? (3) Burden (Sec 9 Expl.)?
- **Husband (petitioner):** ready/willing, vacant first floor available; wife's excuses unproved (no witness); career pretext + denial of consortium.
- **Wife (respondent):** unsuitable joint home, dowry demands, husband financially dependent; service conditions compel absence.
- **Decision: RCR GRANTED** — excuses unproved; employment ≠ reasonable excuse; appeal dismissed.

Ratio: wife's employment/career preference is **no reasonable excuse** where matrimonial home suitable; must prove grave cause. **Exam:** cite for "RCR granted" half; always pair with *Swaraj Garg*.

Case 02 — Swaraj Garg v. K.M. Garg (DU p.85) — RCR refused; bona-fide service = excuse

FACTS Married 22-11-1973; husband lecturer Delhi; wife **teacher Bhiwani**; sought Delhi transfer through proper channel (husband initially supportive); husband demanded **resignation**; wife refused to quit bona-fide service. Trial granted RCR; **HC Division Bench reversed**.

- **Issues:** (1) Can bona-fide government service justify living apart? (2) Is demanding resignation reasonable? (3) Is Kailashwati outdated?
- **Husband:** wife must cohabit; *Kailashwati*; transfer plea dilatory.
- **Wife:** pre-marriage service known to husband; sincere transfer efforts; resignation demand unreasonable; marriage = partnership.
- **Decision: RCR REFUSED** — bona-fide distant service + genuine transfer efforts = **reasonable excuse**; *Kailashwati* blanket rule rejected.

Ratio: bona-fide unavoidable career + bona fides = excuse; test is **pretext vs genuine**. **Exam:** "RCR refused" half of working-wife answers.

Case 03 — Saroj Rani v. Sudarshan Kumar, AIR 1984 SC 1562 (DU p.93) — Sec 9 VALID

JOURNEY *T. Sareetha* AIR 1983 AP 356 struck down Sec 9 (Art 14/21, privacy, "barbarous") → *Harvinder Kaur* AIR 1984 Del 66 upheld (cohabitation not sex; O21 R32 attachment only) → **SC affirmed Harvinder**.

- **Issues:** (1) Sec 9 vs Art 14/21? (2) Does decree compel sex? (3) Social purpose?
- **Challenge (Sareetha-side):** coerces unwilling wife into cohabitation/sex; Victorian relic (England abolished 1970); husband-biased.
- **Defence (Harvinder-side):** gender-neutral; aim = consortium/reconciliation; enforcement = property attachment, no arrest.
- **Decision:** Sec 9 **constitutional** — "inducement", social purpose, financial sanction only.

Ratio: RCR valid; decree = inducement to cohabit, not state-compelled sex. **Exam:** validity essays + RCR enforcement (O21 R32) + Puttaswamy-critique paragraph.

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Case 04 — Dastane v. Dastane, AIR 1975 SC 1534 (DU p.100) — cruelty test + condonation

FACTS Married 1956; wife: abused FIL, suicide/burn threats, tore mangalsutra, taunts, beat daughter Shubha; schizophrenia-treatment history. Husband: JS (pre-1976). Trial granted; HC reversed (condonation); SC appeal.

- **Issues:** (1) What is cruelty? (2) Intention/illness defence? (3) Condonation? (4) Standard of proof?
- **Husband:** sustained grave acts; apprehension of harm; cohabitation ≠ forgiveness (cruelty continued).
- **Wife:** ordinary quarrels; illness negates intention; condoned by cohabitation/letters till 1961.
- **Decision: JS RESTORED** — cruelty proved; condonation not made out (revived).

Ratio: "grave and weighty" beyond ordinary wear; reasonable apprehension; **intention irrelevant**; condonation = forgiveness + reinstatement (conditional, revivable); **preponderance** standard. **Exam:** every cruelty answer's foundation + condonation (23(1)(b)) PYQs.

Case 05 — Sanjeev Gupta v. Ritu Gupta, 2019 SCC OnLine All 2255 (supp.) — forced unnatural sex = cruelty

FACTS Married 1-7-2012 (Arya Samaj + Registrar); wedding-night **forced sodomy/oral** → bleeding; threats to 5-yr-old Khushi; 17-7-2012 compromise then **repeat** (incl. kidney-stone rest period); ADJ Ghaziabad granted divorce (29-3-2018); husband appealed (no cross on sodomy, no evidence).

- **Issues:** (1) Forced unnatural sex = cruelty 13(1)(ia) + 13(2)(ii)? (2) Marital consent scope? (3) Standard of proof?
- **Wife:** perverse acts without consent; injuries; continuing; privacy violation (*Grace Jayamani, Bini John*).
- **Husband:** denial; matrimonial consent implied; criminal standard needed.
- **Decision: Divorce AFFIRMED** — forced unnatural sex = cruelty + sodomy ground; forcible sex = privacy intrusion; preponderance; adverse inference.

Ratio: marriage ≠ consent to perverse acts; wife may plead **13(1)(ia) + 13(2)(ii)** together. **Exam:** sexual-cruelty problems + sodomy ground.

Case 06 — Samar Ghosh v. Jaya Ghosh, (2007) 4 SCC 511 (DU p.120) — mental cruelty illustrations

FACTS Married 13-12-1984 (SMA); IAS officers; wife refused postings/cohabitation/child; **separate since 27-8-1990**; family court granted divorce; HC reversed; SC after **16.5 yrs** separation (husband post-bypass, "no feeling").

- **Issues:** (1) Define mental cruelty? (2) Long separation = cruelty/IRBM? (3) Restore divorce?
- **Husband:** unilateral decisions, deprivation of consortium, dead marriage (71st Report, *Naveen Kohli*).
- **Wife:** career autonomy; no grave acts; IRBM not a ground.
- **Decision: Divorce RESTORED** — 14 illustrations laid; long separation + deadness = cruelty (xiv).

Ratio: no straitjacket definition; 14 guidelines; forcing dead marriage = cruelty. **Exam:** quote 2–3 illustrations per problem + IRBM essays (71st Report extract).

Case 07 — Bipinchandra v. Prabhavati, AIR 1957 SC 176 (DU p.141) — desertion 4 elements

FACTS Married 1942; wife left after disputes; husband's letters (Ex.E, 15-7-1947 solicitor) showed **his unwillingness**/conditions; husband sued desertion. Trial dismissed; HC granted; SC appeal.

- **Issues:** (1) Elements of desertion? (2) Who is desertor? (3) Locus paenitentiae? (4) Continuity?
- **Husband:** wife left + stayed away 2+ yrs; animus inferred.
- **Wife:** compelled to leave (constructive); husband unwilling to receive (letters); no animus.
- **Decision: Appeal DISMISSED** — petitioner failed (own unwillingness); wife not desertor.

Ratio: factum + animus + no consent + no reasonable cause; co-existence; locus paenitentiae; constructive desertion (*Lang*); whole-period continuity (*Pratt*). **Exam:** every desertion problem's skeleton.

Case 08 — Dharmendra Kumar v. Usha Kumar, AIR 1977 SC 2213 (DU p.158) — guilty spouse CAN use 13(1A)

FACTS Wife held RCR decree; husband never complied; after limitation **husband (judgment-debtor)** sought Sec 13(1A)(ii) divorce. Wife: Sec 23(1)(a) bar. Courts below denied.

- **Issues:** (1) "Either party" includes guilty spouse? (2) Is non-compliance "wrong"?
- **Husband:** statute says either party; marriage dead; *Ram Kali, Gajna Devi*.
- **Wife:** profiter of own disobedience; equity bars.
- **Decision: Divorce GRANTED** — mere disinclination ≠ wrong.

Ratio: 13(1A) open to guilty party; wrong needs **grave positive misconduct**. **Exam:** "grant" half of 13(1A) answers.

Case 09 — T. Srinivasan v. T. Varalakshmi, Mad HC aff. AIR 1999 SC 595 (DU p.161) — weaponised RCR = wrong

FACTS Husband took **ex-parte RCR decree**; **drove wife away 23-5-1977**; police writing; paper-trail notices Ex.A-4/5/6/8; sought 13(1A)(ii). Trial granted; **Mad HC reversed; SC affirmed**.

- **Issues:** (1) Engineered non-compliance = wrong? (2) Notices prove bona fides?
- **Husband:** *Dharmendra*; 1 yr elapsed; notices show willingness.
- **Wife:** decree as device; driven away; notices manufactured; *Hirachand*.
- **Decision: DENIED** — positive wrong; *Dharmendra* distinguished.

Ratio: engineering non-compliance + violence = wrong; paper willingness belied by conduct. **Exam:** "deny" half with *Hirachand*.

Case 10 — Hirachand v. Sunanda, (2001) 4 SCC 125 (DU p.168) — continuing adultery + default = wrong

FACTS Wife held **JS on adultery** + Rs.100 maintenance; husband **continued with mistress + wilfully defaulted** ("marking time"); sought 13(1A)(i). Trial granted; HC reversed; SC appeal.

- **Issues:** (1) Post-JS adultery = continuing wrong? (2) Maintenance default = wrong? (3) *Dharmendra* scope?
- **Husband:** *Dharmendra*; either party; tie suspended.
- **Wife:** tie subsists (Sec 10(2)); continuing offence; marking time; *Soundarammal*.
- **Decision: DENIED** — positive misconduct; disapproved *Sumitra Manna, Bai Mani*.

Ratio: post-decree adultery + wilful default = wrong; Sec 23(1)(a) ethical filter on post-decree conduct. **Exam:** "deny" half; adultery-continuing point.

Case 11 — Sureshta Devi v. Om Prakash, AIR 1991 SC 190 (DU p.174) — consent withdrawable

FACTS Joint 13B petition; wife **withdrew before second motion** (pressure/terms); husband pressed one-sided decree. HC conflict (Bom/Del/MP allowed). SC reference.

- **Issues:** (1) Must consent subsist till decree? (2) Unilateral withdrawal allowed? (3) O23 R1 analogy?
- **Husband:** first-motion consent suffices; withdrawal mala fide; Bom/Del/MP views.
- **Wife:** "not withdrawn in meantime"; 6–18 mo = second-thought period; consent must be free + subsisting.
- **Decision: NO decree** — withdrawal valid; overruled Bom/Del/MP.

Ratio: 13B needs **subsisting** mutual consent till decree; either may withdraw. **Exam:** every 13B-withdrawal PYQ (Maya/Anil).

Case 12 — Amardeep Singh v. Harveen Kaur, (2017) 8 SCC 746 (supp.) — cooling waivable

FACTS 8+ yrs separation; joint 13B; sought **waiver of 6-mo cooling**; settlement complete, mediation failed. Question: mandatory? who waives (*Manish Goel* Art-142-only?)

- **Issues:** (1) 13B(2) mandatory or directory? (2) Family Court or only SC? (3) Conditions?
- **Parties (joint):** directory (*Kailash v. Nanhku*); Family Court can waive; reunion impossible.
- **Objector-side:** *Manish Goel*; cooling protects reconciliation; Sureshta sanctity.
- **Decision: WAIVER allowed** — directory; Family Court may waive on 4 conditions.

Ratio: 4 conditions — 13B(1) done + 18 mo total, mediation failed, all settled, agony-prolongation; guided discretion. **Exam:** every waiver PYQ + procedure drafting.

DU LL.B. EXAMINATION ARCHIVE

Previous Year Questions — Unit 02: Matrimonial Remedies under Hindu Law (Ss. 9–13B & S. 23)

Q.01 DU LL.B. Problem / Essay Pattern 01
"H, employed in Delhi, seeks RCR against W, posted as teacher/nurse/officer at distant station, who refuses to resign/return. W pleads bona-fide service. Decide, citing cases." (Variants: W demands separate residence; Muslim husband's second marriage as excuse — 2011 Q3.)

● **Refer website for detailed notes — makelaweasy.in**

Q.02 DU LL.B. Problem / Essay Pattern 02
"W abuses in-laws, threatens suicide, beats child / H drunkard, beats W, demands dowry / H forces unnatural sex. Discuss cruelty u/Sec 13(1)(ia)."

Q.03 DU LL.B. Problem / Essay Pattern 03
"W left 3 yrs ago after quarrel; H sent no letter/demand; W pleads cruelty; H sues desertion. Decide."

Q.04 DU LL.B. Problem / Essay Pattern 04
"Sonali holds RCR decree; 1 yr no compliance; husband (defaulter) seeks 13(1A) divorce / Pran holds JS on adultery, continues with paramour, defaults maintenance, seeks 13(1A). Decide."

Q.05 DU LL.B. Problem / Essay Pattern 05
"Maya takes property under settlement, then refuses second motion; Anil seeks decree on first petition / Parties seek cooling waiver after 2-yr separation, all settled, mediation failed. Decide."

Q.06 DU LL.B. Short Notes / Essay
(a) Option of puberty — Hindu vs Muslim (2011Supp Q1).

Q.07 DU LL.B. Short Notes / Essay
(b) Mutual consent essentials (2012 Q8).

Q.08 DU LL.B. Short Notes / Essay
(c) Cruelty Hindu/Muslim shorts (2012 Q8).

Q.09 DU LL.B. Short Notes / Essay
(d) IRBM + 71st Report + 2013 Bill essay (Expected).

by Ankur R. Upadhyay

LAW CRUX · PAPER LB-105 · UNIT 03 HMA Ss. 24–25 · HAMA, 1956 Ss. 18–23 · CrPC Ss. 125–128 (BNSS Ss. 144–147) · PWDVA, 2005 · 4 Prescribed DU Cases

Maintenance under Hindu Law, CrPC/BNSS & PWDVA, 2005

Maintenance Pendente Lite & Permanent Alimony (HMA Ss. 24–25), Wife, Widowed Daughter-in-Law, Children & Aged Parents (HAMA Ss. 18–20), Secular Summary Maintenance (CrPC Ss. 125–128) & Monetary/Residence Reliefs (DV Act, 2005)

CHAPTER 01·FOUNDATIONS

The maintenance framework

Four routes, different statutory gateways. Build the conceptual map before learning the sections and cases.

1.1 What is maintenance—and what is it not?

Maintenance is a legally enforceable provision for support. It is not limited to keeping a claimant barely alive; its content depends on the enactment, the parties' resources, reasonable needs and the relevant standard of living. Under **HAMA section 3(b)** it includes:

1. In all cases, provision for **food, clothing, residence, education, medical attendance and treatment**.
2. In the case of an **unmarried daughter**, the reasonable expenses of and incident to her marriage.

The definition is inclusive. It is important in its own Act and, as *Padmja Sharma* illustrates, can help explain maintenance where another Hindu-law provision does not separately define the term. A claim for a child's school fees is therefore not a request for charity outside maintenance. Equally, "maintenance" must not be confused with ownership of a spouse's property, the return of stridhan, compensation for injury, or custody: these are legally distinct claims even when litigated together.

1.2 Four legal routes, four different gateways

MATRIMONIAL PROCEEDING

HMA · 24 / 25

Who? Either wife or husband.

Why? Litigation support during an HMA proceeding; continuing financial provision associated with an HMA decree.

Key question: Is the claim connected to the statutory matrimonial proceeding or decree?

SUBSTANTIVE PERSONAL LAW

HAMA · 18

Who? A Hindu wife in a subsisting marital relationship.

Why? The husband's substantive duty to maintain her, including justified separate residence.

Key question: If she lives apart, which section 18(2) ground justifies it?

SUMMARY SECULAR SUPPORT

CrPC · 125

Who? Statutorily eligible wife, children or parents.

Why? Neglect or refusal by a person with sufficient means to maintain a qualifying dependent.

Key question: Are relationship, inability, means and neglect/refusal established?

PROTECTION FROM ABUSE

DV Act · 20

Who? An aggrieved woman in a qualifying domestic relationship; relief can include her children.

Why? Expenses and losses resulting from domestic violence, including economic abuse.

Key question: Is there a qualifying relationship and a pleaded/proved basis of domestic violence?

A claimant does not have to elect one statute for all purposes. But different routes do **not** permit concealment of existing orders or unexamined multiple recovery for the same maintenance need. Existing proceedings and orders must be disclosed; adjustment is explained in the synthesis chapter.

1.3 The vocabulary examiners expect

Expression	Precise meaning in this unit	Common mistake
Pendente lite	During the pendency of litigation; section 24 HMA also covers necessary expenses of the proceeding	Describing it as a permanent post-divorce award

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Expression	Precise meaning in this unit	Common mistake
Permanent alimony	Section 25 financial provision at the passing of a decree or subsequently; it can be periodical and modifiable	Assuming "permanent" means irrevocable or payable in every case for the rest of life
Separate residence and maintenance	Living apart without forfeiting the wife's maintenance claim where section 18(2) is satisfied	Assuming a wife must always stay in the matrimonial home to receive support
Sufficient independent income	An adequacy test under section 24, not an absolute test of having no job or no money at all	Treating any employment as a complete bar
Unable to maintain herself	The statutory need condition for the wife under section 125	Assuming she must first become a destitute person on the street
Domestic relationship	Section 2(f) DV Act's relationship-plus-shared-household connection	Treating every romantic relationship as covered
Relationship in the nature of marriage	A statutory category examined in *Velusamy*, not a synonym for every live-in arrangement	Claiming mere sexual intimacy automatically creates spousal maintenance rights
Monetary relief	DV Act section 20's wider financial remedy, including maintenance and specified losses	Reducing it to section 125 maintenance alone
Set-off / adjustment	Consideration of prior awards when deciding additional liability for the same support needs	Assuming either that a second proceeding is prohibited or that every order must simply be added

1.4 Questions to ask before choosing a section

RELATIONSHIP Wife or husband? Child or parent? Deceived purported spouse? Domestic partner?
↓
PROCEDURAL SETTING HMA case pending? Decree already passed? Independent support claim? Domestic violence alleged?
↓
STATUTORY GATEWAY Income insufficiency / justified separation / means plus neglect / economic or other domestic abuse
↓
RELIEF Interim support, litigation expenses, monthly or lump-sum provision, residence, child support, compensation
↓
COORDINATION Disclose existing orders → assess quantum → adjust overlap → preserve each remedy's own legal basis

1.5 Applicability: do not confuse "Hindu law" with every statute in the unit

HMA and HAMA are personal-law enactments. Their section 2 applicability provisions include Hindus by religion, Buddhists, Jains and Sikhs, as well as the other classes specified there. They also contain the Scheduled Tribe exclusion unless the Central Government otherwise directs by notification. Do not turn a maintenance answer into an assumption that every Indian marriage is governed by HMA or HAMA.

HAMA section 4 supplies overriding effect. Earlier Hindu-law texts, rules, interpretations, customs and usages cease to operate on matters for which the Act makes provision; earlier other law ceases to apply to Hindus to the extent of inconsistency with HAMA. This is why a general statement drawn from uncodified law cannot be used to bypass the enacted conditions in section 18. It is not a statement that every customary rule on every subject has been abolished.

Section 125 CrPC is a secular summary remedy. Its operation does not depend on the claimant being Hindu. Its definition of an eligible wife, however, is its own legal issue; a broadly remedial purpose does not erase statutory relationship requirements. *Badshah* illustrates purposive interpretation in a case of deliberate deception.

The DV Act is likewise not confined to Hindus or to legally married wives. It protects an **aggrieved woman** within its specified domestic framework. It is broader as to domestic relationships than HMA, but it has the additional gateway of domestic violence for the protective relief sought.

1.6 Need, status, fault and discretion are separate axes

An examination answer should not say merely "she is innocent, therefore entitled" or "she is guilty, therefore barred." Ask four separate questions:

- **Status:** Does the person fall within the protected class under this particular enactment?
- **Need and resources:** Is the statutory financial condition satisfied? What can the respondent reasonably pay?
- **Conduct / justification:** Does the enactment make conduct relevant to initial eligibility, justified separation, quantum or later variation?
- **Discretion and remedy:** What order is just and legally available after those questions have been answered?

Thus section 24's central test is insufficient independent income in a pending proceeding; section 25 expressly considers conduct and has its own subsequent-event provision; HAMA section 18(3) expressly disqualifies an unchaste wife or one who has ceased to be Hindu by conversion; and section 125(4) separately addresses living in adultery, refusal to live with the husband without sufficient reason, and mutual-consent separation. These are not interchangeable tests.

by Ankur R. Upadhyay

CHAPTER 02·STATUTORY EXPOSITION

HMA section 24

Pendente-lite support and expenses of proceedings—every statutory element, practical application and procedural limit.

2.1 Purpose and statutory structure

Section 24: "Maintenance pendente lite and expenses of proceedings." The provision reduces the financial inequality that could prevent a spouse from effectively prosecuting or defending matrimonial litigation. It does not decide who should ultimately win the divorce, nullity, judicial-separation or restitution dispute. It supplies support while that dispute is pending.

Its structure is: **a proceeding under HMA + an application by either spouse + insufficient independent income for support and necessary litigation expenses + a reasonable order after considering both parties' incomes.**

2.2 Clause-by-clause reading

Statutory component	Detailed significance
"In any proceeding under this Act"	There must be an HMA proceeding to which the financial application is ancillary. Section 24 is not a freestanding maintenance suit divorced from matrimonial litigation. It is not limited to a wife petitioning for divorce: an applicant defending proceedings can also invoke it.
"It appears to the court"	The court evaluates the material about resources and need. A financial assertion is not conclusively established by merely making it in the application. Affidavits, salary records and expenses matter.
"Either the wife or the husband"	The provision is gender-neutral. The wife is not invariably the claimant and the husband is not invariably the payer. A husband must satisfy the same financial gateway; sex alone does not establish need.
"Has no independent income sufficient"	The decisive word is **sufficient**. Some earnings do not necessarily defeat the claim. The court must ask whether the income is adequate for the applicant's support and the necessary expenses of the proceeding. Conversely, a genuinely sufficient income can defeat the claim.
"On the application"	Relief is sought through an application in the pending matrimonial proceeding. The application should distinguish monthly support from litigation expenses and supply its factual basis.
"Order the respondent to pay"	"Respondent" here is the respondent to the maintenance application. In practical pleading, do not confuse this with which spouse happened to file the main matrimonial case.
"The expenses of the proceeding"	Necessary litigation costs are a distinct limb: legal representation and reasonable expenses of prosecuting or defending the case. Merely asking for "maintenance" without addressing these expenses leaves the answer incomplete.
"Monthly during the proceeding such sum"	The recurring award is pendente lite: support during the proceeding. It is not the section 25 permanent-alimony order. Accrued unpaid sums do not become conceptually non-existent because the proceeding later ends.
"Having regard to the petitioner's own income and the income of the respondent"	Both sides' financial positions are relevant. Quantum is reasoned, not determined by a fixed statutory percentage.
"As it may seem to the court to be reasonable"	Judicial discretion operates within the statutory purpose. The court must match actual need, available resources and reasonable litigation costs.

2.3 The 60-day proviso: learn the correct trigger

An application for payment of the expenses of the proceeding and monthly support must, **as far as possible**, be disposed of within **60 days from the date of service of notice on the wife or husband, as the case may be**.

This is an expedition direction qualified by "as far as possible." It is not a rule that the main divorce case must finish in 60 days, that maintenance automatically stands granted after day 60, or that jurisdiction expires if the deadline is missed. The trigger is **service of notice**, not filing and not the first hearing. Compare the separate DV Act section 12 timetable.

2.4 What should the application establish?

A well-drafted section 24 claim identifies:

1. **The main HMA proceeding:** court, case number, nature of relief and the applicant's role.
2. **The applicant's present means:** employment, actual take-home income, rent or investment income, accessible resources and unavoidable liabilities.
3. **Reasonable needs:** housing, food, transport, health expenses and other justified recurring requirements. A bare round figure is weaker than an intelligible budget.
4. **Necessary case expenses:** anticipated litigation expenditure, with a clear distinction between one-time and recurring components.
5. **The other spouse's means:** salary/business income and available evidence, without passing allegations off as established facts.
6. **Other dependants and orders:** children, parents, existing support liabilities and previous maintenance proceedings or awards.

7. **The relief sought and commencement:** the requested monthly amount, expenses and commencement date, supported by reasons.

The disclosure-affidavit framework and direction concerning the commencement of maintenance in *Rajnesh v. Neha* are later procedural supplements, not words appearing in section 24 itself.

2.5 Employment, earning ability and deliberate avoidance of work

The bare provision does **not** say "only an unemployed spouse may apply." The phrase "no independent income sufficient" requires an adequacy inquiry. A low-paid applicant may still need support; a person with substantial actual income may not. An educational qualification is evidence potentially relevant to the financial picture, not a statutory substitute for asking what income the applicant actually has and whether it is sufficient.

At the same time, the court need not ignore credible evidence of concealed resources, manipulated income or other circumstances bearing on a reasonable award. Avoid absolute propositions such as "a qualified wife can never claim" and "an able-bodied husband must always receive support from an earning wife." Neither follows from section 24. The judicial inquiry remains fact-sensitive.

2.6 Conduct and disputed validity: a careful distinction

An application for interim support is **not a mini-trial of every matrimonial accusation**. Merely alleging adultery, cruelty or a void marriage should not be presented as an automatic statutory answer to section 24. Equally, it would be too broad to say that conduct can never matter in the court's discretion.

> **Selected later clarification: Sukhdev Singh v. Sukhbir Kaur, 2025 INSC 197.**
> The Supreme Court held that the mere prima facie view that a marriage is void or voidable does not preclude section 24 relief while proceedings are pending, provided the section's conditions are satisfied. Relief remains discretionary and the parties' conduct may be considered. This resolves the HMA point; it does not automatically confer "wife" status under section 125 CrPC.

2.7 Children: section 24 is not the whole answer

Section 24 speaks of financial support between the spouses. For an independent order concerning a **minor child's maintenance and education within HMA proceedings**, identify **section 26**. A child's needs may be highly relevant to the household's financial picture, but the legally accurate pleading separates:

- the spouse's section 24 application;
- the minor child's section 26 claim; and
- any independent child-support route under HAMA section 20 or section 125 CrPC.

Padmja Sharma is fundamentally a **section 26 child-maintenance case**, not an example of a wife receiving section 24 alimony for herself.

2.8 Forum, procedure, termination and enforcement

The application goes to the court handling the matrimonial proceeding; where the Family Courts Act assigns the matter to a Family Court, that forum exercises the corresponding jurisdiction. HMA section 19 supplies matrimonial territorial jurisdiction; section 21 applies the CPC subject to HMA and its rules; section 22 provides for in-camera proceedings and publication restrictions. These connected provisions should not be confused with section 126 CrPC's different venue rules.

Section 19's territorial alternatives are the district where the marriage was solemnised; where the respondent resides at presentation; where the parties last resided together; and, if the wife is the petitioner, where she resides at presentation. The petitioner's own residence is also available in the specified case where the respondent is outside the territories to which HMA extends or has not been heard of as alive for seven years or more by those who would naturally have heard. These alternatives govern institution of the matrimonial petition; they do not convert section 24 into an independent suit anywhere the applicant prefers.

The section 24 award is tied to the pendency of the proceeding. It should not be casually described as an award "for the rest of the marriage" or "for life." Section 25 is the provision to consider at the decree stage or subsequently. Questions of enforcement must be addressed through the applicable machinery: **section 28A** provides that HMA decrees and orders are enforced in the same manner as decrees and orders of a civil court made in its original civil jurisdiction.

Section 28(2)'s express appeal provision concerns **non-interim orders under sections 25 and 26**. Do not cite it as though it expressly grants the same statutory appeal from every section 24 interim order; other procedural remedies depend on the applicable forum and law.

2.9 Worked illustration

Illustration—not an actual DU question. W earns ₹18,000 monthly; H earns ₹95,000. W is defending an HMA divorce petition and demonstrates reasonable monthly needs exceeding her income and necessary legal expenses. W is not disqualified merely because she has a job. The court must evaluate sufficiency, each side's financial evidence, other legitimate liabilities and previous awards. It may award an appropriate deficiency and reasonable litigation expenses; the statute prescribes neither an automatic one-third salary rule nor automatic equalisation of the parties' incomes.

> **Exam-ready rule.** Section 24 is an ancillary, gender-neutral, need-based provision for monthly support during HMA proceedings and their necessary expenses; sufficiency of independent income, both parties' means and reasonableness control the award, with a 60-day disposal endeavour from service of notice.

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CHAPTER 03·STATUTORY EXPOSITION

HMA section 25

Permanent alimony, conduct, security, variation, remarriage and the precise distinction from interim support.

3.1 The function of permanent alimony

Section 25: "Permanent alimony and maintenance." Unlike section 24, this provision concerns financial provision associated with the passing of a decree under HMA or an application made subsequently. It is not confined to a one-time divorce settlement and is not confined to a wife. "Permanent" distinguishes its character from pendente-lite support; it does not make an order immune from change.

3.2 Section 25(1): every element unpacked

Component	Meaning and analytical consequence
Court exercising jurisdiction under HMA	Section 25 belongs to HMA's matrimonial-decree framework. It is not a general freestanding civil maintenance jurisdiction comparable to HAMA section 18.
"At the time of passing any decree or at any time subsequent thereto"	Relief may be sought at the decree stage or afterwards. Do not confine the expression "any decree" to a divorce decree alone. Equally, do not assume that every procedural dismissal automatically supplies the required matrimonial decree. The decree–jurisdiction connection must be identified.
Application by either wife or husband	Either spouse can seek support from the other. State the applicant's position and the basis of the court's discretion; the law does not create an automatic entitlement for either sex.
Gross sum or monthly / periodical sum	The court can choose lump-sum or recurring provision. The statute does not require every case to be resolved by the same payment structure.
For a term not exceeding the applicant's life	The statutory outer limit is the life of the applicant. This is a ceiling on the period, not a direction to order lifelong payments in every case.
Respondent's own income and other property	Income and assets matter, not salary alone. Ownership and resources must be proved rather than guessed.
Applicant's income and other property	Existing resources are relevant even where the applicant also demonstrates need. Section 25 does not simply reproduce section 24's wording about insufficient independent income.
Conduct of the parties	Conduct is expressly relevant. The court considers it in the setting of the claim and the other statutory factors; there is no universal rule that the matrimonial "winner" must receive, or the "loser" must pay, a prescribed amount.
Other circumstances of the case	This permits a contextual assessment—reasonable needs, responsibilities, health and other proved matters—within the statutory purpose.
"As it may seem to the court to be just"	The order is discretionary and reasoned, not mechanical. The applicant must establish why a particular form and amount are appropriate.
Security by charge on immovable property, if necessary	The court may secure payment by a charge on the respondent's immovable property. A maintenance award does not by itself transfer ownership of that property to the applicant.

3.3 Section 25(2): change in circumstances

If the court is satisfied that the circumstances of **either party** have changed after the order, it may, at the instance of either party, **vary, modify or rescind** the order in such manner as it deems just.

The structure is important:

1. There must be an existing section 25(1) order.
2. The relevant change must be brought before the court.
3. Either spouse can apply; the provision is not exclusively for a payer seeking reduction.
4. Variation is a judicial decision. A payer cannot simply announce a reduction because income allegedly fell; nor does a recipient's increased expenditure automatically rewrite the order.

Examples include a proved substantial change in income, health expenditure or other material circumstances. These examples illustrate the statutory test; none is an automatic numerical rule. A party seeking alteration of a previous order should ordinarily approach the court in that proceeding, rather than ask a later maintenance forum to rewrite it indirectly.

3.4 Section 25(3): remarriage and specified sexual conduct

After an order has been made, if the court is satisfied that:

- the party in whose favour the order was made has **remarried**; or
- where that party is the **wife**, she has **not remained chaste**; or

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- where that party is the **husband**, he has had **sexual intercourse with any woman outside wedlock**,

it may, **at the instance of the other party**, vary, modify or rescind the order in the manner it considers just.

Use the statute's categories accurately when writing an examination answer. The provision is not worded merely as "maintenance automatically ends if the wife remarries," and it is not restricted to wives. A disputed allegation should not be treated as a proved event or as permission for unilateral non-payment.

> **Historical-text trap in Amar Kanta Sen.**
> The case was decided under the pre-1976 statutory framework and uses historical English and Hindu-law chastity / subsistence reasoning. That discussion must not be mistaken for the present statutory wording. The present uploaded Act uses **"may ... vary, modify or rescind"** in section 25(3). Explain the case in its historical setting, then state the present statutory wording separately. Never copy the old text as though it is the current section.

3.5 Is divorce on the applicant's fault an automatic bar?

Amar Kanta Sen shows why the answer cannot be compressed into "guilty spouse gets nothing." The wife had been divorced for adultery. The Calcutta High Court nevertheless distinguished past matrimonial guilt from subsequent conduct and considered limited subsistence support during a period of inadequate earnings under the law then applicable. It stopped support once her own income sufficed on the facts.

The legally disciplined use of this case is therefore:

- conduct matters;
- past guilt and post-decree conduct are different inquiries;
- financial circumstances cannot be ignored;
- relief is not automatically the full amount claimed; and
- the historical quantum and "starving allowance" expression are not a modern tariff.

It would be equally mistaken to derive from the case a present entitlement for every adulterous spouse, or to use HAMA section 18(3)'s disqualification as if it were the text of section 25.

3.6 Void marriages: the modern HMA position

The old debate concerned whether a spouse in a marriage declared void could obtain section 25 support. In **Sukhdev Singh v. Sukhbir Kaur, 2025 INSC 197**, the Supreme Court held that a spouse whose marriage has been declared void under **section 11 HMA** is entitled to **seek** permanent alimony or maintenance under section 25. Grant is **discretionary** and depends on the facts and the parties' conduct.

Three distinctions are indispensable:

1. **A right to apply is not an automatic award.** Voidness does not alone defeat access to section 25; the discretionary assessment remains.
2. **The HMA basis remains essential.** The holding concerns HMA matrimonial jurisdiction, not a universal maintenance entitlement for every relationship.
3. **Statutory definitions cannot be transplanted.** This HMA holding does not by itself resolve whether a claimant is a "wife" for section 125 CrPC, or whether a relationship satisfies the DV Act.

The decision also confirms the separate possibility of section 24 relief pending proceedings despite a prima facie view that the marriage is void or voidable, subject to that provision and judicial discretion.

3.7 Section 24 versus section 25: precise comparison

Point	Section 24	Section 25
Stage	During an HMA proceeding	At the passing of a decree or subsequently
Applicant	Either spouse	Either spouse
Central financial wording	No independent income sufficient for support and necessary case expenses	Income and other property of both; conduct; other circumstances; a just order
Financial relief	Expenses of proceeding and monthly support during it	Gross sum or monthly/periodical provision
Duration	Pendente lite	Specified term, not exceeding applicant's life
Special 60-day rule	Yes, endeavour from service of notice	No corresponding 60-day proviso in section 25
Express security mechanism	Not the section 25 charge provision	Charge on respondent's immovable property, if necessary
Express subsequent-change machinery	Not section 25(2)–(3)	Sections 25(2) and 25(3)

by Ankur R. Upadhyay

Point	Section 24	Section 25
Role of conduct	Do not convert allegations into automatic disqualification; discretion matters	Express statutory factor; specified later conduct addressed in subsection (3)
Minor-child order in HMA case	Section 26 must be separately identified	Section 26 remains the direct child provision

3.8 Enforcement and appeal

Section **28A** supplies civil-decree-style enforcement of HMA decrees and orders. Section **28(1)** makes decrees under HMA appealable, subject to subsection (3), as decrees in original civil jurisdiction to the court ordinarily hearing those appeals. Section **28(3)** excludes an appeal under this section on the **subject of costs only**. Section **28(2)** makes orders under sections 25 and 26 appealable **if they are not interim orders**, in the manner specified there. Section **28(4)** provides **90 days** for an appeal under section 28. Do not substitute section 125 CrPC's warrant-and-imprisonment machinery merely because both orders concern “maintenance.” The source of the order determines its procedural route.

> **Exam-ready rule.** Section 25 enables either spouse to seek just lump-sum or periodical financial provision in connection with an HMA decree, considering both parties' income and property, conduct and all relevant circumstances. It is discretionary, can be secured, and can be varied, modified or rescinded under its express subsequent-event provisions.

CHAPTER 04·STATUTORY EXPOSITION

HAMA section 18 & its supporting scheme

The wife’s substantive right, every current ground for separate residence, express bars and the connected maintenance provisions.

4.1 Section 18(1): the substantive obligation

Subject to section 18, a **Hindu wife**, whether married **before or after the commencement of HAMA**, is entitled to be maintained by her husband **during her lifetime**. This is a substantive personal-law duty, not merely a procedural allowance available when somebody files an HMA case.

The words “during her lifetime” must be read within the marital statutory relationship. Section 18 is the route for a wife in a **subsisting marriage**, including one living separately for a legally sufficient reason. Do not infer that section 18 is the general post-divorce remedy merely because the wife remains alive. A divorced claimant must consider the appropriate post-decree or secular provisions instead. Judicial separation, unlike divorce, does not itself dissolve the marriage.

4.2 Section 18(2): separate residence without forfeiture

A wife does not necessarily lose maintenance because she is no longer residing with her husband. Subsection (2) identifies circumstances in which she may **live separately without forfeiting her claim**. The correct question is not simply “who physically left the house?” but **whether the statutory justification for living apart is established**.

(a) Desertion, abandonment or wilful neglect

The husband deserts her—that is, abandons her without reasonable cause and without her consent or against her wish—or wilfully neglects her.

- The clause itself explains the relevant sense of desertion; do not automatically import every technical duration requirement applicable to an HMA divorce petition.
- Actual abandonment and wilful neglect are both expressly addressed.
- An established refusal to supply basic support can be legally significant even if the husband has not formally announced the marriage's end.
- Consent, reasonable cause and the parties' conduct must be examined on the facts.

Application: H stops providing ordinary necessities, makes no reasonable provision and deliberately ignores W's needs. W should plead the neglect and demonstrate its wilful character, rather than merely state that the relationship is unhappy.

(b) Cruelty producing reasonable apprehension

The husband has treated her with such cruelty as to cause a **reasonable apprehension in her mind that living with him will be harmful or injurious**.

- Physical injury is not the sole possible basis; the question is whether the conduct satisfies the statutory harm / injury apprehension standard.
- Mere incompatibility should not be equated with this threshold without analysis.
- The wife's experience and the objective reasonableness of apprehension must be related to the evidence.
- Where the abuse comes from in-laws, explain the husband's participation, encouragement, neglect of protection or other conduct linking the situation to the claim against him. Do not simply assume he personally did every act alleged against the household.

Application: Repeated attacks on fidelity, humiliating abuse, threats or mistreatment may collectively justify living apart, depending on their proof and seriousness. The Jaishree problem in the official December 2015 paper calls for precisely this analysis.

(c) Former leprosy ground—omitted

The old clause concerned a virulent form of leprosy. **Clause (c) was omitted by the Personal Laws (Amendment) Act, 2019, with effect from 1 March 2019.** It is not a current independent ground under section 18(2).

> **Do not "repair" the alphabet.**
> The current clause list reads **(a), (b), [omitted (c)], (d), (e), (f), (g)**. It is better to show the omitted clause expressly than to reproduce an outdated seven-ground list from older notes.

(d) Another wife living

The husband has **any other wife living**.

- The statutory ground protects the wife seeking justified separation.
- It must be distinguished from the question whether a later purported marriage is legally valid under HMA.
- A first wife's section 18(2)(d) claim and a deceived second woman's claim under another enactment involve different status questions.
- An extramarital relationship that is not a legally recognised marriage should be examined under the clauses it actually fits, rather than automatically described as "another wife."

(e) Keeping a concubine / habitual residence with one elsewhere

The clause has **two alternatives**:

1. He keeps a concubine in the **same house in which his wife is living**; or
2. he **habitually resides with a concubine elsewhere**.

Both the domestic-house alternative and the habitual-other-residence alternative should appear in a complete answer. A bare allegation of friendship or a single unidentified incident is not a substitute for proof of the statutory facts. Where habitual residence is uncertain, separately consider wilful neglect, cruelty and the residual justifying-cause clause on the evidence.

(f) The husband's conversion

He has **ceased to be a Hindu by conversion to another religion**.

His conversion is a ground enabling her justified separate residence and maintenance; it is not to be confused with **her own conversion**, which is addressed in section 18(3). Nor does conversion by itself automatically dissolve an existing HMA marriage: matrimonial dissolution must be analysed under its own law.

(g) Any other cause justifying separate living

There is **any other cause justifying her living separately**.

This residual clause prevents the list from being treated as a completely closed catalogue. It still requires a **justifying cause**: it is not a licence to dispense with reasons. The court must assess the particular conduct and circumstances. In a problem answer, explain why the proved facts justify separation instead of adding "and section 18(2)(g)" as an empty afterthought.

4.3 Section 18(3): two express disqualifications

A Hindu wife is **not entitled to separate residence and maintenance from her husband** if:

1. she is **unchaste**; or
2. she **ceases to be a Hindu by conversion to another religion**.

These are the statute's express disqualifications. They should not be replaced with a vague proposition that every matrimonial fault defeats maintenance. Equally, they should not be deleted from an examination answer because other enactments use more protective formulations. A bare allegation of unchastity is not a finding; the party relying on a disqualification must establish the relevant facts in the proceeding.

Conversion contrast: his conversion → section 18(2)(f), a ground for her separation; her conversion → section 18(3), disqualification under this route. Another statute may require a different eligibility inquiry; the failure of a HAMA claim does not answer every possible secular claim automatically.

4.4 What is included and how is the amount determined?

Read **section 3(b)** with **section 23**. The obligation can encompass residence, food, clothing, education and medical needs. Section 23(1) leaves to the court's discretion whether maintenance should be awarded and, if so, what amount, having due regard to the statutory considerations so far as applicable.

For a **wife, children or aged/infirm parents**, section 23(2) requires regard to:

- the **position and status** of the parties;
- the claimant's **reasonable wants**;
- if the claimant lives separately, **whether that is justified**;
- the **value of the claimant's property**, income from it, earnings and income from **any other source**; and
- the **number of persons entitled to maintenance under HAMA**.

by Ankur R. Upadhyay

There is no statutory flat fraction such as 25%, one-third or one-half. A list of needs alone is incomplete without the parties' circumstances and the competing statutory responsibilities. Separate residence justifies the claim but does not itself establish the exact amount.

4.5 Changed circumstances, conversion and property consequences

Provision	Complete maintenance-specific point
Section 24: claimant should be a Hindu	No person is entitled to claim maintenance under this chapter if that person has ceased to be Hindu by conversion to another religion. This general chapter rule supplements section 18(3).
Section 25: alteration	Maintenance fixed by a court decree **or by agreement**, whether before or after commencement of HAMA, may be altered subsequently if there is a **material change in circumstances justifying alteration**. Do not treat every settlement amount as immune from this provision.
Section 26: debts have priority	Subject to section 27, debts of every description contracted or payable by the deceased have priority over dependants' maintenance claims under HAMA. This is an estate/dependant rule, not a licence for a living husband to defeat his wife's support merely by reciting private expenses.
Section 27: no automatic charge on estate	A dependant's maintenance claim is not a charge on the estate of the deceased, or a portion of it, unless a charge is created by a will, court decree, agreement between the dependant and the estate-holder, or otherwise as specified.
Section 28: transfer affecting maintenance	Where a dependant has a right to receive maintenance out of an estate and the estate or part is transferred, the right may be enforced against a transferee with notice or a gratuitous transferee, but not against a transferee for consideration without notice.

4.6 The connected maintenance scheme: sections 19–22

These provisions are not substitutes for section 18. They show why one must identify **who owes whom**, whether the obligation is personal or estate-based, and whether special conditions apply.

Section 19: widowed daughter-in-law

After her husband's death, a Hindu wife may be entitled to maintenance from her **father-in-law**, but only to the extent she cannot maintain herself from her own earnings or other property and, if she has no such property, cannot obtain maintenance from:

- the estate of her husband, or her father or mother; or
- her son or daughter, if any, or his or her estate.

Under subsection (2), the father-in-law's obligation is not enforceable if he lacks the means to do so from **coparcenary property in his possession out of which the daughter-in-law has not obtained a share**. The obligation ceases on **her remarriage**. This is not an unconditional obligation payable from every item of a father-in-law's self-acquired property. It is also not the same question as a woman's DV Act residence protection in a shared household.

Section 20: children and aged parents

A Hindu is bound during his or her lifetime to maintain legitimate or illegitimate children and aged or infirm parents. A minor child may claim against **the father or the mother**. The special extended rule for an unmarried daughter and aged/infirm parent applies to the extent they cannot maintain themselves from their own earnings or property. “Parent” includes a **childless stepmother**. The next chapter explains these provisions through *Padmja Sharma*.

Section 21: who are “dependants” of a deceased Hindu?

The statutory list is not a list of everyone who was emotionally or economically close to the deceased. It includes:

1. father;
2. mother;
3. widow, **so long as she does not remarry**;
4. son, son of a predeceased son, or son of a predeceased son's predeceased son, while a **minor**, with the stated inability-to-obtain-support conditions for the grandson / great-grandson branches;
5. unmarried daughter, unmarried daughter of a predeceased son, or unmarried daughter of a predeceased son's predeceased son, subject to the stated alternative-estate conditions for the latter branches;
6. a **widowed daughter**, where and to the extent she cannot obtain support from her husband's estate, her son or daughter, or the father-in-law / his father / their estates as the clause specifies;
7. widow of a son or of a predeceased son's son, so long as she does not remarry and subject to the specified alternative-estate and child-support conditions;
8. illegitimate son while a **minor**; and
9. illegitimate daughter so long as she remains **unmarried**.

The remote-branch conditions, made explicit: a grandson or granddaughter must be unable to obtain maintenance from the father's or mother's estate; a great-grandson or great-granddaughter must be unable to obtain it from the estates of the father, mother, paternal grandfather or paternal grandmother. Under clause (vii), the qualifying son's / grandson's widow must be unable to obtain maintenance from her husband's estate or her son or daughter or their estate; a grandson's widow must additionally be unable to

obtain it from her father-in-law's estate. These are statutory conditions of extent and alternative support, not merely a list of relationship names.

The detailed conditions in clauses (iv)–(vii) govern the more remote branches; they must not be erased by saying “all descendants are dependants.” For a section 18 wife problem, however, do not spend most of the answer on this deceased-estate scheme.

Section 22: maintenance of dependants from an inherited estate

Subject to subsection (2), the heirs of a deceased Hindu must maintain his or her dependants **out of the estate inherited**. A dependant who has not obtained a share by testamentary or intestate succession has the maintenance right described in subsection (2) against those taking the estate. Each taker's liability is **proportionate to the value of the share or part taken**. A dependant who also inherits is protected by subsection (4) against contributions that would reduce that person's share below what is needed for his or her own maintenance entitlement.

For quantum in this estate setting, section **23(3)** directs attention to: the estate's net value after debts; testamentary provision; degree of relationship; reasonable wants; past relations with the deceased; the dependant's property and income; and the number of dependants entitled under HAMA. This differs from section 23(2)'s wife/child/parent list.

4.7 How to plead a section 18 problem

STATUS Hindu wife + subsisting marriage + defendant husband
↓
IF LIVING APART Plead and prove the specific section 18(2) ground(s)
↓
CHECK BARS Section 18(3); chapter-wide conversion rule in section 24
↓
QUANTIFY Section 3(b) needs + section 23(2) factors + evidence
↓
SEEK AND COORDINATE Appropriate support/residence provision; separate child claim; disclose overlapping awards

A HAMA claim does not require first obtaining a divorce or an HMA decree. Its civil/family-court route must be distinguished from a Magistrate's section 125 or DV Act proceeding. The Act does not insert into section 18 the identical express interim-maintenance language found in HMA section 24 or section 125 CrPC; questions of interim relief in a HAMA suit arise through the competent court's applicable civil procedure and judicial powers. Do not misquote a supposed “section 18 interim proviso.”

CHAPTER 06·STATUTORY EXPOSITION

CrPC sections 125–128

Summary secular support: eligibility, provisos, statutory bars, procedure, alteration and enforcement.

6.1 Nature and object of section 125

Section 125 CrPC creates a **summary, secular maintenance remedy** to prevent neglect of specified dependants by a person with sufficient means. It is situated in a criminal procedure code, but the maintenance proceeding is not a prosecution to punish the respondent for the original matrimonial misconduct. The remedy is protective and social-welfare oriented. Enforcement may use coercive machinery, but eligibility still has to be proved.

Badshah emphasises the provision's social-justice purpose. *Velusamy* demonstrates that the qualifying relationship and fair adjudication of marital status remain essential. The two propositions belong together: purposive interpretation is not a licence to invent factual findings or dispense with statutory categories.

> **Syllabus / current-law distinction.**
> This chapter explains **section 125 CrPC**, the section named in DU's syllabus and the prescribed judgments. The BNSS came into operation on 1 July 2024, subject to its notified exception, and the corresponding maintenance scheme is in **sections 144–147 BNSS**. Saved pending proceedings require separate attention to section 531. See the update chapter rather than silently replacing every historical reference to “125.”

6.2 Section 125(1): the four basic building blocks

QUALIFYING DEPENDANT+STATUTORY INABILITY+RESPONDENT'S SUFFICIENT MEANS+NEGLECT / REFUSAL→REASONED MONTHLY SUPPORT
The statutory opening requires a person **having sufficient means** who **neglects or refuses** to maintain a qualifying person. Upon proof of that neglect or refusal, a **Magistrate of the first class** may direct a monthly allowance at the rate considered fit, payable to the person the Magistrate directs. Where Family Courts legislation allocates this jurisdiction to a Family Court, the competent forum must be identified accordingly.

- **Sufficient means:** actual financial capacity must be examined; a bare denial of salary is not conclusive proof of inability. The respondent's resources and legitimate responsibilities matter.
- **Neglect or refusal:** failure to make appropriate provision may demonstrate neglect; an express written refusal is not an indispensable factual form in every case.
- **Inability:** the claimant must satisfy the specific category's inability requirement. “Not literally starving” is not synonymous with “able to maintain herself.”

- **Discretion as to amount:** there is no current central ₹500 monthly ceiling. That limit was removed in **2001**; quotations of older judgments must not revive it.

6.3 Each eligible category

(a) Wife unable to maintain herself

The wife must be unable to maintain herself within the statutory standard. The explanation expressly includes a woman who **has been divorced by**, or **has obtained a divorce from**, her husband and **has not remarried**.

This inclusive definition defeats the simplistic argument "divorce has occurred, therefore section 125 can never apply." It does not mean that every woman who went through a legally ineffective ceremony automatically qualifies. The ordinary marital-status question, the existing-spouse problem and the deception-based reasoning of *Badshah* must be analysed separately.

The provision does not create an equivalent spousal claim for a husband against his wife. Compare HMA sections 24 and 25, which expressly permit either spouse to apply. Do not extend this wife-specific point to children and parents: their respondent relationships must be read from their own clauses.

(b) Legitimate or illegitimate minor child

A legitimate or illegitimate **minor** child may claim, **whether married or not**, if unable to maintain itself. Thus illegitimacy does not by itself bar a child's claim. A dispute about the mother's marital status must not be used as a substitute for addressing the child's independent eligibility.

The **first proviso** specifically permits an allowance against the father of a minor female child referred to in clause (b), **until she attains majority**, where the Magistrate is satisfied that her husband, if she is married, does not have sufficient means. State both the age limit and the husband's-insufficient-means condition.

(c) A specified category of adult child

A legitimate or illegitimate child who has attained majority, **not being a married daughter**, may claim if it is unable to maintain itself **by reason of a physical or mental abnormality or injury**.

The causal link matters. Merely being an adult student, unemployed or unmarried is not the same as establishing this clause. For a Hindu unmarried daughter unable to maintain herself, consider the separate HAMA section 20(3) route; do not silently insert that broader personal-law rule into section 125(1)(c).

(d) Father or mother

A father or mother unable to maintain himself or herself is within the protected category. A child with sufficient means cannot answer the claim solely by saying the parent is not a spouse or that the family does not follow Hindu law. The secular provision is distinct from HAMA's terminology "aged or infirm parents." The statutory words of each remedy must be applied separately.

Explanations: "minor" and "wife"

Under the CrPC explanation, "minor" is a person who, under the **Indian Majority Act, 1875**, is deemed not to have attained majority. "Wife" includes the divorced-but-not-remarried category described above. The explanation is part of the law, not an optional footnote.

6.4 Interim maintenance and expenses of the proceeding

During the pendency of proceedings regarding monthly maintenance, the Magistrate may order a monthly allowance for **interim maintenance** and **expenses of the proceeding**, at the rate considered reasonable. The proviso is not confined to making a final award after the main application is fully tried.

An application for interim maintenance and expenses should, **as far as possible**, be disposed of within **60 days from service of notice of the application** on the respondent. This is an endeavour to secure prompt support, not a deemed allowance automatically payable in the amount demanded when 60 days expire.

6.5 Section 125(2): when payment runs

The statutory text states that maintenance, interim maintenance and expenses are payable **from the date of the order**, or, **if so ordered, from the date of the application** for the respective relief.

Later direction: *Rajnesh v. Neha* directs that maintenance in all cases be awarded **from the date of filing the maintenance application**. A complete current study answer states both layers: the statutory wording and the later Supreme Court direction. Do not misquote the wording of section 125(2) as if it had itself been rewritten.

6.6 Section 125(3): recovery, imprisonment and conditional offers

Failure without sufficient cause

If a person ordered to pay fails **without sufficient cause** to comply, the Magistrate may, **for every breach**, issue a warrant for levying the amount due in the manner provided for levying fines. For the whole or part of **each month's allowance** remaining unpaid after execution of the warrant, the Magistrate may sentence the person to imprisonment for a term extending to **one month or until payment if sooner made**, as the provision states.

Do not write that merely missing one payment automatically results in a fixed year's imprisonment. Conversely, do not assume that imprisonment is a lawful substitute by which the payer purchases extinction of the support obligation. The section is an enforcement mechanism; the order and arrears must be addressed through it.

The one-year proviso

No warrant shall issue for recovery of an amount due under this section unless an application is made to the court to levy **that amount within one year from the date on which it became due**.

This is a limitation attached to the recovery-warrant route for the due amount. It is **not** a rule that the entire original maintenance application must be filed within one year of marriage, separation, desertion or the first missed payment. In a problem with monthly arrears, identify the due dates and the recovery application; do not treat every instalment as having the same due date.

"I will maintain her only if she lives with me"

Where the respondent offers to maintain his wife **on condition of her living with him**, and she refuses, the Magistrate may consider the grounds of refusal and still order maintenance if satisfied that there is a **just ground** for doing so.

The explanation expressly says that where the husband has **contracted marriage with another woman** or **keeps a mistress**, this is a just ground for his wife's refusal to live with him. A conditional offer therefore does not automatically defeat the claim. The proviso requires judicial assessment of the reason for separate living.

6.7 Sections 125(4) and 125(5): the express bars and cancellation

No wife is entitled to an allowance for maintenance or interim maintenance and proceeding expenses under this section if:

1. she is **living in adultery**;
2. **without any sufficient reason**, she refuses to live with her husband; or
3. they are **living separately by mutual consent**.

Under subsection (5), on proof that a wife in whose favour an order has been made falls into these specified circumstances, the Magistrate **shall cancel the order**.

Three refinements improve an answer:

- The wording **"living in adultery"** must be distinguished from casually alleging any past matrimonial fault. Do not replace it with HAMA section 18(3)'s different word "unchaste" or HMA section 25(3)'s different formulation.
- The separation bar is not absolute: **sufficient reason** and the section 125(3) conditional-offer explanation must be considered.
- Apply the provisions consistently with the express inclusion of a **divorced wife**. A divorced woman cannot simply be denied the inclusive definition because she no longer returns to cohabit as an existing wife; status and the ground of the particular objection must be analysed rather than assumed.

The bars concern the wife's personal claim. They do not automatically cancel an independently eligible child's claim because a parent has allegedly misbehaved.

6.8 Section 126: venue, evidence, ex parte orders and costs

Venue: Proceedings may be taken in a district where the respondent **is**; where he or his wife **resides**; or where he **last resided with his wife**, or, as the case may be, with the mother of the illegitimate child. These are statutory alternatives, not the territorial wording of HMA section 19 or DV Act section 27.

Evidence: It is ordinarily taken in the presence of the person against whom payment is proposed or, if personal attendance is dispensed with, in the presence of that person's pleader, and recorded in the manner prescribed for summons cases.

Ex parte: If the Magistrate is satisfied that the person is wilfully avoiding service or wilfully neglecting to attend, the case may be heard ex parte. An ex parte order may be set aside for good cause on an application made **within three months from its date**, subject to the terms, including costs, considered just and proper.

Costs: Section 126(3) authorises just orders concerning costs.

6.9 Section 127: alteration and statutory cancellation

Subsection	What it does
127(1)	On proof of a change in the circumstances of a recipient or payer, the Magistrate may make an appropriate alteration in maintenance or interim maintenance.
127(2)	If a competent civil court's decision requires a section 125 order to be cancelled or varied, the Magistrate shall cancel or vary it accordingly.
127(3)(a)	For an order favouring a divorced woman who remarries, cancellation operates from the **date of remarriage**.
127(3)(b)	Where she has been divorced by her husband and has received the whole sum payable on divorce under the applicable customary or personal law, cancellation is governed by the clause's specified dates: if received before the maintenance order, from the order's date; otherwise from expiry of the period, if any, for which maintenance has actually been paid. Do not treat every token payment or assertion of a personal-law obligation as automatically satisfying the clause.
127(3)(c)	Where she obtained divorce and **voluntarily surrendered** her maintenance / interim-maintenance rights **after divorce**, cancellation operates from the date specified in the clause. An alleged pre-divorce blanket waiver is not the same statutory fact.

by Ankur R. Upadhyay

Subsection	What it does
127(4)	When making a decree for recovery of maintenance or dowry in favour of a person receiving a section 125 allowance, the civil court must take into account amounts paid or recovered under that order.

Read subsection (3) with the relevant judicial interpretation where personal-law payments are disputed; the bare clause should not be turned into an unqualified proposition that any dower or settlement payment necessarily wipes out continuing support.

6.10 Section 128: enforcement elsewhere

A copy of the order is supplied **without payment** to the beneficiary, guardian, or person to whom the allowance / expenses are directed to be paid. The order may be enforced by **any Magistrate in any place where the respondent may be**, upon satisfaction as to the identity of the parties and the non-payment of the amount due. This enables enforcement beyond the place where the original order was made; it does not dispense with verification of identity and default.

6.11 The prescribed cases: apply, do not conflate

Velusamy

Existing-spouse claim; natural justice to the alleged first wife; statutory analysis of a relationship in the nature of marriage; **remand**. Not a final declaration that every live-in partner receives maintenance.

Badshah

Proved concealment of an existing marriage; a woman induced into a purported marriage; purposive protection under section 125; wife's and child's awards **upheld**. Not general legal validation of bigamous marriages.

An effective section 125 answer separately analyses the woman and each child; distinguishes a knowingly entered second union from a deception case; recognises the summary setting; and states the actual procedural outcome of the cited authority.

CHAPTER 07·STATUTORY EXPOSITION

The Domestic Violence Act

The full section-map, economic abuse, protected relationships, residence, monetary relief and enforcement.

7.1 Why the DV Act belongs in a maintenance unit

The **Protection of Women from Domestic Violence Act, 2005** combines protective and civil reliefs with criminal sanctions for specified breaches. Financial deprivation can itself be domestic violence; relief is not confined to compensation after a physical assault. The Act can supply maintenance, residence-related relief, medical expenses, compensation and interim protection through a coordinated statutory scheme.

Section 1 and commencement: this is **Act 43 of 2005**, brought into force on **26 October 2006** by the notification recorded in the supplied Act. Its current extent is **the whole of India**; the former Jammu and Kashmir exclusion was omitted with effect from **31 October 2019**. These territorial and commencement details are separate from the later case-law corrections to the respondent and shared-household definitions.

It is therefore wrong to say either “the Act is only a criminal punishment law” or “every woman in any live-in relationship automatically gets maintenance.” The correct analysis is **protected person + domestic relationship + domestic violence / relevant prima facie basis + appropriate statutory relief**.

7.2 Definitions: section 2, with the essential distinctions

Provision / expression	Meaning relevant to this unit
2(a): aggrieved person	**Any woman** who is, or has been, in a domestic relationship with the respondent and alleges that she has been subjected to domestic violence by the respondent. She need not be confined to the category of a legally married Hindu wife.
2(b): child	A person below **18 years**, including an **adopted, step or foster child**.
2(c): compensation order	An order under section **22**.
2(d): custody order	An order under section **21**.
2(e): domestic incident report	A report in the prescribed form made on receipt of a complaint of domestic violence from an aggrieved person. It is not itself the final judicial finding of violence.
2(f): domestic relationship	A relationship between two persons who live or have, at any point, lived together in a **shared household**, when related by **consanguinity, marriage, a relationship in the nature of marriage, adoption**, or as **family members living together as a joint family**.
2(g): domestic violence	The meaning assigned by section **3**, including economic abuse.

Provision / expression	Meaning relevant to this unit
2(h): dowry	The meaning in section 2 of the **Dowry Prohibition Act, 1961**.
2(i): Magistrate	Judicial Magistrate of the first class or Metropolitan Magistrate exercising jurisdiction under the CrPC in the relevant area described in the definition. Read territorial competence with section 27.
2(j): medical facility	A facility notified by the State Government for the Act's purposes.
2(k): monetary relief	Compensation which the Magistrate may direct the respondent to pay at any stage of hearing an application for relief under the Act, to meet the aggrieved person's expenses and losses resulting from domestic violence; section 20 supplies the operative range.
2(l), (m): notification / prescribed	Gazette notification / prescribed by rules under the Act. These explain the procedural forms and delegated machinery; they are not independent heads of relief.
2(n): Protection Officer	An officer appointed under section **8(1)**.
2(o), (p): protection / residence order	Orders under sections **18 / 19**, respectively.
2(q): respondent	Read the surviving provision after *Hiral Harsora*: the words **"adult male"** were struck down and the proviso deleted. The respondent must still have the statutory domestic-relationship connection; the judgment does not make every stranger a respondent.
2(r): service provider	An entity registered under section **10(1)**.
2(s): shared household	A household where the aggrieved person lives or has lived in a domestic relationship, singly or with the respondent; the inclusive property alternatives cover specified owned/rented households and joint-family households, whether or not she or the respondent has the specified right, title or interest. Do not reduce it to property owned by the husband.
2(t): shelter home	A shelter home notified by the State Government.

Two corrections to older casebook language.
Hiral P. Harsora (2016) invalidated "adult male" in section 2(q), enabling appropriate claims against female respondents too; it did **not** remove the word "woman" from "aggrieved person." **Satish Chander Ahuja** (2020) rejected the restrictive shared-household interpretation in *S.R. Batra*. Neither change should be hidden inside a quotation of the 2010 *Velusamy* extract.

7.3 Section 3: every major limb of domestic violence

Section 3 covers an **act, omission, commission or conduct** of the respondent which:

1. **harms, injures or endangers** the health, safety, life, limb or well-being—mental or physical—of the aggrieved person, or tends to do so, including the specified forms of abuse;
2. **harasses, harms, injures or endangers** her to coerce her or a related person to meet an **unlawful demand for dowry, property or valuable security**;
3. has the effect of **threatening** her or a person related to her through the conduct described in the relevant clauses; or
4. **otherwise injures or causes harm**, whether physical or mental, to her.

The Act directs that the **overall facts and circumstances** be considered when determining whether conduct constitutes domestic violence. A narrow "show a medical injury or lose" approach is inconsistent with the statutory range.

The four expressly described kinds of abuse

Kind	Statutory content and a practical reading
Physical abuse	Conduct causing bodily pain, harm, danger to life, limb or health, or impairing health or development; includes assault, criminal intimidation and criminal force.
Sexual abuse	Conduct of a sexual nature that abuses, humiliates, degrades or otherwise violates a woman's dignity.
Verbal and emotional abuse	Insults, ridicule, humiliation, name-calling and especially insults about not having a child or a male child; repeated threats to cause physical pain to someone in whom she is interested.
Economic abuse	Three detailed statutory branches: deprivation of resources; disposal/alienation of relevant assets; and restriction of access to resources or facilities. These are unpacked below.

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7.4 Economic abuse: learn all three branches

Branch 1 — deprivation of economic or financial resources

Depriving the woman of all or any economic or financial resources to which she is entitled under **law or custom**, whether payable under a court order or otherwise, or which she requires out of **necessity**. The inclusive examples include:

- household necessities for herself and her children;
- **stridhan**;
- property jointly or separately owned by her;
- payment of rental relating to the shared household; and
- **maintenance**.

An existing maintenance decree is therefore not the only possible financial entitlement. Refusal of basic household necessities can require analysis even before a court has fixed an allowance.

Branch 2 — disposal and alienation

Disposing of household effects or alienating assets—movable or immovable property, valuables, shares, securities, bonds and the like—in which she has an interest, is entitled to use by the domestic relationship, reasonably requires, or has the specified ownership / stridhan connection.

The provision targets deprivation of the relevant economic interests. It should not be overstated as a blanket transfer of all the respondent's property to the applicant.

Branch 3 — restricting continuing access

Prohibiting or restricting her continued access to resources or facilities which she is entitled to use or enjoy by virtue of the domestic relationship, including **access to the shared household**.

Integrated illustration: H stops paying for food, blocks W's access to her jewellery and necessary household funds, and threatens to exclude her from the shared residence. Depending on the facts, W may invoke economic abuse, section 19 residence protection, section 20 monetary relief, section 22 compensation and section 23 interim protection. Those are distinct heads, not one undifferentiated “maintenance amount.”

7.8 Section 17: residence right is not property title

Every woman in a domestic relationship has the right to reside in the **shared household**, whether or not she has any right, title or beneficial interest in it. She must not be evicted or excluded from it, or a part of it, by the respondent except according to **procedure established by law**.

Shared-household definition in detail: section 2(s) includes a household owned or tenanted **jointly by the aggrieved person and respondent**, or **owned or tenanted by either of them**, in respect of which either or both, jointly or singly, have a right, title, interest or equity. It also includes a household belonging to a **joint family of which the respondent is a member**, irrespective of whether either of them has a right, title or interest in it. Read these property alternatives with the opening requirement of living or having lived there in a domestic relationship; neither the woman's lack of title nor the absence of the husband's exclusive ownership is a complete answer.

The distinction is fundamental: the statute protects residence, not automatic ownership. It does not mean she acquires a proprietary share in the house merely by living there, or that no competent court can ever adjudicate competing property rights. *Satish Chander Ahuja* rejects the rigid husband-ownership-only view while preserving the need to decide civil rights and residence protection through proper proceedings.

7.9 Section 18: protection orders

After giving both sides an opportunity of hearing and being prima facie satisfied that domestic violence has taken place or is likely, the Magistrate may prohibit the respondent from:

1. committing domestic violence;
2. aiding or abetting it;
3. entering the aggrieved person's workplace or, if the aggrieved person is a child, the school or another place frequented by the child;
4. attempting communication in any form, including personal, oral, written, electronic or telephonic contact;
5. alienating assets, operating relevant bank lockers / accounts or dealing with the described property, including stridhan or jointly/separately held property, without leave as specified;
6. causing violence to dependants, relatives or persons who assist her; and
7. doing other acts specified in the order.

This financial-asset protection can be important to making future monetary relief effective. It is distinct from finally quantifying maintenance under section 20.

7.10 Section 19: every principal residence remedy

On an application under section 12, where domestic violence is found to have taken place, section 19(1) permits orders:

Clause	Residence relief
(a)	Restrain the respondent from dispossessing or disturbing her possession of the shared household, whether or not he has a legal or equitable interest in it.
(b)	Direct the respondent to **remove himself** from the shared household. The proviso says **no such order under this clause shall be passed against a woman**. Do not overlook this surviving limitation after *Hiral Harsora*.
(c)	Restrain the respondent or relatives from entering the portion in which she resides.
(d)	Restrain alienation, disposal or encumbrance of the shared household.
(e)	Restrain the respondent from renouncing rights in it without the Magistrate's leave.
(f)	Direct the respondent to secure alternative accommodation of the **same level** as enjoyed in the shared household or pay rent for it, if circumstances require.

The remaining subsections permit additional protective conditions; a bond with or without sureties, to which the specified criminal-procedure machinery applies; police assistance; obligations concerning rent and other payments with regard to the parties' financial needs and resources; police assistance in implementation; and return of **stridhan or other property or valuable security** to which she is entitled.

A request for a residence order should identify which clause fits the facts. “Give her the house” fails to distinguish protection of possession, removal, alternative accommodation and ownership.

7.11 Section 20: monetary relief in full

Subsection (1): expenses and losses, including four express heads

While disposing of a section 12 application, the Magistrate may direct the respondent to pay monetary relief to meet expenses incurred and losses suffered by the aggrieved person and her children **as a result of domestic violence**. The inclusive heads are:

- **loss of earnings**;
- **medical expenses**;
- loss caused by **destruction, damage or removal of property** from her control; and
- **maintenance for the aggrieved person and her children**, including an order under, or **in addition to** an order under, section 125 CrPC or another law.

The causal and statutory foundation should be pleaded. Section 20 is not simply a second section 125 application with no domestic-violence allegation.

Subsection (2): the standard of adequacy

Monetary relief must be **adequate, fair and reasonable**, and **consistent with the standard of living to which the aggrieved person is accustomed**. This is broader than a token starvation payment and does not authorise an oppressive or evidence-free sum.

Subsection (3): mode

The Magistrate may order an appropriate **lump-sum payment or monthly payments**, according to the nature and circumstances of the case.

Subsections (4)–(5): communication and payment

The order is sent to the parties and the police station in charge of the area where the respondent resides. The respondent must pay within the period specified by the order.

Subsection (6): employer / debtor direction

On failure to pay, the Magistrate may direct the respondent's **employer or debtor** to pay directly to the aggrieved person or deposit in court a portion of wages, salary or debt due to or accrued to the respondent's credit. The payment may be adjusted toward the monetary relief payable.

The words “in addition to” in subsection (1)(d) permit additional relief where justified; they do not excuse concealment or eliminate later *Rajnesh* adjustment directions for overlapping maintenance. Distinguish maintenance from genuinely separate medical losses, property loss or compensation before deciding what overlaps.

7.12 Sections 21–23: custody, compensation and urgent orders

Section 21 — temporary custody. Notwithstanding other law, at any stage of a protection-order or other-relief hearing, temporary custody may be granted to the aggrieved person or someone applying on her behalf. The Magistrate may specify visitation arrangements; if a respondent's visit may harm the child's interests, the Magistrate **shall refuse** it. This is not automatically a final guardianship adjudication for every purpose.

Section 22 — compensation. On the aggrieved person's application, the respondent may be ordered to pay compensation and damages for injuries, **including mental torture and emotional distress**, caused by domestic violence. It is **in addition to other reliefs** and must not be confused with the ongoing maintenance budget.

Section 23(1) — interim orders. The Magistrate may make a just and proper interim order in a proceeding under the Act.

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Section 23(2) — ex parte orders. Where the application prima facie discloses that domestic violence is being committed, has been committed, or is likely, an ex parte order may be granted on the aggrieved person's prescribed affidavit under sections **18, 19, 20, 21 or 22**. "Ex parte" describes the procedure; it does not mean the allegations have already been conclusively tried.

7.13 Sections 24–29: follow-through, other proceedings and appeal

Provision	Rule to remember
24: copies free of cost	Copies go to the parties, the relevant police officer and the service providers specified, including the provider that registered an incident report.
25(1): protection order duration	A section 18 protection order remains in force until the aggrieved person applies for discharge. Do not invent an automatic one-year expiry.
25(2): changed circumstances	On application by either side, a change requiring alteration, modification or revocation of an order may be dealt with by a reasoned written order.
26(1)–(2): relief elsewhere	Relief under sections **18–22** may also be sought in an appropriate civil, family or criminal proceeding affecting the parties, whether begun before or after commencement, in addition to other reliefs.
26(3): disclosure	If she obtains relief in another proceeding, the aggrieved person must inform the Magistrate. This is an express statutory disclosure duty.
27: territorial jurisdiction	JMFC / Metropolitan Magistrate where she permanently **or temporarily** resides, carries on business or is employed; where the respondent resides, carries on business or is employed; or where the cause of action arose. Orders are enforceable throughout India.
28(1): procedure	The uploaded Act applies CrPC procedure, save as otherwise provided, to the specified proceedings and section 31 offences. Read references after the BNSS with the relevant repeal/savings framework, not by ignoring the transition.
28(2): procedural flexibility	The court may lay down its own procedure for disposing of a section **12** application or a section **23(2)** ex parte application. Do not overstate this as a power to discard every statutory safeguard in every proceeding.
29: appeal	Appeal to the **Court of Session within 30 days from service of the order** on the aggrieved person or respondent, as the case may be, **whichever is later**. The trigger is not invariably the day the Magistrate pronounced the order.

7.15 The DV maintenance decision tree

AGGRIEVED WOMAN Is / has been in a qualifying domestic relationship with the respondent?
↓
SHARED HOUSEHOLD / RELATIONSHIP Marriage, qualifying marriage-like relationship, blood relation, adoption or joint family?
↓
DOMESTIC VIOLENCE Plead acts / omissions; identify economic, physical, sexual or emotional abuse
↓
CHOOSE DISTINCT HEADS §18 protection · §19 residence · §20 money · §21 custody · §22 damages
↓
URGENT + FINAL PROCESS §23 interim/ex parte → evidence and reasoned relief → §26 disclosure → enforcement / §29 appeal

For the live-in category, apply *Velusamy* accurately; for the text's old "adult male" and husband-owned-house limitations, add the separately sourced later corrections. A strong answer combines the protective purpose with precise gateways and separate reliefs.

CHAPTER 08·PRESCRIBED CASE STUDY

Case I · Amar Kanta Sen

Detailed facts, both parties' positions, reasoning, the exact ₹79.33 result and the limits of historical subsistence reasoning.

DU CORE · CASE 01

Amar Kanta Sen v. Sovana Sen

AIR 1960 Cal 438 · Calcutta High Court · S. Datta J.
Core question: Does a divorce obtained because of the wife's adultery necessarily defeat every claim for support under section 25?

8.1 Material facts: allegations versus findings

The marriage had been dissolved by the same judge on **10 July 1959**, on the ground of the wife's adultery. The husband's adultery alleged by her had not been established. On or about **17 August 1959**, Sovana applied for permanent maintenance of **₹350 a month**, or such sum as the court considered proper.

Her application described a respectable family background and an accustomed decent standard of living. She said she did not intend to remarry, wished to live chastely and devote herself to her son, music and painting, was in poor health, and lacked means or relatives willing to support her. She itemised monthly expenses of approximately **₹315**, alleged debts of **₹4,000**, and put the husband's salary at **₹1,700**. These were **her assertions**, not all findings accepted by the court.

The financial evidence showed she was a **graduate with musical ability** and had been earning about **₹90 monthly** around the time of the application. She had been appointed Assistant Producer (Music), **All India Radio, New Delhi**, at a consolidated **₹300 monthly**, and joined on **17 September 1959**. The court found that the appointment had already been made before her affidavit of 7 September denying the husband's allegation about it.

The husband's affidavit disputed ₹1,700 as his salary and asserted a net figure of **₹879.90**. The court referred to salary records showing **₹1,360**, **₹475 in a suspense account**, and about **₹879 payable** for August 1959. Before dissolution, an interim order had required **₹200 monthly from May 1956**. These figures describe the particular evidentiary record; they are not maintenance percentages.

Most importantly, the court recorded **no evidence of misconduct by the wife after the divorce judgment**.

8.2 Procedural posture

This was the wife's **post-decree section 25 application** following the dissolution of the marriage—not a fresh section 125 proceeding and not an HAMA section 18 suit. The question was the financial relief the matrimonial court should grant after the divorce in the circumstances proved. The existing pre-divorce interim amount did not automatically dictate permanent alimony.

8.3 Issues

1. Did the wife's established past adultery categorically bar relief under the section 25 framework then applicable?
2. If not, what kind of support could appropriately be awarded to her?
3. What was the effect of her **₹90 pre-employment earnings** and later **₹300 salary**?
4. For what period, and in what exact amount, was the husband liable?

8.4 The wife’s submissions / pleaded position

- She claimed maintenance according to her former decent standard of life and the husband's capacity.
- She characterised his obligation as moral and personal under Hindu law and emphasised her intention to live a chaste life thereafter.
- She alleged ill health, lack of support from others, substantial expenses and debt.
- She denied the affidavit allegation that she had been selected and offered the AIR appointment and asked the court to disregard it.

The last point was important because the court found contrary appointment evidence. The brief must not reproduce her description of destitution as if her earning ability and employment had never been established.

8.5 The husband’s opposition

- Her adultery with the persons identified in the divorce findings represented betrayal of her matrimonial obligations and, he argued, disentitled her to maintenance.
- The salary alleged by her was incorrect; he relied on the lower net-pay figure.
- He denied the stated level of expenditure and debt.
- He disclosed information about her selection and appointment with AIR, contesting the factual picture of helplessness.

These are the positions actually reported in the DU extract. The judge's subsequent analysis of English authorities should not be attributed to counsel as an invented additional submission.

8.6 The court’s reasoning, step by step

First: the discretion was not extinguished by matrimonial guilt alone. The court compared section 25 with the historical divorce-law provisions and discussed *Ashcroft* and *Squire*. Those authorities recognised judicial discretion to provide support even for a guilty wife who lacked means or could not earn because of ill health.

Second: the court considered the older Hindu-law distinction between persisting misconduct and return to a chaste life. It referred to traditional legal treatises describing a bare subsistence or “starving” allowance for an erring wife who renounced the course of conduct. This was part of the court's historical reasoning, not the language of today's general maintenance standard.

Third: relief was limited to subsistence on these facts. The court did not accept the wife's demand for ₹350 or her ₹315 expense claim as the amount to be awarded. It took **₹125 monthly** as the upper subsistence figure in her circumstances if she had no income at all.

Fourth: actual earnings had to be deducted. Because she already earned ₹90 during the relevant interval, the deficiency was **₹35 per month**.

Fifth: the AIR employment ended the factual need recognised in the judgment. Once she joined the ₹300 post on 17 September 1959, the court held she was no longer helpless or unable to earn the subsistence contemplated, and no further allowance was ordered.

8.7 Decision: the exact outcome

COURT'S SUBSISTENCE FIGURE**₹125**per month
–
HER EXISTING EARNINGS**₹90**per month
=
AWARD FOR THE INTERVAL**₹35**per month

Period / item	What the court ordered
10 July 1959 to 17 September 1959	Deficiency of ₹35 monthly; the judgment calculated **₹79.33 in all** for this interval
After joining AIR on 17 September 1959	**No further allowance**
Wife's request for ₹350 monthly	Not granted
₹125 figure	Hypothetical subsistence assessment before deduction, **not the amount actually awarded monthly**

8.8 Principles evolved—and their limits

1. **Past matrimonial guilt did not necessarily eliminate the court's maintenance discretion** under the section 25 law considered.
2. **Past adultery and subsequent conduct were distinct:** no post-decree misconduct was proved.
3. **Actual earnings matter to quantum and continuing need.** The applicant cannot be assessed as if the proved income does not exist.
4. **Interim support does not automatically become the permanent award.** The earlier ₹200 order did not control the later section 25 assessment.
5. **Historical subsistence reasoning is not a universal present-day measure.** Contemporary section 25 and later quantum authorities must be separately applied.

8.9 Critical evaluation for a longer answer

The case resists an absolute punitive approach that would automatically leave a financially helpless former spouse unsupported. Yet its vocabulary and subsistence-only treatment of an adulterous wife reflect the era in which it was decided. A modern answer should explain that reasoning rather than uncritically adopt its moral terminology as the general standard for every maintenance claimant.

The enduring analytical method is to separate **conduct**, **financial evidence**, **the relevant time interval**, and **the form of judicial discretion**. The precise order is an excellent reminder that a legal principle can favour consideration of support while the claimant still receives far less than requested—and nothing once her circumstances change.

8.10 A ready-to-use case proposition

> *In Amar Kanta Sen v. Sovana Sen, the Calcutta High Court did not treat the wife's past adultery as an absolute bar to considering support under section 25. On the historical law and facts, it allowed only the deficiency between assessed subsistence and actual earnings—₹35 monthly, totalling ₹79.33 for the specified interval—and nothing after she joined salaried employment. The case must be distinguished from a general modern "starvation-only" formula.*

CHAPTER 09 · PRESCRIBED CASE STUDY

Case II · D. Velusamy

The competing marital histories, Lakshmi's hearing, marriage-like relationship criteria and the actual remand.

DU CORE · CASE 02

D. Velusamy v. D. Patchaiammal

(2010) 10 SCC 469 · Supreme Court · Markandey Katju J.
Core questions: Who is a "wife" for section 125, what makes a relationship "in the nature of marriage," and can a court decide an alleged first wife's status without hearing her?

9.1 Material facts and the competing marital histories

Velusamy was a **secondary teacher at Thevanga Higher Secondary School, Coimbatore**. He maintained that he had married **Lakshmi on 25 June 1980**, that a son was born of that marriage, and that the marriage continued. His son was studying at an engineering college in Ooty. To support the alleged earlier marriage, he produced a **ration card, Lakshmi's voter identity card, the son's transfer certificate, Lakshmi's hospital discharge certificate and wedding photographs**. These were evidence to be adjudicated, not a reason to dispense with hearing Lakshmi.

Patchaiammal's case was that she married Velusamy on **14 September 1986**, lived with him for about **two or three years in her father's house**, and was then left without support when he returned to his native place, although she alleged occasional later visits. In **2001**, she sought **₹500 monthly maintenance under section 125 CrPC**, alleging earnings of around **₹10,000 monthly** on his part.

The unexplained interval mattered. On her own account, his departure occurred around **1988 or 1989**, but she applied in **2001**. The Court said that the roughly twelve-year delay required a satisfactory explanation and created doubt about the claim. This was an evidentiary concern in the judgment, **not a newly enacted twelve-year or one-year limitation on filing an original section 125 claim**.

The dispute was therefore not simply "two unmarried people lived together." It involved two incompatible claimed marital histories and the legal consequences of an alleged subsisting earlier marriage. That fact is central both to section 125 and to the Court's discussion of capacity to enter a marriage-like relationship.

9.2 Procedural history

The **Family Court's order of 5 March 2004** accepted Patchaiammal's marital claim and rejected the significance of the asserted earlier marriage. The **Madras High Court's order of 12 October 2009** upheld the result. Velusamy appealed.

Before the Supreme Court, Patchaiammal **did not appear**. The Court requested **Jayant Bhushan, Senior Advocate, to assist as amicus curiae**. An amicus is not to be recast as the absent claimant's advocate, and the judgment's discussion must not be falsely described as her oral submissions in the Supreme Court.

9.3 Issues for decision

1. Could the courts conclude that Lakshmi was not Velusamy's legally wedded wife **without making her a party and hearing her**?
2. What is the ordinary significance of "wife" in a section 125 claim where an earlier valid marriage is said to subsist?
3. Could the claimant have a remedy within the **DV Act's "relationship in the nature of marriage"** category, and what conditions would need investigation?
4. Were the existing findings sufficient for a final determination, or did the matter require **remand**?

9.4 Velusamy's recorded position

- He asserted a valid and continuing earlier marriage to Lakshmi, with a child from that relationship.
- He denied that Patchaiammal was his legally wedded wife entitled to section 125 maintenance on the basis she alleged.
- His documentary material was relevant to the earlier marriage; he challenged the treatment of that marital status by the courts below.

The legal significance of this position was that a subsisting first marriage could affect the validity of the alleged later marriage and the capacity requirement in a marriage-like relationship. The Court did not treat his assertion as conclusively proved merely because he made it; the point had to be fairly tried.

9.5 Patchaiammal's pleaded case—and the limits of the record

Her recorded claim was a marriage in 1986, a period of marital cohabitation, subsequent abandonment and inadequate provision despite Velusamy's earnings. She sought maintenance on that basis and had succeeded below.

No oral argument by her in the Supreme Court is reported, because she did not appear. The discussion of possible DV Act protection was undertaken by the Court with the amicus's assistance. A responsible case brief reports that distinction instead of inventing an elaborate Supreme Court submission that "she argued palimony."

9.6 Natural justice: why Lakshmi had to be heard

A declaration that Lakshmi was not the legally wedded wife would adversely affect **her own marital status and interests**, not merely resolve a financial dispute between the two named litigants. She had not been joined and heard. The Supreme Court treated the failure to hear her before such an adverse determination as a violation of **natural justice**.

This part of the case is often lost in simplified live-in-relationship summaries. The decision did not merely announce a definition; it corrected a defective adjudicatory process. Fair hearing was necessary before deciding whether the asserted earlier marriage excluded the later claim.

9.7 Section 125 and the DV Act are distinct statutory inquiries

The Court considered authorities treating "wife" in section 125 as a legally wedded wife, while recognising that the DV Act uses the separate expression **"relationship in the nature of marriage."** It also referred to the contemporaneous discussion in *Chanmuniya*. A reference raising a question is not itself a blanket final rule that every long cohabitation is a legally valid marriage.

The extract's quotation from **Vimala (K) v. Veeraswamy (K)** also cautions against defeating a neglected woman's claim on a merely convenient allegation of an earlier wife: a court must insist on proper proof of the earlier marriage. This complements, rather than replaces, the need to hear the person whose status would be affected.

The DV Act category is broader than formal marriage, but it is not unlimited. The claimant must bring the relationship within the relevant statutory description and establish the basis for the relief requested. The Court's discussion of American **palimony** and contractual approaches provided comparative context; it did **not decide a general Indian cause of action for contractual palimony**.

9.8 The "relationship in the nature of marriage" indicators

The Court described such a relationship as akin to a common-law marriage and set out these requirements:

01 · Public presentation
The couple must hold themselves out to society as being akin to spouses.

02 · Legal age
They must be of legal age to marry.

03 · Capacity
They must otherwise be qualified to enter a legal marriage, **including being unmarried**.

04 · Voluntary sustained cohabitation
They must have voluntarily cohabited and held themselves out as spouses for a significant period.

The Court also emphasised living together in a **shared household** within the DV Act. Merely spending weekends together, a one-night encounter or a casual sexual relationship does not by itself establish the statutory category. The extract uses a disparaging expression for a financially supported sexual relationship; the point for study is the **absence of the legally required marriage-like attributes**, not adoption of that language to demean claimants.

No fixed numerical minimum—six months, one year, seven years or otherwise—was laid down. "Significant period" is not an invented universal duration rule. The requirement concerning being unmarried is especially important on the alleged Lakshmi facts.

9.9 Decision and operative effect

The **appeals were allowed**, the judgments/orders under challenge were set aside, and the matter was **remanded to the Family Court** for the necessary determination after hearing the affected persons and examining the relevant facts.

> **Outcome to memorise: REMAND.**
> The Supreme Court did **not** finally grant Patchaiammal maintenance on a finding that her relationship met the DV Act test. Nor did it finally dismiss every conceivable maintenance claim. Eligibility and the disputed status facts required proper investigation.

9.10 Ratio, guidance and what remained open

Category	What to say accurately
Procedural holding	An adverse marital-status determination affecting Lakshmi could not properly be made without hearing her.
Statutory guidance	Not all live-in relationships are relationships in the nature of marriage; apply the Court's listed attributes and shared-household requirement.
Factual question left for inquiry	Whether the necessary earlier-marriage and claimant-relationship facts were established.
Not decided as a general Indian remedy	Contractual palimony merely because a relationship has ended.
Not the operative result	A final all-live-ins-entitled rule or a final maintenance award to this claimant.

9.11 Relationship with Badshah and later updates

Velusamy must be read alongside, not simply erased by, *Badshah*. The latter concerns a **woman deceived by concealment of an existing marriage** and a purposive section 125 interpretation preventing the wrongdoer from benefiting from his deception. A question involving a knowing second relationship and a question involving fraudulent concealment should not receive an identical one-line answer.

The 2010 extract also quotes statutory language and shared-household authorities that require subsequent correction: *Hiral Harsora* struck down "adult male" in section 2(q), and *Satish Chander Ahuja* rejected the restrictive *S.R. Batra* household reading. State these as later developments, not words spoken by the *Velusamy* Court.

9.12 A ready-to-use case proposition

> *D. Velusamy requires a fact-sensitive inquiry into public spousal presentation, legal age and capacity, sustained voluntary cohabitation and a shared household before treating a live-in relationship as one in the nature of marriage. Its actual disposition was a remand, including the requirement of a hearing to the alleged first wife; it is not a final award of maintenance to every live-in partner.*

CHAPTER 10·PRESCRIBED CASE STUDY

Case III · Badshah

Concealed first marriage, purposive interpretation, the knowing/deceived distinction and the upheld maintenance awards.

DU CORE · CASE 03

Badshah v. Sou. Urmila Badshah Godse & Anr.

(2014) 1 SCC 188 · Supreme Court · A.K. Sikri J.
Core question: Can a man who concealed a subsisting marriage defeat the deceived woman's section 125 claim by invoking the very invalidity his concealment produced?

10.1 Detailed facts

Urmila had previously married **Popat** and obtained a divorce from him in **1997**. Her case was that she thereafter married Badshah through customary rites and ceremonies on **10 February 2005**, believing herself to be entering a genuine marriage with him. She had

lived with her parents from the 1997 divorce until 2005; the proposal came through mediators, and the pleaded ceremony took place at **Devgad Temple, Hivargav-Pavsa**.

She lived with him as his wife. About **three months later**, a woman named **Shobha** appeared and claimed to be his existing wife. Urmila's case was that Badshah had not disclosed the earlier marriage before inducing her to marry him. Her pleaded account was that Badshah told her to stay quietly with him or return to her parents. **She was already pregnant** and initially tolerated living with Shobha. She alleged that he then inflicted mental and physical torture under the influence of liquor, questioned the child's paternity and demanded abortion. When the treatment became intolerable, she returned to her parents. Their daughter, **Shivanjali**, was born on **28 November 2005**. These details are the account in the maintenance petition; the decisive concurrent findings are identified separately below.

Badshah denied the alleged marriage, cohabitation and paternity, accused Urmila of making false allegations to blackmail him, and stated that Shobha had continuously lived with him and that they had two children. In the alternative, he asserted that he had already married Shobha on **17 February 1979**, so that Urmila could not be his legally wedded wife and could not obtain maintenance under section 125.

The courts below accepted material parts of Urmila's account: the marriage ceremony and cohabitation, paternity of the child, and concealment of the first marriage. The Supreme Court's legal analysis proceeded against **concurrent factual findings**, not a mere untested allegation that any second relationship involved deception.

10.2 Procedural history and amounts

The **Judicial Magistrate First Class** awarded **₹1,000 monthly to Urmila** and **₹500 monthly to Shivanjali**. The **Additional Sessions Judge dismissed the revision**, and the **Bombay High Court, Aurangabad Bench**, upheld the result on **28 February 2013** in Criminal Writ Petition No.144/2012. Badshah approached the Supreme Court by **special leave petition**. The Court condoned the stated **63-day filing delay and 11-day refiling delay**, then addressed the legal issue.

The distinction between the wife's and the daughter's rights is crucial. Section 125 includes legitimate and illegitimate children subject to the statutory conditions; invalidity of the parents' marriage is therefore not, by itself, a defence to the child's claim. The central contested legal issue concerned the deceived woman's claim as a wife.

10.3 Issues

1. Does the usual requirement of a legally recognised wife under section 125 necessarily defeat a woman who was **unaware of the man's existing marriage because he concealed it**?
2. Can the respondent invoke his own proved deception to avoid the maintenance obligation?
3. How should section 125's language be interpreted in light of its **social-welfare and anti-destitution purpose**?
4. How are earlier authorities concerning a second wife to be distinguished?
5. Does the child's independent claim survive the dispute over the marriage's validity?

10.4 Badshah's arguments / defence

His defence had two layers:

- **Factual denial:** he denied the asserted marriage and that he was the child's father. Those objections had failed on the concurrent findings.
- **Alternative legal objection:** even if the relationship alleged by Urmila occurred, the earlier Shobha marriage subsisted; hence the later marriage was not lawful and she did not satisfy the statutory category of wife.

He relied on the line of authority, including **Yamunabai** and **Savitaben**, restricting a section 125 wife's claim in the context of an invalid second marriage. The force of his formal argument was that maintenance jurisdiction could not ordinarily turn a void marriage into a valid one.

The Court's response was not to pretend the earlier marriage did not exist. It addressed why this particular wrongdoer could not use **his concealment of that fact** to defeat the protective remedy.

10.5 Urmila and the child's position

Urmila's case was that she entered the marriage believing Badshah was free to marry, after a ceremony, and lived with him as a spouse; she discovered the existing wife only later. The findings concerning the ceremony, cohabitation and concealment supported her plea that she was **duped**, rather than a person who knowingly entered a second marriage.

Her claim called for a protective reading of section 125 that would not enable a man to benefit from misleading a woman into a purported marriage. Shivanjali's claim additionally rested on the statute's protection of a qualifying child regardless of legitimacy.

This is a summary of the respondents' case and its accepted factual basis as reported in the DU extract. It is not an invented verbatim transcript of counsel's address.

10.6 Reasoning I: concurrent findings and the summary setting

The Supreme Court did not reopen every evidentiary dispute as though it were trying the claim for the first time. The findings about the ceremony, cohabitation and the child had been accepted below. The DU extract records evidence including **marriage photographs** and Badshah's knowledge of Urmila's earlier divorce. The absence of blemish or perversity in those findings was important; the factual findings were not the point argued before the Supreme Court, which concentrated on the existing-marriage objection.

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The judgment referred to the distinction between proof of marriage in a **summary maintenance proceeding** and the strict proof required to establish a criminal bigamy offence. This guards against defeating a remedial claim through an inappropriately rigid evidentiary approach. But a relaxed standard of proving a marital relationship is not the same proposition as saying a known legal impediment never matters. The concealment facts do important work in the decision.

10.7 Reasoning II: the deceived woman is not the knowing second wife

The Court expressly distinguished the cited earlier cases in light of the present facts. Badshah's first marriage was **suppressed from Urmila**; she was led to believe he was legally capable of marrying her. Having induced that belief and the relationship, he could not then use the undisclosed existing marriage as a convenient legal escape from maintenance.

The Court treated her as a wife **for the purpose of the section 125 remedy in these circumstances**. The judgment does not confer general validity on the later marriage for succession, marital-status declarations, bigamy law or every other statutory purpose. Its protection is tied to the remedial question and the proved deception.

10.8 Reasoning III: purposive and social-context interpretation

The judgment treats section 125 as a measure of **social justice**, intended to protect vulnerable women and children from neglect and destitution. The interpretive choice is therefore not to be made in abstraction from the provision's protective purpose and the social reality of a woman deceived into a marital relationship.

Its approach includes:

1. identifying the mischief the provision seeks to prevent;
2. recognising the disadvantage and vulnerability created by the respondent's deception;
3. reading the statutory expression in a manner that advances the remedy rather than rewarding that deception;
4. distinguishing earlier decisions by their facts instead of mechanically extracting an isolated sentence; and
5. refusing to allow the respondent to **take advantage of his own wrong**.

The judgment's discussion of social-context adjudication explains the method. It should not be exaggerated into a general permission for a court to disregard statutory limits whenever it considers an outcome sympathetic. The specific relationship findings, concealment and purpose of section 125 remain integral to the result.

10.9 Chanmuniya: a reference is not a universal holding

The DU extract discusses *Chanmuniya* and questions concerning a broader interpretation of “wife.” Do not state that the reference itself conclusively established maintenance for **every** woman in a long-term live-in relationship. The operative reasoning in *Badshah* protects the woman deceived by the man's concealment. A reference to questions for consideration and an adjudicated ratio must be kept separate.

10.10 Decision: exact result

SUPREME COURT DISPOSITION

Special leave petition dismissed

The awards of **₹1,000 per month for Urmila** and **₹500 per month for Shivanjali** stood upheld. The result was not a remand and not dismissal of the woman's maintenance claim.

10.11 Principles evolved

- A man who **fraudulently conceals a subsisting marriage** and induces a woman into a purported marriage cannot rely on that concealed fact to defeat her section 125 claim in the circumstances recognised by the Court.
- Section 125 receives a **purposive, social-welfare interpretation**, sensitive to the vulnerability the provision addresses.
- **Knowing and deceived second relationships are not identical factual categories.** The judgment's express distinction must be included.
- Maintenance's summary proof setting is not the same as prosecution for criminal bigamy.
- The child has a **separate statutory entitlement** that must not be swallowed by the dispute over the mother's status.
- The result **does not validate bigamy generally** or rewrite every enactment's definition of spouse.

10.12 Critical evaluation and exam use

A literal approach would let the man create an invalid marriage through concealment and then use the invalidity as a complete financial defence. The Court instead connects interpretation with the statute's protective purpose. The strength of the reasoning lies in refusing to make the innocent victim bear the entire legal consequence of information deliberately withheld from her.

The doctrinal limit is equally important. Courts still need evidence of deception and a qualifying factual foundation; the decision cannot be treated as a universal replacement of marriage requirements with sympathy. In a problem involving knowledge of the first marriage, identify that difference before invoking *Badshah*.

by Ankur R. Upadhyay

10.13 A ready-to-use case proposition

> *In Badshah, the Supreme Court upheld section 125 maintenance for a woman induced into marriage by concealment of the man's subsisting marriage, refusing to let him profit from his own wrong. Its purposive protection is distinguishable from knowingly entering a second marriage and does not amount to general validation of bigamy; the daughter's maintenance was independently supported by the statute.*

CHAPTER 11·PRESCRIBED CASE · MISSING-EXTRACT SUPPLEMENT

Case IV · Padmja Sharma

Both parents' responsibility, the 2:1 allocation, staged dates, prior-payment credits and procedural fairness.

PRESCRIBED CASE 04 · MISSING-EXTRACT SUPPLEMENT

Padmja Sharma v. Ratan Lal Sharma

AIR 2000 SC 1398 · (2000) 4 SCC 266 · Supreme Court, 28 March 2000 · D.P. Wadhwa and M.B. Shah JJ.
Core question: When both parents earn, who must maintain their minor children and in what proportion?

11.1 Family and litigation background

The parties were Hindus and married according to Hindu rites on **2 May 1983**. Their two sons were born on **27 January 1984** and **28 June 1985**.

The wife filed a divorce petition on **21 May 1990** and also sought return of **stridhan**, custody / guardianship and maintenance of the children. She separately invoked **section 125 CrPC**. She was a **lecturer in a government college in Rajasthan**; the husband was a **clerk in the Reserve Bank of India**. The Court corrected the broad impression created by the High Court's description of his "responsible position" by noting the occupations actually reported.

On **2 August 1991**, she made a **section 26 HMA** application for child maintenance and associated schooling / litigation expenses. The transcript records ₹2,575 monthly for both children in the petition and ₹2,500 in its supporting affidavit; the important point is that she sought support for **the children**, not section 24 maintenance for herself.

Further applications followed on **27 October 1995** and **26 August 1997**, relying on changed earnings and growing needs. In the 1997 application, she sought **₹3,500 for the elder child and ₹3,000 for the younger child**. The exact amounts claimed must be distinguished from the amounts finally ordered.

11.2 Procedural chronology

Date / stage	What happened
7 April 1992	Family Court granted **₹250 per month per child under section 125 CrPC**.
30 April 1992	A further **₹250 per month per child** was ordered as **interim section 26 HMA maintenance**.
13 September 1997	The matrimonial and section 26 proceedings were consolidated.
4 October 1997	Divorce granted on cruelty; custody of both minor children with the mother; section 26 support fixed at **₹500 per child monthly** from that date; alternative **₹1 lakh** for stridhan articles not returned, against a ₹1.8 lakh claim; **₹1,000 litigation costs**.
High Court	Enhanced child support to **₹1,000 per child monthly** from 4 October 1997 and **₹500 per child** from the application date; declined the additional stridhan claim.
22 February 1999: SC interim order	Directed **₹1,500 per child monthly** by way of interim relief.
28 March 2000: final judgment	Partly allowed the wife's appeal; enhanced and staged the father's contributions, while preserving the separate section 125 amounts and credit for payments already made.

11.3 Issues

1. Was the maintenance fixed for the children adequate, and from which dates should the enhanced amounts operate?
2. Does the law make the **father alone** responsible, even when the mother is employed?
3. Can **HAMA sections 3(b) and 20** be used to explain maintenance under **HMA section 26**?
4. Should the Supreme Court enhance the stridhan decree or alter the lower-court costs orders?
5. Could fresh post-appeal financial documents be used to impose further liability **without notice to the absent husband**?

11.4 The wife's case / arguments reported

She sought an increase in maintenance for the two sons and an award operating from the relevant **application dates**, not merely the eventual divorce decree. Her successive applications relied on the children's schooling and rising financial requirements and the husband's increased salary.

She also sought the full **₹1.8 lakh** claimed toward stridhan and complained of harassment through delay before the Family Court, raising costs / special costs. In February 2000 she sought to bring on record additional documents, including school fees, books and school-bag receipts and information concerning later salary changes.

Her principal child-maintenance grievance succeeded in part. The property and costs grievances did not produce the additional relief requested.

11.5 The husband's position—and what the judgment does not report

The husband **did not appear in the Supreme Court despite notice**, and the wife was heard ex parte. It would be inaccurate to invent a Supreme Court oral argument by him insisting that the earning mother must maintain the children alone.

The judgment does record his grievance that he could not obtain a lawyer in the Family Court, while the wife was represented by her father, himself a lawyer. The Court considered the dispute over costs in that context and declined to disturb the lower-court exercise of discretion without a sufficiently weighty reason.

The principle that both parents must contribute is **the Supreme Court's legal reasoning**; it must not be relabelled as a reported submission by the absent husband.

11.6 Reasoning I: read the codified Hindu-law enactments together

HMA does not separately define maintenance or exhaustively allocate the child-support duty between parents. The Court treated the Hindu-law enactments as a connected codified framework. Unless the context is repugnant, an appropriate definition in one can inform another.

It accordingly used **HAMA section 3(b)**: food, clothing, residence, education, medical attendance and treatment, with the additional unmarried-daughter marriage-expense limb where relevant. For these two sons, the ordinary child-support heads—including education—were material.

This is an interpretive use of a connected definition, **not** a proposition that every condition in one Act can be mechanically transplanted into another.

11.7 Reasoning II: distinguish the wife's right from the children's right

The Court contrasted **HAMA section 18**, concerning the husband's obligation to maintain his wife subject to its conditions, with **section 20**, imposing the child-maintenance obligation on **both father and mother**.

It rejected the notion that however affluent the mother may be, maintaining the children is exclusively the father's legal responsibility. The wife was earning too. The Court referred to the income comparison in the initial materials—**₹3,100 for her and ₹5,850 for him**—and reasoned that later salaries had increased, with his approximate income about **twice hers**.

It therefore adopted a **2:1 contribution ratio** on the facts. This was not a mandate that every mother and father contribute equally, nor that every father must always pay twice the mother's contribution.

11.8 Reasoning III: quantify need, then allocate responsibility

The Court assessed **₹3,000 monthly per child** as sufficient on the overall picture. Both parents were to bear this in the **2:1 ratio**:

Father · ₹2,000 Two-thirds of assessed need
Mother · ₹1,000 One-third
The operative direction was against the respondent father for **₹2,000 monthly for each son from 4 October 1997**. The fact that the mother contributed as the custodial parent did not erase his share.

11.9 Final decision: dates and amounts accurately stated

Applicable period, beginning on	Father's section 26 liability per child per month
2 August 1991 — first application	**₹500**
27 October 1995 — second application	**₹1,000**
26 August 1997 — third application	**₹1,500**
4 October 1997 — Family Court's decree	**₹2,000**

The Court expressly left untouched the **₹250 per child per month under section 125 CrPC**. It stated that the staged section 26 sums were **apart from** those amounts. The father was entitled to **adjust amounts already paid** under the Family Court, High Court and Supreme Court interim orders.

The **₹1 lakh alternative stridhan award** was not disturbed. Nor was the lower-court costs position upset. The appeal was **partly allowed**, with **no order as to costs in the Supreme Court**, the respondent having chosen not to appear.

> **Do not rewrite the historical order—but do not universalise it either.**
> *Padmja* expressly preserved the additional section 125 amount. For present successive maintenance claims, *Rajnesh v. Neha* requires disclosure and consideration of adjustment / set-off. Accurately report the 2000 disposition, then explain the later coordination rule rather than say all awards must always be cumulatively added.

by Ankur R. Upadhyay

11.10 Fresh documents, notice and modification

The Court declined to entertain the additional-document application seeking further enhancement because the documents concerned later events and **notice of that application had not been given to the respondent**. His absence in the original appeal was not permission to decide every newly enlarged claim without notice.

If circumstances had changed, the wife could approach the **Family Court again**. Section 26 orders are subject to modification. Thus finality of the appeal did not make future maintenance immutable, but changed financial relief still required the appropriate application and fair procedure.

11.11 Principles evolved

1. The duty to maintain minor children is **shared by both parents** under HAMA section 20.
2. Contributions can be **proportionate to resources**; shared responsibility does not necessarily mean equal amounts.
3. HAMA's maintenance definition can inform HMA section 26 where the context permits.
4. The children's support is legally distinct from the mother's personal spousal maintenance and from stridhan recovery.
5. Application dates, changing needs and prior payments matter; the result was a staged award with payment credits.
6. Section 26 financial orders remain **modifiable**; new material and enhanced demands must respect notice and procedure.

11.12 A ready-to-use case proposition

> *Padmja Sharma holds that maintaining minor children is the obligation of both parents, not the father alone irrespective of the mother's means. Reading HMA section 26 with HAMA sections 3(b) and 20, the Court apportioned the assessed ₹3,000 monthly need per child in a 2:1 ratio and directed the father to pay ₹2,000 per child from the decree date, with staged amounts for earlier periods and credit for payments already made.*

CHAPTER 12·SYNTHESIS

Comparisons & problem-solving

A route-selection matrix, relationship decision tree, financial evidence checklist and rules for overlapping claims.

12.1 The master comparison

Wide comparison table · scroll horizontally when needed

Test	HMA §24	HMA §25	HAMA §18	CrPC §125	DV Act §§19–20
Primary claimant	Either spouse	Either spouse	Hindu wife	Wife; qualifying children; father/ mother	Aggrieved woman; monetary relief can include her children
Religion-specific?	HMA applies	HMA applies	HAMA applies	Secular	Secular
Setting	Pending HMA proceeding	At / after HMA decree	Independent substantive marital maintenance claim	Summary statutory support proceeding	Qualifying domestic relationship and domestic-violence framework
Relationship issue	Matrimonial-proceeding nexus; voidness does not automatically preclude interim relief under later law	Decree nexus; void-marriage spouse may seek relief under later law	Wife in subsisting marriage	Own statutory meaning of wife, including divorced not remarried; *Badshah* deception protection	Marriage is one category; not every live-in relationship is marriage-like
Central financial / factual gateway	Insufficient independent income for support and expenses	Just award based on incomes/ property, conduct and circumstances	Marital duty; justify separate residence where applicable; assess means/ needs	Sufficient means + neglect/refusal + eligible claimant's statutory inability	Domestic violence, including economic abuse; expenses/ losses and appropriate residence relief
Payment structure	Monthly during case + expenses	Gross sum or monthly/periodical	Amount fixed on applicable HAMA factors	Monthly allowance; interim allowance + expenses	Lump sum/monthly monetary relief; residence/rent; distinct losses
Conduct provisions	Discretion; not every accusation an automatic bar	Express factor; §§25(2)–(3)	§§18(2)–(3), 24	§§125(3)–(5), 127	Violence must connect to relief; orders subject to statutory conditions

by Ankur R. Upadhyay

Test	HMA §24	HMA §25	HAMA §18	CrPC §125	DV Act §§19–20
Relevant timetable	60-day endeavour from notice	No identical 60-day proviso	No matching §18 proviso	Interim 60-day endeavour from notice	First hearing ordinarily within 3 days; disposal endeavour 60 days from first hearing
Changing order	Appropriate court during proceeding	§25(2)–(3)	§25 HAMA	§127	§25(2) DV Act
Important enforcement hook	§28A HMA	§28A HMA	Civil decree machinery	§§125(3), 128	§20(6); breach of protection order separately under §31

12.2 Relationship disputes: the correct sequence

A prior marriage or disputed live-in relationship is alleged

Valid subsisting marriage?

Consider HAMA §18, CrPC §125, DV relief on its own facts, and HMA §§24–26 in the proper proceeding.

Purported marriage + deception?

Prove concealment and good-faith entry; apply *Badshah* to §125. Separately assess HMA decree/interim relief and DV eligibility.

Marriage-like cohabitation?

Apply *Velusamy*'s public presentation, age, capacity, sustained cohabitation and shared-household inquiry. Do not assume every live-in qualifies.

At every branch: hear persons whose status is affected; assess a child's independent rights; do not turn remedial support into a general declaration of marital validity.

12.3 How the four cases fit together

Case	The strongest exam use	What it does not prove
Amar Kanta Sen	Separate past guilt, later conduct, need and earnings; accurately report limited historical section 25 relief	Every claimant gets only bare starvation support today
Velusamy	Marriage-like relationship criteria; first wife's hearing; evidence and remand	Every live-in partner wins, or this claimant finally lost every remedy
Badshah	Deceived woman's section 125 protection; purposive construction; no profit from own wrong	All bigamous marriages become valid; knowing and deceived relationships are identical
Padmja Sharma	Child support under section 26; both parents liable under HAMA section 20; proportionate contribution	Wife's personal section 24 award; automatic 50:50 split; universally cumulative recovery

12.4 Concurrent remedies: Rajnesh's three controlling directions

The Supreme Court in **Rajnesh v. Neha**, (2021) 2 SCC 324, judgment dated **4 November 2020**, addressed overlapping maintenance proceedings. Its final directions require:

1. **Adjustment / set-off:** where successive maintenance claims are made under different statutes, the later court must consider adjustment or set-off of the amount awarded in earlier proceedings when determining whether a **further amount** is payable.
2. **Mandatory disclosure:** the applicant must disclose earlier proceedings and the orders passed in them in the subsequent proceeding.
3. **Modification in the original proceeding:** if an earlier order needs modification or variation, that must be sought **in that proceeding**.

Both parties must file the prescribed **affidavits of disclosure of assets and liabilities**, as applicable, in maintenance proceedings, including pending cases. The object is informed adjudication rather than repeated claims based on inconsistent financial versions.

Neither extreme is correct: "a section 125 order bars all further DV/HMA proceedings" is too broad; "every separate order can simply be added without disclosure or adjustment" is also wrong.

12.5 Worked overlap illustration—no mechanical double recovery

Illustration, not a court holding. A wife already has ₹12,000 monthly maintenance under one statute. In a later competent proceeding, the court assesses the same recurring support need at ₹18,000 after considering the parties' circumstances.

It must consider the existing ₹12,000 order and payment position when determining **additional** liability; it should not blindly create an undisclosed ₹30,000 total for the same ₹18,000 assessed need. An illustrative further liability may be ₹6,000, **if** that is what the findings and orders justify. The numbers illustrate adjustment, not a rule dictating the outcome in every case.

If she also proves a distinct medical loss caused by violence or entitlement to compensation for injury, the court must identify the **separate head** before deciding whether it overlaps. Rent or school fees may already be included in a maintenance award; do not automatically add them twice or automatically exclude them without examining the order.

12.6 Quantum: a reasoned budget, not a slogan

Rajnesh rejects a straitjacket formula. Relevant considerations include the parties' status, reasonable needs, dependent children, actual income and assets, professional qualifications, employment history and sacrifices for caregiving, age, health, legitimate liabilities, the payer's reasonable needs and other legally supported dependants, and the accustomed standard of living. The amount should not be so extravagant as to be oppressive or so small as to leave the claimant in penury.

The applicant's wealthy parents are not a substitute for the respondent's statutory obligation. Equally, the applicant's own resources cannot be hidden. **Maintenance is not punishment**, even where the facts disclose serious marital misconduct. The statutory gateway and the quantum assessment remain distinct.

Evidence block	Useful material	Analytical caution
Relationship	Marriage records, ceremonies, cohabitation evidence, prior decrees, identity and birth records	Different proceedings have different issues and proof requirements; do not equate a maintenance finding with a criminal bigamy conviction
Income / assets	Salary slips, bank statements, tax records, business accounts, rent and investment records	Gross earnings, deductions, actual available income and concealment allegations must be separately evaluated
Needs	Household budget, rent, schooling, transport, medical records, disability-related expenditure	Avoid both unsupported inflated totals and artificial starvation-level assumptions
Separation / abuse	Specific incidents, messages, medical documentation, witnesses, contemporaneous complaints	An allegation is not a finding; identify the clause it supports and the respondent's connection
Existing reliefs	Applications, interim/final orders, payment ledger, arrears, separate compensation heads	Disclose the proceedings as well as payments; examine overlapping purposes and periods
Changed circumstances	Updated income and expense evidence with dates	Seek variation through the appropriate proceeding; do not unilaterally rewrite an order

12.7 The twelve-question problem-solving checklist

1. Which relationship is established, and which is merely asserted?
2. Is a prior marriage alleged? Who must be heard about it?
3. Was the woman deceived, or did she know of the impediment?
4. Which statutory route has a proper proceeding / decree / relationship gateway?
5. Which financial-inability requirement applies?
6. Is neglect, refusal, justified separate residence or domestic violence required and proved?
7. Does the respondent establish an actual statutory disqualification?
8. Are children claiming independently, and what are their ages / special conditions?
9. What interim relief and litigation expenses are legally available?
10. What amount is reasoned by the evidence, rather than a memorised percentage?
11. What existing orders and payments require disclosure and adjustment?
12. What is the correct conclusion, forum, commencement, variation and enforcement route?

12.8 A compact drafting pattern

Use **Issue → Statutory rule → Authority → Application → Qualified conclusion**. For a multi-remedy problem, repeat the application separately for each statute rather than dump five sections and end with "she is entitled." State alternative outcomes if a disputed fact changes: for example, *if concealment is proved, Badshah is directly relevant; if knowledge of the first marriage is proved, that reasoning cannot be mechanically applied*. A qualified conclusion is stronger than unwarranted certainty.

DU LL.B. EXAMINATION ARCHIVE

Previous Year Questions — Unit 03: Maintenance under Hindu Law, CrPC/BNSS & PWDVA, 2005

Q.01 December 2008 · Q1(b) · Pendente lite and permanent maintenance

Discuss maintenance 'pendente lite' and permanent maintenance under Hindu Marriage Act, 1955.

- **Refer website for detailed notes — makelaweasy.in**

Q.02 May–June 2009 supplementary · Q8(ii) · Interim maintenance under Hindu law

Write short notes on any two of the following: … (ii) Provisions relating to interim maintenance under Hindu law.

Q.03 May–June 2009 supplementary · Q5 · Rashmi and Vikas: assault, safety and legal remedies

Rashmi, who was the daughter of a senior military officer married a software engineer, Vikas, in accordance with Hindu rites and ceremonies. Rashmi who was fond of pets wanted to keep a dog in the house while Vikas was against it and had told her this fact even before marriage. However after marriage, Rashmi brought two Alsatian dogs with her and insisted that they would be part of the household. An irritable Vikas entered into an argument with her, and when she mocked at his middle class status being the sole reason for his refusal to have dogs, the otherwise cool Vikas lost his temper and slapped Rashmi with full force. She staggered and fell against the wall resulting in a cut on her forehead and several bruises. Instead of being apologetic and helping her, Vikas left the home in disgust and spent the night with his friend. Rashmi approaches you for a legal remedy against Vikas, as she no longer feels secure with him. Advise her about her rights and prepare a case for her if necessary.

Q.04 June–July 2011 supplementary · Q1(iii) · Pendente-lite / interim support under HMA

Explain maintenances pendente lite or interim maintenances under Hindu Marriage Act, 1955.

Q.05 December 2011 · Q7(a) · Pendente-lite and permanent maintenance

Write short notes on any two of the following: (a) Maintenance 'Pendente lite' and permanent maintenance under Hindu Marriage Act 1955.

Q.06 Repository-labelled 2012 · Paper 3429 · Q4(i) · Hindu wife's separate residence and forfeiture

What are the grounds under which a Hindu wife can claim separate residence and maintenance from the husband? Can such right be forfeited under any situation?

Q.07 Repository-labelled 2012 · Paper 3429 · Q4(ii) · Sonam discovers Aashish's existing marriage

Aashish and Sonam were married in 2008 at Delhi. Three years later Sonam discovered that Aashish was already married to Shivani at the time of her marriage with him. Sonam wants your help to claim maintenance from Aashish. Discuss the provisions relating to maintenance and analyse whether Sonam can avail of any remedy.

Q.08 Repository-labelled 2012 · Paper 3429 · Q5 · Pran and Radha: non-payment after judicial separation

Pran Singh and Radha married each other in 1999 and a son Kamal was born to them. Soon thereafter Pran started neglecting Radha and his child, refused to maintain them and maintained an adulterous relationship with Rosy, an office colleague of his. Radha secured a decree of judicial separation on grounds of Pran's adultery. Pran discontinued the adulterous conduct for a year, but did not maintain Radha. A year later he claimed divorce on the ground that since there was no resumption of cohabitation between him and Radha for a period of one year, he is entitled to get a decree of divorce. Would he be successful? Discuss.

Q.09 Repository-labelled 2014 · Paper 7854 · Q8(iii) · Legal provisions for a Hindu wife's maintenance

Answer any two of the following: … (iii) Legal provisions relating to maintenance to a Hindu Wife.

Q.10 December 2015 · Paper 2455 · Q2 · Jaishree: cruelty, separate residence and restitution

Rakesh and Jaishree fell in love and decided to marry. Jaishree, a South Indian girl learned Hindi language also and both lived happily for about one year in a rented accommodation in Delhi. On the persuasion of Rakesh's parents this couple shifted with them and were later blessed with a son. One day Jaishree along with her son left the matrimonial home and claimed separate residence and maintenance on the ground that she was subjected to cruel treatment on one or the other flimsy pretext. The in-laws also suspected her fidelity and taunted for her dark complexion. However, Rakesh files a petition against her claiming restitution of conjugal rights. Prepare a case for her.

by Ankur R. Upadhyay

LAW CRUX · PAPER LB-105 · UNIT 04 Hindu Adoptions & Maintenance Act, 1956 (Ss. 5–17) · JJ Act, 2015 (Ss. 56–68) · CARA Regulations, 2017 · 4 Prescribed DU Cases

Adoption under Hindu Law (HAMA, 1956), JJ Act & CARA Regulations

Requisites of Valid Adoption (Ss. 5–6), Capacity of Male & Female Hindus (Ss. 7–8, 2010 Parity), Who May Give & Be Adopted (Ss. 9–10), Other Conditions (S. 11), Legal Effects (S. 12: Severance & Vesting), Secular JJ Act Adoption & CARA, 2017

CHAPTER 01·FOUNDATIONS

Adoption, status & the legal routes

Build the conceptual map: family status, welfare, chronology and the difference between HAMA and the secular route.

1.1 Adoption creates status, not merely an arrangement for care

Adoption is a legally recognised creation of a parent–child relationship. It is not established merely because an adult feeds a child, pays school fees, calls the child a son or daughter, nominates the child in a document, or allows the child to live in the household. Those facts may be evidence of care or intention, but the applicable adoption law determines whether legal parenthood has actually been created.

Under **HAMA section 12**, a validly adopted child is deemed the child of the adoptive father or mother for all purposes from the date of adoption, subject to the section's three express provisos. Under **JJ Act 2015 section 2(2)** and **section 63**, the adoption process and order create the lawful parent–child relationship, including consequences for intestacy, while preserving property already vested in the child subject to its obligations. These are legal consequences, not just affectionate descriptions.

Arrangement	What it ordinarily does	What it does not establish by itself
Adoption	Creates the statutory parent–child status and its rights, duties and family consequences	An exemption from eligibility, consent or safeguarding requirements
Guardianship	Gives responsibility or authority for the person/ property of a child under the governing law and order	Automatic permanent adoptive filiation or every inheritance consequence of adoption
Foster care	Places a child in a family-care arrangement under the relevant framework	A completed adoption simply because the child lives with that family
Pre-adoption foster care	Gives temporary custody during the regulated process, pending the adoption order	The final legal order; the Regulations distinguish disruption before completion from dissolution after an order
Sponsorship	Supports a child's care and development through assistance	Transfer of parental status merely through financial support
Kafala, as discussed in Shabnam	A system of care/support in which the child's biological descent is retained	The same legal consequences as full statutory adoption under the JJ route

Payal supplies a concrete illustration: the petitioners had already been appointed guardians, yet sought a further declaration as adoptive parents with the full consequences under law. Guardianship neither automatically accomplished the adoption nor destroyed their eligibility to seek it.

1.2 The historical movement: from lineage to a child's family life

The DU discussion in **Brajendra** surveys the religious and secular dimensions of Hindu adoption. Historically, continuation of the male line, performance of ancestral rites and the spiritual significance of a son supplied important explanations. Property succession was also profoundly affected. The judgment quotes earlier authorities on those themes and recognises that courts ultimately have to examine the exercise of a legal right, not conduct an unrestricted inquiry into the adopter's private motive.

That historical account must not be converted into present statutory exclusions. HAMA expressly permits adoption of **sons and daughters**; it gives qualifying women adoption capacity; and its amended provisions allow a married woman to adopt with the required consent. Statements in a historical survey about a woman's supposed lack of spiritual needs are not a modern legal test of her worth or eligibility. Nor does the statute require a prospective adopter to prove that the predominant purpose is the performance of funeral rites.

The JJ route adopts a different organising perspective. It concerns the **right to family, care, rehabilitation and social reintegration** of eligible children, while regulating prospective parents, agencies and authorities. Payal emphasises that abandonment and destitution cut across religious identities. Shabnam confirms that an optional secular statute is available irrespective of personal religious affiliation. The two routes coexist; they are not two interchangeable checklists that may be mixed at will.

by Ankur R. Upadhyay

1.3 A chronology that prevents wrong answers

Date / legal stage	Development relevant to this unit	Exam consequence
21 December 1956	HAMA enacted to amend and codify Hindu adoption and maintenance law	Post-commencement HAMA adoptions must satisfy the statutory chapter; pre-Act adoptions are separately saved by section 30
1962 amendments	Relevant provisions recognise abandoned/unknown-parentage children and the guardian route in the form reflected in the uploaded Act	Do not assume that only a known biological parent can ever give a child in adoption
1970 adoption in Brajendra	Mishri Bai purported to adopt while her marriage subsisted	Old section 8(c), not today's substituted section 8, controls that factual transaction
JJ Act 2000; 2006 amendment	Secular rehabilitation/adoption framework; express adoption definition and expanded statutory machinery discussed in the prescribed cases	Payal and Shabnam must first be explained through the legislation they actually considered
31 August 2010	HAMA section 8 substituted; section 9 revised to confer equal giving rights on father and mother subject to the statutory conditions	Husband's consent becomes a route to a married woman's own adoption; do not quote the former absolute incapacity as current law
19 February 2014	Shabnam Hashmi decided	Secular statutory adoption recognised as optional; no general fundamental-right declaration granted
JJ Act 2015	New adoption chapter, sections 56–73, and explicit safeguarding structure	This is the parent Act of the 2017 Regulations; section numbers differ from the old Act
16 January 2017	Adoption Regulations 2017 came into force	Syllabus-era procedural and eligibility framework in this guide
2021 amendment / 2022 framework	Adoption-order functions shifted to the District Magistrate; 2022 Regulations superseded 2017 subject to savings	A separate later-law note, not an alteration of historical holdings

1.4 The two-route decision tree

What legal adoption is being asserted or sought?

HAMA route

Test application of HAMA; capacity and right of adopter; authorised giver; eligible adoptee; every section 11 condition. A guardian's adoption requires previous court permission under section 9.

JJ / CARA route

Identify the eligible child category; follow the applicable child-status inquiry, parent assessment, consent, agency/authority procedure and adoption-order requirements.

Only custody or care?

A guardianship, fostering or financial-support arrangement is not automatically adoption. Determine whether the legally required adoption process has actually occurred.

Before the conclusion Check the date, religion where relevant, marital status, existing children, ages, consent and whether the case is domestic, international, relative or step-parent adoption.
The secular route is **not restricted to non-Hindus**. A Hindu may use it if its conditions are met. Conversely, HAMA does not become available to a Christian prospective adopter merely because the child is in a Hindu institution. The legal status of the adopter and child must be examined separately. This distinction is tested directly in the recovered 2008 paper.

1.5 Best interests: a controlling consideration, not a waiver machine

The child's welfare is express in the guardian-giving procedure under HAMA section 9(5), in JJ adoption-order scrutiny under section 61, and in CARA regulation 3. It requires attention to stable care, safety, identity, health, consent, relationships and the child's development. It is not synonymous with the wealth of the proposed household.

Equally, welfare cannot be invoked as a licence to buy a child, bypass the search for missing parents, treat poverty as automatic surrender, ignore a competent person's consent, or fabricate a legal-free certificate. The carefully regulated process protects both the child and the integrity of the resulting family relationship. **A lawful route must be used to achieve a beneficial outcome.**

Brajendra illustrates the limits of sympathetic adjudication under the old capacity rule. Payal illustrates a welfare-oriented interpretation of an available statutory route. They are not contradictory propositions that “welfare is irrelevant” in one case and “anything is permissible” in the other.

1.6 Four different meanings of consent

1. **Consent of the adopter's spouse** concerns taking a child into the family: HAMA sections 7–8; JJ section 57(2); CARA regulation 5.

by Ankur R. Upadhyay

2. **Consent or authority on the giving side** concerns lawful relinquishment or giving of the child: HAMA section 9; JJ surrender/ relative provisions and relevant CARA forms.
3. **The child's wishes or consent** concerns participation: HAMA guardian permission considers age and understanding; JJ/CARA imposes its own child-participation safeguards, including express age-five consent in relative and step-parent forms.
4. **International receiving-country approval** concerns the cross-border process. It is not a substitute for any of the first three.

A spouse's signature cannot cure the absence of the giver's authority. A mother's consent cannot remove an adopter's living-son bar under HAMA. A child's willingness cannot dispense with legally-free status in an ordinary JJ placement. Keep these questions distinct throughout your answer.

1.7 The recommended problem-answer method

Use **Route → Date → Status → Capacity → Consent → Conditions → Procedure → Effects → Qualified conclusion**. If a material fact is missing, identify it and give the alternative outcomes. An answer that says “valid, provided every requirement is fulfilled” without applying the stated ages, relationships or existing children is incomplete. An answer that confidently invents an unstated consent or custom is worse.

The model answers demonstrate how to be decisive about established facts while remaining conditional about facts the examiner has not supplied.

CHAPTER 05·STATUTORY EXPOSITION · §10

Who may be adopted?

Hindu status, no previous adoption, marriage and age exceptions, custom and child participation.

5.1 Section 10: four cumulative requirements

No person can be taken in adoption under HAMA unless the section 10 conditions are met. The conditions concern the **person adopted**; they are separate from the adopting adult's mental capacity, age and marital consent.

Clause	Ordinary rule	Express qualification
10(i)	The person is a **Hindu**, understood through section 2	Apply the statutory inclusion and upbringing rules; do not replace them with assumptions based on an institution's name
10(ii)	The person has **not already been adopted**	An earlier merely purported void transaction must be distinguished from a valid existing adoption
10(iii)	The person has **not been married**	A custom or usage applicable to the parties may permit adoption of married persons
10(iv)	The person has **not completed fifteen years**	A custom or usage applicable to the parties may permit adoption after completing fifteen

All four are necessary. Proving a valid custom about age does not automatically prove a custom about marriage; both exceptions must be addressed if both restrictions arise.

5.2 Religion: test statutory status, not a label on a building

HAMA eligibility requires the child to fall within the Act's conception of Hindu identity. The Explanation to section 2 includes specified children of Hindu/Buddhist/Jaina/Sikh parents, certain mixed-parentage children brought up in the relevant community, and abandoned or unknown-parentage children brought up in a specified religion.

Illustration—not a recovered PYQ: a baby of unknown parentage is being brought up as Hindu in an institution. The Explanation may bring the child within HAMA. It does not establish that every prospective adopter, including a Christian applicant, can use HAMA. It also does not establish that the institution's manager can give the child without satisfying section 9.

For an orphan, abandoned or surrendered child in the regulated child-care system, the JJ/CARA safeguarding framework must be considered; the mere selection of a religious label must not become a way to bypass mandatory protection, lawful sourcing and authorisation.

5.3 A person already adopted cannot be offered for another HAMA adoption

Section 10(ii) prevents successive adoption of the same person after a valid adoption. Section 9 excludes adoptive parents from the parental giving power, and section 15 prohibits cancelling a valid adoption. These provisions reinforce one another.

The later birth of a biological son does not destroy the first adopted son's status. Nor does an adoptive father's subsequent marriage confer a power on the new wife to demand that the child be “returned” or adopted away. Those are directly tested variations in the recovered 2008 and 2010 papers.

This does not mean that every allegation of a previous adoption must be accepted. If that earlier transaction was void under section 5, the claimed legal status did not arise. Its invalidity, however, must be established; a party cannot call a valid adoption void merely because it has become inconvenient.

by Ankur R. Upadhyay

5.4 "Has not been married" is not the same as "currently unmarried"

Section 10(iii) is worded in terms of a person who **has not been married**. A child widow has been married. The husband's death does not turn the child's personal history into one in which no marriage ever occurred.

Accordingly, in the recovered **Chand–Kalu** question, the fact that Chand is only eleven meets the ordinary age ceiling but does not dispose of her eligibility. Her status as a **child widow** engages the marriage restriction. The relevant exception is a legally established custom or usage applicable to the parties permitting such adoption.

Do not answer solely by condemning the earlier child marriage or assuming its precise legal validity has already been adjudicated. The paper describes a child widow and asks about adoption. Identify the section 10(iii) issue on those facts, while avoiding unnecessary assumptions about a separate matrimonial proceeding.

5.5 The fifteen-year rule: the birthday matters

The ordinary rule is **not completed fifteen**, not "under eighteen" and not "fifteen or younger". A person who has completed fifteen has crossed the ordinary threshold. A fourteen-year-old may satisfy this requirement, but a seventeen-year-old needs the custom exception.

The adopter's majority at eighteen and the CARA framework's treatment of children below eighteen are separate questions. Mixing the figures produces the wrong answer in a straightforward HAMA problem.

18
Adopting adult: not a minor under HAMA sections 3(c), 7–8.

Under 15
Ordinary HAMA adoptee threshold under section 10(iv).

21
Minimum difference in the two cross-sex HAMA situations under section 11(iii)–(iv).

No fixed upper adopter age is stated in sections 7–8. That does not mean an older adopter automatically succeeds: the remaining requirements still matter. Equally, do not import CARA's composite-age ceilings into HAMA without identifying why the secular route rather than HAMA governs.

5.6 Proving the custom exception

A complete answer must establish:

1. **the content of the alleged rule**—does it permit this age, this marital status, or both?
2. **its application to the parties**—a custom of an unrelated community is not enough;
3. **long, continuous and uniform observance with force of law**;
4. **certainty and consistency with reasonableness/public policy**;
5. for a family custom, **absence of discontinuance**.

The examiner may provide an established custom as a fact. If so, apply it. If the problem merely says a seventeen-year-old was adopted, do not invent the missing custom. The correct answer is that the ordinary rule is not met and validity would require proof of the statutory exception, along with all other conditions.

5.7 Disability and birth outside marriage are not added section 10 exclusions

Section 10 does not list disability or birth outside marriage as a general incapacity to be adopted. The adopter's requirement of sound mind under sections 7–8 should not be mistakenly transferred to the adoptee.

This matters in the **Kartik** problem: his mental disability does not itself supply a HAMA section 10 bar. The question also states that Suraj has a son from his lawful marriage, which raises a different and decisive **section 11(i)** problem. An answer that concentrates exclusively on Kartik's disability misses the statutory structure.

Within the JJ/CARA route, a child's additional support needs are addressed through appropriate eligibility, medical information, preparation and care—not by treating the child as having lesser human worth. Disability also does not by itself establish that a child has been orphaned, abandoned, surrendered or otherwise made eligible for a particular adoption route.

5.8 The child's participation

Section 10's eligibility list should be read alongside other provisions addressing the child's wishes. Under HAMA section 9(5), the court deciding a guardian's application gives due consideration to the child's wishes according to age and understanding. The JJ Act and CARA Regulations contain their own participation safeguards; relative and step-parent procedures use express consent provisions for a child who has completed five.

Do not substitute a single invented universal rule such as "every child above seven must consent under HAMA" or "a child's wishes are legally irrelevant". State the relevant provision and its actual scope.

> **Section 10 recall**
> Hindu status · not already adopted · not previously married unless qualifying custom · not completed fifteen unless qualifying custom. After that, still apply the giver's authority and every section 11 condition.

by Ankur R. Upadhyay

CHAPTER 07·STATUTORY EXPOSITION · §§12-17

Effects, property, proof & finality

Every section 12 proviso, later spouses, irreversibility, registered-document evidence and prohibited payments.

7.1 Section 12: the starting rule

An adopted child is deemed to be the child of the adoptive father or mother **for all purposes with effect from the date of adoption**. From that date, ties in the family of birth are deemed severed and replaced by the ties created in the adoptive family.

Three cautions immediately follow. First, this presupposes a **valid adoption**; section 12 cannot validate a transaction which fails sections 5–11. Second, the operative date matters; the section is not an unrestricted power to reopen every prior succession. Third, the provisos expressly preserve specified consequences connected with the family of birth and pre-existing property.

7.2 Proviso (a): birth-family marriage restrictions survive

The child cannot marry a person whom the child could not have married had the child continued in the family of birth. Adoption therefore does not become a method of avoiding birth-family prohibitions by asserting that every biological tie has been erased.

The adoptive family relationship must also be considered under the applicable marriage law. For an exam answer, distinguish the section 12(a) preservation of birth-family restrictions from the separate rules that attach to adoptive relationships. Do not claim that severance of family ties creates permission to marry anyone in the biological family.

7.3 Proviso (b): property already vested in the child stays with the child

Property vested in the child **before adoption** continues to vest in the child, subject to obligations attached to its ownership, including an obligation to maintain relatives in the family of birth.

This is a specific qualification to the general change of family ties. Distinguish:

- **an already vested property right**, which is preserved subject to its burdens;
- **a mere expectation of a future inheritance**, which is not the same thing;
- **a continuing obligation attached to that property**, which does not disappear merely through adoption.

Illustration—not a PYQ: a child already owns a property subject to an obligation to maintain a birth-family relative. Valid adoption does not confiscate the property, but it also does not automatically remove the burden. An answer stating that the child must surrender every asset to the adoptive family is inconsistent with the proviso.

7.4 Proviso (c): other persons' vested estates are not divested

An adopted child shall not divest any person of an estate which vested in that person **before adoption**. This provision protects an earlier vesting from being undone simply by the later creation of adoptive status.

Do not collapse provisos (b) and (c):

Provision	Whose pre-existing position is protected?	Core point
12(b)	The adopted child's own vested property	It stays with the child, with attached obligations
12(c)	Another person's already vested estate	Later adoption does not divest that estate

The old doctrinal discussion of "relation back" should therefore never be used to defeat the present express non-divestiture provision. For a property problem, establish the nature and date of vesting and the relevant succession rule; do not assume that the adoption declaration automatically transfers the entire family estate.

7.5 Adoption changes kinship; it does not itself distribute every asset

Adoption supplies a legally relevant family status from which rights and duties can follow under the applicable law. It is not itself a gift deed, partition decree, testamentary disposition or universal answer to every succession dispute.

Brajendra demonstrates the distinction. The Court did not treat the invalid adoption as erasing the separate will in the appellant's favour. It noted that property given by the will was to be retained, while the other land involved in the ceiling controversy remained contentious. Conversely, a will referring to someone as an adopted son could not create capacity under old section 8(c).

In a problem, identify the **source of the claimed right**: valid adoption and the applicable succession rule; a will; a transfer; or a claim concerning land-ceiling treatment. Do not combine them without analysis.

7.6 Section 13: adoptive parents retain disposal powers

Subject to an agreement to the contrary, adoption does not deprive the adoptive father or mother of power to dispose of property by **transfer inter vivos** or **will**.

The qualification "subject to any agreement to the contrary" must be mentioned. The section means that adoption alone does not make the parent's disposable property untouchable. It does not give the parent a larger proprietary power than the parent otherwise possesses under the law governing that property. Thus distinguish the section 13 proposition from questions about the nature of an interest, powers over joint property, or the validity of the particular transfer.

Exam contrast: "The child has become a lawful child" is not equivalent to "every property of the parent immediately belongs to the child".

7.7 Section 14: adoptive and step-parent relationships

The four subsections give specific rules:

1. Where a Hindu with a wife living adopts a child, **she is deemed the adoptive mother**.
2. Where adoption is made with the consent of more than one wife, the **seniormost in marriage** is the adoptive mother; the others are **stepmothers**. Seniority means seniority in marriage, not age.
3. Where a **widower or bachelor** adopts, a wife subsequently married by him is the child's **stepmother**.
4. Where a **widow or unmarried woman** adopts, a husband subsequently married by her is the child's **stepfather**.

These provisions explain why a later marriage does not automatically make the new spouse an adoptive parent. They also show why the particular timing in the Bhishma–Veera–Ambika question matters. If Bhishma adopted Veera as a bachelor and later married Ambika, section 14(3) makes Ambika a **stepmother**, not an adoptive mother merely because she has joined the family.

7.8 Section 15: a valid adoption cannot be cancelled

No valid adoption can be cancelled by the adoptive father or mother **or any other person**. The adopted child cannot renounce the status and return to the family of birth in the legal sense contemplated by the section.

This is a rule of legal status and permanence. It is not a direction that a child must remain in an unsafe household without protection, nor that courts lack powers under other child-protection laws. Physical residence, custody, safety intervention and legal cancellation are different questions.

Common invalid reasons for purported cancellation include:

- later birth of a biological child;
- changed financial expectations;
- objection by a subsequently married spouse;
- disappointment with the child's behaviour;
- a mutual document simply announcing cancellation of an otherwise valid HAMA adoption.

A declaration that the original transaction was **void** is different: section 15 protects valid adoption, not a transaction lacking essential conditions. Likewise, the JJ/CARA mechanism for disruption or legally ordered dissolution must be discussed under that separate regime rather than silently treated as an amendment to HAMA section 15.

7.9 Section 16: a mandatory but rebuttable evidentiary presumption

When a document:

1. is **registered under a law in force**;
2. is produced before a court;
3. purports to record an adoption made; and
4. is signed by the **person giving** and the **person taking** the child,

the court **shall presume** compliance with the Act **unless and until disproved**.

"Shall presume" is stronger than a statement that the court may casually consider the document, but the final words make the presumption **rebuttable**, not conclusive. A proved breach of capacity, consent, age or another mandatory condition cannot be made immune from scrutiny simply by registration.

Under the central provision, a registered document is not stated to be the only imaginable way of proving every adoption. Do not create a universal national requirement of a registered deed where the statutory rule instead describes a presumption. The giving/taking requirement remains substantive, and reliable evidence must establish the transaction when the presumption is unavailable or rebutted.

The Uttar Pradesh qualification in the uploaded Act

The uploaded bare Act separately prints **U.P. section 16(2)**. For an adoption made on or after **1 January 1977**, no court in Uttar Pradesh is to accept proof of giving and taking except the specified registered document, subject to its secondary-evidence proviso. This is a **state-specific evidentiary rule**, not the unqualified central position.

Its temporal limitation also matters: a 1970 adoption is not made subject to that post-1977 rule merely because litigation continues later. The later Budhi Ram judgment illustrates this distinction. Do not assume that this short note is an exhaustive audit of all state amendments; use the relevant jurisdiction's operative text where a problem expressly raises it.

7.10 Section 17: no payment or reward for adoption

Subsection (1) prohibits both sides of an adoption bargain: no person may receive or agree to receive a payment or reward in consideration of adoption, and no person may make, give or agree to make or give a payment or reward whose receipt is prohibited.

Subsection (2) provides punishment of **imprisonment up to six months, or fine, or both**. Subsection (3) requires **previous sanction of the State Government or an officer authorised by it** before prosecution under this section is instituted.

by Ankur R. Upadhyay

Do not confuse a private price for a child with a legally permissible, scrutinised expense or fee under the applicable process. HAMA section 9(5) addresses the court's scrutiny in guardian cases, while the JJ/CARA route has its own permitted-fee and anti-payment provisions. None authorises a private reward disguised as a donation in exchange for a child.

7.11 Maintenance follows duties as well as status

Section 20 binds a Hindu during his or her lifetime to maintain legitimate or illegitimate children and aged or infirm parents in the terms provided there. Read that provision with section 12's adoptive status and the definition of maintenance in section 3(b). A validly adopted child's place in the family is not exhausted by inheritance expectations: care, education, residence and medical needs are central.

This connection explains why maintenance can be relevant to an adopted child's legal position. It does **not** transform the separately prescribed Manju Sharma judgment into an adoption case: its actual facts concern maintenance of a wife and her biological daughter, and its reasoning must be reported accurately.

7.12 The effects map

VALIDITY FIRST Sections 5–11 satisfied; evidence assessed under section 16.
↓
STATUS FROM ADOPTION DATE Child of adoptive parent; birth ties replaced subject to section 12 provisos.
↓
PRESERVED EXCEPTIONS Birth-family marriage restrictions; child's vested property and burdens; others' vested estates.
↓
FAMILY CONSEQUENCES Section 14 relationships; rights and duties under applicable law; section 13 disposal power preserved.
↓
PERMANENCE No cancellation or renunciation of valid HAMA adoption under section 15.

CHAPTER 11·REGULATIONS 9–13

The domestic adoption pathway

Registration, home study, referral, matching, foster care, the 2017 court order and follow-up.

11.1 The 2017 domestic process in one view

REGISTER CARINGS application and required documents; State preference.
↓
ASSESS Counselling and Home Study Report; eligibility and suitability.
↓
REFER AND RESERVE Profiles through CARINGS; reserve one child within the applicable period.
↓
MATCH AND ACCEPT Adoption Committee, meeting with child, informed acceptance of CSR/MER.
↓
PRE-ADOPTION FOSTER CARE Temporary custody under the undertaking, not the completed adoption.
↓
COURT ORDER · 2017 SCHEME In-camera scrutiny and order; certified copy; birth certificate.
↓
FOLLOW UP Reports, support and appropriate response to adjustment difficulties.

The word **court** in this diagram is deliberate: it describes the syllabus's 2017 scheme. The later District Magistrate framework is separately labelled.

11.2 Regulation 9: registration and documents

An Indian prospective parent living in India may apply irrespective of religion for an eligible OAS child through CARINGS, using Schedule VI and uploading the required documents. The applicant selects the desired State or States; registration is treated as registration with the SAAs in those States.

Registration is completed and confirmed when the application and documents are received. Documents must be uploaded within **thirty days of registration**; otherwise fresh registration is required. The acknowledgement supplies the registration number for tracking progress.

A person unable to operate the system is not intended to be excluded merely by a technical difficulty: DCPU is tasked with facilitating registration, documents and agency technical issues. But assistance is not permission to submit invented income, identity or health information.

11.3 Home study: agency, substance and timing

The applicant selects an SAA nearest the residence in the State of habitual residence for the HSR. The agency's social worker undertakes it; where the agency cannot do so within the stipulated time, it uses the SARA/DCPU panel. Counselling occurs during the study.

HSR must be completed in **Schedule VII within thirty days from submission of the requisite documents**, shared with the prospective parents and uploaded once complete. It remains valid for **three years** and provides the basis for adoption from anywhere in the country.

by Ankur R. Upadhyay

The HSR is not simply proof of solvency. Its form examines adoption motivation and familiarity; family background; employment and finances; marital relationship where applicable; the extended family's attitude; plans for parenting; preparation/training; contingency care; and emotional/physical health. The social worker then undertakes factual and psycho-social assessment and gives the reasoned recommendation.

11.4 Eligibility/suitability decision and rejection

SAA decides eligibility and suitability from the HSR and supporting documents. If it rejects the applicant, reasons are recorded on CARINGS. A challenge lies to CARA under regulation 59; regulation 9(15) states a **fifteen-day disposal period** for the appeal referred to there.

Regulation 59 separately prescribes a **seven-day application period**, a **thirty-day decision period** and written communication within **three working days** for its general grievance framework. These overlapping formulations should be identified, not silently converted into one invented universal period. The regulations also make clear that adoption depends upon the availability of a suitable child after registration and HSR.

11.5 Regulation 10: referral and reservation

Domestic seniority is counted from the uploading of documents and completion of registration. CARINGS refers profiles of **three children**, in one or more referrals, including photographs, CSR and MER, within the applicant's preference category where applicable.

Applicants may reserve **one child within forty-eight hours** for possible adoption; the other profiles are released for other waiting applicants. Reservation is not itself a final adoption order, and it is not an unrestricted right to exclude other applicants indefinitely.

The use of reports and a regulated referral process is important: adoption is not organised as private bargaining over children, and the legal status and needs of the particular child remain central.

11.6 Matching and the Adoption Committee

SAA fixes an appointment and assesses suitability through the **Adoption Committee** defined in regulation 2(2). The committee's minutes use **Schedule XXVII**.

The ordinary quorum is **two members**; where adoption is from a CCI, it is **three**, and the presence of a DCPU official is mandatory. Do not confuse this committee with the CWC which determines legal availability or the court which makes the adoption order.

SAA organises a meeting between the prospective parents and child, provides counselling, and completes matching within **twenty days from reservation**. At acceptance, prospective parents sign the CSR and MER before the social worker/chief functionary, and acceptance is recorded on CARINGS. They may obtain a medical review of the MER by a practitioner of their choice before acceptance.

11.7 What happens if the match is not accepted?

Reasons must be recorded when applicants are not selected or decline the reserved child. Generally, where the applicants do not accept or the committee finds them unsuitable for that child, they move to the bottom of the seniority list as on that date and may receive a later opportunity when their turn returns.

But regulation 10(11) preserves seniority where rejection is due to **systemic error or non-justifiable grounds**. Do not write that every unsuccessful match necessarily causes an identical penalty regardless of reason. Registration continues until adoption, with HSR revalidation every three years.

11.8 Regulation 11: pre-adoption foster care

The prospective parents take the child into pre-adoption foster care within **ten days of matching**, after signing the **Schedule VIII undertaking**. Original or notarised copies of the specified documents are provided under Schedule IX.

The undertaking is a legal safeguard concerning custody and responsibilities during the process. It does not mean that the applicants can disregard a later adverse legal decision. Nor is the child a trial purchase that can be casually returned without the prescribed protection and reporting procedures.

11.9 Regulation 12: filing and jurisdiction

SAA files the adoption application in the competent court with jurisdiction over the agency's location, with the prescribed original documents, within **ten working days from matching**. The standard in-country model is **Schedule XXVIII**. In the international route the corresponding filing trigger is CARA's NOC, not domestic matching.

If the child is in a non-SAA CCI in another district, the special jurisdiction/co-petitioner arrangements apply: the CCI assists and is joined as co-petitioner. Siblings/twins are covered in **one application**. Since the proceeding is non-adversarial, SAA is not to create an artificial opposite party/respondent in the adoption application.

11.10 Judicial scrutiny and the order

The court proceeds **in camera**, aiming to dispose of the application within **two months of filing** under JJ section 61(2). It must undertake the welfare, child-wishes and anti-payment scrutiny prescribed by the Act.

The adoptive parents are not to be required in the order to execute a bond or make an investment in the child's name merely as an additional adoption condition; the HSR and documents have already addressed their financial and psycho-social position. This does not eliminate the parents' substantive responsibility to care for the child.

by Ankur R. Upadhyay

Registration of an adoption deed is **not mandatory under this JJ process**. Do not replace the adoption order with a private registered deed simply because HAMA section 16 is familiar from another part of the course. SAA files its prescribed supporting affidavit, obtains the certified order, forwards it within **ten days**, and uploads the order and relevant entries.

11.11 Birth certificate

SAA applies for the birth certificate within **three working days from issuance of the adoption order**. The certificate records the adoptive parents as parents and the date of birth recorded in the order. The issuing authority is to issue it within **five working days from receipt of the application**.

This is a documentation consequence, not the legal event that substitutes for the adoption order. Do not invent a different birth date to conceal adoption or to fit eligibility criteria. The actual order governs the relevant particulars.

11.12 Regulation 13: domestic post-adoption follow-up

The SAA which prepared the HSR prepares follow-up reports **every six months for two years from the pre-adoption foster placement**, using Schedule XII and uploading photographs and reports. If the family relocates, it informs that agency and the DCPU of the new district; the new DCPU undertakes the required reporting.

Counselling must be arranged or linked through the relevant counselling centres where needed, including adjustment difficulties. Follow-up is a support and safeguarding function, not an assumption that adoption is complete only when every follow-up report has been filed. The order and its legal effects must be distinguished from subsequent supervision.

11.13 Disruption and dissolution

Before the order: if disruption occurs before filing, SAA takes the child back with DCPU informed. If the petition has already been filed, the child is taken back and the application withdrawn with intimation. Where the child has moved to another State, the SARAs coordinate repatriation.

After the order: for dissolution, an annulment application is made to the court which issued the adoption order. The legal step is not accomplished by a unilateral parent–agency agreement. After the prescribed disruption/dissolution process, the child's legally-free status is updated on CARINGS.

These are the specific 2017 JJ/CARA processes. Do not recite them as if they create a general power to cancel a valid **HAMA** adoption notwithstanding section 15. The governing route remains fundamental.

11.14 The domestic timetable at a glance

Event	2017 period and trigger
Upload registration documents	30 days from registration
Complete HSR	30 days from submission of requisite documents
HSR validity	3 years
Reserve one referred child	48 hours
Complete matching	20 days from reservation
Take pre-adoption foster care	10 days from matching
File application	10 **working** days from matching
Dispose of adoption case	2 months from filing
Forward certified order	10 days under regulation 12(8)
Apply for birth certificate	3 **working** days from adoption order
Issue birth certificate	5 **working** days from application
Follow-up	Six-monthly for 2 years from foster placement

> **Memorise the event with the number.**
> Thirty days for documents is not thirty days for a court order. Forty-eight hours for reservation is not the twenty-day matching period. A two-year follow-up clock begins from foster placement domestically, while the overseas follow-up clock begins from arrival in the receiving country.

by Ankur R. Upadhyay

CHAPTER 13·REGULATIONS 51–57

Relative & step-parent adoption

Defined relationships, consent forms, custody litigation, family-background reports and the distinct NOC sequence.

13.1 Why these are separate pathways

Relative and step-parent adoption concern an identified child and an existing family relationship. They are not the same process as matching an unrelated OAS child through the general waiting list. But “within the family” does not mean “outside legal safeguards”. Consent, appropriate assessment, documents, CARINGS entry and the legal order remain central.

The relevant 2017 provisions are **regulations 51–57**, with regulations 4–5 and the dedicated schedules. The parent Act provisions include **sections 2(52), 56(2), 60 and 61**.

13.2 Relative means the statutory relationship

For JJ adoption, the child's relative is a **paternal uncle or aunt, maternal uncle or aunt, paternal grandparent or maternal grandparent**. It is not every extended family connection. The fact that the family trusts a cousin or close friend does not convert that person into a relative within section 2(52).

The identity of the relationship must be documented. That classification determines the applicable procedure and the age-criteria exception; it is not a harmless label chosen for convenience. A biological father is not brought into this list simply by saying he is “related” to his child. The separate question whether he can adopt his non-marital child under HAMA must be analysed under that Act.

13.3 Regulation 51: domestic relative adoption

The prospective parents register on CARINGS and follow regulation 55. The core requirements include:

1. **Biological parents' consent**, using **Schedule XIX**; or the relevant **CWC permission under Schedule XXII** in the qualifying guardian situation.
2. **The child's consent if aged five or above**.
3. Prospective parents' **financial/social-status affidavit in Schedule XXIV**.
4. Application to the competent court using **Schedule XXX**, with the relevant documents.

Schedule XIX explains the permanent legal relationship, records that consent is not induced by payment, includes the child's consent where applicable, identifies the biological and adoptive parents and the prior relationship, and provides for witnesses and identifying documents. Where a biological parent has died, the death certificate is relevant.

13.4 Guardian permission in the relative route

Schedule XXII provides the CWC permission for the guardian's consent where biological parents are not alive or not available in the specified manner. It should not be used as a device to omit a living parent's legally necessary consent without inquiry.

This is a **JJ/CARA** relative procedure. HAMA section 9(4)'s **previous court permission** is another provision in a different statute. Both protect the child, but their authorities, forms and statutory gateways must not be merged.

13.5 Regulation 52: step-parent adoption

The couple consisting of the step-parent and the child's biological parent registers with Schedule VI documents. The relevant consent is recorded in **Schedule XX**, following its instructions. The biological parent and step-parent apply in the **Family Court, District Court or City Civil Court**, as applicable, using **Schedule XXXII**.

After the order, a certified copy is obtained and furnished online through CARINGS. A new marriage, change of surname, school admission or residence in the step-parent's home is not itself completion of this adoption process.

13.6 The Schedule XX safeguards in detail

The form includes:

- identification and consent of the biological parent(s);
- acknowledgment of the intended permanent legal relationship with the adopting biological parent and step-parent;
- assurance of free consent without payment or compensation;
- **consent of the child who has completed five**, before CWC, countersigned as provided;
- the step-parent's and biological parent's own consent and acknowledgment of duties;
- witnesses with identifying proof;
- relevant photographs and death certificate if applicable;
- separate consent forms where spouses surrender children from their respective earlier marriages;
- CWC certification identifying the child as legally free **for the specified step-parent and biological-parent adoption**, with three members' signatures.

The 2017 form expressly reminds applicants of **two years of stable marital relations** under regulation 5(3). Its presence is strong reason not to insert the later 2022 exception into this older framework.

by Ankur R. Upadhyay

13.7 Custody litigation must be resolved first

Regulation 52(3) provides that where custody of the child is under litigation, the adoption process begins **only after finalisation of that case by the concerned court**.

This prevents a pending custody dispute from being pre-empted by an adoption process which permanently alters family status. A person having present physical custody is not therefore automatically entitled to obtain step-parent adoption while bypassing an unresolved judicial dispute.

An exam answer should distinguish **custody**, **biological parentage**, **consent** and **adoption**. They may be connected, but none is simply a synonym for the other.

13.8 Regulation 53: overseas relative applications

An **NRI or OCI** wishing to adopt a relative's child approaches the AFAA or receiving-country Central Authority for HSR and CARINGS registration. If the specified agency/authority is unavailable, the relevant government department or, for Indian citizens, Indian diplomatic mission is used.

The home study is completed and the application uploaded with Schedule VI documents. The regulation also reiterates the consequence of taking or sending a child abroad or arranging the transfer of care/custody without the required valid order. Family relationship does not exempt the transfer from legal scrutiny.

13.9 Regulation 54: family background and prior approval

After receiving the documents, CARA sends the matter to DCPU for a **family-background report**, using **Schedule XXI**. A social worker conducts it, with the prescribed fee where applicable. The report concerns the child and biological family, not merely the prospective parents' income.

DCPU returns the report through CARA for the receiving-country channel. CARA supplies the report and a **pre-approval letter** under the relevant Hague Articles 15 and 16. The foreign agency/Central Authority arranges the Article 5/17 certificate. For the identified Indian-citizen cases in non-Hague countries, the Indian mission issues the recommendation contemplated by the regulation.

Pre-approval, receiving-country approval, adoption order and NOC are separate steps. Their sequence must be accurately stated.

13.10 Regulation 55: court, documents and venue

Type	Basis and main documents	Venue / form in the 2017 scheme
In-country relative	JJ section 56(2); relevant biological consent and Schedule VI documents	Competent Family/District/City Civil Court; Schedule XXX
Inter-country relative	JJ section 60(1), consent and prescribed dossier	Court of the district where child resides with biological parents/guardian; Schedule XXXI
Step-parent	Biological and step-parent application, Schedule XX consent, Schedule VI documents	Court in district where applicants reside, under the applicable court structure; Schedule XXXII

Before making the order, the court examines **section 61's welfare, child-wishes and payment requirements**, together with regulations 51–56 as applicable. Applicants obtain the certified order and supply it to DCPU for online submission to CARA.

13.11 Regulation 56: a different NOC trigger

In the relative pathway, CARA issues the NOC within **ten days after receipt of the adoption order forwarded by DCPU**, with communication to the foreign agency/Central Authority.

This must be read with **JJ section 60** and the placement of regulation 56 after the relative-adoption process. It differs from **regulation 16** for ordinary overseas OAS adoption, where NOC precedes court filing after acceptance and receiving-country approval.

Ordinary inter-country OAS
Acceptance + receiving-country approval → **NOC** → court application/order → travel documents and receipt.

Inter-country relative
Family-background process and prior approvals → **court order** → CARA NOC under the relative route → lawful receipt/travel.

Do not flatten these into one universal NOC sequence merely because the regulation's opening words are broad. The parent Act and specific procedural setting explain the distinction.

13.12 Regulation 57: Conformity Certificate

For a Hague-signatory receiving country, CARA issues the Article 23 Conformity Certificate within **three working days from availability of the adoption order on CARINGS**.

The printed regulation refers to **Schedule X**, but the actual form of the Conformity Certificate is **Schedule XI**, while Schedule X is the NOC form, as regulation 18(1) also confirms. Learn the functions and actual forms; do not let this cross-reference slip turn NOC and conformity into the same document.

13.13 Family-specific adoption does not mean absence of welfare

The specialised process recognises continuing family connections. JJ section 60(3), for example, requires the overseas relative adoptive parents to facilitate contact with biological parents and siblings from time to time. That does not mean the legal adoption has no effect; it means the statutory scheme accommodates a particular family context.

Likewise, the age-criteria exception does not cancel the need for a safe, suitable and voluntary placement. The child's consent at the specified age is not replaced by adults signing on the child's behalf merely because they believe the outcome is desirable.

Relative / step-parent checklist
Statutory relationship → right form and consents → child participation → resolved custody dispute where relevant → required assessment / approval → correct forum and order → NOC/conformity/travel requirements where applicable.

CHAPTER 11 · INSTITUTIONAL ARCHITECTURE & SAFEGUARDS

CARA Institutional Network & Regulatory Safeguards (Regulations 24–62)

Statutory & Institutional Summary: Under the Juvenile Justice (Care and Protection of Children) Act, 2015 (Ss. 56–68) read with the **Adoption Regulations, 2017**, the adoption ecosystem operates through a unified digital portal (**CARINGS**) supervised by the **Central Adoption Resource Authority (CARA)**. At the grassroots level, **Specialised Adoption Agencies (SAAs)** house, medically care for, and prepare the *Child Study Report (CSR)* and *Medical Examination Report (MER)*, while the **Child Welfare Committee (CWC)** declares an orphan, abandoned, or surrendered child *legally free for adoption* u/s 38 JJ Act (after a 60-day reconsideration window for surrendered children). **State Adoption Resource Agencies (SARAs)** and **District Child Protection Units (DCPUs)** oversee inspection, matching, home study reports (valid for 3 years), pre-adoption foster care, judicial adoption orders u/s 61 JJ Act (ensuring best interest, zero monetary consideration, and privacy), and two-year post-adoption follow-up.

CHAPTER 16·PRESCRIBED DU CASE STUDY

Case I · Brajendra Singh

Mishri Bai's marriage and 1970 adoption, both sides' submissions, old section 8 and the precise land-protection outcome.

DU CORE · CASE 01

Brajendra Singh v. State of M.P.

AIR 2008 SC 1058 · Supreme Court · Opinion by Arijit Pasayat J.
Core question: Can a woman who has lived apart from her husband almost throughout the marriage be treated as divorced for the purpose of the former section 8(c) of HAMA?

The syllabus spells the name **"Brijendra"**; the reproduced judgment is headed **"Brajendra Singh"**. This brief follows the uploaded DU judgment, printed pp.196–200 / PDF pp.204–208. The difference is identified rather than turned into two cases.

16.1 Material facts: a marriage, separation, care and land

In **1948**, Mishri Bai, a woman with a severe physical disability affecting her legs, was married to **Padam Singh**. The extract explains the village custom under which marriage of a girl was considered imperative. Evidence showed that Padam Singh left her soon after the marriage. She thereafter lived with her parents at **village Kolinja**.

Her parents gave her approximately **32 acres of agricultural land for maintenance**. In **1970**, she claimed to have adopted **Brajendra Singh**. Padam Singh was then alive; he died only in **1974**. The marriage had not been legally dissolved.

The adoption was not disputed in an abstract family-status proceeding alone. The **M.P. Ceiling on Agricultural Holdings Act, 1960** became important when the Sub-Divisional Officer, Vidisha issued notice that Mishri Bai's holding exceeded the permissible limit. Her response was that she and Brajendra, as her adopted son, formed a joint family and could retain **54 acres**. That was her legal contention in the ceiling dispute, not a general Supreme Court rule that every adopted family may retain that acreage.

The appellant had in fact cared for Mishri Bai. The Supreme Court acknowledged that he had treated and looked after her as his mother. The humane circumstances were real; the question remained whether they supplied the statutory capacity which the adoption required.

16.2 Procedural history and chronology

Date / stage	Event
1948	Marriage to Padam Singh; separation soon afterwards
1970	Claimed adoption of Brajendra
1974	Padam Singh died
27/28 December 1981, as recorded in the extract	Ceiling authority rejected the adoption claim; the DU narration mentions an order dated 27 December and a 28 December reference

Date / stage	Event
10 January 1982	Mishri Bai brought Civil Suit No. SA/82 seeking declaration of Brajendra as adopted son
19 July 1989	Registered will executed in Brajendra's favour, bequeathing her properties
8 November 1989	Mishri Bai died
3 September 1993	Trial court decreed the suit
First appeal	State's appeal dismissed; decree affirmed
Second Appeal No.482 of 1996	High Court accepted the statutory-capacity objection and held the adoption invalid
Supreme Court	Appeal dismissed with a limited six-month possession protection

The ceiling authority had referred, among other things, to the absence of the adoptive father's name in educational records. The trial and first appellate courts accepted adoption and relied also on the will's reference to it. The High Court addressed the legal incapacity under former section 8(c), drawing a distinction between a legally divorced woman and one who merely lived like a divorced woman.

16.3 Issues

1. Did the long separation and alleged non-consummation permit Mishri Bai to be treated as **unmarried or divorced** under the former section 8(c)?
2. Was adoption valid merely because the lower courts accepted that she had factually taken and cared for Brajendra as a son?
3. Was the High Court's legal approach undermined by the way the question concerning husband's consent had been framed?
4. Did **Jolly Das v. Tapan Ranjan Das**, invoked on the idea of a sham marriage, assist the appellant?
5. Could the compassionate circumstances justify a separate form of protection concerning the surplus land even if adoption was invalid?

The central issue was **capacity at the date of adoption**, not a judicial finding that physical disability made a person unfit to parent.

16.4 Appellant's recorded arguments

The appellant argued that the parties had lived separately almost from the marriage and that there had been **no consummation**. On that factual basis, the trial and first appellate courts were said to have been justified in treating Mishri Bai as no longer a married woman in substance.

He also objected that the legal question had proceeded as though the defect were failure to obtain the husband's consent. Under the **old section 8**, consent was not an independently sufficient route for an ordinary married woman; the statute specified the categories in which she could adopt. The appellant challenged how the issue had been framed and dealt with below, while also pointing out that invalidity had been raised and noticed at trial.

Reliance was placed on **Jolly Das (Smt.) alias Moulick v. Tapan Ranjan Das, (1994) 4 SCC 363**, to support a contention involving sham marriage. The essential appeal was to the reality of the relationship rather than its formal subsistence.

Finally, counsel made an **alternative equitable submission** concerning the land: surplus land vested in Government for allotment, and the State should consider allotting it to the appellant because he had cared for Mishri Bai. This was distinct from asking the Court to uphold the adoption itself.

16.5 Respondents' recorded argument

The respondents' answer was that Mishri Bai admittedly did not fall within any of the categories in **former section 8** permitting a married woman to adopt in her own right. Long separation did not create an additional statutory category. The asserted adoption therefore failed the mandatory capacity requirement.

This was not answered merely by evidence of affection, care, co-residence or a will. Those matters could not replace proof that the marriage had been dissolved, the husband was dead at adoption, or another listed statutory condition existed.

16.6 The governing law: former section 8(c), not substituted section 8

The Court set out the then-applicable section 8: sound mind; not a minor; and unmarried status, dissolved marriage, husband's death, final renunciation, cessation of Hindu religion or competent-court declaration of unsound mind.

A Hindu wife outside the specified categories could not adopt to herself during the subsisting marriage **even with her husband's consent** under that old formulation. By contrast, a male Hindu could adopt subject to his wife's consent under section 7. The Court expressly discussed that asymmetry.

The adoption date was **1970**, when Padam Singh was alive. His later death in 1974 did not give Mishri Bai the required widow status in 1970. The later 2010 statutory reform likewise is not the rule which governed that historical transaction.

16.7 Reasoning: a life "like divorce" is not a legal dissolution

The Court stressed that Mishri Bai had not sought a declaration that she was never married, that the marriage was sham, or that a divorce had occurred. The factual case was one of **long separation**. That is not the same legal condition as dissolution.

The distinction is both conceptual and statutory. A marriage may be profoundly unsatisfactory or exist only formally in ordinary life, but the court cannot simply add a new “lived like a divorced woman” category to the enumerated capacity rule. No qualifying dissolution or other exception was proved.

The lower courts' factual acceptance of adoption could not settle its legal validity. Section 6 requires capacity **and** right, and the chapter makes non-compliant adoption void. This is why the case should not be reduced to a dispute over one school record or the evidentiary strength of a will.

16.8 The judgment’s historical survey

The extract discusses the old religious basis of adoption, continuation of the male line, performance of obsequial rites, and the effect on succession. It refers to **V.T.S. Chandrasekhara Mudaliar**, **Hem Singh**, **Amarendra Man Singh** and **Kishori Lal**, among other material, to explain the historical institution and its significance.

Several passages concern **old Hindu law** and should not be copied as freestanding current HAMA rules. The statutory text, for example, permits daughters and qualifying women to adopt, and the present section 8 differs from the version applied in the case. The survey helps explain the doctrinal setting; it does not authorise ignoring codification or inserting historical exceptions into the amended Act.

The Court also recognised that religious and secular motives can coexist, and that judges examine adoption as exercise of a legal right rather than undertake an unlimited inquiry into spiritual motives. The decisive ratio nevertheless remained the former section 8 capacity requirement.

16.9 Treatment of Jolly Das

The Supreme Court distinguished **Jolly Das** as a decision on a different and peculiar factual background, without an enunciated principle applicable to this adoption dispute. The mere use of the phrase “sham marriage” could not substitute for the missing legal/ factual declaration in Mishri Bai's case.

An exam answer should therefore identify both the authority invoked and **why the Court found it inapplicable**, rather than list it as if it supported the appellant's final success.

16.10 Decision and precise relief

Appeal dismissed.

The claimed adoption was invalid under the applicable former section 8(c). The Court nevertheless allowed the appellant to remain in possession of the land for **six months**, giving time to move the State Government for an appropriate decision.

The Supreme Court **did not direct the State to allot the land**, did not guarantee favourable consideration, and expressly declined to express an opinion on acceptability of the request. That limited protection was not recognition of adoption or an award of title.

The Court separately observed that the property given by Mishri Bai's will was to be retained by the appellant, while the other portion of her land was the contentious part. The extract does not supply a basis for inventing a fresh acreage division. Maintain the distinction between testamentary entitlement, adoption status and the requested surplus-land allotment.

16.11 Principles and limits

Principle	Limit / qualification
Statutory adoption capacity must exist at the relevant date	Sympathy and genuine care do not alone create it
Long separation is not legal dissolution	Do not infer divorce from living apart
Factum and validity are distinct	A transaction can be factually asserted/accepted but legally void
A will and adoption are different sources of rights	A testamentary description does not cure incapacity
Limited possession protection is not title or adoption recognition	No compulsory State allotment was ordered
Historical statements require a version label	Post-2010 section 8 permits adoption by a married woman with the prescribed husband's consent

16.12 How to use the case in an exam

Use it for **female adoption capacity, formal marital status versus separation, the timing of statutory amendments and limits of equitable reasoning**. State the result accurately and immediately identify the 2010 change if discussing the present uploaded section 8.

> **Exam-ready ratio**
> Under the former section 8(c), a woman in a subsisting marriage outside the enumerated exceptions could not validly adopt in her own right merely because she had lived apart from her husband like a divorced woman. The 1970 adoption failed; the appeal was dismissed, with only limited possession protection to approach the State.

CHAPTER 17·PRESCRIBED DU CASE STUDY

Case II · Payal @ Sharinee

Surrender, guardianship, the same-daughter problem, harmonious construction and the actual adoption declaration.

DU CORE · CASE 02

In re Adoption of Payal @ Sharinee

Vinay Pathak and his wife Sonika Sahay Pathak · 2010 (1) Bom CR 434 · Bombay High Court · D.Y. Chandrachud J.
Core question: Can Hindu parents who already have a daughter adopt another daughter through the secular JJ Act 2000 route?

This brief is based on the complete DU extract, **printed pp.201–210 / PDF pp.209–218**. The header has an obvious spelling/OCR irregularity in Sharinee's name; the operative declaration identifies her as **Sharinee**. The case is studied under the **JJ Act 2000**, not retrospectively decided under the 2015 Act or 2017 Regulations.

17.1 Material facts

The petitioners were Hindus married on **29 June 2001**. Both were actors, although the second petitioner was on a sabbatical while looking after two young children. The first petitioner was born on **27 July 1967**, and the second on **19 January 1977**. Their biological daughter was born on **4 February 2003**.

The child at the centre of the petition was born on **12 November 2004**. Four days later, on **16 November**, her biological mother and the mother's spouse executed a declaration surrendering her at the nursing home. The judgment deliberately withholds the mother's identity to protect privacy; an academic brief should not attempt to supply it.

The declaration recorded counselling by a social worker at **Bal Vikas**, a Government-recognised placement agency, and voluntary surrender. A scrutiny officer of the **Indian Council for Social Welfare** endorsed that the parents had been counselled and the mother informed of a **two-month period to reclaim the child**. They did not return to claim her.

The managing trustee of Bal Vikas filed an affidavit on **13 April 2005**, certifying the circumstances and supporting placement under guardianship as in the child's interests.

17.2 Guardianship before the adoption petition

The petitioners sought guardianship under the **Guardians and Wards Act, 1890**. On **8 June 2005**, **A.M. Khanwilkar J.** appointed them guardians. The child then lived with them for **more than four years**.

They subsequently sought a declaration that they were the child's **adoptive parents**, with the legal rights, privileges and responsibilities of that status. They were not merely asking to continue a temporary visit arrangement.

The DU narration gives a guardianship petition number associated with “2001” while recording institution on 13 April 2005. This apparent numbering/date inconsistency is not silently “corrected” by inventing a different record. The substantive chronology—2004 birth/surrender, 2005 guardianship and over four years' care—is clear.

17.3 The legal obstacle

HAMA **section 11(ii)** prevents adoption of a daughter where the adopter already has a living Hindu daughter or son's daughter within the specified statutory relationship. These petitioners already had a biological daughter.

The **JJ Act 2000 section 41(6)(b)**, however, permitted parents to adopt a child of the same sex irrespective of the number of living biological sons or daughters within that statute's adoption framework. The question was how those parliamentary enactments should operate together when the child was surrendered and legally available.

The Court did not ask merely whether the petitioners were kind people or whether the family had enough money. It examined the **statutory route**, the child's class and the purpose of the legislation.

17.4 Issues

1. Could a Hindu couple with an existing daughter use the secular JJ Act to adopt a second daughter?
2. Did HAMA's application and overriding provisions exclude that route?
3. Were HAMA and JJ Act capable of **harmonious construction**, or did a conflict require an alternative rule of statutory priority?
4. In this setting, which enactment was **special** and which **general**?
5. Did the earlier guardianship order prevent later adoption?
6. Had the child and procedure satisfied the substantive safeguards needed for the final declaration?

17.5 Petitioners' position—and the limit of the argument record

The petitioners sought the fuller legal parent–child status, relying on the secular adoption framework available to the surrendered child and on her settled life in their family. Their long care and the child's welfare supported the requested declaration. Counsel **Vishal Kanade** is recorded and thanked for assistance.

The DU extract does not present a separate respondent delivering a conventional adversarial argument. It is therefore inaccurate to invent one. The “other side” of the legal analysis consists principally of the restrictive HAMA construction and the **three possible**

contrary submissions which the Court itself considers in paragraphs 28–33. Those objections are set out below as such, not falsely attributed to a named opposing party.

17.6 Constitutional and international setting

The Court refers to **Article 15(3)**, permitting special provisions for women and children; **Article 39(e)–(f)**, protecting childhood against abuse/exploitation and supporting healthy development in freedom and dignity; **Article 45**, early childhood care and education; **Article 47**, nutrition; and the educational responsibility under **Article 51A**.

It also discusses the **Convention on the Rights of the Child**: best interests in decisions concerning children; protection and alternative care for children deprived of a family environment; and safeguards in adoption. The point is that the child's welfare is a public legal concern which crosses religious identities.

These provisions form the interpretive setting; they are not a declaration that statutory eligibility and safeguarding can be dispensed with. The child's freedom and dignity motivate a construction which makes the available welfare legislation effective.

17.7 The JJ Act's specific mission

The Court traces the Act's rehabilitation and social-reintegration framework, including adoption, fostering, sponsorship and aftercare. Section 41 focuses adoption on **orphaned, abandoned or surrendered children** and contains the relevant safeguards concerning legal availability, parental reconsideration and the child's consent where able to express it.

The Court characterises the statute as **beneficent and remedial**. It relies on the interpretive approach in **Pratap Singh v. State of Jharkhand** and **Umesh Chandra v. State of Rajasthan**: such legislation should be construed meaningfully and so as to make it effective and operative.

The crucial focus is the **condition of the child**, not a religious classification of the adopting adults. A construction which allows non-Hindus to use the welfare provision but excludes Hindus solely because they have a same-gender child would obstruct that statutory mission.

17.8 Primary reasoning: harmonious construction

HAMA supplies adoption rules generally applicable to Hindus. The JJ Act supplies a particular rehabilitation mechanism for a **limited subclass of children**. The statutes can therefore be read together:

- for ordinary HAMA adoption, the section 11 restrictions continue;
- for an eligible orphaned, abandoned or surrendered child under the JJ framework, section 41(6)(b) permits same-gender adoption irrespective of existing biological children;
- that benefit is available regardless of the applicants' religious affiliation;
- where the child does not fall within the statutory class, the particular JJ route cannot simply be assumed.

This is not a general repeal of HAMA. It is a reading which gives work to both enactments and allows the specialised child-welfare purpose to operate.

HAMA General Hindu adoption conditions, including the existing-daughter bar.
→
JJ ACT 2000 Special adoption route for the eligible OAS child, without that same-gender embargo.
→
HARMONISATION Permit the qualifying JJ adoption; retain HAMA's rule outside that special setting.

17.9 Alternative reasoning: if an inconsistency remains

The Court then explains an alternative hypothesis. If the provisions cannot both operate in the same case, the later enactment may modify the earlier to the extent of the inconsistency. It refers to principles discussed in **Allahabad Bank v. Canara Bank**, **Municipal Council, Palai v. T.J. Joseph** and **LIC v. D.J. Bahadur**.

The presumption against implied repeal is important but not absolute. A later law can impliedly amend the earlier provision where reconciliation is impossible. The Court prefers the description **implied amendment or exception**, rather than wholesale repeal: HAMA's general restriction survives, with the specialised JJ adoption route operating for its statutory class.

The labels "special" and "general" are **relational**. HAMA is special when viewed against the whole field of personal laws, but supplies general adoption principles for Hindus. JJ is secular in religious reach, yet special in addressing adoption of the identified subclass of vulnerable children. The proper inquiry is principal subject matter **and the particular perspective**, not a mechanical choice based solely on which statute names a religious community.

17.10 The three contrary arguments and the Court's answers

Possible objection considered by the Court	Response in the judgment
HAMA applies only to Hindus; let its restriction remain for them, while JJ benefits other religions.	This misses the subject/perspective: the JJ adoption provision focuses on the eligible child's condition and applies without religious exclusion. Section 41(6)(b) lifts the relevant embargo for that class.
HAMA is special personal law and JJ is general secular law; the later general law cannot affect the earlier special law.	"Special/general" depends on context; JJ is specially directed to this child category. Even the general/special maxim is not an inflexible rule defeating an irreconcilable later legislative intention.

by Ankur R. Upadhyay

Possible objection considered by the Court	Response in the judgment
JJ section 1(4) expressly overrides only specified juvenile-conflict criminal matters, not conflicting adoption rules.	The absence of a broader express clause does not end the interpretive inquiry. The adoption provisions can be harmonised; if necessary, implied modification to the extent of inconsistency remains possible.

These are **the Court's formulated possible objections**, not proof that three different respondents filed arguments. The final synthesis returns to harmonisation and the limited exception, not eradication of HAMA.

17.11 Application to the child and family

The child had been **surrendered** and was legally free for adoption. She fell within the relevant care-and-protection and section 41 class. The Court found that the substance and effect of the prescribed procedures had been complied with.

The guardianship order did not destroy the petitioners' entitlement to seek adoption. Both children attended kindergarten at a nursery school in **Vile Parle**, and a school report was on record. The child had lived with the petitioners for over four years. Those circumstances supported the conclusion that adoption was manifestly in her interests and welfare.

The finding of compliance is fact-specific. It should not be converted into a rule that every long guardianship arrangement automatically dispenses with the adoption process.

17.12 Decision

Adoption declaration granted.

The petitioners were declared the adoptive parents of **Sharinee**, with all rights, privileges, responsibilities and consequences under law. The petition was disposed of in terms of the relief sought, with the separately signed Judge's Order.

This was not merely permission to continue guardianship. It was the requested declaration of **adoptive parenthood**.

17.13 Article 21: read alongside Shabnam, not in isolation

Paragraph 19 describes adoption as a facet of Article 21, considering both adults who wish to give meaning to their lives and children needing care. That is important language in the DU extract.

However, in **Shabnam Hashmi**, the Supreme Court subsequently declined the requested general declaration that the rights to adopt and be adopted were fundamental rights encompassed by Article 21 at that stage. Do not attribute a universal fundamental-right holding to the Supreme Court merely by combining Payal's broad language with Shabnam's recognition of a secular statute.

The distinction does not erase Payal's statutory reconciliation. It requires precision about **which court said what, on which question, under which statute**.

17.14 Principles for examination use

- A Hindu is not excluded from an otherwise applicable secular adoption route.
- The child's qualifying statutory class is essential.
- HAMA's same-gender-existing-child restriction is not globally repealed.
- Harmonious construction is the primary approach; limited implied modification is the alternative analysis.
- Special/general classification is contextual.
- Guardianship and adoption have different consequences; prior guardianship does not necessarily foreclose adoption.
- Welfare supports interpretation and application but does not authorise illegal sourcing or assumed compliance.
- Later CARA eligibility restrictions must not be ignored when moving from the old case to a later framework.

Exam-ready ratio
Hindu parents with an existing daughter could adopt the surrendered, legally-free girl under JJ Act 2000 section 41(6)(b). The secular child-welfare provision operates as a special route notwithstanding the ordinary HAMA section 11(ii) embargo; the petitioners were declared adoptive parents, not merely continued as guardians.

CHAPTER 18·PRESCRIBED CASE · MISSING-EXTRACT SUPPLEMENT

Case III · Shabnam Hashmi

The PIL, three litigating positions, secular choice, constitutional restraint and what the Court did not grant.

PRESCRIBED CASE · MISSING-EXTRACT SUPPLEMENT

Shabnam Hashmi v. Union of India

2014 (2) SCALE 529 · (2014) 4 SCC 1 · Supreme Court, 19 February 2014
Bench: P. Sathasivam CJI, Ranjan Gogoi and Shiva Kirti Singh JJ. · Judgment by Ranjan Gogoi J.

by Ankur R. Upadhyay

18.1 Facts: the actual litigation, not an invented personal adoption trial

A public-spirited petitioner approached the Supreme Court under **Article 32**, in **Writ Petition (Civil) No.470 of 2005**. The principal vision was recognition of the **right to adopt and the right to be adopted as fundamental rights under Part III**.

There was an alternative prayer: optional guidelines allowing adoption irrespective of **religion, caste or creed**, and a direction to the Union to enact an optional, child-centred adoption law. The Court observed that statutory and institutional developments during the litigation had substantially answered the alternative concern.

The judgment's reported factual framework is thus a **public-law challenge concerning the legal route to adoption**. It does not narrate and adjudicate an ordinary individual application for an adoption decree concerning a named child of the petitioner. A detailed case brief should not fill that gap with online biographical accounts and present them as findings in this judgment.

18.2 Legislative and institutional background before the Court

The Court traced the development from **Lakshmi Kant Pandey v. Union of India**, (1984) 2 SCC 244, which provided safeguards in inter-country adoption and recommended a regulatory body. The **Central Adoption Resource Agency** was established in **1989**. The Court described its norms and their later statutory recognition.

It contrasted the **JJ Act 1986**, which dealt with neglected/delinquent juveniles and forms of custody/care, with the **JJ Act 2000**, which introduced rehabilitation and social-reintegration alternatives. The 2006 amendment expressly defined adoption and strengthened section 41. The **JJ Rules 2007** and **CARA Guidelines 2011** supplied procedural and follow-up details.

The older judgment uses “Agency” for CARA in that historical setting. The 2015 Act's **Central Adoption Resource Authority** belongs to the later statutory stage. These are chronological developments, not a reason to substitute 2017 regulation numbers into a 2014 judgment.

18.3 Union of India’s position

The Union's counter-affidavit dated **15 May 2006** stated that prospective parents could access the JJ Act adoption provisions **irrespective of religious background**, following the required procedure.

The Ministry also placed implementation information before the Court. As historical submissions relating to the end of 2013, it reported CWC functioning in **619 districts**, SARA in **26 States/UTs**, Adoption Recommendation Committees in **18**, and **395 recognised organisations**. It reported **19,884 adoptions from January–September 2013**, including **1,712 inter-country cases**, and drew attention to delay at committees and courts.

Those numbers are included as the **Government's submissions in the litigation**, not as present statistics or an independent audit of every adoption in the country. The important legal point is that the Union did **not** oppose the secular statutory option on the ground that an applicant's religion excluded access.

18.4 The petitioner’s developed submissions

In written submissions, the petitioner accepted that the JJ Act 2000 was a **secular, enabling, optional and gender-just law** available irrespective of religion. An analogy was drawn with the Special Marriage Act as an optional statutory route.

The alternative prayer for religion-neutral adoption guidelines was therefore acknowledged to have been satisfactorily answered by the legislation and amendments. The petitioner sought implementation of **section 41 and notified CARA guidelines** by States, Union Territories and relevant authorities.

The broader request remained: declare the rights to adopt and to be adopted fundamental under **Article 21**. Reliance was placed on **In re Manuel Theodore D'Souza** and **Philips Alfred Malvin v. Y.J. Gonsalvis**, decisions of the Bombay and Kerala High Courts.

18.5 The intervening Board’s arguments

The **All India Muslim Personal Law Board**, permitted to intervene, argued that adoption was only **one** method of care. It emphasised alternatives such as foster care, sponsorship and aftercare.

The Board submitted that Islamic law did not place an adopted child on the same footing as a biological child. It described **kafala**: a kafil provides care and support while the child remains a descendant of the biological parents rather than acquiring the same lineage consequences as a fully adopted child. It relied on recognition of kafala among alternative-care arrangements in the Convention on the Rights of the Child.

It sought a direction that CWCs keep in mind and follow principles of Islamic law before declaring a Muslim child available for adoption. It also opposed the requested fundamental-right declaration on the basis of the personal-law position. This is the Board's **litigating submission**, not the Supreme Court's conclusion that personal law may veto every use of the secular Act.

18.6 Issues

1. Does the JJ Act provide an **optional secular adoption route irrespective of religion**?
2. Can a community's personal-law beliefs prevent the statutory route from operating for persons who choose it?
3. Is a further court-created optional code required after the statutory developments?
4. Should the right to adopt and the right to be adopted be declared fundamental rights under Article 21 at this stage?
5. How should earlier High Court observations on adoption and Article 21 be understood?

by Ankur R. Upadhyay

18.7 Holding on the secular statutory route

The Court held that the JJ Act, as amended, was an **enabling statute**. A prospective parent could adopt an eligible child by following the Act, rules and notified CARA guidelines. No person was compelled to adopt or to abandon personal beliefs; a person could choose not to use that route.

But personal beliefs, while respected, could not dictate or stultify the operation of an optional enabling law. In other words, **freedom not to use the statute is different from a power to stop the statute operating for someone who does use it**.

The Court described the law as a small step towards Article 44's goal. It did not declare that a uniform civil code had already replaced all personal laws. The holding is an important protection of access to the secular framework without making adoption compulsory.

PERSONAL CHOICE An individual may choose whether to adopt through the secular statute.
→
STATUTORY COMPLIANCE Eligible child and all required Act/rule/guideline safeguards.
→
NO PERSONAL-LAW VETO Beliefs do not defeat the chosen optional statutory mechanism.

18.8 Holding on fundamental rights: the crucial negative

The Court **did not declare adoption or being adopted a fundamental right under Article 21**. It recognised the evolving nature of fundamental rights but considered that the requested elevation had to await the resolution of conflicting perspectives and that the legislature's present statutory choice should receive respect.

The judgment also notes the absence of a serious or substantial debate by the petitioner on this constitutional issue, while the Board had placed extensive literature and religious material before the Court. It did not consider it necessary to decide those doctrinal controversies.

It emphasised **judicial restraint**: constitutional questions should not be decided unnecessarily. The existing optional statutory framework addressed the practical legal route, and the Court considered the time and stage inappropriate for the broad declaration sought.

This is not a holding that adoption can never have constitutional significance. It is a refusal of the **general declaration requested in this case at that stage**. An answer which says “Shabnam held adoption to be a fundamental right” reverses the judgment.

18.9 Treatment of earlier High Court decisions

The Court treated **Manuel Theodore D'Souza** and **Philips Alfred Malvin** as decisions best understood in their factual settings. It noted that the broad fundamental-right question was not directly in issue in the Kerala case, and the Bombay case involved adoption consistent with the canonical law applicable to the Christian parties.

The judgment therefore did not treat those decisions as requiring a universal Article 21 declaration. The distinction between a case-specific result, constitutional observations and a general binding proposition is central to reading the authorities properly.

18.10 Decision and what relief was not granted

Writ petition disposed of.

The Court confirmed the optional secular statutory route and disposed of the petition in terms of its observations/directions. It **declined the requested general fundamental-right declaration**.

There was no individual adoption decree in favour of the petitioner concerning a specified child in the operative order. Nor did the Court abolish every rule of personal law or dispense with CARA safeguards.

18.11 Relationship with Payal and HAMA

Payal shows a Hindu couple using the secular route notwithstanding HAMA's same-gender-child restriction. Shabnam supplies the broader explanation of why the optional statutory route is not defeated by religious personal-law objections.

They must also be distinguished: Payal's paragraph 19 contains expansive Article 21 language; Shabnam's Supreme Court judgment declines the broad fundamental-right declaration. Neither case means that HAMA section 11 was textually repealed for all purposes or that an ineligible applicant is entitled to a child merely by invoking dignity.

18.12 Principles and critical appreciation

Principles: secular access; optional rather than compulsory legislation; personal law cannot neutralise the chosen statutory route; child eligibility and procedure remain essential; judicial restraint on the constitutional declaration; historical High Court observations must be read in context.

Analytical evaluation—not an additional holding: the decision makes a practical route available while avoiding a comprehensive constitutional settlement of plural personal laws. One may critically discuss whether deferring the fundamental-right question adequately protects children, or whether deciding it was unnecessary once the statute answered the operative problem. What one may not do is replace the actual refusal with the opposite holding.

> **Two-sentence answer to remember**
> Shabnam Hashmi recognises the JJ Act as an optional secular adoption law available irrespective of religion, which personal-law

beliefs cannot stultify. It does **not** declare a general fundamental right to adopt or be adopted under Article 21; that prayer was declined at the stage considered.

CHAPTER 19·PRESCRIBED CITATION · SUBJECT MISMATCH

Case IV · Manju Sharma

The actual maintenance judgment: financial evidence, medical needs, ₹30,000 combined interim award and limits.

PRESCRIBED CITATION · CROSS-UNIT SOURCE MISMATCH

Manju Sharma v. Vipin

2019 SCC OnLine Del 8960 · Delhi High Court · CRL.REV.P.103/2015
Reserved: 23 May 2019 · Delivered: 1 July 2019 · Sanjeev Sachdeva J.

This is a maintenance judgment, not an adoption judgment.
Your image and the uploaded DU syllabus place this citation in the adoption list. The actual decision concerns enhancement of interim maintenance under the Domestic Violence Act. Its text is not reproduced in the uploaded DU volume. It is included here in detail to respect the prescribed list, while the subject mismatch is made explicit. No HAMA adoption, CARA eligibility or step-parent principle is attributed to it.

19.1 Facts and family background

Manju and Vipin married on **11 July 2008**. Their daughter was born on **2 May 2009** and was in Manju's care and custody. Manju alleged that she was turned out of the matrimonial home on **14 November 2010** for not bringing sufficient dowry and a car.

Vipin had instituted divorce proceedings, which remained pending. Manju's relevant application was under the **Protection of Women from Domestic Violence Act, 2005**. It should not be inaccurately described as an original section 125 CrPC petition merely because the High Court later applied the rationale of a section 125 precedent.

The daughter had an **eye ailment**, required continuing medical treatment and, according to Manju, urgently required an operation which she lacked funds to arrange. Her medical record and expenditure formed part of the evidence considered for interim support.

19.2 Procedural history

Date / stage	Event
13 September 2011	Relevant application date; ultimately the commencement date for arrears
6 June 2013	Trial court fixed **₹10,000 per month for Manju and daughter together**, with effect from the application date
Trial assessment	Vipin's claimed income of ₹12,000 was found unbelievable; income provisionally assessed at ₹30,000
1 November 2014	Appellate court dismissed Manju's challenge seeking enhancement
CRL.REV.P.103/2015	Revision before Delhi High Court
1 July 2019	Interim maintenance enhanced to **₹30,000 per month combined**, subject to final adjudication

The earlier ₹30,000 figure was the trial court's prima facie **income estimate**; the High Court's ₹30,000 figure was the enhanced **maintenance award**. They should not be confused merely because the numbers coincide.

19.3 Issues

1. Had the trial and appellate courts assessed Vipin's means on an unduly low basis?
2. Was it appropriate, at the interim stage, to place the burden on Manju to produce detailed business contracts despite the material indicating undisclosed businesses?
3. What weight should be given to the child's medical, educational and ordinary living needs?
4. How does the section 125 maintenance rationale apply to monetary support under the DV Act?
5. What amount and arrears directions were appropriate **pending final evidence and adjudication**?

19.4 Manju's arguments and evidence

She sought enhancement to **₹40,000 monthly**, as well as residence relief. She contended that Vipin had several businesses and had concealed his true means:

- manufacture and sale of **R.O. water purifiers**, with alleged turnover around ₹1 crore and approximately ten employees;
- online listings for **Genesis Traders**, represented as a sole proprietorship with turnover of roughly **₹50 lakh–₹1 crore**;
- sale and purchase of **second-hand cars**;
- a jewellery business, **Vipin Jewellers**, supported by his father's evidence in a separate injunction suit, although the shop was said to have closed;

- an IT business, **Om Sai Solutions**, whose listed turnover also indicated substantially greater means than pleaded;
- a visit to **Bangkok in 2012**, for which an asserted friend's sponsorship was not supported by particulars.

She relied on the daughter's medical record, need for treatment/operation, education and upbringing expenses. These were not merely abstract assertions that a husband's lifestyle should always generate a fixed percentage award.

19.5 Vipin's recorded position

Vipin maintained that his income was only around **₹10,000–₹15,000 per month**. The earlier trial-stage account had claimed approximately ₹12,000. In relation to the foreign visit, it was asserted that a friend sponsored it, but the necessary details were absent from the record as discussed by the Court.

The father's evidence referred to the earlier jewellery business as closed. The Court considered that qualification but did not regard it as answering the other evidence of business activity.

The report does **not** record a developed argument that Manju was earning enough to maintain herself. Such a defence is therefore not invented here simply because it appears in many other maintenance cases.

19.6 Reasoning: prima facie assessment must be realistic

The Court noted that both courts below had found Vipin untruthful about income. The material showed business activities and turnover inconsistent with an uncritical acceptance of his low-income assertion.

The appellate court erred in requiring Manju to produce the specific contracts relating to the R.O. business in the circumstances. At the interim stage the court forms a **prima facie opinion**, rather than insisting that the claimant already prove the entire financial case as at a final trial.

Website listings, the father's testimony, evidence of additional business and the unexplained sponsorship account were considered together. **Turnover is not the same as net income**: the judgment did not declare every rupee of business turnover to be personal earnings. The point was that the available material justified a more realistic interim assessment than the one adopted below.

19.7 Maintenance with dignity: Bhuwan Mohan Singh

The High Court relied on **Bhuwan Mohan Singh v. Meena, (2015) 6 SCC 353**. The underlying rationale of section 125 CrPC is relief from financial suffering and destitution, with support enabling the wife and children to live with dignity, not merely bare animal existence.

The husband's obligation cannot be evaded through subterfuge; an able-bodied person may be required to earn through labour, subject to any legally valid ground disentitling the claimant. Manju applies that rationale **to maintenance under the DV Act**.

This is the legal bridge in the judgment. It is not an adoption holding and does not amend HAMA sections 7–11 or CARA's financial suitability criteria.

19.8 The child's needs

The Court referred to approximately **₹5,000 per month in regular medical expenditure**, besides education and other day-to-day costs. The report's earlier narrative refers to expense and upbringing in a slightly different formulation; the operative reasoning in paragraph 19 specifically emphasises medical expenditure.

Do not invent two separate proven ₹5,000 heads merely by counting the two descriptions twice. The sound exam point is that recurring treatment, education and ordinary living needs made the previous combined award inadequate in light of the material about Vipin's resources.

19.9 Decision and directions

> EARLIER COMBINED AWARD**₹10,000**per month
> →
> ENHANCED COMBINED AWARD**₹30,000**per month for mother and daughter

The petition was **allowed**. Vipin was directed to clear arrears from **13 September 2011** in **three equal monthly instalments**, the first payable within **two weeks** of the High Court decision. Enhanced interim maintenance continued until final adjudication by the trial court.

The Court expressly stated that its assessment was **prima facie**, subject to final orders after both parties led evidence. It did not award ₹30,000 separately to each claimant, did not grant the full ₹40,000 requested, and did not expressly grant a separate residence order in the operative paragraphs.

19.10 Principles and proper use

- Interim maintenance requires a realistic provisional assessment of means and needs.
- A respondent's unreliable disclosure can be tested against the surrounding evidence.
- The claimant should not be defeated at the interim stage by an unrealistic demand for inaccessible business-detail proof when relevant contrary material exists.
- Child medical and educational needs are central to quantum.
- Section 125's dignity-based rationale informs DV Act maintenance.

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- The interim assessment is not a final adjudication of income or entitlement.

Use in this unit: retain it as the prescribed citation with a clear source correction. Do not cite it as authority for a married woman's adoption capacity, a single man's eligibility to adopt a girl, two-child adoption or the powers of CARA. In an examination expressly asking this case, give its actual maintenance facts and holding rather than forcing it into the wrong subject.

CHAPTER 20·SYNTHESIS

Comparisons & problem-solving

A route matrix, case-use map, consent questions and date-sensitive reasoning.

20.1 The master comparison

Wide comparison · scroll horizontally where needed

Test	HAMA, including 2010 amendments	JJ Act 2000 in the DU cases	JJ Act 2015 + CARA 2017
Primary perspective	Statutory personal-law adoption and family consequences	Rehabilitation/social integration of the specified children	Right to family, regulated eligibility, placement and safeguarding
Religion	Adopter and adoptee must fall within the relevant HAMA requirements	Secular statutory route	Secular statutory route
Eligible child	Section 10, including permitted custom exceptions	Relevant orphaned, abandoned or surrendered child under the then scheme	Regulation 4: OAS legally free, specified relatives, step-parent category
Ordinary child age	Not completed 15; custom exception possible	Statutory child under the then Act; do not import HAMA custom rules	Not completed 18; 2017 applicant age-bracket rules also apply
Adopting adult	Sound mind, not a minor; section 7/8 consent	Relevant Act/rules/guidelines at the time	Section 57 and regulation 5: suitability, spouse consent and age/ other criteria
Single man adopting girl	No general section 7 ban; cross-sex gap and other conditions apply	Examine then-applicable rules; do not infer from marital-status language alone	Prohibited by section 57(4) and regulation 5(2)(c)
Existing children	Exact section 11(i)–(ii) son/ daughter/descendant bars	Section 41(6)(b) same-sex adoption irrespective of living biological children in the statutory route	No HAMA-style same-sex bar, but 2017 three-or-more-children restriction with exceptions
Age gap	21 years only in specified cross-sex cases	Do not conflate with later numerical provisions	Minimum 25 years between child and either applicant; relative/step-parent age exception
Giving / availability	Section 9 parent/guardian; guardian's previous court permission	Section 41 safeguards	CWC inquiry/legal-free status or dedicated relative/step-parent pathway
Operative process	Actual giving/taking with required intention and all conditions	Court-based statutory adoption as discussed in Payal/Shabnam	CARINGS, assessment, consent, legal process and court order in 2017
Registered deed	Section 16 rebuttable presumption; state-specific caveats	Not a substitute for the statutory route	Not mandatory under regulation 12(9); the order matters
Effects	Section 12, with all three provisos; sections 13–15	Full adoptive relationship in section 2(aa) as discussed	Section 63: status including intestacy; vested property with obligations preserved
Finality / breakdown	Valid adoption cannot be cancelled under section 15	Relevant then-applicable system	Regulated disruption before completion / court annulment mechanism after order
Later-law caution	Do not quote former section 8(c) as amended law	These are historical case provisions	2021/2022 changes are separately identified, especially the order-making authority

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20.2 The four prescribed studies: different jobs

Case	Strongest exam use	What it does not establish
Brajendra Singh	Old female-adopter capacity; separation versus divorce; legal validity despite care	That today's married Hindu woman can never adopt even with consent; that disability itself disqualified Mishri Bai
Payal @ Sharinee	Same-gender adoption through a qualifying secular route; harmonious construction	Wholesale repeal of HAMA's bar or automatic conversion of every guardianship into adoption
Shabnam Hashmi	Optional secular route; no personal-law veto; constitutional restraint	A Supreme Court declaration that adoption is a general fundamental right under Article 21
Manju Sharma	Realistic interim maintenance, financial evidence, child's needs, DV/section 125 rationale	Any adoption holding; it is a prescribed-list subject mismatch

20.3 The seven consent/status questions

1. **What is the child category?** A child living in an institution is not necessarily legally free.
2. **Who is the giver or surrendering person?** Identify biological parent or qualifying guardian.
3. **Whose consent is required on that side?** The other biological parent is not always the giver's present spouse.
4. **Who is adopting?** Adult statutory capacity and suitability must be established.
5. **Does the adopter's spouse need to consent?** Do not substitute knowledge or long separation for the required legal fact.
6. **What does the child understand and wish?** Use the relevant age/understanding rule and prescribed consent form.
7. **If international, what approvals and travel safeguards apply?** An Indian order, NOC, conformity and visa serve different purposes.

20.4 Date-sensitive reasoning

TRANSACTION DATE When was the asserted adoption made, or what process does the problem ask about?
↓
STATUTORY VERSION Pre-1956 saved law? Former HAMA section 8? Post-2010 HAMA? JJ 2000? 2015/2017? Later 2022 framework?
↓
CASE AVAILABILITY Was the case available at the historical examination date? Label subsequent authorities as study updates.
↓
CONCLUSION State the result under the identified law, then explain later change separately if useful.

This method is decisive for **Sonali in 2012 versus 2009**. Her same-sex adoption does not trigger HAMA's 21-year gap, but her capacity as a married woman differs under the two versions of section 8. The numerical ages and the law's date both matter.

20.5 Do not confuse validity with its evidence

An adoption deed, school certificate or long family relationship may support proof. None automatically supplies a missing statutory capacity or an exception which does not exist. Conversely, lack of a registered deed under the general central HAMA rule is not by itself proof that no adoption occurred, although state-specific rules and the evidentiary burden may be decisive.

A sound answer identifies **the element to be proved**, then evaluates whether the document or conduct proves it. This is more rigorous than simply writing “registered, therefore valid” or “unregistered, therefore void”.

20.6 A disciplined conclusion

Good conclusions can be conditional without being evasive:

> *“The living legitimate son bars the proposed adoption of a further son under HAMA section 11(i), regardless of the proposed child's disability. The JJ route removes that particular HAMA embargo only if its own child-eligibility and procedural requirements are established; those facts are not supplied here.”*

Or:

> *“On the stated 2012 facts, Sonali's adult capacity and her husband's consent satisfy the relevant section 8 issue, and a female-to-female adoption does not require the cross-sex 21-year difference. Validity still depends on the child's eligibility, the giver's authority and actual giving/taking.”*

The strongest answer states the definite effect of the facts supplied, identifies missing material facts and avoids an unwarranted guarantee of a favourable order.

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DU LL.B. EXAMINATION ARCHIVE

Previous Year Questions — Unit 04: Adoption under Hindu Law (HAMA, 1956), JJ Act & CARA Regulations

Q.01 December 2008 · Q8(a) · Christian adopter; Hindu orphanage

Examine the following under the Hindu Adoptions and Maintenance Act, 1956: (a) X, a Christian wants to adopt a girl from a Hindu orphanage. Is he entitled to do so under the HAMA 1956?

● **Refer website for detailed notes — makelaweasy.in**

Q.02 December 2008 · Q8(b) · Later biological son; attempted second adoption

Shanker adopted a boy named Vijay. Subsequently his wife delivered a son, Ajay. Shanker wants to give away Vijay in Adoption to his friend. Can he legally do so?

Q.03 December 2008 · Q8(c) · Twenty-one-year difference; subsequent wife

35 years old Bhishma, a bachelor adopted 14 years old girl called Veera. Is the adoption valid? Subsequently he married Ambika. Point out the relationship of Veera and Ambika according to the HAMA 1956.

Q.04 December 2008 · Q8(d) · Found child; giver's authority; existing daughter

A three months old girl was found abandoned on a railway platform and was being brought up in orphanage. Vinay who has a son but no daughter wants to adopted the child. Advise Vinay. Would your answer be different if he has a daughter?

Q.05 December 2008 · Q8(e) · Child widow; marriage restriction and custom

Chand, a girl aged 11 years is a child widow. Kalu aged 40 years wants to adopted her. Is the adoption permissible?

Q.06 May–June 2009 supplementary · Q8(iii) · Essentials of valid Hindu adoption

Write short notes on any two of the following: (iii) Essentials of a valid adoption under Hindu law.

Q.07 December 2010 · Q7(a) · Married woman aged 26; boy aged 5

Examine the validity of the following adoption under Hindu Adoption and Maintenance Act, 1956: (a) A, a Hindu married woman aged 26 years adopted a boy aged 5 years.

Q.08 December 2010 · Q7(b) · Bachelor's adoption; new wife's objection

A, a Hindu Bachelor, adopted a boy B. Later when A got married, he at the instance of his wife gave away B in adoption to D.

Q.09 December 2010 · Q7(c) · Mother gives non-marital son to brother

A, the mother of an illegitimate son B, gives him in adoption to her brother.

Q.10 December 2010 · Q7(d) · Adoption of a seventeen-year-old

A, a Hindu adopts a boy aged 17 years.

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LAW CRUX · PAPER LB-105 · UNIT 05 Hindu Minority & Guardianship Act, 1956 (Ss. 4–13) · Guardians & Wards Act, 1890 · Githa Hariharan v. RBI

Minority & Guardianship under Hindu Law (HMGA, 1956)

Classes of Guardians (S. 4), Natural Guardians & Mother's Position ('After Him' u/s 6(a)), Powers & Court-Permission Restraint (S. 8), Testamentary Guardians (S. 9), De Facto Guardian Bar (S. 11) & Welfare Paramountcy (S. 13)

CHAPTER 01·FOUNDATIONS

Minority, care & legal authority

Separate parentage, guardianship, custody, property and limited representation before solving a problem.

1.1 Minority is a legal status, not a judgment about intelligence

Under **HMGA section 4(a)**, a minor is a person who has **not completed eighteen years**. A child may be articulate, financially knowledgeable or close to adulthood without thereby ceasing to be a minor under this definition. Conversely, a person does not remain a minor under HMGA merely because of disability or a continuing need for support after eighteen; any adult-support framework requires its own legal basis.

The age of majority is not interchangeable with every other legal age. Marriage, adoption, criminal responsibility and other subjects have their own provisions. The Majority Act itself contains specified savings concerning marriage, dower, divorce and adoption. Do not infer, for example, that marriage makes a seventeen-year-old an adult for managing another minor's property.

1.2 A guardian is entrusted with care, not ownership

Section 4(b) defines a guardian by the **care of the minor's person, property, or both**, and includes the four specified legal categories. Guardianship creates responsibilities and a legally regulated authority; it does not make the minor's body, choices or assets the guardian's property.

The DU judgment describes guardianship as a **sacred trust** and treats the child's welfare as its organising purpose. The natural parent's status is therefore neither a licence to act whimsically nor a benefit independent of duties. GWA section 20 reinforces the fiduciary character of the relationship.

1.3 Five concepts which must be separated

Concept	Main question	Example
Parentage	Who is legally the child's parent?	Biological or lawfully adoptive parenthood
Guardianship of the person	Who has legally recognised responsibility concerning the child's person?	Decisions relating to care, health or education, within legal limits
Physical custody	With whom should the child live or be placed?	A welfare-based residential arrangement in a dispute
Guardianship of property	Who may administer the minor's estate and on what terms?	Managing investments or seeking permission to sell land
Limited representation	What authority exists for a particular proceeding or task?	Representation in litigation or authority to undertake a specific administrative act

One person may hold several roles, but the roles are not synonyms. A caregiver's possession of a child does not by itself authorise selling the child's house. A legal guardian's status does not by itself prove that immediate physical custody with that person serves welfare. A court's limited procedural appointment should be read for its actual scope, not treated as unlimited authority over every asset.

Githa's first petition concerned **recognition of the mother for an investment**, not a contest about transferring custody away from the father. Its companion petition concerned an actual dispute over custody and guardianship, which remained for the District Court to decide. That distinction is fundamental to the judgment.

1.4 Natural, testamentary, court-appointed and Court-of-Wards authority

The four categories in section 4(b) are:

1. **Natural guardian**—the statute identifies the relevant parental or other relationship, subject to its conditions.
2. **Guardian appointed by a parent's will**—authority derives from a valid testamentary appointment and the governing statutory rules.
3. **Guardian appointed or declared by a court**—the order, its scope and the court's supervisory powers matter.
4. **Person empowered under a Court-of-Wards enactment**—a distinct statutory arrangement, not another name for every court-appointed guardian.

"Natural" does not mean that no legal conditions apply. "Testamentary" does not mean a parent can evade the surviving mother's statutory position. "Court-appointed" does not mean the guardian has ownership of the estate. Each source of authority must be read with the Act and welfare.

1.5 De jure authority versus de facto care

A **de jure guardian** has legal authority. A **de facto manager/caregiver** has taken charge in fact without the legal status required for the act in question. The judgment surveys that historical distinction, and HMGA section 11 denies a property-dealing power based **merely** on de facto guardianship.

Do not describe a mother who qualifies under Githa as merely a de facto guardian simply because the father is alive. Her authority is that of a **recognised natural guardian**, established through the statutory interpretation. Conversely, an aunt or friend does not acquire equivalent authority merely by providing affectionate care.

The distinction is crucial in a property problem: an unauthorised act by a true natural guardian and a purported disposal by someone with no relevant guardian authority do not necessarily attract the same rule of invalidity.

1.6 Person, separate estate and undivided family interest

Before applying section 8, classify the property:

- the minor's **separate or otherwise distinct property interest**;
- the minor's **undivided interest in joint-family property** under management of an adult family member;
- property which is not the minor's at all, despite a family connection.

A share inherited by two siblings is not automatically the same thing as an undivided interest in a Hindu joint family. The word "family" alone does not determine the property regime. Sections **6, 8 and 12** must be read together. A parent acting as natural guardian of a separate estate is not in the same statutory position as a competent manager dealing with joint-family property.

1.7 Welfare, benefit and necessity: related but different functions

Expression	Main location	Function
Welfare paramount	HMGA section 13; GWA section 17; Githa	Controls guardianship/custody evaluation and entitlement
Necessary or reasonable and proper for benefit	HMGA section 8(1)	Defines the natural guardian's legitimate field of action
Necessity or evident advantage	HMGA section 8(4); GWA section 31	Standard for granting permission for restricted property acts
Ordinary prudence	GWA section 27	Standard of estate management by the property guardian
Fiduciary responsibility	GWA section 20 and supervisory scheme	Limits self-interest and requires loyalty/ accountability

A broad claim that a transaction was "for welfare" does not erase a specific requirement of **previous court permission**. Equally, a formally authorised guardian may be denied custody where that placement would not serve the child. The legal tests operate together; one slogan cannot replace them all.

1.8 The case's two tracks

Administrative recognition
Mother signs an investment application; both parents agree. Must RBI still insist on the father's signature or a guardianship certificate merely because he is alive?

Contested welfare adjudication
Parents dispute custody and decision-making. Which arrangement serves the child, on evidence, rather than on an asserted absolute paternal entitlement?

The first track explains why the interpretation of **"after him"** matters outside court. The second shows why that phrase cannot displace the court's welfare inquiry. A model answer which discusses only parental rivalry misses the actual RBI facts.

1.9 The two statutes operate together

HMGA amends and codifies **certain parts** of Hindu minority and guardianship law. Under section 2, it is additional to GWA and not, except as expressly provided, in derogation of it. GWA supplies important appointment, procedural, supervisory and remedial machinery.

Accordingly, neither of these propositions is accurate: "HMGA repealed GWA for Hindus", or "GWA makes the special HMGA restrictions irrelevant". Section 8(5) itself expressly borrows GWA machinery for permission applications. The relationship is one of coordinated operation, with specific statutory provisions controlling their own subject.

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1.10 A practical sequence for every problem

STATUS Is the person a minor? Does the relevant Hindu statute apply?
↓
ROLE Natural guardian, testamentary guardian, court guardian, statutory manager or merely factual caregiver?
↓
SUBJECT Person, custody, movable assets, separate immovable estate or undivided joint-family interest?
↓
POWER AND PROCEDURE What does the statute permit? Is previous permission or a court decision needed?
↓
WELFARE AND RESULT Apply the evidence, explain the consequence and identify the proper remedy.

CHAPTER 03·SECTIONS 6-7

Natural guardians: every category

Father and mother, the under-five proviso, non-marital children, married girls, adoption and step-parents.

3.1 Section 6: first identify the subject of guardianship

Section 6 identifies natural guardians concerning both the minor's **person** and **property**, but expressly excludes the minor's **undivided interest in joint-family property**. That exclusion is important before any sale or lease problem is analysed. Section 12 deals with the particular managed joint-family situation.

The three clauses then distinguish a boy/unmarried girl, the specified child born outside marriage, and a married girl. They must be read with the provisos, the exclusion of step-parents, **Githa's interpretation** and **section 13 welfare control**.

3.2 Clause (a): father and “after him” mother

For a **boy or unmarried girl**, the text says **“the father, and after him, the mother”**. The law after Githa is not that the mother must wait for the father's death in every case.

The Court reads “after” as **“in the absence of”**—absence from actual care of the child's person or property in the circumstances explained in the judgment. Examples include indifference, a mutual arrangement placing the mother in charge, or inability associated with being away or physical/mental incapacity. The next chapter develops the precise test.

The mother does not need to obtain a court appointment merely to become a natural guardian where the statute, so construed, already recognises her authority. That proposition does not remove a separate need for court permission for a restricted property act.

3.3 The under-five proviso: ordinary custody with the mother

The proviso says that custody of a minor who has **not completed five years** shall **ordinarily** be with the mother.

Every word has work to do:

- **Custody** is the immediate subject, not an exclusive definition of all guardianship powers.
- **Not completed five** is the age description; “five and below” is not the exact wording.
- **Ordinarily** creates a normal position, not an irrebuttable rule regardless of safety or welfare.
- **With the mother** recognises her importance in early care; it does not mean a father has no responsibilities.

The child's fifth birthday does not automatically require delivery to the father. After the age proviso ceases to be directly applicable, welfare and the rest of the statutory framework remain. Before five, facts showing that maternal custody would harm the child cannot simply be ignored.

3.4 Clause (b): the order differs for the specified non-marital child

For an **illegitimate boy or illegitimate unmarried girl**, in the statute's terminology, the order is **“the mother, and after her, the father”**. Do not write the father's order from clause (a) into clause (b).

The statutory terminology describes a legal birth category, not diminished human worth. The child remains entitled to care and protection. A father cannot answer the provision merely by asserting biological paternity and ignoring its different order.

Githa's formal challenge and operative construction concerned **section 6(a)** and then section 19(b) GWA. Its welfare and constitutional reasoning is relevant to understanding the scheme, but do not falsely say that the Court separately rewrote every word of section 6(b) or decided every dispute involving such a child.

3.5 Clause (c): married girl and the essential qualifications

The uploaded text lists the **husband** as natural guardian in the case of a **married girl**. This provision must not be used as a one-line answer authorising a child marriage or forced delivery of a minor bride to a claimant.

In particular:

1. **Marriage does not make the girl eighteen** under section 4(a).
2. **Section 13(2)** expressly controls entitlement under laws relating to guardianship in marriage where the court considers the arrangement contrary to welfare.

by Ankur R. Upadhyay

3. The **Prohibition of Child Marriage Act** creates its own prohibitions, remedies and specified nullity consequences. The guardian clause does not validate a marriage invalid under that framework.
4. A **minor husband** cannot act as guardian of another minor's **property** in defiance of HMGA section 10.
5. The relevant GWA provisions distinguish appointment and interim custody, including specific limits on a claimant husband's attempt to secure temporary custody.

A complete answer states the statutory text **and** these limits. Neither silently deleting the clause nor enforcing it without regard to the child's protection is adequate.

3.6 Express disentitlements under the section 6 proviso

No person is entitled to act as natural guardian under this section if that person:

- has **ceased to be Hindu**; or
- has **completely and finally renounced the world** by becoming the specified hermit/ascetic.

A mere family disagreement, temporary absence or a religious practice is not automatically complete and final renunciation. Nor is the Act's religious-disentitlement wording a reason to assume that every question of physical custody under every law has already been conclusively resolved. The proper route, statutory status and welfare must be examined.

Distinguish these express statutory disentitlements from **functional absence under Githa**. A father can be absent from care through indifference or incapacity without proof that he converted or renounced the world. The mother's authority in that setting does not depend on inventing one of these proviso facts.

3.7 Step-parents are excluded from “father” and “mother”

The Explanation states that these expressions do **not** include a **stepfather or stepmother**. Accordingly, marriage to a child's parent does not by itself confer natural guardianship under section 6.

This does not mean a step-parent can never provide care or never be considered under a lawful court process. It means the particular **natural-guardian status is not automatic**. Any separate appointment or custody claim must satisfy the applicable law and welfare requirements.

Likewise, remarriage of the biological parent does not automatically erase that parent's relationship to the child. A step-parent's status and the biological parent's continuing status are separate questions.

3.8 Section 7: natural guardianship of an adopted son

The text provides that natural guardianship of an **adopted son who is a minor** passes on adoption to the **adoptive father and after him the adoptive mother**.

The provision presupposes a legally effective adoption. Merely living with relatives, changing a school record or calling a child an adopted son does not dispense with the adoption law which creates that status. The source of parentage and the source of guardian authority must be kept distinct.

The section expressly uses **“adopted son”**. Do not quote it as if Parliament wrote “every adopted child”, but equally do not infer that a lawfully adopted daughter can have no guardian. **HAMA section 12** creates adoptive family status for the adopted child, and the relevant HMGA provisions must then be applied. The precise route and parentage matter.

3.9 Adoption, later marriage and step-parent status

HAMA section 14 distinguishes a spouse existing at adoption from a person married later in the situations it describes. For example, where a bachelor first adopts a child and later marries, his subsequently married wife is the adopted child's **stepmother** under that provision.

Therefore, the fact that section 7 refers to an adoptive mother does not allow every later wife to claim that title. Identify who actually has legal adoptive-parent status before deciding who benefits from the guardianship provision. A later step-parent does not obtain natural authority by changing the vocabulary.

Githa's reading of the same “after” idea is important to the broader statutory approach, but its formal holding concerned section **6(a)** and GWA **19(b)**. It did not strike down section 7 or adjudicate a disputed adoption in the RBI case.

3.10 The complete natural-guardian table

Situation	Starting provision	Qualification which must accompany it
Boy / unmarried girl	Father and after him mother	“After” as functional absence under Githa; welfare remains controlling
Child under five	Custody ordinarily with mother	Not an absolute welfare override; not automatic father-custody at five
Specified non-marital boy / unmarried girl	Mother and after her father	Different statutory ordering; no lesser dignity for the child
Married girl	Husband in the text	Child-marriage law, section 13 and minority/property incapacity cannot be ignored

Situation	Starting provision	Qualification which must accompany it
Adopted minor son	Adoptive father and after him adoptive mother	Valid adoption and correct parental status required
Step-parent	Not included as father/mother	No automatic natural guardianship merely by remarriage
Person ceasing Hindu / finally renouncing	Disentitled under proviso	Establish the relevant fact; distinguish other custody or legal routes
Minor's undivided joint-family interest	Excluded from section 6's property field	Apply section 12 and the management facts

Natural guardian is a legally qualified status.
State the category, the relevant qualification and the welfare control. A bare parental label is not the completed legal analysis.

CHAPTER 10·SECTION 13

Welfare as the paramount consideration

The widest sense of welfare, child participation, custody, evidence and the limits of parental claims.

10.1 Section 13(1): welfare is paramount

In a court's appointment or declaration of a guardian of a Hindu minor, **the welfare of the minor is the paramount consideration**. It is the central evaluative standard, not a token phrase to append after choosing the parent with the stronger title or larger income.

The language does not treat the child's future as an adult's prize. The court must examine the arrangement's likely effects on the child and the evidence supporting them. The DU judgment applies this principle to the interpretation of natural guardianship and to the proper adjudication of custody.

10.2 Section 13(2): entitlement is expressly qualified

No person is entitled to guardianship by virtue of HMGA or a law relating to guardianship in marriage among Hindus if the court considers that person's guardianship **not to be for the minor's welfare**.

This provision explains why a natural-guardian label or the married-girl clause cannot be treated as an absolute trump. It also controls a testamentary nominee's claim. The analysis is not exhausted by asking whose name appears first in a statutory list.

The court must still use the appropriate statutory procedure and consider the facts. “Welfare” does not mean that a person may take the child or property through private force and seek legal approval afterwards.

10.3 Welfare in its widest sense: the DU account

Banerjee J. draws upon **Re McGrath** and **Re Gyngall** to explain that welfare is not measured by money or physical comfort alone. It includes moral and religious welfare, physical well-being, affection, the child's age and position, happiness and the surrounding family circumstances.

The passages reject removal from a natural parent **merely because another person is richer**. They do not make poverty irrelevant to every practical issue, but deny that money alone determines the answer.

The point is holistic: security and affectionate care may outweigh an apparently more expensive lifestyle. Equally, a slogan about parental love cannot replace evidence about actual safety and care.

10.4 GWA section 17: the stated factors

The general Act requires attention to:

- the minor's **age, sex and religion**;
- the proposed guardian's **character and capacity**;
- **nearness of kin**;
- the wishes of a **deceased parent**, if any;
- existing or previous relations with the minor **or the minor's property**;
- an **intelligent preference** of the minor where the minor is old enough, which the court may consider.

No person is to be appointed guardian against that person's will. These factors structure judgment; they are not a point-scoring formula that guarantees a result after adding up income, kinship and age.

10.5 The child’s views: important, not an invented absolute veto

Section 17(3) uses the condition that the child is old enough to form an **intelligent preference**, and states that the court **may consider** it. It does not prescribe a universal “at seven the child decides” rule, nor does it make every stated preference binding without inquiry.

A child's expressed view must be understood in context: maturity, understanding, consistency, freedom from pressure and the child's overall welfare. Listening to the child is different from making the child responsible for adjudicating the parents' dispute.

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HMA section 26 separately speaks of orders consistently with children's wishes **wherever possible**. Use the wording of the provision actually applicable rather than merging the formulations into one invented mandatory age rule.

10.6 Custody and guardian status need not coincide in every respect

A custody decision concerns where the child should live and be cared for. A guardianship determination concerns the legal authority and responsibility in its defined field. The same person often holds both, but the law does not require all practical care arrangements to be reduced to a single label.

The uploaded secondary text illustrates this distinction, but the primary principle is already clear in Githa's separation of **institutional recognition of the mother's act** from **court adjudication of a disputed custody arrangement**. A parent's natural status does not make an immediate return order inevitable; GWA section 25 itself links return to welfare.

10.7 Common claims which require evidence, not stereotypes

Claim	Proper analysis
"I am the father, therefore custody is mine."	Apply statutory status with Githa and welfare; no absolute paternal dominion
"The child is under five, so no contrary fact can matter."	The maternal-custody rule is ordinary, not irrebuttable
"The mother works, so she cannot care for the child."	Examine real caregiving arrangements and welfare, not a stereotype about employment
"The father earns more."	Resources are relevant, but money alone does not determine welfare
"A parent remarried."	Examine actual effects and care; do not equate remarriage alone with unfitness
"The child says no."	Consider age, understanding and the reasons/context, not merely the isolated words
"A relative has provided care for years."	The history and attachment matter, but do not automatically confer every legal power
"The parents agreed."	Agreement may be relevant, but cannot bind the court to an arrangement contrary to welfare

The statements on employment/remarriage are analytical applications of welfare, supported by the uploaded secondary discussion; they are not additional factual holdings attributed to the RBI judgment.

10.8 A welfare evidence matrix

A detailed answer can identify the evidence needed without pretending it has been supplied:

Care history: who has provided daily care, schooling, medical attention and emotional support?

Stability: what routines, relationships, educational continuity and secure living arrangements exist?

Safety: is there reliable evidence of violence, neglect, exploitation, coercion or other harm?

Capacity and support: what practical plan exists for work hours, disability-related needs, illness or absence?

Relationships: what attachments and sibling/family ties matter to the particular child?

Child's participation: is an intelligent preference available, and how should it be evaluated?

Legal structure: who has authority, what relief is requested, and which court may grant it?

The matrix is an **authored analytical tool**, not a statutory checklist with fixed weights. It translates the statutory/DU welfare principle into a disciplined way of applying facts.

10.9 Temporary and final arrangements

Interim custody/protection may be necessary before final adjudication. GWA section 12 permits the relevant temporary orders; section 25 addresses return subject to welfare. HMA section 26 permits interim orders and provisions in the decree, as well as later petitions and variation.

An interim arrangement is not invariably a final finding that the other parent is legally unfit. Nor should a final arrangement be treated as immune from every later welfare-relevant change where the applicable law permits variation. Identify the procedural stage and the relief.

10.10 Children born of child marriages

PCMA section 5 expressly makes the **welfare and best interests** of children born of a child marriage paramount in custody orders. It permits appropriate access and maintenance directions. Section 7 addresses variation as circumstances change, including after disposal.

These provisions concern **children born of the marriage**, which is a different question from assigning the minor bride herself to the husband under a guardianship claim. Keep the two generations and the two legal issues distinct.

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10.11 A welfare reasoning diagram

IDENTIFY THE CHILD'S NEEDS Safety, development, care, relationships and appropriate participation.
↓
TEST THE EVIDENCE Distinguish allegations, documents, actual care and proposed arrangements.
↓
APPLY THE LAW Status, jurisdiction, statutory presumptions and qualifications.
↓
REASONED ARRANGEMENT Choose and justify the order serving the child, with suitable access, protection or review where legally available.

The strongest welfare sentence
Welfare is assessed in its widest sense; neither the father's formal priority nor a party's superior wealth can replace a reasoned assessment of the child's actual interests.

CHAPTER 08 · GUARDIANS & WARDS ACT, 1890 PROCEDURAL BRIDGE

Appointment Procedure, Fiduciary Duties & Termination under GWA, 1890

Statutory & Procedural Summary: Because **Section 2 of HMGA, 1956** expressly declares its provisions to be *supplemental to, and not in derogation of*, the **Guardians and Wards Act, 1890 (GWA)**, court-appointed guardianship applications, procedural jurisdiction (District Court / Family Court where the minor ordinarily resides u/s 9 GWA), and post-appointment supervision are governed by GWA. In appointing or declaring a guardian u/ss. 7 & 17 GWA, the court considers the minor's age, sex, religion, character/capacity of the proposed guardian, and the minor's intelligent preference — subordinated under **S. 13 HMGA** to the overarching *paramountcy of the minor's welfare*. Every guardian stands in a strict **fiduciary relationship** u/s 20 GWA (barred from making personal profit), must preserve the ward's person and property (Ss. 24–27), and remains removable u/s 39 GWA for abuse of trust, persistent neglect, incapacity, or adverse interest.

CHAPTER 13·PRESCRIBED DU CASE · PART I

Githa Hariharan · the complete case file

Both petitions, detailed facts, chronology, prayers, issues and each side's recorded position.

DU CORE · PRESCRIBED CASE

Githa Hariharan v. Reserve Bank of India

(1999) 2 SCC 228 · Supreme Court · 17 February 1999
Bench: Dr A.S. Anand CJI, M. Srinivasan J. and Umesh C. Banerjee J.
Case file, Part I: facts, procedural setting, prayers, issues and the parties' recorded positions.

The primary source is the **uploaded DU extract, printed pp.211–222 / PDF pp.219–230**. The official Supreme Court Reports copy confirms the date, bench and the allocation of the opinions. The case is studied across this chapter and the next so that its factual record and legal reasoning each receive full treatment.

The result in brief.
The Court did **not** strike down HMGA section 6(a). It interpreted "after" as "in the absence of", allowing the mother's natural-guardian authority during the father's lifetime in the stated circumstances. RBI's insistence was rejected on the facts; the companion custody dispute was left to the District Court. The interpretation was expressly made prospective with the stated protection of past decisions/transactions.

13.1 Why there were two petitions

The Court heard two original writ petitions together because each challenged the constitutional validity of **HMGA section 6(a)** and **GWA section 19(b)** under **Articles 14 and 15**.

The first concerned a **cooperating married couple and RBI's refusal to accept the mother's signature**. The second concerned **parents in matrimonial litigation, with the father asserting exclusive guardian authority**. These are not two stages of the same family dispute. An accurate case brief must keep the facts and reliefs separate.

Petition	Immediate setting	What made the common legal issue arise?
W.P.(C) No.489 of 1995	Relief Bonds application involving Githa, her husband and their son	RBI treated the mother as ineligible to act while the father lived, despite parental agreement
W.P.(C) No.1016 of 1991	Pending divorce/custody proceedings in District Court, Delhi	Husband asserted that he alone was natural guardian; wife challenged the statutory hierarchy

13.2 The first family: the parents and child

Githa Hariharan was the **first petitioner**, and her husband was the **second petitioner**. The DU judgment describes her as a writer whose books were published by Penguin and him as a **medical scientist at Jawaharlal Nehru University, New Delhi**. Banerjee J.'s account identifies him as **Dr Mohan Ram**.

They married in **Bangalore in 1982**. Their son **Rishab Bailey** was born in **July 1984**. The extract does not supply an exact day of birth, so none is invented here.

These biographical facts locate the dispute; they are not statutory qualifications for a mother's authority. The decision does not confine its principle to writers, scientists or a particular social class.

13.3 The investment application

On **10 December 1984**, the parents jointly applied to RBI for **9% Relief Bonds worth ₹20,000**, to be held in the name of their minor son. The money was described as **money held by the minor son**, not as property which the mother claimed belonged to her personally.

They expressly stated their agreement that **the mother would act as guardian for the investment**. Githa accordingly signed the prescribed application form in that capacity.

This combination is decisive: there was **parental concurrence**, an act for the child and an institution's refusal based on legal status. There was no finding that the father had died, divorced the mother, disappeared or renounced the world. Those are not the facts of the RBI petition.

> APPLICATION VALUE**₹20,000**in the minor's name
> ·
> RELIEF BONDS**9%**application dated 10 December 1984

The figures identify the historical application. The judgment is not an instruction about a presently available bond product or an award of interest damages; no such financial result is invented.

13.4 RBI's refusal

RBI advised the parents either to submit the application **signed by the father** or to produce a **guardianship certificate from a competent authority in favour of the mother**.

In its counter-affidavit, RBI contended that the mother was not the natural guardian of the minor son while the father lived, defended refusal of the application, and sought dismissal of the writ petition. Its position treated the father as the only natural guardian in that setting under section 6(a).

The case therefore raised a concrete administrative barrier: must a mother already recognised within the statutory guardian framework obtain a court certificate solely because an institution treats "after him" as "after his lifetime"?

13.5 Prayers in the RBI petition

The parents sought:

1. striking down **HMGA section 6(a)** and **GWA section 19(b)** as contrary to Articles 14 and 15;
2. quashing RBI's refusal to accept the application/deposit;
3. a declaration recognising the mother as natural guardian; and
4. a **mandamus directing acceptance** of the application.

These are the **reliefs requested**, not a list of provisions the Court eventually invalidated. The distinction between prayer and actual disposition is essential because the Court chose a saving construction rather than striking down the legislation.

13.6 The companion matrimonial dispute

In **W.P.(C) No.1016 of 1991**, the petitioner was the wife of the first respondent. He had instituted divorce proceedings in the **District Court, Delhi**, and had also sought custody of their minor son. The wife had sought maintenance for herself and the child.

According to the wife, the husband repeatedly wrote to her and the child's school asserting that **he alone was the natural guardian** and that decisions should not be taken without his permission. Banerjee J.'s account records that the son was with the mother and that she alleged the father's **total apathy**, despite asserting his authority.

The allegations are not converted here into an independent Supreme Court finding that the father was legally unfit or that custody must finally go to the mother. The Court left that pending factual dispute for the District Court under the declared principles. Nor does the extract provide a maintenance amount or a final divorce outcome to be supplied by guesswork.

13.7 The constitutional challenge

The petitioners argued that the mother's right was treated as **inferior solely on the ground of sex**, because she could act only "after" the father on the restrictive reading. **Indira Jaising**, learned Senior Counsel, advanced the equality challenge on their behalf.

The challenge had two linked aspects:

- the **literal hierarchy** suggested by section 6(a); and
- the related restriction in the **then-existing GWA section 19(b)**.

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The latter provision at that date referred to the father. The current father-or-mother language introduced in 2010 should not be inserted retrospectively into the question the Court answered in 1999.

13.8 Petitioners' arguments in detail

Equality and non-discrimination: mothers bear responsibility for their children, yet the lifetime-only interpretation disabled them from exercising the corresponding authority. That unequal treatment was said to violate Articles 14 and 15.

Statutory structure: the definition of guardian in section 4(b) and natural guardian in section 4(c), read with section 6, already includes the mother. Treating her as legally excluded throughout the father's lifetime was inconsistent with that recognition and the protective purpose of the enactment.

Application to RBI: both parents agreed that the mother should act for the investment. The refusal could not be justified by a genuine dispute between them; it arose from RBI's categorical legal understanding.

Application to the companion matter: an assertion of exclusive authority without discharge of corresponding care obligations was challenged as inconsistent with both equality and the child's welfare. The mother's allegations supplied the basis for seeking constitutional relief, while the underlying custody facts remained contested.

Relief urged: counsel asked the Court to strike down the discriminatory provisions. The Court's willingness to give a constitutional interpretation instead must be recognised as its judicial response, not falsely attributed as the petitioners' only original prayer.

13.9 Respondents' recorded positions

Respondent-side position	What the DU record supports	What should not be invented
RBI	The father was treated as the only natural guardian during his lifetime; mother needed father's signed application or a competent certificate; petition should be dismissed	A finding that she was dishonest, incapable, financially unsuitable or misusing the child's funds
Companion husband	Divorce and custody prayers; assertions of sole natural-guardian authority and need for his permission	Detailed unrecorded oral submissions, a proved lack of maternal fitness, or a final custody award

The brief records both sides to the extent the primary material records them. It does not manufacture a fuller defence merely to make the case resemble a conventional adversarial property trial.

13.10 Issues for determination

1. Does **"after him"** necessarily mean **after the father's death**, or can it bear a constitutionally permissible wider meaning?
2. Can a mother act as natural guardian during his life where he is absent from the relevant care, indifferent, unable, or has agreed that she should act?
3. How do **sections 4 and 6** interact?
4. What role do **Articles 14 and 15**, legislative purpose and the presumption of constitutionality play?
5. Does the same approach govern the then **GWA section 19(b)**?
6. Was RBI justified in insisting on the father's signature/court certificate on these facts?
7. How should the pending companion custody matter be dealt with?
8. What effect should the ruling have on **past transactions and concluded decisions**?

The last three are often missing from short case summaries, although they are crucial to the actual disposition.

13.11 The procedural character of the decision

The Supreme Court was exercising **original writ jurisdiction under Article 32** over the constitutional challenge. The bank case was not a routine appeal from a District Court's guardian appointment. The companion District Court case remained pending; the Supreme Court did not conduct a complete custody trial in its place.

The authority decision and the custody decision therefore have different procedural results. Correctly describing the former as a recognition of maternal authority does not authorise describing the latter as a final award of custody to the mother.

13.12 Timeline: keep the two proceedings separate

Time	Bank-petition track	Companion-petition track
1982	Githa and Dr Mohan Ram marry in Bangalore	No corresponding date supplied in this extract
July 1984	Rishab Bailey is born	Do not transfer this child's name/date to the companion family
10 December 1984	Joint ₹20,000 application for 9% Relief Bonds, with mother as guardian	Separate family dispute

by Ankur R. Upadhyay

Time	Bank-petition track	Companion-petition track
1991 writ number	Not the number of Githa's bank petition	W.P.(C)1016/1991 challenges the guardian hierarchy alongside pending matrimonial proceedings
1995 writ number	W.P.(C)489/1995	Companion matter remains distinct
17 February 1999	Mother's application to be accepted consistently with the interpretation; methodology directed	District Court to decide custody/guardianship under the principles

The extract does not explain every interval between the application and litigation. A detailed brief should not invent a sequence of unreported appeals or administrative representations to fill those intervals.

13.13 The two opinions: how to read the next chapter

Anand CJI, writing for himself and **M. Srinivasan J.**, agreed with **Banerjee J.'s conclusion** and added reasons. The DU volume places Anand CJI's reasons first, followed by Banerjee J.'s numbered portion. The official SCR report orders them differently.

The opinions share the result but develop the argument with different emphasis: Anand CJI is especially explicit about the functional situations, the bank's error and prospectivity; Banerjee J. develops the constitutional, definitional and welfare foundations. Their approaches to the supporting precedents also differ in emphasis, without producing a dissent.

Continue to Part II: reasoning, principles, precedents and exact orders →

CHAPTER 14·PRESCRIBED DU CASE · PART II

Githa Hariharan · reasoning & principles

Both opinions, Jijabai and Panni Lal, constitutional construction, actual orders, prospectivity and critical evaluation.

DU CORE · PRESCRIBED CASE, PART II

Githa Hariharan: the reasoning and the result

Read with the preceding factual case file · References follow the uploaded DU paragraph numbering unless expressly labelled SCR.
The organising proposition: equal dignity and child welfare support a constitutional interpretation of existing guardian status; neither parent receives unlimited power over the child or estate.

14.1 Anand CJI: start with the statutory definitions

Sections **4(b) and 4(c)** identify guardian and natural guardian. The mother is within the persons recognised by section 6. The definitions do not themselves exclude her or make her a stranger to the legal status.

The difficulty therefore lies in the restrictive reading of **“the father, and after him, the mother”**. Anand CJI notes that a cursory reading may suggest a lifetime-only rule, and that RBI had adopted it. But the definitions, the rest of the Act, welfare and constitutional principles must be read together.

14.2 Court disputes and administrative acts are different settings

When a dispute about a minor's custody/guardianship reaches court, welfare in its **widest sense** is central. A formal paternal priority cannot conclude that inquiry. The word “after” becomes especially problematic when the mother acts **without the matter first going to court**, and someone challenges her action solely because the father lives.

That was the concrete RBI difficulty. Both parents concurred, yet the institution insisted on the father's legal priority. The case therefore concerns everyday recognition of legal authority as well as the larger equality principle.

14.3 Constitutional avoidance through an available reading

If “after” could only mean “after the lifetime”, the provision would offend gender equality. The Court asks whether a Parliament legislating after the Constitution intended to disregard its guarantees; it presumes constitutional legislation.

Where one available interpretation would make a statute unconstitutional and another would keep it within constitutional bounds, the latter is preferred. This is not a licence to impose any meaning the judge wishes. The interpretation must be **open on the language and consistent with the statutory purpose**.

The Court found such a reading here. The outcome was preservation through interpretation, not a declaration striking the provision out of the statute book.

14.4 The functional-absence interpretation

The word “after” means **“in the absence of”**, with absence referring to the father's absence from the actual care of the minor's person/property. Anand CJI gives the following situations:

- father wholly indifferent to the child's affairs, **even if living with the mother**;
- mutual understanding putting the mother in charge;
- father staying elsewhere and consequently unable to take the relevant care;

- physical or mental incapacity;
- similar circumstances demonstrating actual absence from those responsibilities.

The mother's authority is natural-guardian authority under the statute, not a makeshift de facto power created by sympathy. The Court considers the interpretation a harmonious reading of sections 4 and 6 which does no violence to the language.

14.5 Paragraph 16: the operational statement

The Court emphasises that **both parents are duty-bound** to care for the person and property of their minor child and act in the child's best interests. Where the father is not in actual charge for the stated reasons and the mother bears the relevant care, she can act even during his lifetime. An agreement may be **oral or written**.

Do not turn this into a requirement that every mother must first obtain the father's permission: agreement is one route, alongside indifference and inability. Likewise, the actual RBI agreement concerned the investment. It would defeat the factual setting to insist that the mother prove the father had ceased every form of involvement in the child's life before that agreed administrative act could be recognised.

The language validating her actions addresses the **status objection based on the father's lifetime**. It does not exempt her from section 8's restrictions on a different act, such as alienation of separate immovable property.

14.6 Jijabai Vithalrao Gajre: a factual foundation

The DU judgment relies on **Jijabai Vithalrao Gajre v. Pathankhan, (1970) 2 SCC 717**. This was a tenancy/property setting, not merely a mother asking for custody. The mother had managed her minor daughter's affairs after the parents fell out and lived separately for over twenty years. From **1951–1956** she had made oral leases; for **1956–57** a written lease was executed in the context described.

The father was alive but took no interest in the child's affairs. He was treated as effectively non-existent for that purpose, allowing the mother to be regarded as natural guardian. Anand CJI describes the present interpretation as an **expansion of that principle**.

The facts do not create a twenty-year waiting period. Nor does reference to those leases repeal HMGA's later-applicable permission rules for every kind of lease. Use the case for the recognition of actual care and functional paternal absence.

14.7 Panni Lal: why property safeguards remain

The DU extract includes discussion of **Panni Lal v. Rajinder Singh, (1993) 4 SCC 38**, but curtails part of the introductory passage. The official SCR report clarifies the context: a mother sold minors' land; the father attested; court permission was absent; and the required necessity/benefit was not established.

There was no evidence of the kind of paternal indifference or exclusive maternal management found in Jijabai. The father's attestation did not convert the transaction into a properly authorised sale by him or itself fulfil section 8.

In **Anand CJI's paragraph 13 in the official report**, omitted in the DU selection, the Court makes the point explicit: **even if the father had sold on those facts, the sale could have been annulled for lack of court permission**. Panni Lal therefore did not contradict the present construction; it turned on its particular property-protection facts.

That clarification prevents two errors: saying Githa overruled every property restriction, and saying Panni Lal makes every sale by a living father's wife automatically void irrespective of her actual legal authority and the transaction's compliance.

14.8 International norms as interpretive assistance

The Court refers to **CEDAW** and the **Beijing Declaration** in support of eliminating discrimination against women. It recognises the role of international conventions/norms in construing domestic law **where no inconsistency exists**, citing **Apparel Export Promotion Council v. A.K. Chopra, (1999) 1 SCC 759**.

The argument complements the constitutional and statutory reading. It is not a holding that every international statement automatically overrides an Indian enactment. The judgement's references to India's 1993 acceptance/ratification are reported for their interpretive significance; this guide does not rely on the extract as an independent treaty-date database.

14.9 The then GWA section 19(b)

Anand CJI states that section 19(b) GWA must be construed consistently with the construction of HMGA section 6(a). The same conceptual error—treating a living father as an invariable legal obstruction despite actual absence from care—must not defeat the mother's recognised position.

The **later 2010 substitution** is distinct. It expressly inserts the current father-or-mother formulation for the specified person-guardianship restriction. The 1999 interpretation and 2010 amendment should be presented as separate legal developments.

14.10 Banerjee J.: equality, responsibility and the object of the Act

Banerjee J. begins with the constitutional commitment to equality and the challenge to the mother's inferior position. The discussion of international human-rights instruments and women's status frames the issue, but the reasoning returns repeatedly to **the child's welfare** and **the statutory definitions**.

Guardianship is described as a trust. The guardian's office is not interchangeable with a temporary delegation of custody for education or related purposes. The history of de jure/de facto guardians is explained, followed by the supplemental relationship between HMGA and the general statutes.

The result is not a contest in which either adult receives a personal entitlement divorced from responsibility. Both parents' authority is justified by their duties towards the child.

14.11 Banerjee J.: welfare is wider than wealth

The opinion draws upon **Re McGrath** and **Re Gyngall**. Welfare encompasses moral and religious welfare, physical well-being, affection, age, circumstances and happiness. A child should not be removed from a natural parent merely because another person can offer greater wealth.

These passages resist a rigid proprietary understanding of parental rights. They also prevent an overly economic assessment of custody: income matters in context, but the child's emotional security and relationships cannot be priced away.

This is a principle of assessment, not an automatic direction favouring a mother, father or relative in every future dispute.

14.12 The two opinions' treatment of precedent

Point	Anand CJI's emphasis	Banerjee J.'s emphasis
Jijabai	Present construction expands an existing recognition of the mother where father is effectively absent	Earlier case was fact-specific and did not determine the full constitutional meaning; useful for welfare recognition
Panni Lal	Distinguishable property transaction; permission/ benefit safeguards explain the result	Does not decide the central constitutional issue in the present case; concerned property protection
Definitions	Mother is already within recognised natural guardians; read sections 4 and 6 together	Same statutory meaning of guardian should guide the central provision; maternal status is not obliterated by the father's life
Outcome	Functional absence, RBI relief, prospectivity and District Court decision of custody	Saving interpretation grounded in equality/welfare; institutional methodology and District Court adjudication

These differences are **differences of reasoning and emphasis**, not a dissenting disposition. The official report confirms that Anand CJI and M. Srinivasan J. agreed with Banerjee J.'s conclusion.

14.13 Definitions, constitutional supremacy and "after"

In the latter part of his opinion, Banerjee J. stresses that sections 4 and 6 already contemplate both parents as guardians. A father's dominant personality cannot supply a preferential entitlement contrary to constitutional gender equality.

The word "after" must therefore be understood to serve the child's welfare and the statute's purpose: **absence, temporary or otherwise, total apathy, illness or inability**, rather than necessarily death. A narrow interpretation contradicting the constitutional guarantee should not be preferred where a lawful alternative is available.

The Court's broad equality language is important, but the actual statutory solution remains this interpretation. Do not present it as a textual amendment replacing "father, and after him, mother" with an express rule of unrestricted joint decision-making in all circumstances.

14.14 Exact order in the RBI matter

RBI was wrong to insist on the father's signature or a court order merely on its lifetime-only view, **particularly because the parents' joint letter evidenced agreement**. The Court said RBI ought to accept the mother's application.

RBI and similarly placed organisations were to formulate appropriate methodology in light of the Court's observations and the contextual facts. Banerjee J.'s closing direction also emphasised that institutional methodology.

No damages amount, interest computation, title transfer of the child's funds or universal waiver of legitimate documentation requirements appears in the operative result. The decision removes the unjustified legal-status barrier; it is not a general exemption from every procedural safeguard.

14.15 Exact order in the companion custody matter

The pending **District Court, Delhi** proceeding concerning the minor son's custody and guardianship was to be decided in light of the declared principles. The Supreme Court did **not** finally award custody to the mother, determine all contested parental fitness facts or dispose of the divorce proceedings.

Both writ petitions were disposed of **without an order as to costs**. "Disposed of with these directions" is more accurate than describing the result as statutory provisions being struck down or a custody appeal being allowed for the mother.

14.16 Prospectivity: paragraph 18 must not be omitted

Anand CJI expressly states that the judgment operates **prospectively** and does not enable reopening of a decision already rendered or questioning the validity of a past transaction **on the basis of this judgment**.

The Court recognised reliance on the prior understanding and protected concluded matters/transactions from being unsettled solely by the new interpretation. Accordingly:

- an earlier concluded decision is not automatically reopened because the mother now invokes Githa;
- a past transaction is not newly invalidated or revived solely by re-characterising it through this judgment;
- the pending petitions themselves receive the directions actually made;
- the statement is not a blanket amnesty for fraud or every independent statutory defect, nor a complete replacement of limitation law.

This qualification prevents the tempting but incorrect answer that the Court retrospectively validated every transaction ever made by a mother while the father lived.

14.17 Ratio, illustrations and limits

Category	Proposition
Central ratio	"After" in section 6(a) does not necessarily mean after death; it includes the father's functional absence so that the recognised mother can act in the stated circumstances
Interpretive foundation	Definitions, welfare, equality and a constitutionally permissible construction of the enactment
Illustrative situations	Indifference even in a shared home, mutual arrangement, absence linked to inability, physical/mental incapacity and similar factual settings
GWA connection	Consistent interpretation of then section 19(b), before its later legislative substitution
Administrative result	RBI's insistence was unjustified on the facts; maternal application and appropriate methodology recognised
Custody limit	Companion matter left to District Court; no automatic maternal custody award
Property limit	Authority as natural guardian does not abolish section 8
Temporal limit	Express prospective effect and protection of concluded decisions/past transactions as stated

14.18 Critical evaluation without changing the holding

Achievement: the decision prevents a lifetime-only reading from disabling mothers who actually care for children or act under parental arrangements. It connects authority with responsibility and reduces an institutional barrier without invalidating the statute.

Continuing question: the textual sequence remains. The uploaded Lexis discussion asks whether the decision supplies complete express equality where both parents are active and disagree. That is a meaningful critical issue, but not a reason to deny the mother's recognised authority or to claim the Supreme Court enacted an entirely new joint-guardianship code.

Welfare perspective: the ruling's strength lies in reading parental equality alongside the child's interests, rather than treating the litigation as a transfer of absolute dominion from one adult to another.

Method: constitutional avoidance can preserve useful protective legislation. Its legitimacy here is linked to an available meaning of "after", not an unrestricted judicial power to ignore the statutory text.

14.19 Examination-ready formulation

> **Full ratio in a compact paragraph**
> In Githa Hariharan, the Supreme Court construed "after him" in HMGA section 6(a) as "in the absence of", not necessarily after the father's death. A mother already recognised as natural guardian may act during his lifetime where he is absent from actual care through indifference, agreement, inability or comparable circumstances. The construction preserves constitutional equality and welfare without striking down the section. RBI had to recognise the mother's application on the facts; the companion custody matter remained for the District Court, and the judgment was expressly prospective in the stated sense.

14.20 What not to write

- "Section 6(a) was declared unconstitutional and removed."
- "The mother can act only after obtaining the father's written permission."
- "Every overseas father automatically loses all guardian rights."
- "Githa makes all sales by mothers valid without court permission."
- "The Supreme Court granted the companion mother final custody."
- "All past guardian transactions can now be reopened."
- "The 2010 father-or-mother wording was enacted by the 1999 judgment."

Each statement loses a distinction that the primary source carefully preserves.

CHAPTER 15 · SYNTHESIS

Comparison desk & problem-solving

Classify authority, custody, property, will priority, jurisdiction and the relevant legal date.

15.1 The master classification table

Wide comparison · scroll horizontally where needed

Situation	Source of authority	Main limits	Typical error
Natural father/mother	HMGA sections 4, 6 and the relevant interpretation	Section 8, statutory qualifications and welfare	Treating parenthood as ownership or ignoring maternal authority
Mother while father lives	Githa's functional-absence construction of section 6(a)	Actual context; section 8 still applies; custody dispute remains welfare-based	Requiring father's death or claiming unlimited maternal powers
Adoptive parent	Lawful adoption, HMGA section 7 and connected family-status provisions	Correct parentage and statutory field	Treating every later spouse as adoptive/natural parent
Testamentary guardian	Qualifying will appointment under section 9	Surviving mother/revival, Act and will restrictions, welfare and cessation	Father's nominee automatically displaces living mother
Court-appointed/ declared guardian	GWA order and applicable law	Defined role, supervision, permission, accounts and removal	Assuming appointment permits every property transaction
De facto caregiver/ manager	Factual care alone supplies no disposal authority	HMGA section 11	Care, kinship or registration alone authorises sale
Minor purported property guardian	No competence under HMGA section 10	Statutory age incapacity	Marriage or parenthood automatically creates property capacity
Adult manager of joint-family property	Established joint-family management and applicable law	Actual undivided interest, manager's powers and section 12 proviso	Either demanding section 8 permission automatically or treating every sale as immune

15.2 Natural-guardian authority versus custody

Question	Correct focus
May the mother sign for a child during the father's lifetime?	Sections 4/6 as interpreted in Githa and the actual circumstances
Must an institution insist on a court certificate solely because the father lives?	No such lifetime-only insistence follows where maternal authority is established; consider the case's facts
Who should have physical custody?	Welfare, the relevant statutory provisions and evidence
Is the under-five mother rule absolute?	No; it is an ordinary custody rule subject to welfare
Does the child automatically move to the father at five?	No automatic transfer follows
Can a non-custodial parent retain legally relevant responsibilities?	Custody and legal status are not identical; actual law/order controls
Does a custody order authorise sale of the child's house?	Not by that label alone; identify the property power and required permission

15.3 Property consequences: do not mix the boxes

Section 8(3)
A true natural guardian's disposal in breach of subsection (1) or (2): **voidable** at the protected person's instance.

Section 11
Disposal based merely on de facto management: no statutory authority; **void** in the rule explained by Madhegowda.

Section 12
Actual undivided joint-family interest under adult management: a **different statutory field**, not an unlimited-sale exemption.

The remedy and limitation follow the correctly identified category. “The transaction involved a minor” is only the beginning of the analysis.

15.4 The will sequence in four questions

1. Was the appointing parent **entitled** under the relevant part of section 9?
2. Did the father **predecease the mother**, postponing the effect of his appointment?
3. Did the mother later **appoint a guardian by will**, affecting revival?
4. Does the appointment remain within the Act, will, minority and welfare requirements?

An appointment can be validly written yet not presently operative. An operative appointment can still be limited in its powers. A property bequest and a guardian appointment may appear in the same instrument but do different legal work.

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15.5 The five meanings of "court involvement"

Court involvement	What it concerns
Appointment/declaration	Who holds guardian authority in the defined field
Property permission	Whether a particular restricted act may be undertaken
Custody/protection	Where and how the child should be cared for, including interim measures
Supervision/accounts/removal	Whether the guardian is properly performing the office
Constitutional adjudication	Whether the governing rule or institutional interpretation complies with constitutional requirements

Githa primarily supplies the final category and its consequences for natural-guardian recognition, while leaving the companion custody matter to the proper court. It does not collapse all five functions into a general certificate.

15.6 Dates which change the answer

Date / stage	Why it matters
25 August 1956	HMGA's codified regime; old de facto-management assumptions cannot be repeated without considering section 11
10 December 1984	The actual RBI application, not the judgment date
17 February 1999	Githa decision; two opinions, saving construction and prospective qualification
31 August 2010	Legislative substitution of GWA section 19(b); distinct from the 1999 judgment
31 October 2019	Territorial amendment recorded in the uploaded HMGA
Minority / majority date	Authority, lease limits, cessation and relevant limitation questions
Date of permission versus transaction	Section 8 requires previous permission where applicable

Do not use a later amendment as if it appeared in a 1999 judicial quotation or a 2009 exam answer. In a current study answer to an older question, the later position can be added with an explicit date label.

15.7 A unified problem-solving flow

What is actually disputed?

Mother's legal authority

Define guardian/natural guardian; apply section 6(a), Githa's factual pathways and welfare. Do not require death automatically.

A property transaction

Classify actor and asset, then apply sections 8, 10, 11 or 12. Check permission, benefit, consequence and remedy.

Care or court appointment

Identify the appropriate forum and relief; apply GWA/HMGA, child participation and a reasoned welfare assessment.

Do not stop at the first label. A conclusion about one issue does not automatically answer the other two.

15.8 How to write a careful conclusion

A useful conclusion states what the supplied facts establish and what remains conditional:

> *"The father's continued life does not itself defeat the mother's natural-guardian authority. The agreement and care circumstances must be assessed under Githa. If she is the natural guardian, her sale of the child's separate land still requires the section 8 inquiry; a lack of previous permission is not cured by recognising her status."*

Or:

> *"The five-year lease does not exceed the first limb, but because it extends more than one year beyond majority it engages the second limb. Prior permission is therefore required on the stated exact-age facts."*

Such an answer is more precise than an unqualified "valid" or "invalid" which overlooks the actor, property and statutory trigger.

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DU LL.B. EXAMINATION ARCHIVE

Previous Year Questions — Unit 05: Minority & Guardianship under Hindu Law (HMGA, 1956)

Q.01 May–June 2009 supplementary · Q8(i) · Mother as guardian in the father's presence

Write short notes on any two of the following: (i) Mother as a guardian to her child in presence of father under Hindu law.

- **Refer website for detailed notes — makelaweasy.in**

Q.02 December 2010 · Q1(a) · Mother's guardianship; misnamed Act in source

Attempt briefly any four of the following: (a) Mother as a guardian to her child in the presence of father under Hindu Adoption and Maintenance Act, 1956.

Q.03 December 2011 · Q6(b) · Define natural guardian; mother during father's life

Define natural guardian and discuss whether the mother can act as the natural guardian of a legitimate minor child during the life time of father.

Q.04 Repository-labelled 2012 · paper 3429 · Q6(ii) · Mother's capacity in father's presence

Discus the capacity of a mother to be a guardian of a minor child in presence of the father?

Q.05 Repository-labelled 2013 · paper 2074 · Q6(b) · Natural guardian and the mother's authority

Define natural guardian and discuss whether the mother can act as the natural guardian of a legitimate minor child during the life time of father.

Q.06 Repository-labelled 2014 · paper 7854 · Q8(ii) · Mother as guardian under HMGA

Answer any two of the following: (ii) Mother as a guardian in the presence of father under Hindu Minority and Guardianship Act, 1956.

Q.07 December 2015 · paper 2455 · Q8(a) · Mother's natural guardianship with authority

Define natural guardian and discuss whether the mother can act as the natural guardian of a legitimate minor child during the life time of father. Refer statutory provisions and case law, if any, in support of your answer.

Q.08 Repository-labelled 2016 · paper 7884 · Q7(a) · Mother's authority; judicial precedent required

Whether mother can act as the natural guardian of a legitimate minor child during the lifetime of father? Substantiate your answer with judicial precedent.

Q.09 Repository-labelled 2017 · undated paper 6857 · Q8(d) · Mother as guardian; statute and numbering anomalies

Write short notes on any two of the following: (d) Mother as guardian under HAMA, 56.

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LAW CRUX · PAPER LB-105 · UNIT 06 Muslim Personal Law (Shariat) Application Act, 1937 · Primary & Secondary Usul al-Fiqh · Sunni & Shia Schools

Sources & Schools of Muslim Law

Primary Sources (Qur'an, Sunnat/Ahadis, Ijma, Qiyas), Secondary Sources (Urf/Custom, Judicial Decisions, Legislation — Shariat Act, 1937, Justice, Equity & Good Conscience) & Sunni (Hanafi, Maliki, Shafei, Hanbali) vs Shia Schools

PART 1

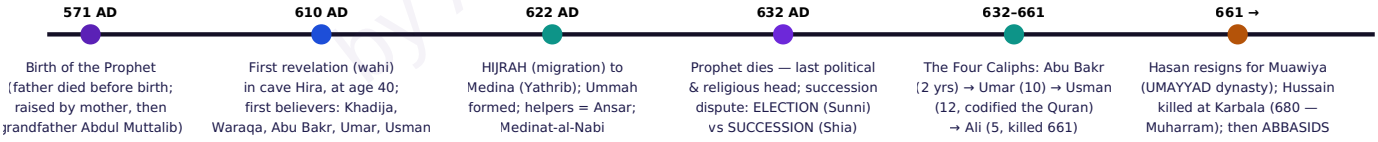
Unit VI — Sources of Muslim Law

Framing. Family law regulates marriage, divorce, inheritance, succession, adoption, minority and guardianship; in India these matters are governed by the different **personal laws** — Hindu law (including Jains, Buddhists and Sikhs), Muslim law, Christian law, Parsi law, and the secular Special Marriage Act, 1954. **Who is a Muslim?** A person whose faith is in Islam — *Islam* means "submission to the will of God" (and, derivatively, establishment of peace): one who believes that **Allah is one and Muhammad is His messenger**. For *legal* purposes a Muslim is one who believes in the one God and the prophethood of Muhammad, and who is governed by Muslim personal law (a person can also become Muslim by a bona fide profession of faith; conversion is dealt with under DMMA s. 4 — see Unit VIII notes).

Regulatory anchor — the Shariat Act, 1937: application of Muslim personal law (as against contrary custom) is regulated by the Muslim Personal Law (Shariat) Application Act, 1937. **S. 2:** where both parties are Muslim, the rule of decision *shall be Muslim personal law* (notwithstanding any custom or usage to the contrary) in questions of: (a) intestate succession; (b) special property of females; (c) marriage; (d) dissolution of marriage — including *talaq, ila, zihar, lian, khula and mubaraat*; (e) maintenance; (f) dower; (g) guardianship; (h) gifts; (i) trusts and trust properties; (j) wakfs (other than charities and charitable institutions and charitable and religious endowments). (Save questions relating to agricultural land. Per your class notes, the Act does **not** extend to **adoption, wills and legacies** — s. 2 originally left these to custom; s. 5 on the District Judge's power in dissolution suits was repealed by the DMMA scheme, and s. 5 of the Act itself was repealed by the 1939 Act's s. 6, itself later repealed.)

1.1 Historical foundation (as set out in the class notes)

Fig. 1 — From the Prophet to the Schools: timeline (based on DU class notes)

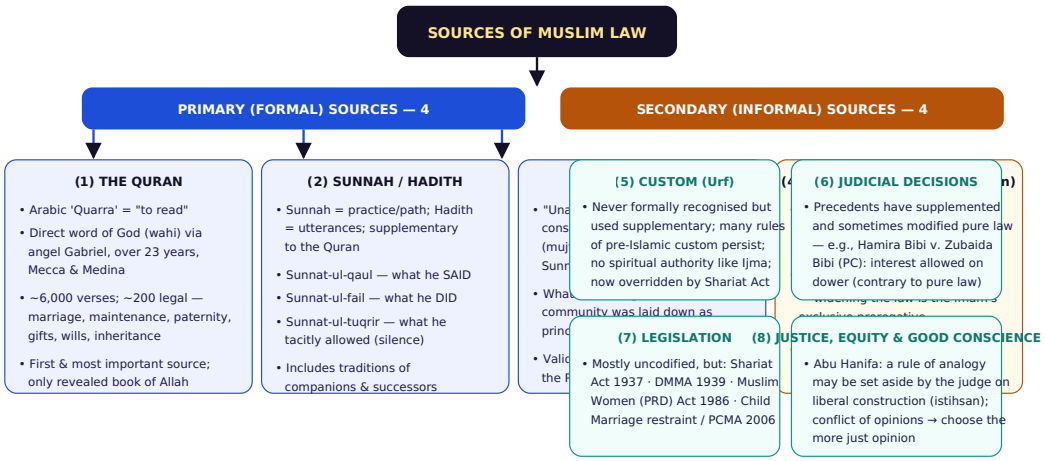


Caliphate abolished 1924 by the National Assembly of Ankara. Daughter Fatima married Ali (Prophet's cousin); Hasan became 5th caliph briefly.

The **Sunni–Shia split was political before it was religious**: Sunnis (view urged by Ayesha, the Prophet's youngest wife) advocated election — Abu Bakr was elected first Caliph; Shias (view urged by Fatima, the Prophet's daughter) held that spiritual leadership passes by **nobility of blood** — succession, not election — and installed **Ali as first Imam**. The murders of Ali, Hasan and Hussain (Karbala, 680 AD, mourned on Muharram) widened the split into legal divergence. The **Motazila** sect — defectors from the Shia fold, 9th century AD, associated with Ata-al-Ghazzal — associated with neither mainstream.

1.2 The sources — primary (formal) and secondary (informal)

Fig. 2 — Sources of Muslim Law



The two conceptions of Muslim law (class notes)

(1) Shariat — the revealed law

Wider, broader orbit covering **all human actions** with various grades of approval (obligatory, recommended, permitted, disapproved, forbidden); God and the Prophet "laid down the path of shariat".

(2) Fiqh — the science of jurisprudence

Narrower — the classification of acts as legal/illegal; the whole structure is erected by **human agency**: the ulema's systematic inquiry (*ijtihad*) into the four roots (*usul al-fiqh*).

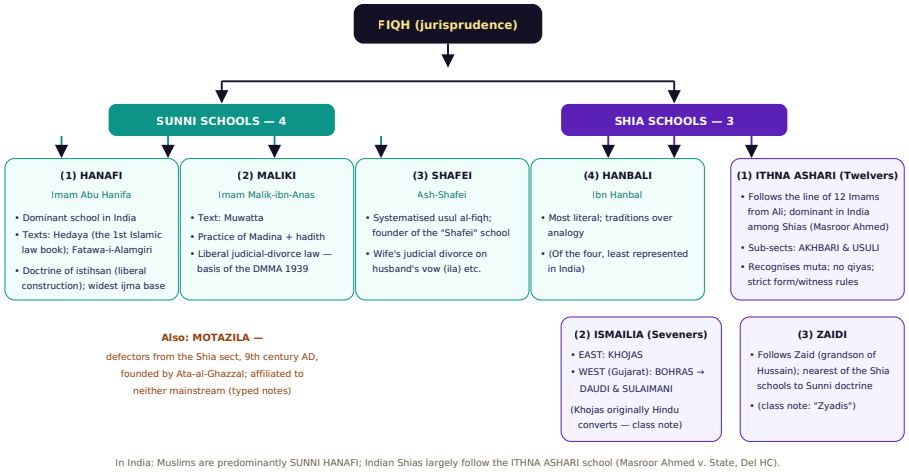
Related terms from the notes: **Tafsir** (discussion/discourse on the texts) → yields **Qiyas** (analytical deduction) and **Ijtihad** (personal thought of the learned) → **Fiqh** (jurisprudence) → crystallised through **Ijma** (consensus) → **SHARIAT** (Islamic law). The doctrine of **ijtihad** closed among Sunnis with the four schools; Shia tradition vests interpretive authority in the Imam.

PART 2

Unit VI — Schools of Muslim Law

The division is political in origin (succession to the Prophet) but produced **legal divergence**: differences in reliance on different hadith, different ijma, and different attitudes to qiyas. Shias reject all traditions/words handed down by anyone other than **Ali** and his line — hence *Shia-t-i-Ali*, "the faction of Ali". Sunnis accept the traditions and decisions of the Imams and the general body of juristic learning supplementing the Quran.

Fig. 3 — The Schools of Muslim Law (FIQH → SUNNI / SHIA)



In India: Muslims are predominantly SUNNI HANAFI; Indian Shias largely follow the ITHNA ASHARI school (Masroor Ahmed v. State, Del HC).

Point	Sunni (esp. Hanafi)	Shia (esp. Ithna Ashari)
Source of authority	Quran + Sunnah + Ijma + Qiyas; traditions of companions/Imams/jurists at large	Quran + traditions only through Ali and the Imams; no qiyas
Marriage without witnesses	Valid but **irregular (fasid)** — 2 male / 1 male + 2 female witnesses required	**Valid** — witnesses not required

Point	Sunni (esp. Hanafi)	Shia (esp. Ithna Ashari)
Consent under compulsion	Marriage **valid** (classical)	**Void**
Marriage during iddat / 5th wife / non-Kitabia wife	Irregular (fasid)	**Void** (no middle category)
Talaq	No form/witnesses needed; contingent & bidaat talaq recognised (classical)	Oral, in Arabic, before 2 aadil witnesses; contingent talaq & bidaat **not recognised**
Muta (temporary marriage)	Not recognised	Recognised (Ithna Ashari)
Dower	Minimum 10 dirhams; unspecified dower: part prompt/part deferred	No minimum; proper dower max 500 dirhams; whole dower **prompt** if unspecified
Khula	Husband may revoke within iddat (journal note)	Final on acceptance
Personal liability of father (minor son's dower)	Father not personally liable	Father personally liable if minor son has no means (PC decision, Settled Mahomedan Law)

Exam hook: When a question says "under Sunni and Shia law" — this table is your skeleton. Add the sources (Part 1) and history (Fig. 1) for a full "Sources and Schools" essay.

STATUTORY ANCHOR

Muslim Personal Law (Shariat) Application Act, 1937

Shariat Act, 1937 — s. 2
Application of Muslim personal law is regulated by the **Muslim Personal Law (Shariat) Application Act, 1937**. **Section 2** provides that where both parties are Muslims, the **rule of decision shall be Muslim personal law** in matters of:

(i) intestate succession (inheritance);
(ii) special property of females;
(iii) **marriage**;
(iv) **dissolution of marriage**;
(v) **maintenance**;
(vi) **dower**;
(vii) guardianship;
(viii) gifts;
(ix) trust & trust properties;
(x) wakf.

The Act does **not** apply to **adoption, wills and legacies**; and it does not cover **agricultural land**, **testamentary succession** and **charities other than wakf** (except as notified by States). It is an "important and far-reaching enactment" applying to the entire Muslim community regardless of school.

DU LL.B. EXAMINATION ARCHIVE

Previous Year Questions — Unit 06: Sources & Schools of Muslim Law

Q.01 20 marks · asked twice (Q7a & b; Q1)
Essentials of Nikah under Sunni and Shia law.

- **Refer website for detailed notes — makelaweasy.in**

Q.02 10/20 marks · core Unit VI (no dedicated capsule row — highest-probability "extra")
Discuss the sources of Muslim law and the differences between the Sunni and Shia schools.

Q.03 DU LL.B. Semester I · 20 Marks
Explain the primary and secondary sources of Muslim Law. Distinguish between Ijma and Qiyas, and examine the status of Custom (Urf) after the Muslim Personal Law (Shariat) Application Act, 1937.

Q.04 DU LL.B. Semester I · Short Note / 10 Marks
Trace the historical origin of the Sunni and Shia schools of Muslim Law and bring out their principal doctrinal differences relating to marriage, dower, divorce, and inheritance.

LAW CRUX · PAPER LB-105 · UNIT 07 Nikah & Mahr Doctrines · Sahih, Fasid & Batil Distinctions · Muta vs Nikah · Presumptions & Prescribed DU Cases

Marriage (Nikah) & Dower (Mahr) under Muslim Law

Legal Nature of Nikah (Civil Contract vs Sacrament), Essentials (Ijab-o-Qubul, Witnesses, Capacity, Khyar-ul-Bulugh), Valid (Sahih), Irregular (Fasid) & Void (Batil) Marriages, Muta Marriage, Classification of Mahr & Widow's Lien

PART 3

Unit VII — Nikah: Nature, Objects & Solemnisation

3.1 Meaning

Nikah literally means the conjunction of the sexes — "the marriage of the sexes"; some derive it from a root meaning "to tie together". Legally, classic authorities define marriage (*nikah*) is "a legal contract which has for its object the procreation and legalisation of children" — a civil contract which legalises intercourse and legitimises children.

3.2 Nature — contract, sacrament, or both?

The contractual view

Justice Mahmood (Allahabad HC): Muslim marriage "is not a sacrament but purely a civil contract". Support: consent through offer–acceptance; consideration (*mahr*); capacity; absence of mandatory ceremony or priesthood; dissolution allowed. **Abdul Kadir v. Salima** (1886, Mahmood J.): marriage is a contract and the analogy Muslim jurists use is that of **sale** (hence dower compared to the price); dower as "consideration" is nevertheless not Contract-Act consideration — it is an obligation imposed as a **mark of respect to the wife** (see Part 6).

The religious-duty view

Sulaiman C.J., Anis Begum v. Muhammad Istafa (1933) 55 All 743: Islamic law regards marriage **partly as *ibadat* (devotional acts)** and **partly as *muamlat* (worldly dealings/contract)**. **Abdul Rahim** likewise terms marriage of the nature of *ibadat* and *muamlat*. The Prophet: "**Marriage is my sunna**; whosoever keeps away from it is not of me." Celibacy is not approved; even the clergy are expected to marry (contrast the Roman Catholic church).

Social dimension: nikah is a well-established social institution which **confers a dignified status upon a woman** — it converts her from an object of male possession (the pre-Islamic position) into a legal person with contractual rights (dower, maintenance, inheritance). As Krishna Iyer J. observed in *Yousuf Rawther* (quoted in your Unit VIII material), marriage under Islam is a civil contract yet rights and responsibilities attached to it are "of such importance to the welfare of humanity that a high degree of sanctity is attached to it."

3.3 Objects of marriage

(1) Legalisation of intercourse

The lawful regulation of the sexual relationship between husband and wife — intercourse outside marriage is prohibited (*zina*).

(2) Legalisation of generations

Legitimisation of children — the child of a valid marriage is legitimate and inherits from both parents (in a fasid marriage too, if consummated; never in a batil marriage).

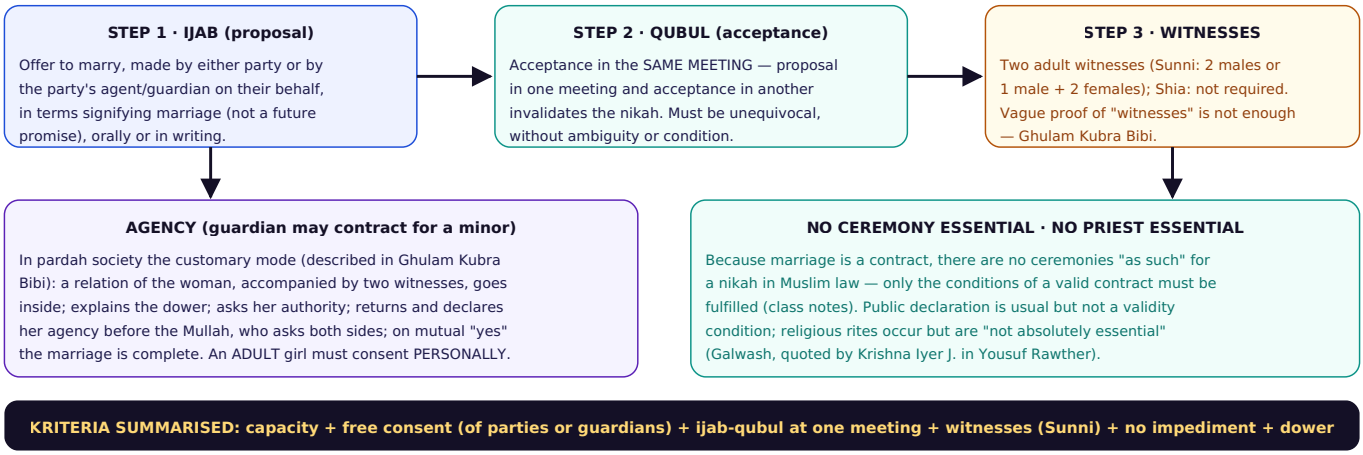
(3) Social & religious aims

Promotion of love, mutual support and creation of families — the essential units of society; performance of a religious duty (*sunnah* of the Prophet); protection of the dignity and identity of women.

3.4 Solemnisation — how a nikah is performed

Fig. 4 — Solemnisation of Nikah (from the DU case material — Ghulam Kubra Bibi, and class notes)

by Ankur R. Upadhyay



PART 4

Unit VII — Conditions for a Valid Nikah (Elements & Components)

The five conditions of validity are: **(a) capacity of the parties; (b) free consent (of the parties or their guardians); (c) proposal and acceptance; (d) absence of prohibitions/impediments; (e) consideration (dower)** — plus, for Sunnis, the witness requirement. Defects produce the tripartite classification of Part 5.

4.1 Capacity to contract marriage

Puberty (bulugh)

Any Muslim of sound mind who has **attained puberty** can marry. **Privy Council, Mt. Atika Begum v. Mohammad Ibrahim**: a girl becomes major on happening of **either** (i) completion of the 15th year, or (ii) actual attainment of puberty at an earlier age. Presumption of puberty at 15 (rebuttable — burden on the person pleading earlier puberty, per Ghulam Sakina). The rule applies to boys equally. Minors may be married by guardians (*jabr*) — the minor's later option of puberty (15→18, s. 2(vii) DMMA; Ghulam Sakina) protects against a forced marriage.

Sound mind; guardian's role

Persons of unsound mind cannot marry; a lunatic may marry during a lucid interval. Where parties are minors (or insane), the **guardian's consent** operates: father, and failing him paternal grandfather, paternal uncle, brother and other paternal relations (Shia: the guardianship of the father/grandfather is primary). Failing any, the **Qazi/government** may act. A father may bind a minor son by a dower contract (Settled Mahomedan Law). Modern overlay: POCSO/PCMA (see MA-8).

4.2 Free consent

- Consent must be **free** — vitiated by **force, fraud or undue influence**; consent obtained by fraud/force renders the marriage **voidable/void depending on school and degree** (class notes: marriage under compulsion is **void in all schools except Hanafi**, where it is valid).
- Sane adult parties: their **own** consent is required; minors: guardian's consent (*jabr*).
- Consent must relate to the marriage itself, in unequivocal terms; a proposal and acceptance "without ambiguities" — words must not be capable of innocent interpretation.
- An **assurance to marry in future is not a proposal** — a betrothal is not a nikah.

4.3 Proposal & acceptance (ijab–qubul) — the rules

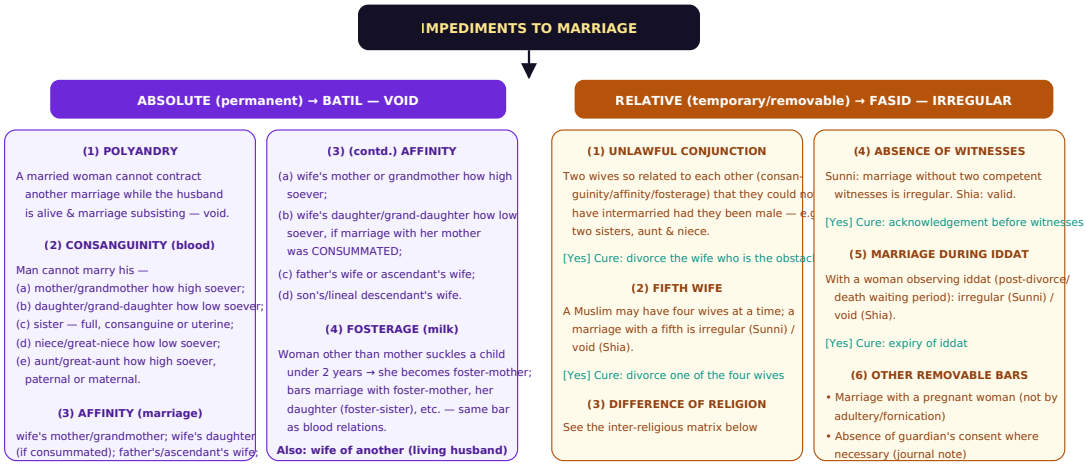
Rule	Explanation
One meeting	Ijab and qubul must be expressed at the same meeting; acceptance after a break invalidates (class notes; IJFMR notes).
Form	Oral or in writing; no religious formula or ceremony prescribed — the parties' own words suffice; the Mullah's presence is customary, not essential.
Parties or agents	By the parties themselves, or by guardians/agents on their behalf; acceptance must proceed from the other side (or its agent).
No ambiguity	Terms signifying marriage; conditional/ambiguous offers defeat validity.

by Ankur R. Upadhyay

Rule	Explanation
Witnesses	**Sunni:** two male witnesses, or one male and two females; absence → irregular (fasid). **Shia:** not required — marriage without witnesses is valid.

4.4 Prohibitions & impediments — absolute vs relative

Fig. 5 — Prohibited relationships in Muslim law



Inter-religious marriages — the matrix (class notes)

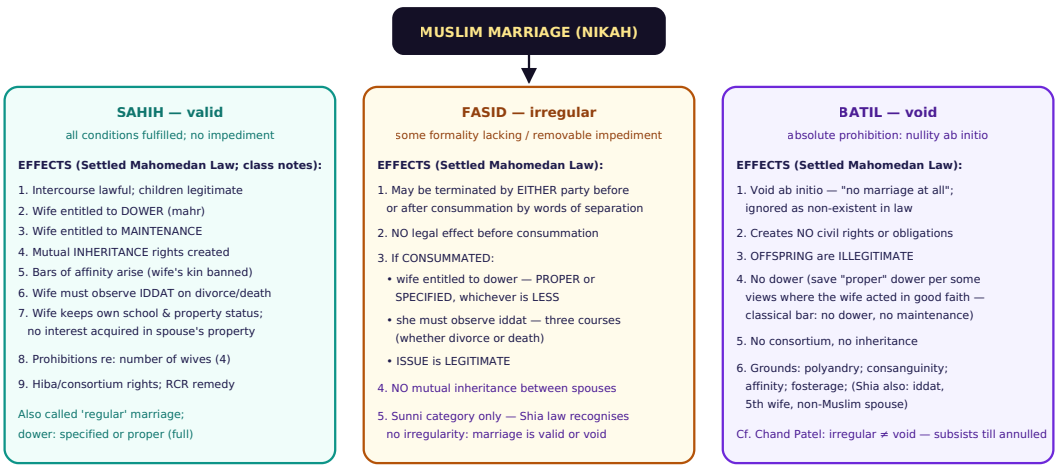
Parties	Status (Sunni law)	Status (Shia law)
Muslim male × Muslim female (any sect)	Valid	Valid
Sunni male × **Kitabiya** female (Jewess or Christian — "People of the Book")	Valid	—
Sunni male × non-Muslim, non-Kitabia female (e.g., idolater/fire-worshipper)	**Irregular** — cure: her conversion to Islam, Christianity or Judaism (or his adoption of Islam)	**Void** — Shia male cannot marry a non-Muslim at all
Muslim female × non-Muslim male	**Void** — a Muslim woman cannot marry a non-Muslim of any faith (fear of undermining the faith of the children)	

> **Rationale (IJFMR note):** a Muslim man may marry an *Ahl al-Kitab* woman because of the common Abrahamic core; the bar on the Muslim woman marrying out protects the Islamic upbringing of children. Inter-sect marriages are valid so long as both are Muslims.

PART 5

Unit VII — Classification and Types of Muslim Marriages

Fig. 6 — Classification: Sahih · Fasid · Batil (+ Muta as a distinct type)



by Ankur R. Upadhyay

5.1 MUTA marriage — the temporary union (Ithna Ashari only)

Muta literally means "**enjoyment**" or use: a temporary union of a man and woman for a **specified period** on payment of a **specified consideration (dower)**. Recognised only by the **Ithna Ashari Shia** school; obsolete/unrecognised in Hanafi, Maliki, Shafi, Hanbali and (practically) in India. **Hyderabad view:** a muta for an unspecified period = muta for life = a **permanent nikah**; it is the *specification of the term* that makes it temporary.

Essentials (8)

- Parties past puberty, sound mind; free consent
- Formalities of declaration & acceptance (no witnesses needed)
- Parties not within prohibited relationships
- Religion bar: man may contract muta with a Muslim, Christian, Jewish woman or even a fire-worshipper, but no other; **a Shia woman cannot contract muta with a non-Muslim**; affinity bars apply
- A man may contract any NUMBER of muta marriages
- **Term** fixed (day, month, year, term of years)
- **Dower** specified
- Term fixed + dower unspecified → **void**; dower specified + term unspecified → void as muta but may operate as **permanent nikah**

Legal effects

- Cohabitation lawful; **children legitimate** and inherit from both parents
- **No mutual inheritance** between the spouses (unless custom provides)
- **No maintenance as of right** under Shia law — though the muta wife may claim under **s. 125 CrPC** as a neglected wife
- Ends **ipso facto** on expiry of term; husband may end earlier by **hiba-i-muddat** (gift of the unexpired term) without the wife's consent; no divorce machinery
- Dower: **full** if consummated; **half** if not; if the wife leaves before term, proportionate deduction
- Iddat: if consummated — **two monthly courses**; on death of husband — **4 months 10 days**

Basis	Nikah (permanent)	Muta (temporary)
Duration	No term — permanent union	Fixed term; ends ipso facto on expiry
Witnesses	Required (Sunni); optional (Shia)	Not required
Number of wives	Max 4 at a time (Sunni)	Any number
Dower	Half if unconsummated; whole on consummation/ divorce	Whole on consummation even on expiry; half if unconsummated
Inheritance	Mutual inheritance between spouses	No mutual inheritance (children inherit both parents)
Maintenance	Wife entitled as of right	Not entitled as of right (s. 125 CrPC route possible)
Divorce	Talaq/khula/mubaraat/DMMA	None — expiry, hiba-i-muddat, or death
Recognition	All schools	Ithna Ashari only

Modern overlay (bridge to PCMA 2006): a child marriage under Muslim law is **valid but voidable** at the option of the minor (option of puberty; PCMA s. 3 — petition within 2 years of attaining majority; also POCSO prevails over personal law where a minor is involved — *Khaledur Rahman v. State of Kerala* (2023), per the IJFMR notes). Full discussion in the Unit VIII notes file (MA-3).

PART 6

Unit VII — Dower (Mahr)

6.1 Definitions — the three you must quote

Settled Mahomedan Law (Dower Definition)

"Mahr or dower is a **sum of money or other property which the wife is entitled to receive from the husband in consideration of the marriage**."

Wilson

"Dower is a **consideration for the surrender of person** by the wife."

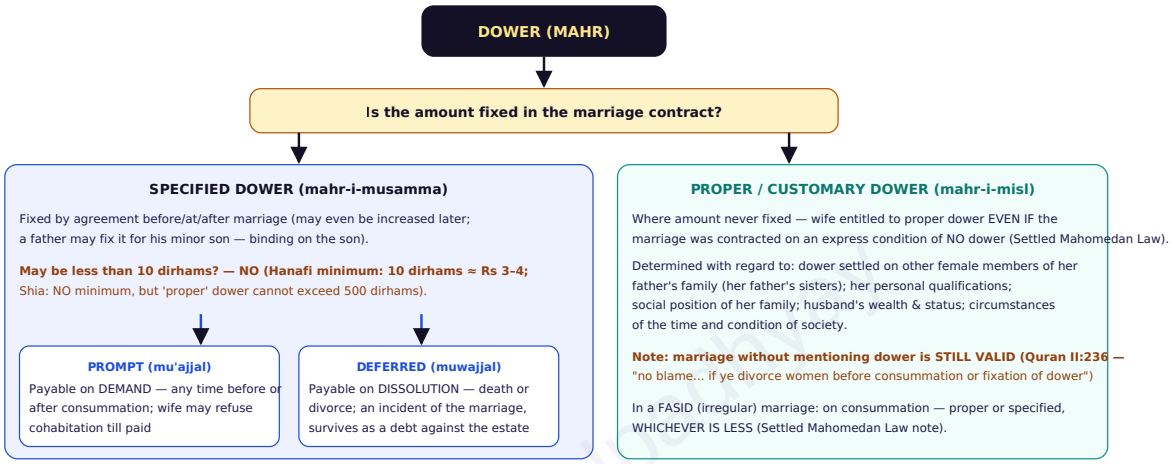
Ameer Ali

"Dower is **a consideration which belongs absolutely to the wife**." (Classic definition: a sum of money or property the wife is entitled to receive from the husband in consideration of marriage.)

Justice Mahmood, Abdul Kadir v. Salima (1886): dower was compared to the **price in a contract of sale** because marriage is a civil contract and sale is the typical contract to which Muslim jurists refer by analogy — *but* "consideration" is not used in the Contract Act sense: **dower is an obligation imposed upon the husband as a mark of respect to the wife**. It is an **essential incident of the status of marriage** (Privy Council): if unspecified at the time of marriage, "the law declares that it must be adjudged on definite principles" (proper dower). Not to be confused with **dowry** under the Dowry Prohibition Act, 1961 — amounts paid by a Muslim in connection with a daughter's marriage for purchase of property in the joint names of the couple were held NOT "dowry" (settled law).

6.2 Kinds of dower

Fig. 7 — Classification of Dower



6.3 Prompt vs deferred — the presumptions and the rules

Situation	Rule
Contract silent on prompt/deferred	**Shia law:** the whole is presumed **prompt**. **Sunni law:** part prompt, part deferred — proportion fixed by custom, failing which by status of parties and amount. **Madras HC (all schools):** presume **prompt** unless payment expressly postponed. Case constants: *Eidan v. Mazhar Husain* (1/5th of Rs 5,000 prompt); *Taufik-un-nissa v. Ghulam Kambar* & *Fatma Bibi v. Sadruddin* (1/3rd); *Nasiruddin Shah v. Amatul Mughni Begum* (presumption: half-and-half absent custom).
Deferred described as "payable on demand"	Postponement until demand makes it **prompt** in law; but merely *demanding* deferred dower does not make it prompt (Settled Mahomedan Law).
When does dower "become confirmed" (payable in law)?	(a) **Consummation**; (b) **valid retirement** (*khilwat-e-sahiha* — Hanafi/Maliki: whole dower due; Prophet's hadith: "who removes the veil... the whole dower becomes due"); (c) **death** of either spouse. **Shia law:** only by consummation or death — not by valid retirement (settled Shia law).
Right to withhold conjugal society	The wife "can refuse to live with her husband and admit him to sexual intercourse so long as the prompt dower is not paid". If the husband sues for **RCR before consummation** — non-payment is a **complete defence** (suit dismissed); after consummation with her free consent — decree for RCR only **conditional on payment** of prompt dower (Settled Mahomedan Law). Right precedes cohabitation.
On divorce/ dissolution	Whole unpaid dower (prompt + deferred) immediately payable if the marriage was consummated; if not consummated — **half** the specified dower; if nothing specified — three articles of dress. **s. 5 DMMA 1939**: dissolution does not affect her dower rights (Unit VIII link).

6.4 Remission, recovery, widow's rights

Remission by the wife (Settled Mahomedan Law)

- She may remit dower or any part in favour of the husband or his heirs — valid even **without consideration**.
- Must be with **free consent** — remission under "great mental distress owing to her husband's death" is not binding.
- Majority debate: Madras/Patna — remission by a wife under 18 (Indian Majority Act) invalid; **Allahabad (better view)** — a girl who has attained puberty may relinquish dower though below 18 (IMA s. 2 excludes "marriage or dower").
- A bar on remission without the consent of her relations is a valid stipulation.

Recovery & limitation (Settled Mahomedan Law)

- Wife (and after her death her heirs) may sue. Prompt dower: 3 years from demand & refusal (or dissolution if no demand); deferred: 3 years from dissolution (old Arts. 103–104).
- Limitation Act 1963 contains no dower articles; s. 29(3) argument — suits under marriage/divorce law not barred.
- Where divorce is by writing, time runs from **communication** to the wife (ties to Masroor Ahmed!).
- Payments by the husband not allocated to dower cannot be presumed gifts — "debitor non praesumitur donare" does not apply as between husband and wife.

Dower as a debt; heirs (Settled Mahomedan Law–295)

- Dower ranks as a debt against the husband's estate — but an **unsecured** one: the widow stands with other creditors; no charge on specific property (unless created by agreement or a final decree, which courts avoid).
- Heirs are **not personally liable** — each liable only to the extent of his/her share of the estate (worked example in Settled Mahomedan Law: widow's 1/8 × debt, son's 7/16 × debt, etc.).
- An heir may alienate his share before payment; alienation subject to the widow's right of retention if she holds possession.

Widow's right of retention (Settled Mahomedan Law–299)

- Where the widow has "lawfully and without force or fraud" obtained possession of her husband's property **in lieu of her dower**, she may **retain possession against the heirs and creditors** until the dower is satisfied — to account for rents/profits beyond the debt.
- Right extinguished on payment; not a "lien" strictly, **not analogous to a mortgage**, and **gives no title**; no right of retention during the continuance of marriage.
- Conflict: Madras & Bombay — no consent of heirs needed; Calcutta & Patna — consent required; Allahabad wavering. Where she lived in the husband's house in his lifetime and continues, the **presumption** is of lawful possession in lieu of dower.

> **Exam hook:** dower questions fold neatly into maintenance/RCR answers: the prompt-dower defence (Settled Mahomedan Law) + Itwari equity (Unit VIII) + s. 5 DMMA + Chand Patel's s. 125 holding = a complete "rights of a Muslim wife" arc.

PRESCRIBED DU CASES

Landmark Case Dossiers — Muslim Marriage & Irregular Conjunction

Case 1 · Solemnisation / Essentials (offer, acceptance, witnesses)

Ms. (Mt.) Ghulam Kubra Bibi v. Mohd. Shafi Mohd. Din

AIR 1940 Peshawar 2 · Mir Ahmad, J. (Court of the Judicial Commissioner, Peshawar)

FACTS

Mohammad Shafi (husband/plaintiff) sued **Mt. Ghulam Kubra** (the woman/defendant) for **restitution of conjugal rights**. He also impleaded her parents and sought an **injunction** restraining them from interfering in his marital relations with his alleged wife.

Defence of Ghulam Kubra: she was **never married** to Mohammad Shafi. There was also a question whether the woman was **of age** (an adult) at the time of the alleged marriage. Evidence was led by both sides.

- The **Mullah** who was said to have read the nikah appeared and stated that he read the nikah at the instance of the girl's **grandfather**. He **categorically denied** that anyone was sent to the girl to enquire whether she agreed to the marriage.
- One **Mistri Abdul Karim** vaguely deposed that "there were two witnesses of the nikah" but gave **no names**.
- Two alleged witnesses — **Mohammad Ramzan** (admittedly the plaintiff's neighbour) and **Mohammad Din** (who did not deny that the plaintiff had been working with him for 8–9 years) — merely said they were "witnesses of the nikah" and gave **no detail** of what they actually did.

The trial Judge held the girl was of age and the marriage was proved; he granted the decree for restitution and the injunction against all defendants. On appeal to the District Court, both parties **admitted the girl was of age** when married. The Additional District Judge maintained the restitution decree but **set aside the injunction** against the parents. Ghulam Kubra appealed further to the Peshawar Court against the restitution decree; Shafi cross-appealed to restore the injunction.

ISSUES

1. Whether a **valid Nikah** was in fact solemnised between the parties — i.e., whether the essential formalities (proposal/acceptance at one meeting before two competent witnesses, with the adult bride's own consent) were proved.
2. Whether the **vague evidence** of witnesses ("we were the nikah witnesses") suffices to prove the marriage, particularly where the person who performed the nikah swears no one consulted the bride.
3. Whether the plaintiff was entitled to a decree for **restitution of conjugal rights** (and the ancillary injunction) if no valid marriage is proved.

ARGUMENTS OF BOTH SIDES

For the husband (Shafi)

- A nikah was in fact performed; witnesses (Ramzan, Din) were produced to depose to it.

- The girl was of age (admitted before the Additional District Judge); a valid marriage subsists and he is entitled to restitution of conjugal rights and to an injunction restraining the parents from interfering.
- The trial court had accepted the marriage as proved, and the District Court maintained the restitution decree.

For the wife (Ghulam Kubra)

- She was **never married** to Shafi at all.
- The Mullah himself admitted he performed the nikah at the grandfather's instance and that **no one was sent to obtain the girl's consent** — the core requirement for an adult bride was absent.
- The alleged witnesses were **interested/vague** (a neighbour and a long-time employer/associate of the plaintiff) and gave no particulars; bare statements that "there were two witnesses" have no evidentiary value and do not prove the prescribed procedure.

DECISION & REASONING (MIR AHMAD, J.)

The Judge set out the **standard Hanafi procedure** for a nikah in a pardah society (set out in the note box below) and stressed that the law **"absolutely" requires** that the man (or someone on his behalf) and the woman (or someone on her behalf) agree to the marriage **at one meeting**, witnessed by **two adult witnesses**.

> The valid pardah nikah procedure described by the court
> A female relation, accompanied by two witnesses, goes inside to the bride and, *within the witnesses' hearing*, asks whether she authorises him to agree to the marriage on her behalf for the dower offered, explaining the dower details. On her "yes" (or other sign of consent), the three come out. Before the Mullah, the bridegroom is asked whether he offers to marry her on the specified dower ("yes"); the girl's agent then declares he is her duly authorised agent and accepts ("yes"); the witnesses are present so the Mullah can, if doubtful, question them whether the agent was really authorised. On both "yes" the Mullah reads the scriptures and the marriage is complete.

The court held the **vague allegation that "there were two witnesses of the nikah" has no value**; the whole procedure must be proved — *especially* when the man who read the nikah is positive that **no one was sent to the girl** to ask if she was a willing party.

On age: the record showed the girl was **17** when the marriage was solemnised. The parties mistakenly thought majority (for marriage) was 18 (the general law); under Mahomedan law a girl becomes major for marriage on **attaining puberty, presumed at 15**. Because they assumed she was still a minor, the grandfather gave her away without personally consulting her. The court clarified: where a girl *is* a minor, her **father, grandfather or other paternal relation may give her away** and the marriage is a valid nikah — but **even such a nikah requires two adult witnesses**, and the witnesses here may merely have witnessed the "giving away" by the grandfather rather than a valid contract. In any event, she was in fact adult (17), and her own consent/authorisation was essential and was not proved.

Result: "For the reasons given above I hold that **no valid marriage has taken place** in this case, and that the plaintiff has therefore **no right to sue for restitution of conjugal rights**." The appeal of Mt. Ghulam Kubra was **accepted**, Shafi's suit **dismissed with costs throughout**, and Shafi's cross-appeal (to restore the injunction) was **dismissed**.

PRINCIPLE EVOLVED / PROPOSITION

- **Essentials of a Sunni nikah must be strictly proved:** offer (ijab) and acceptance (qabul) at **one meeting**, by the parties or their duly authorised agents, with the bride's real consent, **in the presence and hearing of two sane, adult Muslim witnesses**. Mere formal performance/readings by a Mullah, or a bare assertion that "two witnesses were present," is insufficient — the **substance of authorisation and witnessing** must be established.
- **Majority for marriage = puberty (presumed 15)**, not 18; the Indian Majority Act, 1875 does not govern marriage. An adult woman must herself consent (or duly authorise an agent); she cannot be "given away" without consultation.
- A minor's marriage by a father/grandfather/guardian is valid — but **still requires two adult witnesses**; and interested/perfunctory witnesses do not discharge the burden.
- **No valid marriage → no right to restitution of conjugal rights** and no injunction against the woman's relations.

Case 2 · Classification – void (batil) vs. irregular (fasid); unlawful conjunction; s.125 CrPC

Chand Patel v. Bismillah Begum

1 (2008) DMC 588 (SC) · AIR 2008 SC 1915 · (2008) 4 SCC 774 · Altamas Kabir, J. (Supreme Court of India)

FACTS

Bismillah Begum (respondent 1) filed an application under **Section 125 CrPC** for maintenance for herself and her minor daughter **Taheman Bano** (respondent 2) against **Chand Patel** (appellant/husband) in the Court of the Judicial Magistrate, First Class, Chincholi (Crl. Misc. No. 6 of 2001). She claimed she was the **legally wedded wife**, married about eight years earlier; the marriage was **consummated** and a daughter was born two years later (Taheman Bano, in the mother's care).

Crucial admission: Bismillah **categorically admitted** that Chand Patel was already married to her **elder sister, Mashaq Bee**, and that *with the consent of the first wife* he married her (the younger sister); a **Nikahnama** was executed but had been **misplaced**. She also admitted he lived with **both** women under one roof and had **accepted and brought up Taheman Bano** as his daughter.

Relations later deteriorated; he began to **neglect** them. She sought maintenance @ Rs.1,000 p.m. for each. Chand Patel **denied the marriage**, sexual relations, and paternity. The **Magistrate** (prima facie accepting the marriage and paternity and finding neglect) ordered Rs.1,000 p.m. to the wife and to the daughter till adulthood. The **Revisional Court** (IV Additional District Judge, Gulbarga) dismissed both revisions, holding personal law cannot bar a Muslim from maintenance under s.125, the Magistrate cannot go into validity of marriage in s.125 proceedings, and the husband must maintain wife and child **until the marriage is declared null and void by a competent court** (relying on *Nanak Chand v. Chandra Kishore Aggarwal*, AIR 1970 SC 446, and *Re Hussain Saheb*). The **Karnataka High Court** (under s.482) found no merit and dismissed Chand Patel's petition. He appealed to the Supreme Court.

ISSUE

"An interesting question of law": whether a marriage performed by a Muslim with his **wife's sister while his earlier marriage (with the other sister) was still subsisting** is **void in law** or merely **irregular (or voidable)** — even though the subsequent marriage may have been **consummated** — and, consequently, whether the wife and daughter are entitled to maintenance under **s.125 CrPC** until the marriage is declared void.

ARGUMENTS OF BOTH SIDES

For the husband (Chand Patel) — Mr. Raja Venkatappa Naik

- Muslim law prohibits **"unlawful conjunction"** — a man may not marry his **wife's sister during the wife's lifetime**.
- He denied the marriage and sexual relations and disputed paternity; such a union, even if performed, is **void (batil) from its very inception** and confers **no rights** on the woman or child.
- Reliance on *Rameshchandra Rampratapji Daga v. Rameshwari Daga* (2005) 2 SCC 33 and *Savitaben Somabhai Bhatiya v. State of Gujarat* (2005) 3 SCC 636 — arguing that where the marriage itself is void ab initio, s.125 maintenance cannot be granted to a woman "not lawfully married."

For the wife (Bismillah Begum) — Mrs. K. Sarada Devi

- In a **s.125 proceeding** the court is **not required to adjudicate the validity** of the marriage; on a prima facie view it can order maintenance of both wife and daughter.
- The marriage was solemnised with the facts known to both parties and **with the first wife's consent**; the husband lived with both, acknowledged the child, and now resorts to a technicality to avoid his statutory duty.
- Until the marriage is **declared void by a competent court**, it **continues to subsist** and all rights of a valid marriage (including maintenance for the wife and minor daughter) remain available.

DECISION & REASONING (ALTAMAS KABIR, J.)

Delay condoned. The answer turned on the **legal status** of the union: if **void**, no s.125 maintenance; if **irregular**, the marriage subsists for all purposes until declared void, and the wife and child are entitled to maintenance. The Court drew the analogy with **ss.11 (void) and 12 (voidable)** of the Hindu Marriage Act, 1955 and *Yamunabai v. Anantrao* (AIR 1988 SC 644): s.11 marriages are **void ipso jure** from inception, whereas voidable marriages subsist until annulled by a decree.

Muslim law position (Settled Mahomedan Law): paragraphs 260–262 (consanguinity, affinity, fosterage) are **complete/perpetual prohibitions → void (batil)**. But **§263 "Unlawful conjunction"** expressly provides: *"A man may not have at the same time two wives who are so related... as for instance two sisters, or aunt and niece.* ***The bar of unlawful conjunction renders a marriage irregular, not void.***"

The Court then traced the case-law conflict:

- **Calcutta HC — *Aizunnissa v. Karimunissa* (1895) 23 Cal 130:** marriage with a wife's sister during the wife's lifetime is **void**; children illegitimate, no inheritance.
- **Bombay HC — *Tajbi Abalal Desai v. Mowla Alikhan Desai* (1917) 39 IC: differed**, and relying on the **Fatawa-i-Alamgiri** held such marriage is **irregular (fasid)**, not void. A *permanently* prohibited woman's marriage is void and has no legal consequence; but a *temporarily* prohibited woman's marriage, if consummated, **may have legal consequences** — the bar can be removed by the **death of the first wife or by divorce**, making the second sister lawful. The Court noted the Fatawa-i-Alamgiri statement does not conflict with the Quran, harmonises with the law's development, and has the support of **Baillie, Ameer Ali, Tyabji and Abdur Rahim**; only the single Calcutta judgment stood against it.
- The **Oudh Chief Court (*Kaniza v. Hasan Ahmad Khan*, 1925), Lahore HC (*Taliamand v. Muhammad Din*, 1930) and Madras HC (*Rahiman Bibi v. Mahboob Bibi*, 1937)** all **followed the Bombay view** and held the Calcutta decision incorrect.

The Court quoted **Settled Mahomedan Law** (void vs. irregular — the five irregular categories including "a woman so related to the wife that if one had been male they could not intermarry") and **§267** (effects of fasid marriage: terminable by either party; **no effect before consummation**; after consummation — (i) wife gets **dower, proper or specified whichever is less**; (ii) iddat of **three courses**; (iii) **issue is legitimate**; but **no mutual inheritance** between spouses).

Held: "Since a marriage which is temporarily prohibited may be rendered lawful once the prohibition is removed, such a marriage is... **irregular (fasid) and not void (batil)**." The bar of **unlawful conjunction (jama bain-al-mahramain) renders a marriage irregular and not void**. Under Hanafi law (Indian Muslims), an irregular marriage **continues to subsist till terminated in accordance with law**, and the wife and children are entitled to maintenance under **s.125 CrPC**. As the marriage had not been declared void by any competent forum, it continued to subsist.

Result: appeal **dismissed**; the Karnataka High Court and Magistrate's orders affirmed; interim stay vacated; Chand Patel directed to pay all **arrears within six months** and current maintenance from March 2008.

PRINCIPLE EVOLVED / SIGNIFICANCE

- **Supreme Court settled the law for India:** marriage with a **wife's sister** (or within the bar of unlawful conjunction) during the subsistence of the first marriage is **irregular (fasid), not void (batil)**, under Hanafi Muslim law — approving the Bombay/ Fatawa-i-Alamgiri view and rejecting the Calcutta *Aizunnissa* view.
- The test: a **perpetual/absolute** prohibition (consanguinity, affinity, fosterage, polyandry) → **void**; a **temporary/relative/ accidental** bar that **can be removed** (death/divorce of the obstacle wife, expiry of iddat, conversion, divorce of a fifth wife, re-attestation before witnesses) → **irregular**.
- An irregular (consummated) marriage produces legal effects — **legitimate children**, dower (lesser amount), iddat — though **no mutual inheritance** between spouses.
- **Social-welfare dimension:** a marriage merely irregular or voidable **subsists until set aside/declared void by a competent court**; hence the wife and children remain entitled to **s.125 CrPC maintenance**. A Magistrate in s.125 proceedings does not finally adjudicate marital validity, and personal law cannot override the statutory obligation of maintenance.

(3) Saiyid Rashid Ahmad v. Mt. Anisa Khatun TRIPLE TALAQ — FORM OVER INTENTION
AIR 1932 PC 25 · Privy Council · Lord Thankerton · Appeal from Allahabad HC · (course pack pp. 233–236)

• Facts

Succession dispute to the estate of **Ghiyas Uddin** (d. 4.4.1920). The appellants — his brother and sister — denied that respondents 1–6 were his lawful widow and children. Four matrimonial stages of Anisa Fatima: (1) marriage to **Manzur Husain (1901)**; (2) divorce by Manzur (early 1905); (3) marriage to **Ghiyas Uddin (28.8.1905)**; (4) divorce by Ghiyas Uddin (**13.9.1905**) — a **triple talaq pronounced before witnesses but in the wife's absence**, Rs 1,000 paid as dower the same day, and a **talaqnama of 17.9.1905** stating the three divorces were given "in the abominate form" (bidaat). Concurrent findings: the triple talaq was pronounced and the deed genuine. The Subordinate Judge held the divorce effective — she was not his widow at his death, and the six children, all born **after** the divorce, were illegitimate. The High Court **reversed**: the divorce was "fictitious... a mock ceremony performed by Ghiyas Uddin to satisfy his father, without any intention on his part that it should be real or effective."

Issues

1. Was the 1905 triple talaq valid and effective — in the *bidaat* form or the *ahsan* form?
2. Could the husband's secret mental intention (a ceremony to pacify his father) negate an otherwise formally pronounced talaq?
3. Could the children be legitimised by his long recognition of them (presumption of an intervening halala marriage)?

• Arguments of the parties

Appellants (collateral heirs): the concurrent findings establish a real triple talaq in the bidaat form — immediately irrevocable irrespective of iddat; under the settled law a talaq "actually pronounced under compulsion or in jest is valid and effective", so the alleged intention is irrelevant; 15 years of subsequent cohabitation and acknowledgment cannot undo a completed dissolution or raise a presumption of remarriage because the legal bar (halala) stands in the way.

Respondents (widow & children): the ceremony was a sham with no animus divorcendi; in any event the Court should infer from the husband's lifelong treatment of Anisa Fatima as wife and the children as legitimate, plus the acknowledgment doctrine in *Habibur Rahman Chowdhury v. Altaf Ali Chowdhury* (AIR 1922 PC 159), that an intervening marriage-divorce had occurred; the burden lay on the appellants to displace the presumption.

[Yes] Decision

Appeal allowed; High Court reversed; Subordinate Judge's decree restored. Lord Thankerton adopted Wilson's classification of talaq forms: *ahsan* (once + abstinence through iddat), *hasan* (thrice in successive periods of purity), and the third/fourth methods — thrice at shorter intervals or even in immediate succession, or once with words of immediate irrevocability — which are *bidaat*: "sinful, but... nevertheless regarded by Sunni lawyers as legally valid". The words here — "I divorce Anisa Khatun for ever and render her haram for me", thrice repeated, plus the talaqnama — showed the **bidaat form**, under which "the divorce at once becomes irrevocable, irrespective of the iddat". The wife's presence was unnecessary; her alimony could continue until she was informed. **Intention is immaterial:** the High Court's "mock ceremony" view was "contrary to all authority — a talak actually pronounced under compulsion or in jest is valid and effective." The presumption of legitimacy fails at the threshold: the legal bar to remarriage (remarriage only after her intervening marriage and its dissolution + iddat) must itself be proved removed before any acknowledgment presumption arises — which the respondents never did. The children, born after the irrevocable divorce, were illegitimate and excluded from inheritance.

Principle evolved **In classical Hanafi law, form prevails over intention:** a triple talaq in the bidaat form operates immediately and irrevocably; neither compulsion, jest, nor secret mental reservation avails the husband; legitimacy of post-divorce children cannot be presumed across the halala bar. **The case's afterlife:** it states the doctrine that *Shamim Ara* (2002) gradually unwrote (pronouncement must be proved, with cause and arbitration) and *Shayara Bano* (2017) abolished (bidaat void) — the starting point of the triple-talaq arc your examiner expects you to narrate.

by Ankur R. Upadhyay

DU LL.B. EXAMINATION ARCHIVE

Previous Year Questions — Unit 07: Marriage (Nikah) & Dower (Mahr) under Muslim Law

Q.01 20 marks · asked twice (Q7a & b; Q1)
Essentials of Nikah under Sunni and Shia law.

● **Refer website for detailed notes — makelaweasy.in**

Q.02 20 marks · asked twice (Q6; Q8b)
Essentials of Muslim marriage and restitution of conjugal rights.

Q.03 10 marks · asked twice (Q1c; Q8a)
Muta marriage and its legal implications (Nikah vs Muta).

Q.04 10 marks · asked (Q1b)
Prohibited relationships under Hindu and Muslim law.

Q.05 10 marks · asked (Q1d)
Fasid marriage and its legal implications.

Q.06 20 marks · core syllabus (dower appears inside marriage/maintenance questions; prepare as full essay)
Define dower. Distinguish prompt and deferred dower and explain the widow's right of retention.

Q.07 10 marks · asked twice (Q8a; Q8b) — bridge
Validity of child marriage under the Prohibition of Child Marriage Act, 2006.

Q.08 Q.1 — Long Answer (20 marks)
Muslim marriage is a civil contract rather than a sacrament." Discuss the nature of Nikah and explain in detail the essential conditions of a valid Muslim marriage.

Q.09 Q.2 — Long Answer (20 marks) / Problem
Distinguish between a void (batil) and an irregular (fasid) marriage under Muslim law. "A man may not marry two sisters at the same time." Explain with the help of case law whether such a marriage is void or irregular.

by Ankur R. Upadhyay

LAW CRUX · PAPER LB-105 · UNIT 08 Dissolution of Muslim Marriages Act, 1939 · Muslim Women Act, 2019 · CrPC S. 125 / 1986 Act · 7 Prescribed DU Cases

Divorce & Dissolution of Marriage under Muslim Law

Talaq-ul-Sunnat (Ahsan & Hasan) vs Talaq-ul-Biddat, Ila, Zihar, Tafweez, Khula, Mubarat, Lian, Judicial Dissolution under DMMA, 1939 (S. 2 Grounds & S. 4 Apostasy), Shayara Bano (2017) & Muslim Women (Protection of Rights on Marriage) Act, 2019

PART 1

Foundations — How Muslim Law Handles Divorce

The starting point. Under Muslim law, marriage (*nikah*) is a **civil contract**, not a sacrament. Because it is contractual in nature, it can be dissolved — but Islam treats divorce as an evil of last resort. The Prophet is reported to have said that divorce is "the most disliked of lawful things in the sight of God", and that God created nothing He detests more than divorce. Every mode of dissolution therefore carries built-in brakes: reasons, waiting periods (*iddat*), and mandatory attempts at reconciliation by arbiters (*hakam*) drawn from both families.

This unit studies **two families of divorce** — exactly as your syllabus frames them:

(a) Extra-judicial divorce	(b) Judicial divorce
Dissolution **without intervention of the court**: • **Talaq** — by the husband (Ahsan, Hasan, Biddat; also *ila* and *zihar* as constructive forms) • **Khula** — at the instance of the wife (with her consideration/compensation) • **Mubarat** — by mutual consent of both • (plus delegated divorce — **talaq-e-tafweez**)	Dissolution **through a decree of the court**: • **The Dissolution of Muslim Marriages Act, 1939 (DMMA)** — wife's suit on 9 grounds (s. 2) • **Lian** — wife's suit on false charge of adultery • **Faskh** — rescission by the Qazi (Shia/Maliki practice)

1.1 The statutory anchor — Section 2, Muslim Personal Law (Shariat) Application Act, 1937

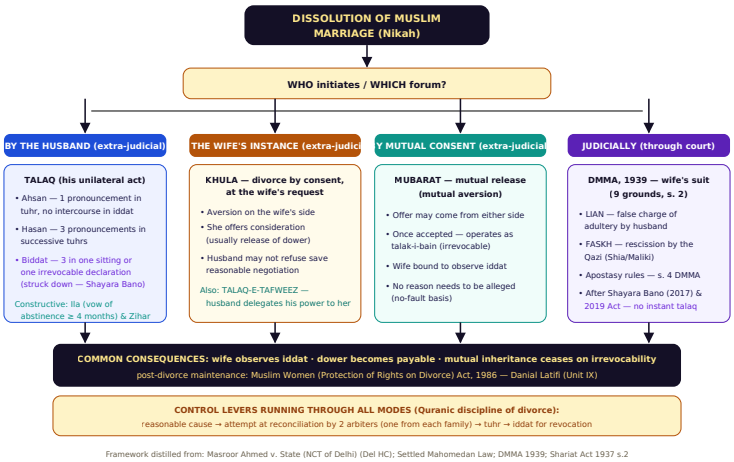
Both **Masroor Ahmed** and **established Mahomedan Law principles** open the topic with s. 2 of the Shariat Act, 1937. It is an **injunction upon the courts**: where the parties are Muslims, questions of marriage and its dissolution must be decided by the Shariat, *notwithstanding any custom or usage to the contrary*.

Statute — Muslim Personal Law (Shariat) Application Act, 1937, s. 2
"*Notwithstanding any customs or usage to the contrary, in all questions (save questions relating to agricultural land) regarding intestate succession, special property of females, including personal property inherited or obtained under contract or gift or any other provision of Personal Law, **marriage, dissolution of marriage, including talaq, ila, zihar, lian, khula and mubaraat**, maintenance, dower, guardianship, gifts, trusts and trust properties, and wakfs (other than charities and charitable institutions and charitable and religious endowments) the rule of decision in cases where the parties are Muslims shall be the Muslim Personal Law (Shariat).*"

Exam point (Masroor Ahmed): The phrase "dissolution of marriage, including *talaq, ila, zihar, lian, khula and mubaraat*" gives **statutory recognition that talaq is only ONE of several modes** of dissolution. Islam considers divorce odious yet permits it on grounds of pragmatism — an elaborate lattice of modes exists "with differing amplitude and width under the different schools" (Badar Durrez Ahmed J.).

1.2 The master map of dissolution

Fig. 1 — Master Flowchart: Modes of Dissolution of a Muslim Marriage



Framework distilled from: Masroor Ahmed v. State (NCT of Delhi) (Del HC); Settled Mahomedan Law; DMMA 1939; Shariat Act 1937 s.2

1.3 The two conceptions of Muslim law (from class notes)

(1) Shariat — the revealed law

Wider, broader orbit covering **all human actions** with various grades of approval; God and the Prophet "laid down the path of shariat".

(2) Fiqh — science of jurisprudence

Narrower — legal acts (legal / illegal); the whole structure erected by **human agency** through *ijtihad* of the learned (ulema).

The schools of *fiqh* matter throughout this unit: In India, Muslims are predominantly **Sunni Hanafi**; Shias largely follow the **Ithna Ashari** school (Masroor Ahmed). Divergences between the schools directly affect the validity of talaq (see the table in Part 7).

> **Memory hook:** 4 roots of fiqh (*usul al-fiqh*) = **Q-H-I-Q** — Quran, Hadis/Sunna, Ijma, Qiyas. The ulema applied them through **ijtihad** to create the schools (Hanafi, Maliki, Shafii, Hanbali — Sunni; Ithna Ashari, Jaffariya, Ismaili — Shia).

PART 2

Extra-judicial Divorce — I : TALAQ (Divorce by the Husband)

> **Settled Mahomedan Law:** A Muslim marriage may be dissolved (1) by the husband at his will without court intervention; (2) by mutual consent without court intervention; (3) by judicial decree. "Any Mahomedan of sound mind who has attained puberty may divorce his wife whenever he desires without assigning any cause" — the classical Hanafi statement. **Zohara Khatoon v. Mohd. Ibrahim (1981) 2 SCC 509** (quoted in Masroor Ahmed): "A divorce given unilaterally by the husband is **especially peculiar to Mahomedan law**. In no other law has the husband got a unilateral right to divorce his wife by a simple declaration..."
>
> But the modern judicial view (Shamim Ara, Yousuf Rawther, Masroor Ahmed) reads the Quran to **discipline** this power: talaq must be for a reasonable cause, preceded by an attempt at reconciliation by two arbiters, actually *pronounced*, and *communicated*.

2.1 Mechanics of talaq — the complete checklist (Settled Mahomedan Law)

Who may pronounce?

Any Muslim of sound mind who has attained **puberty** (presumed at 15). He need not give any reason (classical Hanafi view).

Form — oral or written

Talaq may be (1) **oral**, or (2) in writing — a **talaqnama**. No particular form of words is prescribed (Hanafi). Express words (*saheeh*) need no proof of intention; ambiguous words (*kinayat*) need proof of intention.

Presence & naming

Need not be pronounced in the wife's presence nor even addressed to her — but the **wife must be named** (Calcutta: bare "talaq" before a family council without naming her = invalid). Shia law: must be pronounced orally, in Arabic, before two *aadil* (competent, male, Muslim) witnesses.

Compulsion, jest, intoxication

Hanafi: talaq in express words is **valid even if pronounced under compulsion**, in jest, or voluntary intoxication — "a talak actually pronounced under compulsion or in jest is valid and effective" (Privy Council, **Rashid Ahmad v. Anisa Khatun**). Shia law: invalid in all such states. **Masroor Ahmed** adds the modern qualification: talaq in **extreme anger (loss of self-control) is not effective**.

Contingent / conditional talaq

May take effect on a future event (e.g., "if you go to your father's house..."). Not recognised by Shia law. A divorce on contingency can also operate as delegation to the wife.

by Ankur R. Upadhyay

Talaqnama (written)

In absence of contrary words, writing operates as an **irrevocable talak-i-bain**, effective from execution even if not communicated (Bombay, Sarabai's case). Communication is nonetheless necessary for dower/maintenance purposes and her right to pledge the husband's credit.

2.2 The three forms of talaq — Ahsan, Hasan, Bidaat

Fig. 2 — Classification of Talaq (Hanafi law)

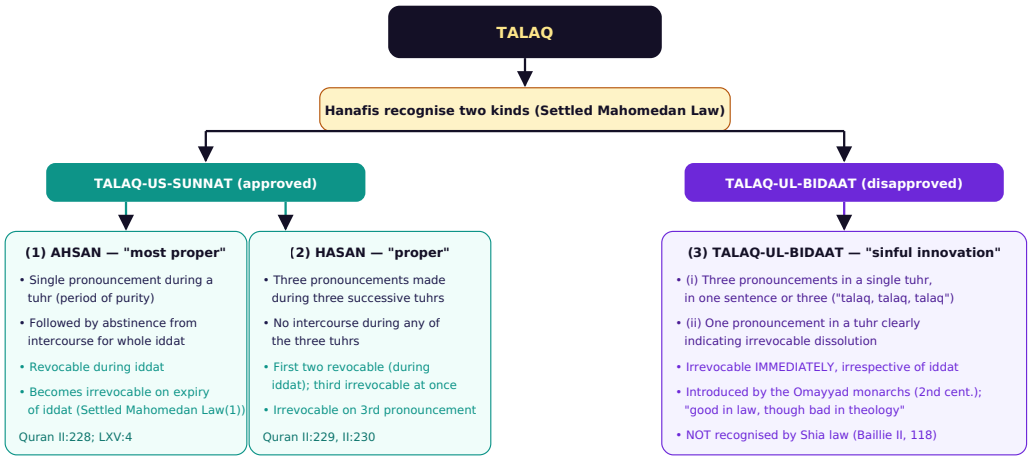
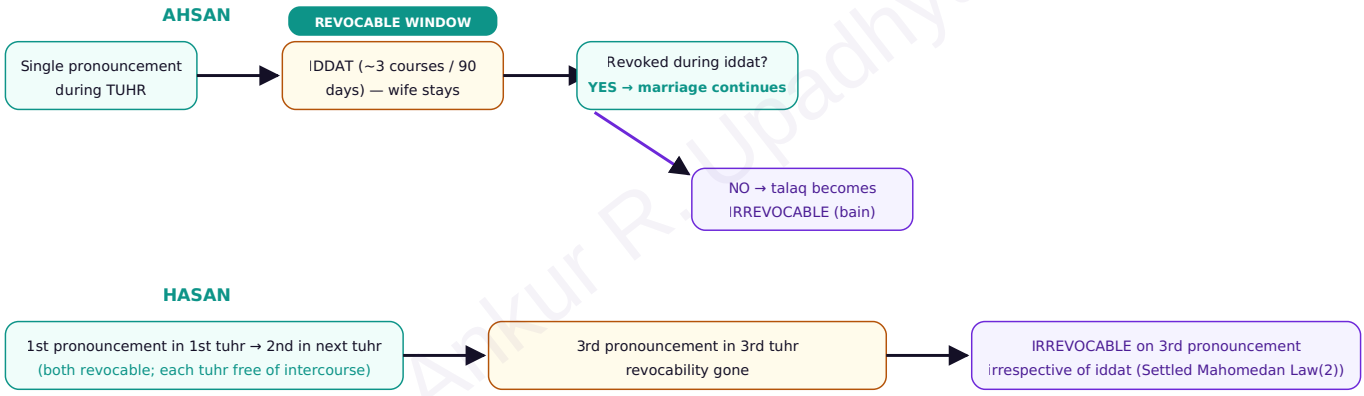


Fig. 3 — Lifecycle of Ahsan and Hasan talaq (where revocation is possible)



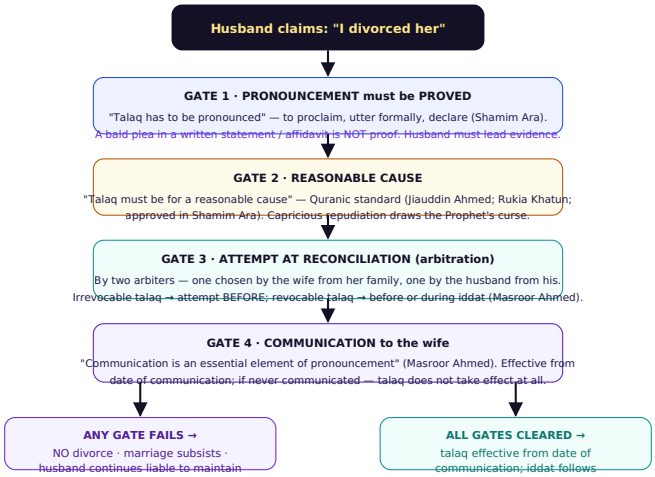
After a final (3rd) divorce, remarriage only through halala — wife marries another, that marriage ends by death/divorce + iddat, then fresh nikah. Halala as a device is condemned (Masroor Ahmed).

Point	Ahsan	Hasan	Bidaat
Pronouncements	Single, in one *tuhr*	Three, in three successive *tuhrs*	Three in one sitting/one *tuhr*, OR one pronouncement expressing irrevocability
Revocability	Revocable during iddat (expressly or by resuming intercourse / conduct)	First two revocable; third irrevocable	Never revocable (classical) — `BUT MASROOR AHMED HOLDS IT = ONE REVOCABLE TALAQ`
When irrevocable	On expiry of iddat	On third pronouncement	Immediately, irrespective of iddat
Character	Follows the Prophet's sunnat — approved		Innovation of Omayyad period — sinful; invalid in Shia law; unconstitutional in India (Shayara Bano)
Marriage after irrevocability	Fresh nikah possible (1st/2nd talaq)	Only via halala (3rd)	Only via halala (classical Sunni view)

> **Shia law (contrast for 10-markers):** Talaq must be pronounced **orally in Arabic, before two competent male witnesses of approved probity**; a written talaq is invalid unless the husband is physically incapable of oral pronouncement; talaq under compulsion, jest or intoxication is void; contingent talaq and talaq-ul-bidaat are **not recognised at all**.

2.3 Pronouncement, proof and communication — the modern law after Shamim Ara and Masroor Ahmed

Fig. 4 — Is there an effective talaq? The judicial checklist (Shamim Ara → Masroor Ahmed)



Consequences of a revocable talaq during iddat (Masroor Ahmed, para 35)

- Marriage does **not** terminate at pronouncement; it stays suspended — wife retains **right of residence** and **maintenance**; she cannot be disturbed from where she was residing.
- She remains a **wife** throughout the iddat — status analogous to *divorce a mensa et thoro* (judicial separation) in English ecclesiastical law; dissolution only on completion of iddat without revocation (*a vinculo matrimonii*).
- The iddat is *the* period meant for review and reconciliation — hence Masroor Ahmed J.: where talaq is revocable, the reconciliation attempt may even take place **after** pronouncement, so long as it precedes the end of iddat.
- Her **deferred dower**, custody rights, and right to pledge the husband's credit for subsistence all turn on knowing about the talaq — the policy reason communication is essential.

PART 3

Extra-judicial Divorce — II : Khula, Mubarat, Ila, Zihar, Lian, Tafweez

3.1 KHULA — divorce at the instance of the wife (Settled Mahomedan Law)

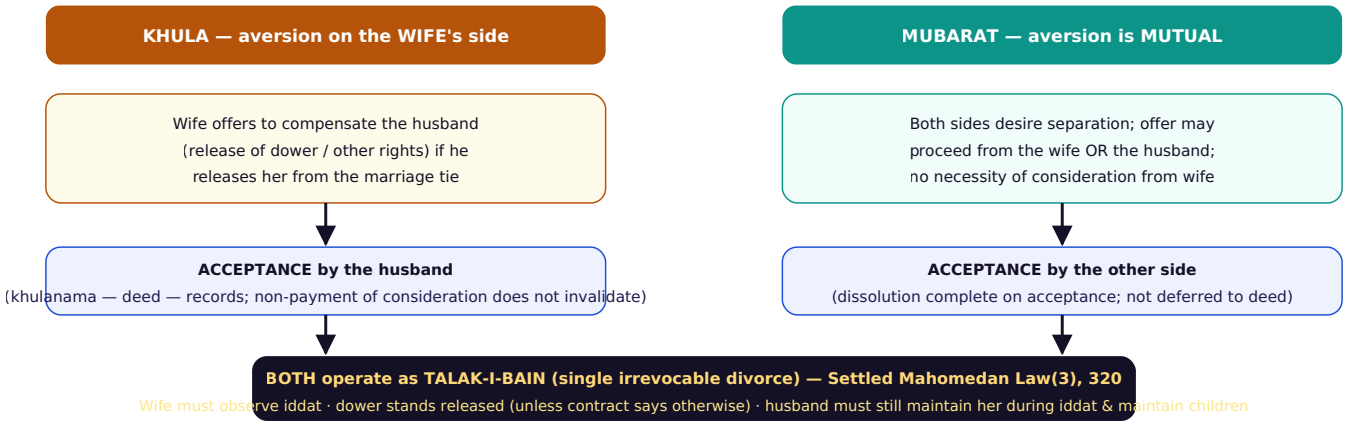
Definition (Settled Mahomedan Law): "A divorce by *khula* is a divorce **with the consent, and at the instance of the wife**, in which she gives or agrees to give a **consideration** to the husband for her release from the marriage tie." The terms are a matter of bargain — she may release her *mahr* (dower) and other rights, or make any other agreement for the husband's benefit.

Etymology (Baillie): "Khula means to put off, as a man is said to khula his garment when he puts it off. In law it is the laying down by a husband of his right and authority over his wife **for an exchange**."

Prophetic root (Bukhari, quoted in Yousuf Rawther & Masroor Ahmed): the wife of **Thabit ibn Qais** came to the Prophet: not angry with Thabit's temper or religion, but afraid she could not observe the bounds of God. The Prophet asked: "Will you give back to Thabit the garden he gave you?" — "Yes." — "Take your garden and divorce her at once." **Asma**, one of the Prophet's wives, was likewise released at her own request. Lesson: the wife can seek release even without fault against the husband.

> **Masroor Ahmed's gloss:** Khula is a divorce which proceeds from the wife "which the husband **cannot refuse**, subject only to reasonable negotiation" as to what she offers in return. **No reason need be specified** — it operates on a no-fault/no-blame basis.

Fig. 5 — Khula vs Mubarat (both end in talak-i-bain)



Basis	Talaq	Khula	Mubarat
Who initiates	Husband, at his will	Wife, at her instance	Both jointly
Aversion	On husband's side (classically none needed)	On wife's side	Mutual
Consideration	Husband must pay dower debt on talaq	Wife gives consideration (usually releases dower)	Usually none; terms settled mutually
Effect	Ahsan/Hasan revocable; Bidaat immediate	Single irrevocable (talak-i-bain)	Single irrevocable (talak-i-bain)
Reason to be alleged	Reasonable cause required per modern view (Shamim Ara line)	No reason required — no-fault	No reason required — no-fault
Statutory recognition	All three named in s. 2, Shariat Act, 1937 ("dissolution of marriage, including talaq, ila, zihar, lian, khula and mubaraat")		

3.2 ILA and ZIHAR — constructive forms (virtually obsolete in India)

Ila — vow of continence (Settled Mahomedan Law)

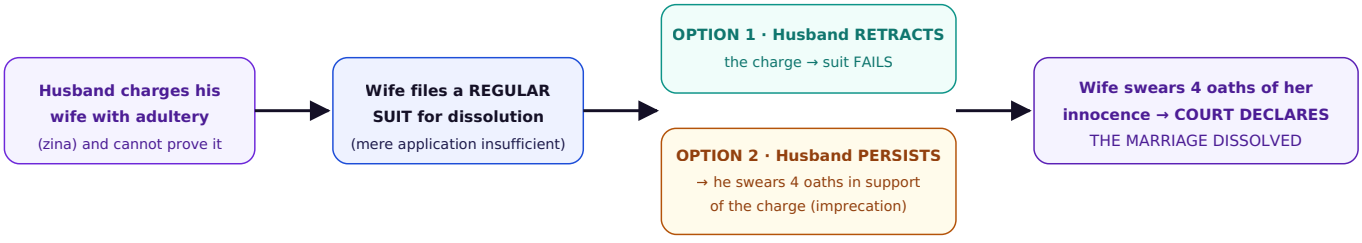
A species of **constructive divorce**: the husband vows abstinence from sexual intercourse for **not less than four months**; on expiry (Hanafi view) it operates as divorce. Shafii law: the vow gives the wife a right to demand **judicial** divorce. Cases are "virtually non-existent in India" (Masroor Ahmed), but ila is named in s. 2 of the Shariat Act.

Zihar (Settled Mahomedan Law)

An **inchoate** form: the husband compares his wife to his mother or any other female within prohibited degrees. The wife may refuse herself to him until he performs expiation; in default she may sue for a judicial divorce. "Cases of zihar are unknown in India", doubted whether enforceable — but it received statutory recognition in s. 2, Shariat Act, 1937.

3.3 LIAN — divorce for false charge of adultery (Settled Mahomedan Law; Masroor Ahmed para 17)

Fig. 6 — Procedure of Lian



f hearing — wife disentitled; after close of evidence/trial — decree stands (settled Mahomedan law). Indian courts: retraction "has no place in the procedure in British Courts" (Bom). Marriage contin

Lian under the DMMA umbrella: s. 2(ix) DMMA preserves lian as a ground "recognised as valid under Muslim law"; a wife suing for dissolution on lian succeeds only if the charge is proved false, and no suit lies if the marriage was merely irregular.

3.4 TALAQ-E-TAFWEEZ — delegated divorce (Settled Mahomedan Law)

> The power to divorce belongs primarily to the husband, but he may **delegate** it to the wife (or a third person) — **absolutely or conditionally, for a period or permanently**. Stipulations in the nikahnama giving the wife a right to divorce herself in specified contingencies (e.g., husband takes a second wife, ill-treats her, doesn't pay dower) are **valid if reasonable and not opposed to**

Muslim law policy. Once triggered, it operates "to the same extent as if a talak has been pronounced by the husband". Temporary delegation is irrevocable; permanent delegation may be revoked; the wife's stipulated power is **not revocable** and survives even a suit for restitution.

From Itwari v. Asghari: a Muslim wife can stipulate for the power to divorce in case the husband takes another wife — and where such power exists "she is not bound to exercise her option at the very first moment" — "a second marriage is not a single but a continuing wrong to the first wife" (Ayatunnessa Beebee v. Karam Ali, ILR 36 Cal 23). A contract restraining the husband from a second marriage is **not void under s. 23, Contract Act**.

Why tafweez matters: It is called "the most powerful weapon in the hands of a Muslim wife" — it gives her an out-of-court divorce equal to talaq, restoring parity with the husband's unilateral power (echoed by Krishna Iyer J. in Yousuf Rawther: equalisation of divorce rights).

PART 4

Judicial Divorce — The Dissolution of Muslim Marriages Act, 1939

Background & Statement of Objects and Reasons (as set out in the course pack)

Before 1939, a Hanafi wife had **practically no judicial remedy**: the Hanafi school permitted judicial divorce only on limited grounds (impotence, lian), and courts hesitated to apply the more liberal **Maliki** law. The SOR recorded that "the absence of such a provision has entailed **unspeakable misery to innumerable Muslim women** in British India", and that "the Hanafi Jurists have clearly laid down that in cases in which the application of Hanafi Law causes hardship, it is permissible to apply the provisions of the Maliki, Shafii or Hambali Law."

Masroor Ahmed: the 1939 Act introduced "a very salutary principle" — **applying beneficial provisions of one school to adherents of other schools**; and it **enabled Muslim women of all sects** to seek dissolution through court.

- **Long title:** "An Act to consolidate and clarify the provisions of Muslim law relating to suits for dissolution of marriage by women married under Muslim law and to remove doubts as to the effect of the renunciation of Islam by a married Muslim woman on her marriage tie."
- **Act No. 8 of 1939** — passed 17 March 1939; extends to the whole of India (J&K exception omitted w.e.f. 31-10-2019).
- **Nature:** consolidating; not wholly declaratory (Settled Mahomedan Law) — s. 4 in particular altered the law on apostasy.

Bare Act — full text (Act 8 of 1939, as amended)

S. 1. Short title and extent. (1) This Act may be called the Dissolution of Muslim Marriages Act, 1939. (2) It extends to the whole of India.

S. 2. Grounds for decree for dissolution of marriage. — *A woman married under Muslim law shall be entitled to obtain a decree for the dissolution of her marriage on any one or more of the following grounds, namely:*

(i) that the whereabouts of the husband have not been known for a period of four years;
(ii) that the husband has neglected or has failed to provide for her maintenance for a period of two years;
(iii) that the husband has been sentenced to imprisonment for a period of seven years or upwards;
(iv) that the husband has failed to perform, without reasonable cause, his marital obligations for a period of three years;
(v) that the husband was **impotent** at the time of the marriage and continues to be so;
(vi) that the husband has been **insane** for a period of two years or is suffering from a **virulent venereal disease** (the words "leprosy or" omitted by Act 6 of 2019);
(vii) that she, having been given in marriage by her father or other guardian before she attained the age of fifteen years, **repudiated** the marriage before attaining the age of eighteen years: *Provided that the marriage has not been consummated*;
(viii) that the husband treats her with **cruelty**, that is to say —
(a) habitually assaults her or makes her life miserable by cruelty of conduct even if such conduct does not amount to physical ill-treatment, or
(b) associates with women of evil repute or leads an infamous life, or
(c) attempts to force her to lead an immoral life, or
(d) disposes of her property or prevents her exercising her legal rights over it, or
(e) obstructs her in the observance of her religious profession or practice, or
(f) if he has more wives than one, does not treat her equitably in accordance with the injunctions of the Quran;
(ix) on any other ground which is recognised as valid for the dissolution of marriages under Muslim law.
Provided that — (a) no decree shall be passed on ground (iii) until the **sentence has become final**; (b) a decree passed on ground (i) shall not take effect for **six months** from its date, and if the husband appears in person or through an authorised agent within that period and satisfies the Court that he is prepared to perform his conjugal duties, the Court shall set aside the decree; and (c) before passing a decree on ground (v) the Court shall, on application by the husband, order him to satisfy the Court **within one year** that he has ceased to be impotent — if he does, no decree shall be passed on that ground.

S. 3. Notice to be served on heirs of the husband when the husband's whereabouts are not known. — In a suit under cl. (i): (a) names and addresses of persons who would be the husband's heirs had he died on the date of filing the plaint shall be stated; (b)

notice shall be served on them; (c) they have the right to be heard. *Provided* that the husband's paternal uncle and brother, if any, shall be cited as parties even if not heirs.

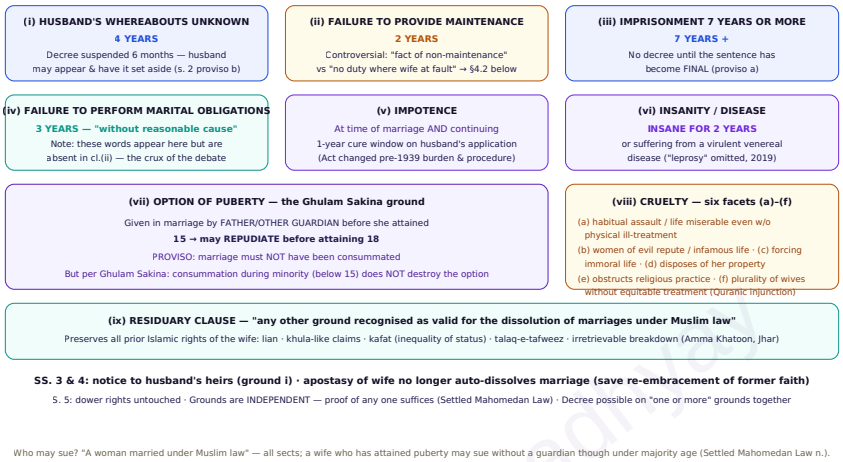
S. 4. Effect of conversion to another faith. — Renunciation of Islam by a married Muslim woman, or her conversion to a faith other than Islam, **shall not by itself dissolve her marriage**; but thereafter she may sue for dissolution on any s. 2 ground. *Provided further* that this section does not apply to a woman converted to Islam from some other faith who **re-embraces her former faith** (such re-embracement does dissolve the marriage).

S. 5. Rights to dower not to be affected. — Nothing in the Act affects any right which a married woman has under Muslim law to her dower (or part thereof) on dissolution.

S. 6. [Repeal of s. 5 of the Shariat Act, 1937.] — Rep. by the Repealing and Amending Act, 1942.

4.1 Grounds of s. 2 at a glance

Fig. 7 — The nine grounds of the DMMA 1939 (with statutory time-periods)



4.2 The great controversy — does s. 2(ii) require a duty to maintain?

Fig. 8 — Two schools on s. 2(ii) DMMA (the theme of Itwari-era case law & Yousuf Rawther)

DUTY VIEW — restrictive

"Failed to provide" imports a duty under general Muslim law

- Zafar Hussain v. Akbari Begum, AIR 1944 Lah 336 — "neglect implies wilful failure"; omission of duty
- Ummat-ul-Hafiz v. Talib Hussain, AIR 1945 Lah 56
- Amir Mohd v. Bushra (Raj DB, AIR 1956 Raj 102) — failure must be "without justification" else no neglect
- Nagpur (AIR 1951 Nag 375, Mudholkar J.) — s. 2 must be read with whole Muslim law; wife living away against duty → no failure
- Peshawar / Allahabad — where wife entirely to blame, husband cannot be said to have "failed to provide"

FACT VIEW — plain-grammatical / beneficent

s. 2(ii) refers to the FACT of non-maintenance, not a right to it

- Manak Khan v. Mulkhan, AIR 1941 Lah 167 (Abdul Rashid J.) — "without reasonable cause" omitted in (ii); whatever the cause
- Mt. Zainabi v. Abdul Rahman, AIR 1945 Pesh 51
- Noor Bibi v. Pir Bux, AIR 1950 Sind 8 (Tyabji CJ, Hajra's case) — pure question of fact; dissolution ≠ punishment for husband
- Judicial note — failure even from poverty, illness, loss of work, imprisonment entitles the wife to divorce
- Ittochalil v. Pachi Parambath, AIR 1983 Ker 283; Moosa v. Fathima

A. Yousuf Rawther v. Sowramma (Ker HC, Krishna Iyer J.) adopts the FACT VIEW — s. 2(ii) satisfied by mere non-maintenance for 2 years

Why it matters: Under the duty view the wife loses if she is herself at fault (not "faithful and obedient", or refusing to live with the husband); under the fact view the wife wins once 2 years' non-maintenance is proved, whatever the cause — because the ground is founded not on the husband's breach but on the **reality that the marriage has already ceased to function** ("cessation of the state of marriage"), the Islamic principle of dissolution when the parties cannot live "within the limits of Allah".

PART 5

The Case Law — Facts · Issues · Arguments · Decisions · Principles

Sources: Cases 1–6 below are taken verbatim-in-substance from the DU LB-105 case material (course pack, pp. 233–276). Case 7 (Shayara Bano) is prescribed in the syllabus; its facts and holdings are stated as reported. Supporting authorities quoted inside the judgments are gathered in the reference table at the end of this Part.

(1) Saiyid Rashid Ahmad v. Mt. Anisa Khatun BRIDGE CASE — UNIT VII/VIII JUNCTION
AIR 1932 PC 25 · Privy Council · Lord Thankerton · (course pack pp. 233–236)

• Facts
Suit concerning succession to the estate of **Ghiyas Uddin**, a Muslim who died on 4 April 1920 leaving considerable property. His brother and sister (appellants) claimed that respondents 1–6 — Anisa Khatun and her children — were not his lawful widow and legitimate offspring. The matrimonial history had four stages: (1) Anisa Fatima's marriage to Manzur Husain (1901); (2) her divorce by Manzur early 1905; (3) her marriage to Ghiyas Uddin on 28 Aug 1905; (4) her divorce by Ghiyas Uddin on/about **13 September 1905** — a **triple talaq pronounced in the presence of witnesses but in the wife's absence**, with Rs 1,000 paid as dower the same day (registered receipt) and a **talaqnama dated 17 September 1905** which narrated that the three divorces were given "in the abominate form", i.e., *bidaat*. The Subordinate Judge held the divorce effective and the children (all born after the divorce) illegitimate; the Allahabad High Court reversed, treating the divorce as "fictitious... a mock ceremony performed... to satisfy his father, without any intention that it should be real".

Issues
1. Was the triple talaq of 13.9.1905 legally valid and effective?
2. Could the husband's secret **mental intention** (that the ceremony be a sham) nullify a formally pronounced talaq?
3. If divorced irrevocably, could the subsequent offspring be legitimised by the husband's acknowledgments and conduct?

• Arguments of the parties
Appellants (heirs of Ghiyas Uddin's collaterals): concurrent findings below establish the triple talaq and the genuine talaqnama; the divorce was in the *bidaat* form and therefore immediately irrevocable; intention is irrelevant; conduct for 15 years thereafter cannot undo a completed divorce; the legal bar to remarriage prevents any presumption of legitimacy.

Respondents (Anisa Khatun's children): the divorce was a mock ceremony — no genuine intention, hence inoperative; reliance on the husband's 15-year treatment of Anisa Fatima as wife and of the children as legitimate, and on the acknowledgment dicta in *Habibur Rahman Chowdhury v. Altaf Ali Chowdhury* (AIR 1922 PC 159), to raise a presumption of intervening marriage and legitimisation; the burden lay on the appellants to displace that presumption.

[Yes] Decision
Appeal allowed; High Court reversed; Subordinate Judge's decree restored. Lord Thankerton adopted Wilson's *Digest of Anglo-Mahomedan Law* (5th ed. 136): talaq may be *bain* (irrevocable) or *raja* (revocable); bain may be effected (a) once + abstinence through iddat — *ahsan*; (b) three times in successive periods of purity — *hasan*; (c) three times at shorter intervals or even in immediate succession; (d) once by words showing immediate irrevocability — (c) and (d) are *bidaat*, "sinful, but... regarded by Sunni lawyers as legally valid". Here the words — "I divorce Anisa Khatun for ever and render her haram for me" — repeated thrice, plus the talaqnama, showed the **bidaat form**: the divorce "at once becomes irrevocable, irrespective of the iddat". The wife's presence was unnecessary. **"A talak actually pronounced under compulsion or in jest is valid and effective"** — the husband's mental reservation could not undo it; that view of the High Court was "contrary to all authority". The acknowledgment presumption fails on the face of the legal bar created by the triple divorce; children born after the divorce were illegitimate and could not inherit.

Principle evolved **Form prevails over intent:** a triple talaq in the bidaat form is, in classical Hanafi law as applied by the PC, immediately operative and irrevocable irrespective of iddat, communication or the husband's true intention; compulsion or jest is irrelevant. *This is the classical position — the very position progressively demolished by Shamim Ara (2002) and finally by Shayara Bano (2017), which is exactly the judicial arc an examiner loves to see narrated.*

(2) Ghulam Sakina v. Falak Sher Allah Bakhsh
AIR 1950 Lah 45 · Lahore High Court · Mohd. Sharif J. · Second appeal · (course pack pp. 255–258)
• Facts
The plaintiff (a **Sunni** girl) sued for dissolution of her marriage. Her case: she was never validly given in marriage as the defendant proclaimed; if any marriage took place during her **infancy**, she never approved it and had repudiated it; and (a plea not pressed at trial) she a Sunni and the defendant a Shia. The defendant answered that the marriage was performed by her father when she was five years old, as an **exchange (watta-satta) marriage** — his sister marrying the plaintiff's uncle in return — that the parties lived as husband and wife and the marriage was consummated. The marriage register (Ex. D-2) showed the marriage was performed by the father as guardian on **23 November 1932**; her birth entry showed she was born on 13 November 1931 (about a year old at marriage); the nikah khawan deposed she was then 3–4 months old and the defendant 5–7 years old; the doctor estimated her at about 17 at examination. The suit was instituted on **29 August 1945** — before she attained 18 on either reckoning. The trial court found no credible proof of consummation and decreed dissolution; the District Judge, Mianwali **reversed on the question of consummation** and dismissed the suit; the plaintiff came in second appeal.

Issue
The sole question: whether the plaintiff had repudiated her marriage in accordance with **s. 2(vii), DMMA 1939** — i.e., marriage by father/guardian before 15, repudiation before 18, and the statutory proviso that "the marriage has not been consummated" — the entire battle being whether the marriage stood "consummated".

• Arguments of the parties
Defendant (husband): consummation was proved — two respectable witnesses produced by the plaintiff herself (his brother P.W. 2 and his father P.W. 7) admitted it; and the plaintiff's pointed **refusal to submit to a medical examination** (to test virginity) raised "a very strong presumption" of consummation — exactly the reasoning accepted by the courts below and reflected in *Atkia Begum v. Muhammad Ibrahim* (36 IC 20), where refusal was treated as showing the respondent's bona fides. A rapprochement about December 1944, a second marriage party, and her going to his house were alleged.

Plaintiff (wife): the evidence of consummation was of "very unsatisfactory character" — the defendant had even scored out the words "about one year ago" from his statement and evaded the court's direction to specify when consummation allegedly occurred; the correspondence (letters between the fathers) showed dissension since 1944 and her continued residence in her father's house; the

two witnesses were examined only with reference to letters and were the husband's own father and brother; her refusal of a **lady doctor's** examination could not prove consummation — the Privy Council in *Atkia Begum* itself **disapproved** drawing such an inference. Any cohabitation during minority cannot extinguish an option that accrues only on puberty.

[Yes] Decision
Appeal accepted; District Judge's decree set aside; trial court's decree restored; plaintiff's suit for dissolution decreed with costs throughout. Steps in the reasoning: (1) consummation "should have been proved as a fact on the consideration of the entire evidence"; refusal to be examined by a lady doctor "could not... be taken to be a proof of the consummation" — the PC in Atkia Begum did not agree with the contrary remarks. (2) The true significance of the **option of puberty**: marriage being a contract needs "free and unfettered consent"; guardians contract for minors; before 1939 a minor girl given in marriage by the **father or father's father** could not repudiate — the Act changed this, putting such a contract "on no higher footing than that of any other guardian", so the minor may repudiate or ratify **after puberty**. (3) **Puberty is presumed on completion of 15 years** unless earlier puberty is proved (burden on the person pleading it). (4) "Anything done by the minor during the minority would not destroy the right which could accrue only after puberty" — **cohabitation of a minor girl does not end the option**; assent must come after puberty (express or implied, e.g., by cohabitation); the girl must be aware of the marriage to exercise the option; and consummation, to bar the option, must have been without her consent *after* majority (Baillie 1.59; *Abdul Karim v. Amina Bai*, AIR 1935 Bom 308). (5) On the facts she was below 15 at the alleged consummation; the suit — one mode of proclaiming the option — was brought within the three-year window (before 18). Option preserved; decree granted.

Principle evolved **Option of puberty under s. 2(vii) DMMA:** (i) consummation must be proved as a fact — no adverse presumption from refusal of medical examination; (ii) puberty presumed at 15; (iii) ratification or consent is effective only after puberty; (iv) cohabitation/consummation during minority does not destroy the option; the girl must know of the marriage before she can be expected to ratify it. **Adopted with approval by Krishna Iyer J. in A. Yousuf Rawther.**

(3) Itwari v. Asghari
AIR 1960 All 684 · Allahabad High Court · S.S. Dhawan J. · Second appeal · (course pack pp. 269–275)
• Facts
Itwari married Asghari about 1950. Things went wrong; the wife left to live with her parents; the husband **took no steps to bring her back and married another woman**. The first wife then applied for maintenance under **s. 488 CrPC**; *thereupon* the husband sued for **restitution of conjugal rights** (impleading her father and two brothers). The wife alleged she had been turned out, that the husband formed an illicit union with the woman he later married, beat her, deprived her of ornaments, caused physical and mental pain, and never paid her dower. The **Munsif decreed** the husband's suit: cruelty unproved; a second marriage raises no presumption of ill-treatment; if aggrieved the wife "should have obtained a decree for dissolution" instead. The **District Judge, Rampur reversed**: the suit was a "counter-blast" to the maintenance claim; the husband's years of silence showed he "never really cared for her"; her evidence of ill-treatment was believed; a deserted wife would "not find peace with him after another woman had already been installed as his wife." Itwari appealed.

Issues
1. Is the husband's taking of a second wife a ground for the first wife to refuse cohabitation / for dismissing his RCR suit?
2. What degree of cruelty is needed to defeat a Muslim husband's suit for restitution of conjugal rights — must it render it "unsafe for the wife to return to his dominion" (borrowed from the Privy Council in Shamsunnissa Begum)?
3. Is a court of equity bound to enforce the husband's right to consortium merely because polygamy is lawful?

• Arguments of the parties (Mr. N.A. Kazmi, for the husband)
(1) Cruelty defeating RCR is a mixed question of law and fact, so the High Court in second appeal may re-examine the evidence. (2) A Muslim has a personal-law right to take up to four wives — the mere fact of a second marriage is **no proof of cruelty**. (3) To defeat restitution there must be cruelty "of such a character as to render it unsafe for the wife to return to her husband's dominion" — mere second marriage falls far short.

(Wife's case as accepted below): the suit was mala fide, filed only to escape maintenance; years of desertion; specific acts of cruelty believed; equity should not compel her to share the husband with another woman.

[Yes] Decision
Appeal dismissed (under O. 41 R. 11 CPC). The husband's refusal of relief affirmed. The reasoning proceeds in five movements:

1. **RCR is equitable relief.** Muslim marriage being a civil contract, an RCR suit merely enforces the right to consortium; disobedience is enforceable by imprisonment or attachment (*Moonshee Buzloor Ruheem v. Shumsoonissa Begum*, 11 Moo IA 551; *Abdul Kadir v. Salima*, ILR 8 All 149 FB) — but courts act "as mixed Courts of equity", taking the plaintiff's conduct into account: unclean hands, ulterior motives, or injustice in compelling cohabitation justify refusal.
2. **Polygamy is tolerated, never encouraged.** Koran IV.3 ("marry... by twos, or threes, or fours... if ye fear that ye cannot be equitable, then only one") "was really a restrictive measure... it imposed a ceiling on conjugal greed"; the injunction to be impartial is "an impossible condition according to several Muslim jurists".
3. **The law already arms the first wife.** She may stipulate for delegated divorce on the husband's second marriage (*Badu Mia v. Badrannessa*, AIR 1919 Cal 511; *Ayatunnessa Beebee v. Karam Ali*, ILR 36 Cal 23 — a second marriage is "a continuing wrong" to the first wife, giving a continuing right to exercise the option); a contract restraining a second marriage is not void under s. 23, Contract Act. A law that permits all this "prefers the breaking up of the first marriage to compelling the first wife to share her husband with the second".
4. **Cruelty is a universal, evolving standard.** There is no 'Muslim' cruelty distinct from English law (PC in Shamsunnissa Begum); cruelty = conduct causing danger to life, limb, health (bodily or mental) or reasonable apprehension of it (Rayden); courts must heed "prevailing social conditions" — Muslim jurisprudence itself accommodates changing conditions (Abdur Rahim) — and the

DMMA 1939 itself (s. 2(viii)(f): inequitable treatment of co-wives) proves the legislature's ameliorative intent (Sinha J. in *Mt. Sofia Begum v. Zaheer Hasan*, AIR 1947 All 16). Under **modern conditions**, "the importing of a second wife into the household ordinarily means a stinging insult to the first"; a husband "will be presumed to intend the natural consequences of his own conduct" (*Simpson v. Simpson*, 1951); hence "the very act of taking a second wife, in the absence of a weighty and convincing explanation, raises a presumption of cruelty to the first", with the onus on the husband to rebut (e.g., marriage at the first wife's suggestion).

5. **Equity can refuse even absent proof of cruelty** where compulsion would be unjust (*Hamid Hussain v. Kubra Begum*, AIR 1918 All 235; *Nawab Bibi v. Allah Ditta*, AIR 1924 Lah 188; *Khurshid Begum v. Abdul Rashid*, AIR 1926 Nag 234). Dismissing the suit does not deny his right to polygamy — no bigamy prosecution, valid second marriage, legitimate children — but he cannot, "in his conjugal greed... like Oliver, ask[ ] for more". Here the suit was mala fide and specific cruelty believed: no decree.

Principle evolved **The presumption of cruelty rule:** taking a second wife, absent weighty explanation, raises a presumption of legal cruelty to the first wife, disentitling the husband to a decree for restitution of conjugal rights — a court of equity will not use its process to compel the first wife to cohabit. The standard of cruelty is universal-humanitarian and responsive to changing social conditions. (This case supplies the Muslim-law answer to the RCR question and is the classic companion to s. 2(viii)(f) DMMA.)

(4) A. Yousuf Rawther v. Sowramma
AIR 1971 Ker 261 (= 1970 KLT 477) · Kerala High Court · V.R. Krishna Iyer J. · (course pack pp. 259–268)
• Facts
Sowramma, a Hanafi girl of around 15 (who had attained puberty before marriage), was married in 1962 to **Yusuf Rawther**, "nearly twice her age". The couple spent barely days together: the husband left for Coimbatore the very next day for his radio business; after about a month the girl returned to her parents — each side blaming the other. For over two years of separation the defendant admittedly **failed to maintain her**; his defence was that she wrongfully refused to return at the instance of her father. He moved the mosque committee (Exts. D2, D4) which reported divorce was the only solution. The wife sued for dissolution invoking **s. 2(ii), (vii) and (ix) DMMA**. The trial court dismissed; the Subordinate Judge decreed dissolution; the husband appealed. Concurrent findings: she was 15, had attained puberty, the marriage was consummated, the husband failed to maintain her for two years — and, crucially, "it was through her own conduct that she led her husband to stop maintenance for a period of 2 years". Krishna Iyer J. records his vain attempt at reconciliation and the subsequent events (his second marriage; her remarriage after the decree).

Issues

1. Whether under **s. 2(ii)** the wife is entitled to dissolution on the **mere fact** of non-maintenance for two years — or only where, under general Muslim law, the husband was bound to maintain her (i.e., where her own conduct has not disentitled her to maintenance)? `THE SEMINAL ISSUE`
2. Whether s. 2(vii) (option of puberty) was made out — the courts found no proof she was under 15 at marriage and that the marriage was consummated.
3. Whether s. 2(ix) preserved other Islamic grounds (khula) independent of s. 2(ii).

• Arguments of the parties
Appellant (husband): the claim rests on the failure of a wilfully erring wife to be maintained — a wife who wrongfully left the matrimonial home cannot take advantage of her own wrong; s. 2(ii) must be read with the general law whereunder the duty to maintain arises only if she lives with him ("she can only be maintained at the place where she ought properly to be" — Mudholkar J., Nagpur). Reliance: AIR 1951 Nag 375; Rajasthan DB AIR 1956 Raj 102; Peshawar & Allahabad views (AIR 1944 All 23; AIR 1947 All 3 — Allsop Ag. C.J.: the Act does not oblige the husband "to follow his wife wherever she may go and force money... upon her"). On s. 2(vii): *Rabia Khatoon v. Mohd. Mukhtar Ahmad*, AIR 1966 All 548, against her.

Respondent (wife) / amicus: the Act is beneficent social legislation for a weaker section and must be read in the light of the Islamic ethos; the Sind view (Tyabji CJ in *Noor Bibi v. Pir Bux*, AIR 1950 Sind 8, following *Hajra's case*; Beckett J. AIR 1943 Sind 65) and *Manak Khan v. Mulkhan*, AIR 1941 Lah 167 (Abdul Rashid J.) give s. 2(ii) its "plain ordinary grammatical meaning" — the conspicuous omission of the words "without reasonable cause" (which appear in cl. (iv)) shows that whatever the cause, two years' non-maintenance suffices; dissolution under the Act is not a punishment for the husband or a remedy enforcing maintenance — it recognises that the marriage has in reality ceased ("suspension of the marriage"), the state Islam abhors (Quran II:229, 231; IV:129; the Jameela/Thabit ibn Qais precedent in Bukhari).

[Yes] Decision
Appeal dismissed; decree for dissolution under s. 2(ii) affirmed. Krishna Iyer J.'s reasoning: (1) Beneficent construction — legislation protecting women must be read with "social perspective and purpose". (2) **Islamic realism about divorce**: marriage is a civil contract; the Quran forbids capricious divorce ("if they obey you, then do not seek a way against them" — IV:34); the Prophet called divorce "the most disliked of lawful things"; divorce is permissible "only in cases of extreme emergency" after failed reconciliation; Islam for the first time in Arabia gave women the right to seek divorce (the Thabit ibn Qais khula). (3) **The split of authority resolved for the Sind view:** Tyabji CJ — "the question whether there was a failure to maintain was a pure question of fact"; the principles of maintenance during marriage and dissolution are *entirely different*; dissolution is allowed "when a cessation of the state of marriage has in reality taken place, or the continuance of the marriage has become injurious to the wife"; prolonged failure to maintain is "an instance where a cessation or suspension of the marriage had occurred", so "the wife's disobedience or refusal to live with her husband does not affect the principle on which the dissolution is allowed". (4) **Floodgates answer:** quoting Bertrand Russell (*Marriage and Morals*) — "The easiest divorce laws by no means always produce the greatest number of divorces" — and the Marumakkathayam analogy: "The law has to provide for possibilities; social opinion regulates the probabilities." (5) Holding: "a Muslim woman, under s. 2(ii)... can sue for dissolution on the score that she has not as a fact been maintained even if there is good cause for it." (6) s. 2(ix) is "a statutory preservation of prior Islamic rights"; the khula claim was left undecided as unnecessary — the wife having succeeded under s. 2(ii). He adds the equity note: the wife's success restores "roughly equal rights" between the spouses, matching the talaq technique with khula under judicial supervision.

Principle evolved **s. 2(ii) DMMA turns on the fact of non-maintenance, not on the wife's conduct or the husband's culpability:** two years' failure to maintain — even due to poverty, or caused by the wife's own delinquency — entitles the wife to a decree. A marriage which has ceased to be a reality should not be kept alive. **Heavily relied upon by the Supreme Court in Shamim Ara (2002)** for its Quranic conception of divorce.

(5) Shamim Ara v. State of U.P. `LANDMARK – PROOF OF TALAQ`
2002 Cri LJ 4726 (SC) = AIR 2002 SC 3551 = (2002) 7 SCC 518 · Supreme Court · R.C. Lahoti J. · (course pack pp. 237–241)
• Facts
Shamim Ara married **Abrar Ahmed** in 1968 under Muslim Shariat law; four sons were born. On **12.4.1979** she applied under **s. 125 CrPC** for herself and her minor children, alleging desertion and cruelty. The Family Court, Allahabad (order dt. 3.4.1993) refused her maintenance holding she "was already divorced", allowing only Rs 150/month for one minor son. Crucially, the husband's **written statement dated 5.12.1990** had taken a bald additional plea: "he had divorced the appellant on 11.7.1987 and since then the parties had ceased to be spouses" — **no particulars of the talaq were pleaded**; he also claimed the protection of the Muslim Women (Protection of Rights on Divorce) Act, 1986 (house delivered in lieu of mehar). In evidence he embellished: triple talaq on 11.7.1987 "at 11 a.m. in the presence of Mehboob and other 4-5 persons" — a fact nowhere in the written statement. The Family Court upheld "a strange story of divorce totally beyond the case set up", founding itself on an **affidavit dated 31.8.1988 filed by the husband in some other civil suit** (to which the wife was not a party) stating he had divorced her "15 months before". The High Court in revision invented a communication theory: though not pronounced in her presence, the divorce "would stand completed on 5.12.1990" — the date of filing the written statement — so maintenance ran only from 1.1.1988 to 5.12.1990 (Rs 200). The wife appealed to the Supreme Court.

Issue
"The singular issue... is whether the appellant can be said to have been divorced and the said divorce communicated to the appellant so as to become effective from 5.12.1990, the date of filing of the written statement by the respondent No. 2." (With the broader question: what constitutes a valid talaq under Muslim law as applied in India?)

• Arguments of the parties
Husband/Respondent: on the authority of rulings noted in classical authorities (including an A.P. case, (1975) 1 APLJ 20) and Dr. Tahir Mahmood's commentaries, a statement by the husband in pleadings filed in answer to a maintenance petition that he had already divorced the wife **operates as a divorce**; the plea plus the 1988 affidavit corroborated the divorce; under classical Hanafi law no form, witnesses, or cause is needed and talaq in the wife's absence is effective.

Wife/Appellant: no divorce was ever pleaded with particulars, proved, or communicated; the affidavit was in proceedings *not inter partes*; the "plea-in-written-statement" doctrine rests on a misconception of the Quranic law of talaq; the High Court's deemed-communication theory has no warrant in any text.

[Yes] Decision
Appeal allowed. No divorce; the husband remains liable to maintain. R.C. Lahoti J.'s four-step analysis, now the settled law:

1. **The Quranic discipline of talaq.** No scripture mentions divorce by recital in pleadings. The Court adopts the Gauhati High Court's statement of "the correct law of talaq as ordained by the Holy Quran": (i) talaq must be **for a reasonable cause**; (ii) it must be **preceded by an attempt at reconciliation** between husband and wife by **two arbiters — one chosen by the wife from her family, the other by the husband from his** — failing which talaq may be effected (*Jiauddin Ahmed v. Anwara Begum*, (1981) 1 GLR 358, Baharul Islam J.; approved by the DB in *Rukia Khatun v. Abdul Khalique Laskar*, (1981) 1 GLR 375, which expressly dissented from the Calcutta and Bombay views). The "whimsical and capricious divorce... good in law though bad in theology" formula treats women as chattel — which the Quran "does not brook".
2. **Endorsement of Krishna Iyer J.** — Yousuf Rawther is quoted at length ("It is a popular fallacy that a Muslim male enjoys, under the Quranic law, unbridled authority to liquidate the marriage..."); so too V. Khalid J. in *Mohammed Haneefa v. Pathummal Beevi* (1972 Ker LT 512) quoting *Pathayi v. Moideen* (1968 Ker LT 763), deploring "this tyranny" over Muslim wives; and *Bai Tahira v. Ali Hussain* (AIR 1979 SC 362) — the beneficent, Art. 15(3)/38/39-informed reading of protective law.
3. **Talaq must be pronounced — and proved.** "The talaq to be effective **has to be pronounced**": 'pronounce' means "to proclaim, to utter formally, to utter rhetorically, to declare, to articulate". There was no proof of talaq on 11.7.1987: no particulars, no evidence beyond the husband's own testimony, no substantiated reasons, no plea or proof of any reconciliation effort. "A mere plea taken in the written statement of a divorce having been pronounced sometime in the past cannot by itself be treated as effecting talaq on the date of delivery of the copy of the written statement to the wife. The respondent... ought to have adduced evidence and proved the pronouncement... if he failed in proving the plea raised in the written statement, the plea ought to have been treated as failed." The Court **expressly disagreed** with earlier decisions treating an unsubstantiated plea of previous talaq as proof of divorce.
4. **The affidavit was worthless:** a self-serving statement in previous proceedings *not inter partes* "could not have been read in evidence as relevant and of any value". Neither the marriage stood dissolved on 5.12.1990 nor did the maintenance liability end.

Principle evolved **The Shamim Ara triple-test:** for a talaq to be effective where contested, the husband must prove (1) the **pronouncement**, (2) a **reasonable cause**, and (3) a prior **attempt at reconciliation by two arbiters**; a plea of divorce in pleadings/affidavits is no evidence. **Position after Shamim Ara (as synthesised by Masroor Ahmed):** pronouncement must be proved; reasonable cause shown; reconciliation attempted; and communication made — applying to ahsan, hasan and bidaat alike.

(6) Masroor Ahmed v. State (NCT of Delhi) `TRIPLE TALAQ + COMMUNICATION + RAPE FIR QUASHED`
2008 (103) DRJ 137 (Del) · Delhi High Court · Badar Durrez Ahmed J. · s. 482 CrPC quashing · (course pack pp. 242–254)
• Facts — "the case is unusual because of the facts which led to the registration of the FIR"
Aisha Anjum married **Masroor Ahmed** on 2.4.2004; a daughter (Sara @ Ushna) was born on 22.10.2005. She left the matrimonial home on 8.4.2005 (she said, ejected over unmet dowry demands; he said, of her own will). In late October 2005, after his brother-in-law and sister failed to persuade her to return, the husband — "very sad and extremely angry", "in this mental condition", in the

presence of his brother-in-law and another man — **uttered the words of talaq approximately three times or even more**. He "forgot about this incident"; the talaq was **never communicated** to the wife. On 23.3.2006 he filed a **suit for restitution of conjugal rights** stating she was "still the wife of the petitioner" (the talaq unmentioned); on 13.4.2006 she stated in court she was ready to join him, and she returned home with him from the court itself. Reminded by his brother-in-law that he had pronounced triple talaq in October 2005, and "not want[ing] any illegitimacy in his marital status", he consulted a **mufti** on 16.4.2006; the **fatwa** (17.4.2006) said three talaqs in one sitting = **one talaq-e-rajai**, revocable within the 3-month iddat; that period having elapsed, a **fresh nikah** was needed. A **second nikah was performed on 19.4.2006** (her brother Shahid Naeem witnessing). Discord again; he pronounced talaq (again) on 28.8.2006 and left on 30.8.2006. At the CAW cell on 3.10.2006 he disclosed the October 2005 talaq; on 12.12.2006 she filed a written complaint leading to an **FIR u/ss. 376/34 IPC** — that the intercourse between 13.4.2006 and 19.4.2006 was rape, her consent having been procured by the fraud that he was still her husband. The **ASJ dismissed his bail** holding triple talaq = irrevocable talaq-ul-biddat; the second nikah void absent an intervening halala marriage; her consent "tainted". Masroor moved the High Court to quash the FIR.

The five questions framed

1. What is the legality and effect of a **triple talaq**?
2. Does a **talaq given in anger** result in dissolution of marriage?
3. What is the effect of **non-communication** of the talaq to the wife?
4. Was the purported **talaq of October 2005 valid?**
5. What is the effect of the **second nikah of 19.4.2006**?

Preliminary concepts set out by the Court: usul al-fiqh (Quran, hadis/sunna, ijma, qiyas); ijtihad and the schools; **fatwa (advisory, by a mufti) vs qaza (binding judgment, by a qazi)** — both must rest on the shariat; s. 2 Shariat Act 1937; DMMA 1939 and the Maliki principle; khula/mubaraat/lian; and Zohara Khatoon on the unilateral talaq being peculiar to Muslim law.

• Arguments of the parties
Petitioner (husband): (1) the alleged October 2005 triple talaq did not dissolve the marriage — it was invalid and uncommunicated (*Riaz Fatima v. Mohd Sharif*, 135 (2006) DLT 205; *Dagdu Chotu Pathan v. Rahimbi Dagdu Pathan*, 2002(3) MhLJ 602 FB; *Dilshad Begum* (Bom, 17.1.2007); *Shamim Ara*); (2) the complainant continued to be his wife — a wife is expressly excepted from s. 375 IPC, so no rape; (3) in any event triple talaq in a single sitting is, at best, **one** talaq, making the second nikah permissible; (4) consent before the 19.4.2006 nikah may be presumed (*State of A.P. v. P Narasimha*, 1994 SCC (Cri) 1180).

State/Complainant: the prosecution rested on the talaq of October 2005 having dissolved the marriage — so the husband had deceived her into intercourse; the ASJ's bail order treated biddat as irrevocable and the second nikah as religiously impermissible without halala.

[Yes] Decision — the five answers

1. **Legality of triple talaq:** ahsan and hasan have "legal recognition under all fiqh schools"; but talaq-e-bidaat is **bidaat — an innovation, sinful, deprecated by the Prophet**, not approved by any school, and **not a valid divorce in Shia law**; even among Sunnis many hold three pronouncements in one sitting to be **one rajai talaq**. "Its harsh abruptness has brought about extreme misery to the divorced women and even to the men..." — "if it is rooted out such a move would not be contrary to any basic tenet of Islam or the Quran or any ruling of the Prophet Muhammad." **Held: a triple talaq, even for Sunni Muslims, shall be regarded as ONE revocable talaq** — giving the husband time to think, the family time to reconcile, and (after iddat) the option of a fresh nikah on fresh mahr terms.
2. **Talaq in anger:** "If a talaq is pronounced in **extreme anger where the husband has lost control of himself it would not be effective or valid**."
3. **Communication:** Pronouncement "materially alters the status of the wife" — her iddat rights of residence and maintenance, deferred dower, custody, right to pledge the husband's credit, and the very possibility of reconciliation all presuppose knowledge. "Communication is an essential element of pronouncement." Where the wife is present, pronouncement and communication are simultaneous; where absent, "the talaq would be effective from the date the pronouncement is communicated to the wife"; if not communicated at all within a reasonable time, "a vital ingredient of pronouncement would be missing and such a talaq would not take effect."
4. **The October 2005 talaq — invalid:** (i) given, if at all, in extreme anger; (ii) never communicated at least till 13.4/19.4.2006; (iii) no attempt at reconciliation in the Quranic manner, before or after. Hence the marital tie subsisted through 13.4–19.4.2006 → **no offence of rape**; the wife remained his wife (s. 375 exception).
5. **Second nikah:** "not necessary" — the marriage never having dissolved, the second nikah was of no effect; had the talaq been valid it would (per the Court's view) have operated as one revocable talaq and the remarriage would have been permissible (with presumption of consent just prior). **FIR quashed** — the Court also noted the parties' genuine settlement and their daughter.

Principle evolved (1) Triple talaq in one sitting = **one revocable talaq** (a fortiori after Shamim Ara's procedural discipline); (2) talaq in **extreme anger is invalid**; (3) **communication is an essential element** — no communication, no talaq; (4) reconciliation (arbitration) is essential — before an irrevocable talaq, and for a revocable talaq either before pronouncement or during iddat; (5) a fatwa is merely advisory and cannot alter legal status. **Note:** Masroor Ahmed's liberal construction was later overtaken by **Shayara Bano (2017)**, which voided talaq-e-biddat altogether.

(7) Shayara Bano v. Union of India `THE TRIPLE TALAQ JUDGMENT`
(2017) 9 SCC 1 · Supreme Court · 5-Judge Constitution Bench · decided 22 August 2017 · Writ Petition (C) No. 118 of 2016
• Facts
Shayara Bano, married in 2002, was in April 2016 given an instant **talaq-e-biddat** (triple talaq) by her husband at her parents' home in Uttarakhand. She moved the Supreme Court under Art. 32 pleading that talaq-e-biddat, **nikah halala** and **polygamy** practised by Muslims violated Arts. 14, 15, 21 and 25 of the Constitution. She was joined by intervening women petitioners (**Aafreen Rehman,**

Gulshan Parveen, Ishrat Jahan, Atiya Sabri); respondents included the Union of India, the **All India Muslim Personal Law Board** and Jamiat Ulama-i-Hind. A 5-judge Constitution Bench (CJI J.S. Khehar, Kurian Joseph, R.F. Nariman, U.U. Lalit, S. Abdul Nazeer JJ.) confined itself to **one question: whether talaq-e-biddat has legal sanction** (leaving halala and polygamy open).

Issues

1. Is talaq-e-biddat (instant triple talaq) an integral/essential part of Islamic practice protected by Art. 25?
2. Is the talaq-e-biddat form of divorce "law in force" under Art. 13(1) (via s. 2 of the Shariat Act, 1937) amenable to fundamental-rights scrutiny?
3. Does instant triple talaq violate Arts. 14 (equality/non-arbitrariness), 15 and 21?
4. If invalid, what is the remedy — declaration, injunction and legislative space?

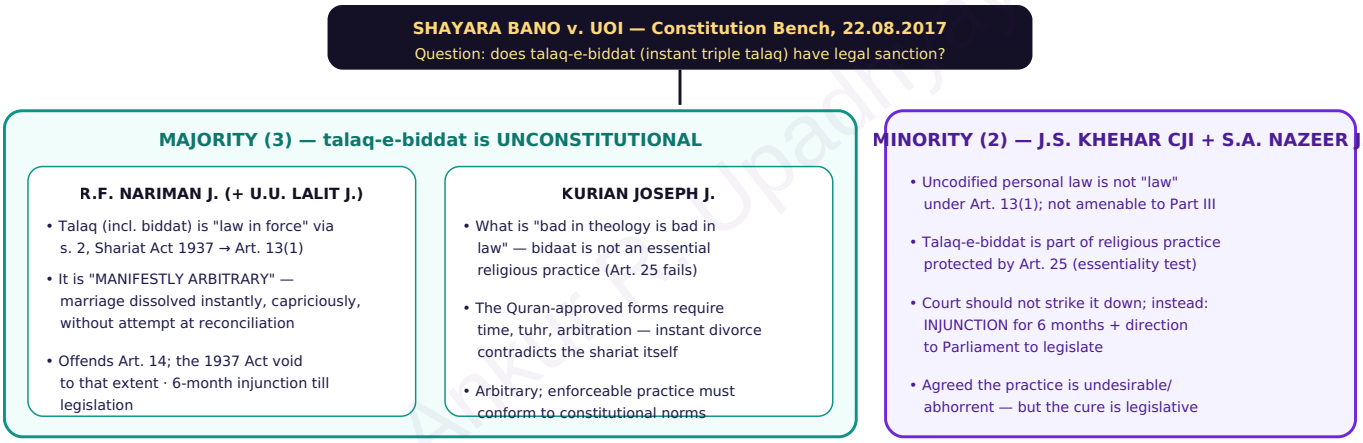
• Arguments of the parties

Petitioners: talaq-e-biddat is a "sinful innovation" of the Omayyad era, abhorred by the Quran's own scheme (3 monthly pronouncements across tuhrs with arbitration, per Surahs II:228-229, IV:35, XXXIII:49); it is not an essential religious practice; s. 2 of the Shariat Act made talaq "law", hence subject to Part III; it is **manifestly arbitrary** — an uncanalised, unguided power dissolving marriage at whim, unequally burdening only Muslim wives; several Muslim-majority countries (Pakistan, Bangladesh, and others) had already legislated against it.

Respondents (AIMPLB/Jamiat): talaq-e-biddat is a matter of personal law/religious practice since 1400 years; uncodified personal law is not "law in force" under Art. 13, hence immune from fundamental-rights review; the Court should not direct legislation; at best, the community would reform itself (the AIMPLB even offered guidelines and a suggestion of a stipulation against instant talaq in nikahnamas). The Union of India supported the petitioners.

[Yes] Decision — 3 : 2, talaq-e-biddat set aside

Fig. 9 — The bench and the three opinions



Operative order: by majority, "the practice of talaq-e-biddat — triple talaq (in any one of its three forms)" is **set aside** as unconstitutional/void; the Union was asked to consider legislation. The decision thus produced the **Muslim Women (Protection of Rights on Marriage) Act, 2019**.

Principles evolved (1) **Personal law as statutory law is subject to Part III** — s. 2 of the Shariat Act, 1937, by making shariat the rule of decision, brings talaq within Art. 13(1); (2) **manifest arbitrariness** is an independent ground to invalidate "law" under Art. 14 (later applied in Joseph Shine, Swiss Ribbons); (3) **essential religious practices** — a practice sinful and disapproved within the religion itself is not essential, hence unprotected; (4) what is "bad in theology is bad in law". **Capstone of the arc:** Rashid Ahmad (1932, PC — bidaat valid) → Shamim Ara (2002 — must be proved + cause + arbitration) → Masroor Ahmed (2008 — one revocable talaq; communication essential) → **Shayara Bano (2017 — no instant triple talaq at all)** → 2019 Act (criminalised).

Supporting authorities referred to within these judgments (quick reference)

Case	Cited in	Proposition
Jiauddin Ahmed v. Anwara Begum, (1981) 1 GLR 358 (Baharul Islam J.)	Shamim Ara; Masroor Ahmed	Talaq must be for reasonable cause + arbitration attempt by two arbiters is an essential condition precedent; "whimsical divorce good in law though bad in theology" rejected.
Mst. Rukia Khatun v. Abdul Khalique Laskar, (1981) 1 GLR 375 (DB)	Shamim Ara; Masroor Ahmed	Restates the two-step Quranic law; dissents from Calcutta & Bombay views (ILR 59 Cal 833; ILR 30 Bom 537) as incorrect law.
Pathayi v. Moideen, 1968 Ker LT 763; **Mohammed Haneefa v. Pathummal Beevi**, 1972 Ker LT 512 (V. Khalid J.)	Shamim Ara	Quoted to show the then-prevailing "unbridled power" doctrine — and the judicial conscience against it ("Should Muslim wives suffer this tyranny for all times?").
Bai Tahira v. Ali Hussain Fisseni Chinoy, AIR 1979 SC 362	Shamim Ara	Beneficent, Art. 15(3)-informed construction of protective provisions for the "ill-used wife and derelict divorcee".

Case	Cited in	Proposition
Rahmat Ullah v. State of U.P., (1994) 2 DMC 64 (All); **Khatoon Nisa v. State of U.P.**, (2002) 6 SCALE 165 (SC)	LexisNexis commentary	Allahabad HC (Tilhari J.) declared triple talaq invalid (obiter); the SC overruled the HC on facts (land-ceiling) without deciding the larger constitutional question — "until… the same arises in appropriate case": later answered by Shayara Bano.
Zohara Khatoon v. Mohd. Ibrahim, (1981) 2 SCC 509	Masroor Ahmed	Unilateral divorce by simple declaration is "especially peculiar to Mahomedan law" — no other law gives the husband such a right.
Abdul Kadir v. Salima, ILR 8 All 149 (FB); **Moonshee Buzloor Ruheem v. Shumsoonissa Begum**, 11 Moo IA 551	Itwari	Muslim marriage = civil contract; RCR = enforcement of consortium; courts act as courts of equity; disobedience enforceable by imprisonment/attachment.
Ayatunnessa Beebee v. Karam Ali, ILR 36 Cal 23; **Badu Mia v. Badrannessa**, AIR 1919 Cal 511	Itwari	Wife's stipulated/delegated divorce on husband's second marriage valid; "a second marriage is not a single but a continuing wrong to the first wife".
Mt. Sofia Begum v. Zaheer Hasan, AIR 1947 All 16; **Hamid Hussain v. Kubra Begum**, AIR 1918 All 235; **Nawab Bibi v. Allah Ditta**, AIR 1924 Lah 188; **Khurshid Begum v. Abdul Rashid**, AIR 1926 Nag 234	Itwari	DMMA reflects legislative amelioration; equity refuses RCR on worst-of-terms/property-fight facts even without proven physical cruelty.
Shamsunnissa Begum (PC); **Simpson v. Simpson**, (1951) 1 All ER 955	Itwari	Mohammedan law ≈ English law on legal cruelty; husband presumed to intend natural consequences of taking a second wife.
Atkia Begum v. Muhammad Ibrahim, 36 IC 20 (PC); **Shatrugan Das v. Sham Das**, AIR 1938 PC 59	Ghulam Sakina	PC disapproved inferring consummation from refusal of medical examination; PC on the impropriety of a party using his opponent as his own witness.
Abdul Karim v. Amina Bai, AIR 1935 Bom 308	Ghulam Sakina	Assent to an infant marriage must come after puberty; consummation without her consent does not bar the option of puberty.
Amma Khatoon v. Kashim Ansari, AIR 2001 Jhar 28	LexisNexis commentary	s. 2(ix) DMMA stretched to irretrievable breakdown — marriage dissolved where partners lived with hostility for years.
State of A.P. v. P. Narasimha, 1994 SCC (Cri) 1180	Masroor Ahmed	Presumption of consent to sexual acts just prior to marriage (relevant to the second-nikah branch).

PART 6

Effects of Divorce & the Post-Shayara Bano Position

6.1 Effects of divorce (Settled Mahomedan Law)

(1) Remarriage

Consummated marriage: the wife may marry another husband **after iddat**; if not consummated, she is free to marry immediately. A husband who had four wives (incl. the divorced one) may marry another after her iddat.

(2) Dower

On divorce of a consummated marriage, the whole unpaid dower — **prompt and deferred — becomes immediately payable**; if not consummated: half the specified dower, or (if unspecified) three articles of dress. s. 5 DMMA saves her dower rights.

(3) Inheritance

Mutual rights of inheritance cease the moment the divorce becomes **irrevocable** (exception: talaq during the husband's death-illness — wife inherits until iddat expires).

During iddat she also keeps the right of residence and maintenance (Masroor Ahmed, para 35), and her right to pledge the husband's credit for subsistence ends only on knowledge of the divorce. **Post-iddat maintenance** of a divorced Muslim woman is governed by the Muslim Women (Protection of Rights on Divorce) Act, 1986 as read in **Danial Latifi v. UOI** (2001) 7 SCC 740 — a **Unit IX** topic (fair and reasonable provision beyond iddat, payable by relatives/Wakf Board/state); recall it here only as a cross-reference.

6.2 The current law of talaq — Shayara Bano + the 2019 Act

After **22 August 2017**, talaq-e-biddat has no legal sanction; after **1 August 2019**, it is also a statutory wrong:

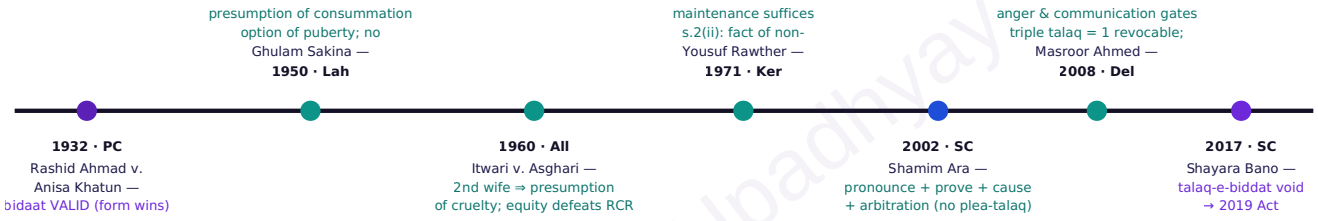
Muslim Women (Protection of Rights on Marriage) Act, 2019	Provision
s. 3 — Declaration	Any pronouncement of talaq-e-biddat by a Muslim husband upon his wife, in any manner — spoken, written, electronic (SMS, email, WhatsApp etc.) — is **void and illegal**.

Muslim Women (Protection of Rights on Marriage) Act, 2019	Provision
s. 4 — Punishment	Whoever pronounces talaq-e-biddat: imprisonment up to **3 years + fine**; offence **cognizable** (arrest without warrant, but only on information by the married Muslim woman upon whom talaq is pronounced), **non-bailable**, triable by Magistrate First Class.
s. 5 — Allowance & custody	The married Muslim woman upon whom talaq-e-biddat is pronounced is entitled to an **allowance for herself and her dependent children** (determined by the Magistrate) from the husband, and **custody of her minor children**, "in such manner as may be determined by the Magistrate".
s. 7 — Compoundability	The offence is **compoundable** at the instance of the married Muslim woman on settlement; a Magistrate may also grant bail to the accused, and the offence is non-cognizable in the stated sense.

Exam nuance: The 2019 Act makes instant talaq void *and* criminal — so the marriage **continues**; the correct modes now are talaq (ahsan/hasan), khula, mubarat, tafweez, or a DMMA decree. Critics (incl. the dissent's logic) argue criminalisation converts a civil wrong into a crime; supporters point to Shayara Bano's direction to legislate.

6.3 Judicial evolution — the full arc

Fig. 10 — Timeline: from "valid though sinful" to unconstitutional



Between 1981: Gauhati (Jiauddin Ahmed; Rukia Khatun) supply the Quranic two-step test the Supreme Court later adopts.

PART 7

Comparative Tables & Rapid Revision

Point of difference	Sunni (Hanafi)	Shia (Ithna Ashari)
Form of words	No particular form; even ambiguous words work with intention; not necessary to be in Arabic	Must be in Arabic in specific form (agent may pronounce); oral only
Witnesses	Not required	Two competent male witnesses of approved probity required
Under compulsion / jest / intoxication / extreme anger	Valid (classical); but Masroor Ahmed — extreme anger (loss of control) invalid	Invalid
Contingent talaq	Recognised	Not recognised
Written talaq / talaqnama	Valid; operates as bain from execution	Invalid unless husband physically incapable of oral pronouncement
Talaq-ul-bidaat	Valid though sinful (classical); Masroor Ahmed — one revocable talaq; Shayara Bano — unconstitutional	Not recognised at all
Khula	With wife's consideration (dower release)	Recognised; stricter on witnesses/form
Lian	Suit lies; retraction before hearing defeats decree	Lian dissolution unavailable to minor/ insane/deaf-and-dumb wife

DMMA ground	Statutory period / condition	Statutory brake (provisos)	Key authority
(i) Whereabouts unknown	4 years	Decree inert 6 months; set aside if husband appears & undertakes conjugal duties; s. 3 notice to heirs	Settled Mahomedan Law
(ii) Failure to maintain	2 years	None in text — the omission fuels the debate	**Yousuf Rawther**; Nagpur/Raj/Pesh/All contra

DMMA ground	Statutory period / condition	Statutory brake (provisos)	Key authority
(iii) Imprisonment	7 years or upwards	Only after sentence final	Settled Mahomedan Law
(iv) Failure of marital obligations	3 years	"Without reasonable cause"	Settled Mahomedan Law
(v) Impotency	At marriage + continuing	1-year cure window on application	Settled Mahomedan Law
(vi) Insanity / VVD	Insanity 2 years; VVD any duration	Leprosy omitted (2019)	Settled Mahomedan Law
(vii) Option of puberty	Married <15 by father/guardian; repudiate <18; not consummated	Consummation proviso — read down by **Ghulam Sakina**	**Ghulam Sakina**; Rabia Khatoon (All)
(viii) Cruelty (a)–(f)	Six enumerated facets	Interpreted with social conditions; 2nd wife ⇒ presumption (Itwari)	**Itwari**; Shahina Praveen
(ix) Residuary	Any ground valid under Muslim law	Covers lian, khula-type claims, kafat, breakdown	Amma Khatoon (Jhar)

Mnemonics & one-line answers

DMMA grounds in order: "W-F-I-F-I-I-R-C-O"

Whereabouts 4y · **F**ailure to maintain 2y · **I**mprisonment 7y · **F**ailed obligations 3y · **I**mpotent · **I**nsane 2y/VVD · **R**epudiation 15→18 · **C**ruelty (a-f) · **O**ther grounds.

Shamim Ara test: "P-C-R-C"

Pronouncement proved · **C**ause reasonable · **R**echconciliation (2 arbiters) · **C**ommunication to wife (Masroor addition).

Khula vs Mubarat

K = Khula = **K**amzor (weaker) side — wife alone moves, gives consideration; **M = M**utual — both move, no consideration needed; both = talak-i-bain + iddat.

Shayara Bano numbers

5 judges · 3:2 · 2 routes (Art. 14 manifest arbitrariness — Nariman/Lalit; not essential practice — Kurian Joseph) · **2019** — void + 3-year jail + allowance.

DU LL.B. EXAMINATION ARCHIVE

Previous Year Questions — Unit 08: Divorce & Dissolution of Marriage under Muslim Law

Q.01 20 marks · asked 2017 (Q6), 2018 (Q7), 2019 (Q8a), 2020 (Q5), 2021 (Q5), 2022 (Q7) — the paper's favourite

Discuss the validity of Talaq under Muslim law with reference to statutory provisions and case law. / Critically examine the law relating to Triple Talaq (Talaq-e-Biddat) in India.

● **Refer website for detailed notes — makelaweasy.in**

Q.02 10 marks · asked 2023 (Q8b)

Dissolution of Muslim Marriages Act, 1939 — state the grounds on which a Muslim wife may obtain a decree for dissolution of her marriage.

Q.03 10 marks · asked (Q3a)

Explain the Option of Puberty under Hindu and Muslim law.

Q.04 20 marks · recurring (DMMA/ Divorce theme; pairs with Q8b-2023 & Yousuf Rawther)

The words 'has failed to provide' in s. 2(ii) of the Dissolution of Muslim Marriages Act, 1939 imply a duty to provide." Critically examine this statement with case law.

Q.05 10 marks · asked (Q1d)

What is a fasid (irregular) marriage? State its legal implications.

Q.06 10 marks · asked (Q1c, Q8a)

Write a note on Muta marriage and its legal implications (Nikah vs Muta).

Q.07 10–20 marks · asked (Q8a, Q6) — Unit VIII/IX bridge
Discuss the claim of a Muslim wife to maintenance under s. 125 CrPC and the effect of a plea of talaq on it.

Q.08 20 marks · asked (Q7a & b; Q1) — Unit VII bridge (needed for divorce answers)
State the essentials of a valid nikah under Sunni and Shia law.

Q.09 10 marks · asked (Q1b)
Compare prohibited relationships under Hindu and Muslim law.

by Ankur R. Upadhyay